



**US Army Corps
of Engineers®**
New York District

THIS IS AN UNRESTRICTED PROCUREMENT NAICS CODE 237990
SAFETY PAYS

MAINTENANCE DREDGING

**HAGUE BASIN,
U.S. MERCHANT MARINE ACADEMY,
KINGS POINT, NEW YORK**

Solicitation &

Specifications

IFB No. W912DS26BA011

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SECTION 00 00 01

COVER SHEET

01/20

PART 1 GENERAL

**NEW YORK DISTRICT
CORPS OF ENGINEERS
NEW YORK, NEW YORK 10278-0090**

**INVITATION FOR BIDS
FOR
MAINTENANCE DREDGING
HAGUE BASIN
U.S. MERCHANT MARINE ACADEMY,
KINGS POINT, NEW YORK**

1. Attached is INVITATION FOR BIDS (IFB) NO. W912DS26BA011.
2. BIDS MUST SET FORTH full, accurate, and complete information as requested by this Invitation for Bids, including attachments. The penalty for making false statements in bids is prescribed in Title 18, United States Code, Section 1001.
3. SUBMISSION OF BIDS: Complete details concerning proper submission of bids are contained in the INSTRUCTIONS, CONDITIONS, AND NOTICES TO BIDDERS (Section 00 21 13).
4. REPRESENTATIONS AND CERTIFICATIONS- SECTION 00 45 00
Bidders and Offerors are required to complete the REPRESENTATIONS AND CERTIFICATIONS and submit them with their bids.
5. THIS PROJECT IS NOT A SMALL BUSINESS SET-ASIDE.

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SECTION 00 00 02

CHECK LIST FOR BIDDERS

01/20

PART 1 GENERAL

ATTACHED IS IFB FOR:

Maintenance Dredging, Hague Basin, U.S. Merchant Marine Academy, Kings Point, New York

ALL INFORMATION REQUIRED BY THE TERMS OF THIS SOLICITATION MUST BE FURNISHED. MISTAKES OR OMISSIONS MAY RENDER YOUR BID INELIGIBLE FOR AWARD. IMPORTANT ITEMS FOR YOU TO CHECK ARE INCLUDED IN BUT NOT LIMITED TO THOSE LISTED BELOW. THIS INFORMATION IS FURNISHED ONLY TO ASSIST YOU IN SUBMITTING A PROPER BID.

- ☐ HAVE YOU ACKNOWLEDGED ALL AMENDMENTS?
- ☐ HAVE YOU COMPLETED THE "REPRESENTATIONS AND CERTIFICATIONS" (SECTION 00 45 00) PORTION OF THE SOLICITATION?
- ☐ IS YOUR UNIQUE ENTITY IDENTIFIER LISTED ON THE STANDARD FORM 1442?
- ☐ IS YOUR BID PROPERLY SIGNED?
- ☐ A BID BOND IS REQUIRED. HAS YOUR SURETY PROVIDED YOU WITH A BID BOND ON STANDARD FORM 24 OR A SIMILAR FORM CONTAINING THE SAME LANGUAGE AS A STANDARD FORM 24?
- ☐ IS YOUR BID GUARANTEE IN THE PROPER AMOUNT?
- ☐ IS YOUR BID GUARANTEE PROPERLY SIGNED BY BOTH THE BIDDER AND SURETY AND ARE ALL REQUIRED SEALS AFFIXED?
- ☐ IS THE NAME IN WHICH YOU SUBMITTED THE BID THE SAME ON YOUR BID AS ON THE BID BOND?
- ☐ IS YOUR BID BOND INCLUDED WITH YOUR BID? (A LATE BID GUARANTEE IS TREATED THE SAME AS A LATE BID)
- ☐ HAVE YOU ENSURED THAT YOU HAVE NOT RESTRICTED YOUR BID BY ALTERING THE PROVISIONS OF THE SOLICITATION?
- ☐ WHEN REQUIRED, HAVE YOU ENTERED A UNIT PRICE FOR EACH BID ITEM? (THE SOLICITATION SPECIFICALLY STATES WHEN THIS IS NECESSARY.)
- ☐ ARE DECIMALS IN YOUR PRICES IN THE PROPER PLACE? ARE YOUR FIGURES LEGIBLE?
- ☐ IF YOU HAVE MADE ERASURES OR CORRECTIONS ON YOUR BID, ARE THEY INITIALED BY THE PERSON SIGNING THE BID?

___ DOES THE ENVELOPE CONTAINING YOUR BID PROPERLY IDENTIFY THAT IT IS A
SEALED BID AND DOES IT CONTAIN THE CORRECT SOLICITATION NUMBER AND BID
OPENING TIME?

___ WILL YOUR BID ARRIVE ON TIME? (SEE PARAGRAPH ENTITLED "LATE SUBMISSIONS,
MODIFICATIONS, AND WITHDRAWALS OF BIDS" IN THE INSTRUCTIONS, CONDITIONS,
AND NOTICES TO BIDDERS, SECTION 00 21 13 OF THE SOLICITATION.)

NOTE: THERE ARE INCREASED SECURITY MEASURES AT JACOB K. JAVITS FEDERAL
BUILDING, 26 FEDERAL PLAZA THAT MAY AFFECT THE TIME IT TAKES TO ENTER THE
BUILDING. BIDDER IS RESPONSIBLE TO ENSURE THAT ITS BID IS SUBMITTED TIMELY.

-- End of Section --

PROJECT TABLE OF CONTENTS**DIVISION 00 - PROCUREMENT AND CONTRACTING REQUIREMENTS**

00 01 15	02/24	LIST OF DRAWINGS
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DIVISION 01 - GENERAL REQUIREMENTS

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01 30 00	01/20	ADMINISTRATIVE REQUIREMENTS
01 32 01.00 10	08/23, CHG 1: 08/24	PROJECT SCHEDULE
01 33 00	08/18, CHG 4: 02/21	SUBMITTAL PROCEDURES
01 35 26	11/20, CHG 4: 08/23	GOVERNMENTAL SAFETY REQUIREMENTS
01 42 00	05/24	SOURCES FOR REFERENCE PUBLICATIONS
01 45 00	08/23, CHG 1: 05/24	QUALITY CONTROL
01 45 00.15 10	11/23	RESIDENT MANAGEMENT SYSTEM CONTRACTOR MODE (RMS CM)
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35 20 23	08/20	DREDGING
35 20 29	03/22	DREDGED MATERIAL TRANSPORT AND PLACEMENT MONITORING

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SECTION TABLE OF CONTENTS

DIVISION 00 - PROCUREMENT AND CONTRACTING REQUIREMENTS

DOCUMENT 00 01 15

LIST OF DRAWINGS

02/24

PART 1 GENERAL

1.1 SUMMARY

1.2 CONTRACT DRAWINGS, MAPS, & SPECIFICATIONS

-- End of Section Table of Contents --

DOCUMENT 00 01 15

LIST OF DRAWINGS
02/24

PART 1 GENERAL

1.1 SUMMARY

This section lists the drawings for the project pursuant to contract clause "DFARS 252.236-7001, Contract Drawings and Specifications."

1.2 CONTRACT DRAWINGS, MAPS, & SPECIFICATIONS

- a. The Government will provide to the Contractor, without charge, one set of contract drawings and specifications, except publications incorporated into the technical provisions by reference, in electronic or paper media as chosen by the Contracting Officer.
- b. The Contractor shall:
 - (1) Check all drawings furnished immediately upon receipt;
 - (2) Compare all drawings and verify the figures before laying out the work;
 - (3) Promptly notify the Contracting Officer or Contracting Officer's Representative of any discrepancies;
 - (4) Be responsible for any errors that might have been avoided by complying with this paragraph (b); and
 - (5) Reproduce and print contract drawings and specifications as needed.
- c. In general:
 - (1) Large-scale drawings shall in general govern over small-scale drawings. Information and data provided in contract specifications shall govern over similar information and data specified in contract drawings; and
 - (2) The Contractor shall follow figures marked on drawings in preference to scale measurements.
- d. Omissions from the drawings or specifications or the misdescription of details of work which are manifestly necessary to carry out the intent of the drawings and specifications, or that are customarily performed, shall not relieve the Contractor from performing such omitted or misdescribed details of work. The Contractor shall perform such details as if fully and correctly set forth and described in the drawings and specifications.
- e. The work shall conform to the following contract drawings and maps, all of which form a part of these specifications and are available in the office of the District Engineer, U.S. Army Corps of Engineers, New York District, 26 Federal Plaza, New York, N.Y.

10278-0090:

Contract drawings are as follows:

MAINTENANCE DREDGING HAGUE BASIN, U.S. MERCHANT MARINE ACADEMY, KINGS POINT, NEW YORK	
DRAWING NO.	TITLE
G-001	COVER SHEET & INDEX
G-101	PROJECT SITE PLAN & NOTES
C-101	DRDGING AREAS & SOUNDING MAP

f. The Contractor shall check all drawings furnished to him immediately upon their receipt and shall promptly notify the Contracting Officer or Contracting Officer's Representative of any discrepancies. Figures marked on drawings shall in general be followed in preference to scale measurements unless dimensions are specified. Large-scale drawings shall in general govern over small-scale drawings. Information and data provided in contract specifications shall govern over similar information and data specified in contract drawings. The Contractor shall compare all drawings and verify the figures before laying out the work and will be responsible for any errors which might have thereby been avoided (DOD FAR Suppl. 52.236-7002).

-- End of Section --

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DIVISION 00 - PROCUREMENT AND CONTRACTING REQUIREMENTS

SECTION 00 10 00

SF 1442 AND BIDDING SCHEDULE

01/20

PART 1 GENERAL

1.1 SF 1442 SOLICITATION, OFFER, AND AWARD

1.2 BID SCHEDULE

-- End of Section Table of Contents --

SECTION 00 10 00

SF 1442 AND BIDDING SCHEDULE
01/20

PART 1 GENERAL

1.1 SF 1442 SOLICITATION, OFFER, AND AWARD

To be provided by Contracting Division.

1.2 BID SCHEDULE

To be provided by Contracting Division.

-- End of Section --

SECTION TABLE OF CONTENTS

DIVISION 00 - PROCUREMENT AND CONTRACTING REQUIREMENTS

SECTION 00 21 13

INSTRUCTIONS, CONDITIONS, AND NOTICE TO BIDDERS

01/20

PART 1 GENERAL

-- End of Section Table of Contents --

SECTION 00 21 13

INSTRUCTIONS, CONDITIONS, AND NOTICE TO BIDDERS
01/20

PART 1 GENERAL

To be provided by Contracting Division.

-- End of Section --

SECTION TABLE OF CONTENTS

DIVISION 00 - PROCUREMENT AND CONTRACTING REQUIREMENTS

SECTION 00 45 00

REPRESENTATION AND CERTIFICATION

01/20

PART 1 GENERAL

-- End of Section Table of Contents --

SECTION 00 45 00

REPRESENTATION AND CERTIFICATION
01/20

PART 1 GENERAL

To be provided by Contracting Division.

-- End of Section --

SECTION TABLE OF CONTENTS

DIVISION 00 - PROCUREMENT AND CONTRACTING REQUIREMENTS

SECTION 00 90 00

WAGE RATES

01/20

PART 1 GENERAL

1.1 NOTE

-- End of Section Table of Contents --

SECTION 00 90 00

WAGE RATES
01/20

PART 1 GENERAL

1.1 NOTE

Wage rates provided by Contracting Division.

A copy of the wage rate shall be displayed at a highly visible location on the dredge at all times for the duration of the project.

-- End of Section --

SECTION TABLE OF CONTENTS

DIVISION 00 - PROCUREMENT AND CONTRACTING REQUIREMENTS

SECTION 00 90 00

LIST OF DOCUMENTS, EXHIBITS, AND OTHER ATTACHMENTS

04/08

PART 1 GENERAL

1.1 SUBMITTALS

PART 2 PRODUCTS

PART 3 EXECUTION

3.1 List of Attachments

3.1.1 Attachment A Hague Basin, U.S. Merchant Marine Academy Project
Location Reference Map

3.1.2 Attachment B Sample Daily Construction Quality Control Report

3.1.3 Attachment C Project Sign and Safety Sign

3.1.4 Attachment D Oil and Hazardous Material Operations

3.1.5 Attachment E Guideline for Preparing the Accident Prevention
Plan

3.1.6 Attachment F Daily Reports for Dredging

3.1.7 Attachment G USACE Transportation and Placement Log

3.1.8 Attachment H Daily Site Safety and Health Inspection Log

3.1.9 Attachment I Daily Whale and Turtle Report Logs, Incident
Report of Sturgeon

3.1.10 Attachment J Submittal Register

3.1.11 Attachment K Sampling and Testing Results

3.1.12 Attachment L Federal Aviation Administration (FAA) Obstruction
Evaluation / Airport Airspace Analysis (OE/AAA) Desk Referenace
Guide

3.1.13 Attachment M XYZ Data of Plans and Specifications Survey

-- End of Section Table of Contents --

SECTION 00 90 00

LIST OF DOCUMENTS, EXHIBITS, AND OTHER ATTACHMENTS
04/08

PART 1 GENERAL

1.1 SUBMITTALS

Not Used

PART 2 PRODUCTS

Not Used.

PART 3 EXECUTION

3.1 List of Attachments

The following attachments have been provided for reference to the bidder for use in performing the contract requirements.

3.1.1 Attachment A Hague Basin, U.S. Merchant Marine Academy Project Location Reference Map

3.1.2 Attachment B Sample Daily Construction Quality Control Report

3.1.3 Attachment C Project Sign and Safety Sign

3.1.4 Attachment D Oil and Hazardous Material Operations

3.1.5 Attachment E Guideline for Preparing the Accident Prevention Plan

3.1.6 Attachment F Daily Reports for Dredging

RMS Form 4267.

3.1.7 Attachment G USACE Transportation and Placement Log

3.1.8 Attachment H Daily Site Safety and Health Inspection Log

3.1.9 Attachment I Daily Whale and Turtle Report Logs, Incident Report of Sturgeon

3.1.10 Attachment J Submittal Register

3.1.11 Attachment K Sampling and Testing Results

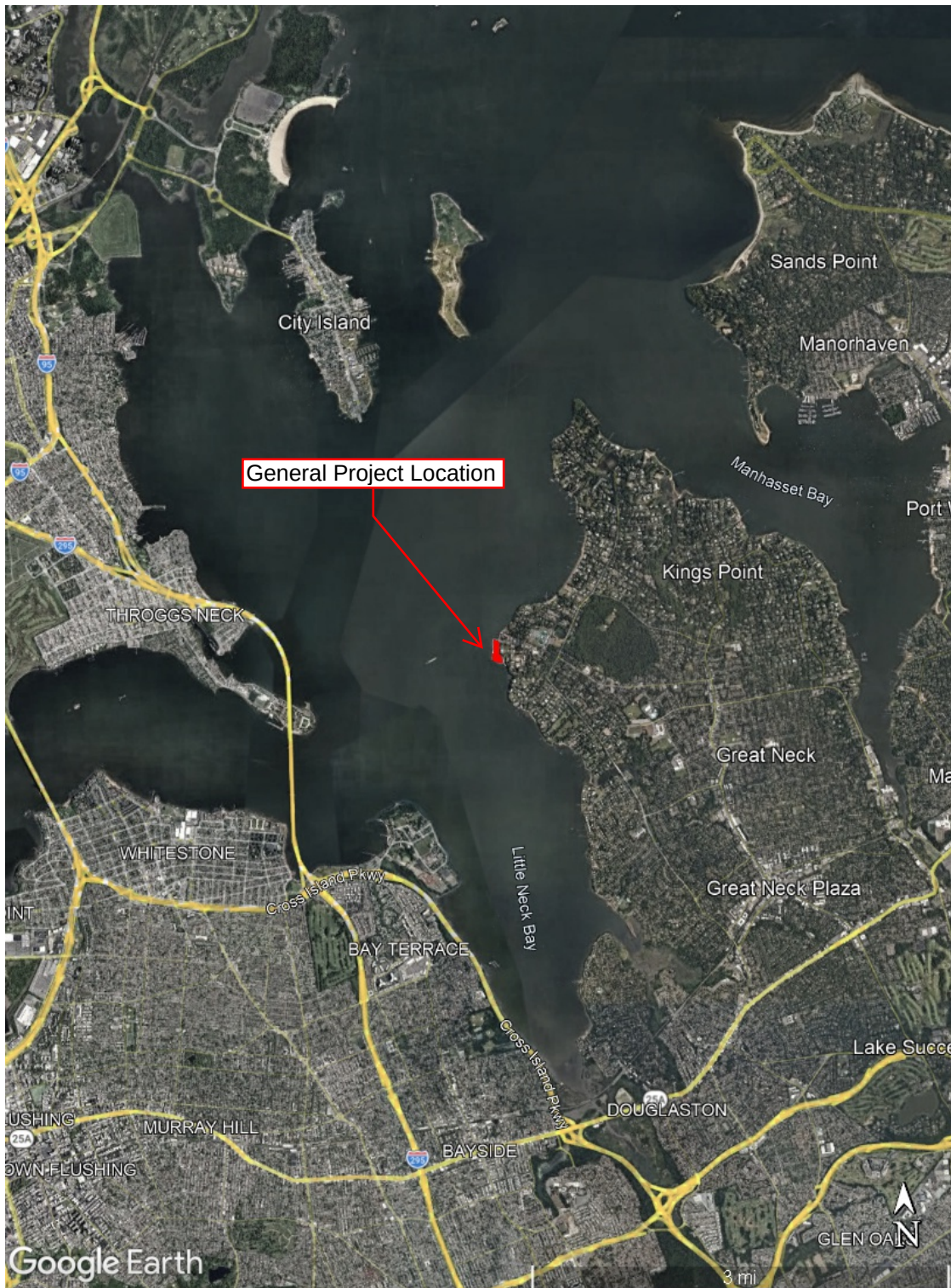
The complete sampling and testing results will be provided as attachments to this solicitation on SAM.gov prior to bid opening.

3.1.12 Attachment L Federal Aviation Administration (FAA) Obstruction
Evaluation / Airport Airspace Analysis (OE/AAA) Desk Referenace Guide

3.1.13 Attachment M XYZ Data of Plans and Specifications Survey

-- End of Section --

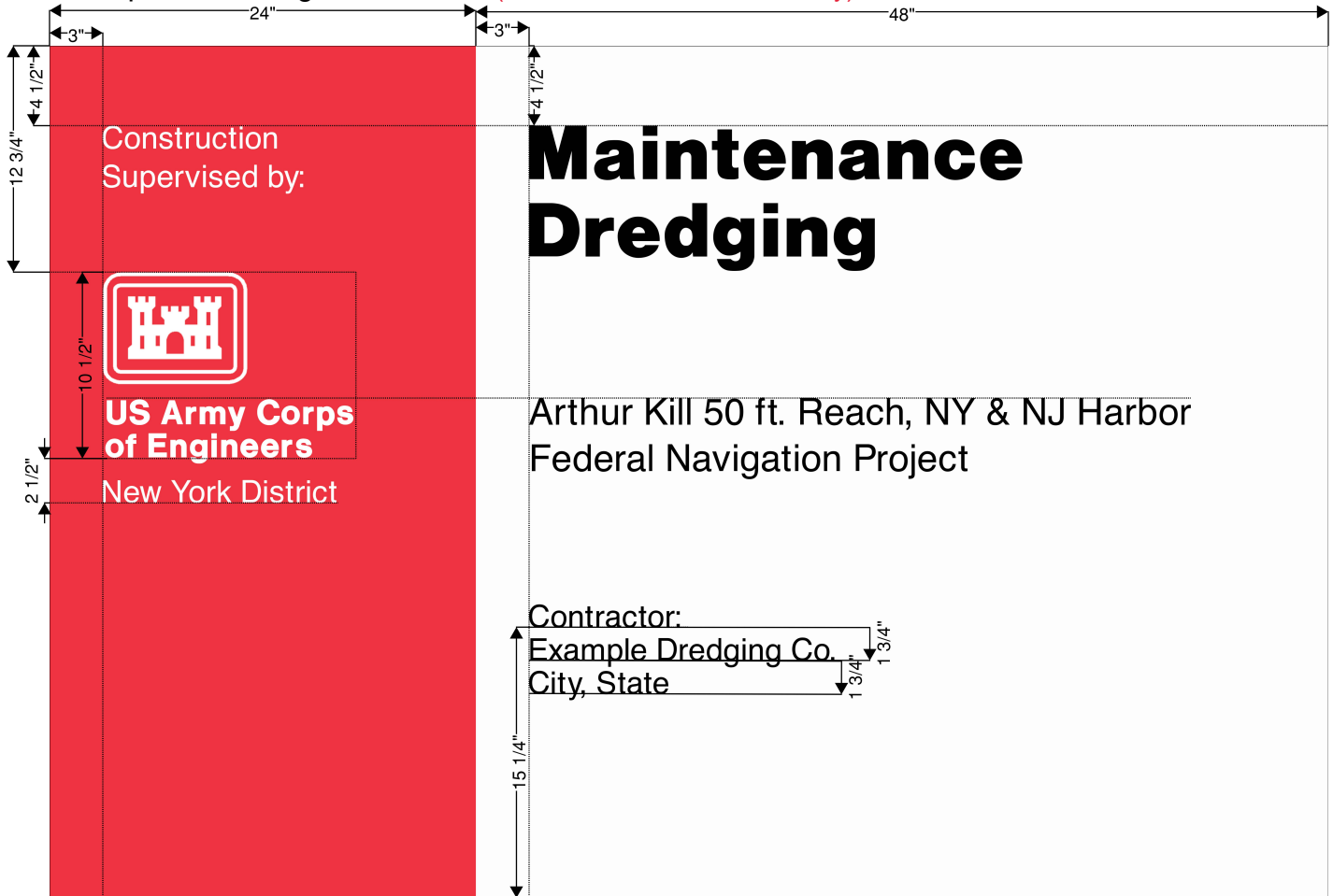
General Project Location Reference Map Hague Basin, U.S. Merchant Marine Academy



CONTRACTORS QUALITY CONTROL REPORT (QCR) DAILY LOG OF CONSTRUCTION				REPORT NUMBER	
				XXX	
				DATE	
				01 Sep 2026 - Monday	
PROJECT				CONTRACT NUMBER	
Maintenance Dredging of Hague Basin, USMMA, Kings Pt., New York				W912DS26CXXXX	
CONTRACTOR			WEATHER		
Dredging Contractor Co.			Weather Caused No Delay Temperature Min X F Max X F No Precipitation No Wind		
QC Narratives XXX					
PREP/INITIAL DATES Preparatory inspections held today: XXX Initial inspections held today: XXX					
ACTIVITY START/FINISH XXX activities were started or finished today					
QC REQUIREMENTS XXX QC requirements were entered today					
ISSUED QA/QC DEFICIENCIES XXX QC Deficiency items were issued today					
CORRECTED QA/QC DEFICIENCY XXX QC Deficiency items were corrected today					
CONTRACTORS ON SITE XXX Contractors had their first or last day on the site					
LABOR HOURS					
Crew	Position			Number of Employees	Hours Worked
No labor hours to report	N/A			X.00	X.00
Total hrs worked to date: XX.00		Hrs worked MTD: XX.00	Total:	X.00	X.00
EQUIPMENT HOURS					
Equipment Name	Description			Idle Hours	Operating Hours
No equipment hours to report				X.00	X.00
Total operating hrs to date: X,XXX.00	Idle hrs MTD: XX.00	Opr hrs MTD: XX.00	Total:	X.00	X.00

00 90 01: Attachment B

Example Rendering Dimensions: (For Dimension Reference Only)



Example Rendering:



The use of signs to identify Corps managed or supervised design, construction, and rehabilitation projects - both for military and civil works - is an important part of efforts to keep the public informed of Corps work. For this purpose, a construction project sign package has been adopted. This package consists of two signs: one for project identification and the other to show on-the-job safety performance of the contractor.

These two signs are to be displayed side by side and mounted for reading by passing viewers. Exact placement location will be designated by the contracting officer's representative.

The panel sizes and graphic formats have been standardized for visual consistency throughout all Corps operations.

Panels are fabricated using HDO plywood or aluminum with dimensional lumber uprights and bracing. The sign faces are nonreflective vinyl.

All legends are to be die-cut or computer-cut in the sizes and typefaces specified and applied to the white panel background following the graphic formats shown on pages 16-2 and 16-3. The Communication Red panel on the left side of the construction project sign with Corps Signature (reverse version) is screen-printed onto the white background.

A display of these two signs is shown on the following two pages. Mounting and fabrication details are provided on page 16-4.

Special applications or situations not covered in these guidelines should be referred to the district Sign Program Manager.

Below are two samples of the Construction Project Identification sign showing how this panel is adaptable for use to identify either military (top) or civil works projects (bottom). The graphic format for this 4'x 6' sign panel follows the legend guidelines and layout as specified below. The large 4'x 4' section of the panel on the right is to be white with black legend. The 2'x 4' section of the sign on the left

with the full Corps Signature (reverse version) is to be screen-printed Communication Red on the white background. The designation of a sponsor in the area indicated is optional with Military or Civil Works construction signs. Signs may list one sponsoring entity. If agreement on a sponsor designation cannot be achieved, the area should be left blank.

This sign is to be placed with the Safety Performance sign shown on the following page. Mounting and fabrication details are provided on page 16-4.

Special applications or situations not covered in these guidelines should be referred to the district Sign Program Manager.

Legend Group 1: One- to two-line description of Corps relationship to project.
Color: White
Typeface: 1.25" Helvetica Regular
Maximum line length: 19"

Legend Group 2: Division or District Name (optional). Placed below 10.5" reverse Signature (6" Castle).
Color: White
Typeface: 1.25" Helvetica Regular

Legend Group 2a: One- to three-line identification of Military or Civil Works sponsor (optional). Place below Corps Signature to cross-align with Group 5a-b.
Color: White
Typeface: 1.25" Helvetica Regular
Maximum line length: 19"

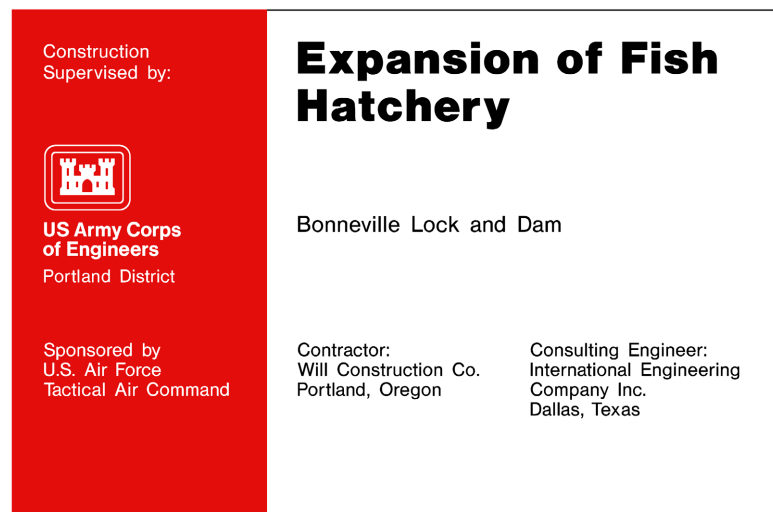
Legend Group 3: One- to three-line project title legend describes the work being done under this contract.
Color: Black
Typeface: 3" Helvetica Bold
Maximum line length: 42"

Legend Group 4: One- to two-line identification of project or facility (civil works) or name of sponsoring department (military).
Color: Black
Typeface: 1.5" Helvetica Regular
Maximum line length: 42"

Cross-align the first line of Legend Group 4 with the first line of the Corps Signature (US Army Corps) as shown.

Legend Groups 5a-b: One- to five-line identification of prime contractors including: type (architect, general contractor, etc.), corporate or firm name, city, state. Use of Legend Group 5 is optional.
Color: Black
Typeface: 1.25" Helvetica Regular
Maximum line length: 21"

All typography is flush left and rag right, upper and lower case with initial capitals only as shown. Letter- and word-spacing to follow Corps standards as specified in Appendix D.



Sign Type	Legend Size (A)	Panel Size	Post Size	Specification Code	Mounting Height	Color Bkg/Lgd
CID-01	various	4'x6'	4"x4"	HDO-3	48"	WH-RD/BK

Each contractor's safety record is to be posted on Corps managed or supervised construction projects and mounted with the Construction Project Identification sign specified on page 16-2.

The graphic format, color, size and typefaces used on the sign are to be reproduced exactly as specified below. The

title with First Aid logo in the top section of the sign, and the performance record captions are standard for all signs of this type. Legend groups 2 and 3 below identify the project and the contractor and are to be placed on the sign as shown.

Safety record numbers are mounted on individual metal plates and are screw-

mounted to the background to allow for daily revisions to posted safety performance record.

Special applications or situations not covered in these guidelines should be referred to the district Sign Program Manager.

Legend Group 1: Standard two-line title "Safety is a Job Requirement" with 8" (outside diameter) Safety Green first aid logo.
Color: To match Pantone system 347
Typeface: 3" Helvetica Bold
Color: Black

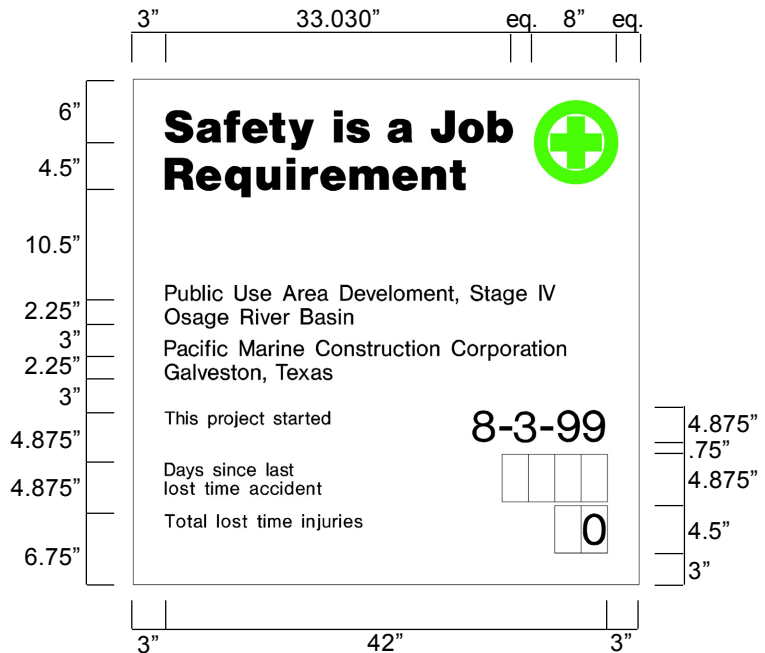
Legend Group 2: One- to two-line project title legend describes the work being done under this contract and name of host project.
Color: Black
Typeface: 1.5" Helvetica Regular
Maximum line length: 42"

Legend Group 3: One- to two-line identification: name of prime contractor and city, state address. Color: Black
Typeface: 1.5" Helvetica Regular
Maximum line length: 42"

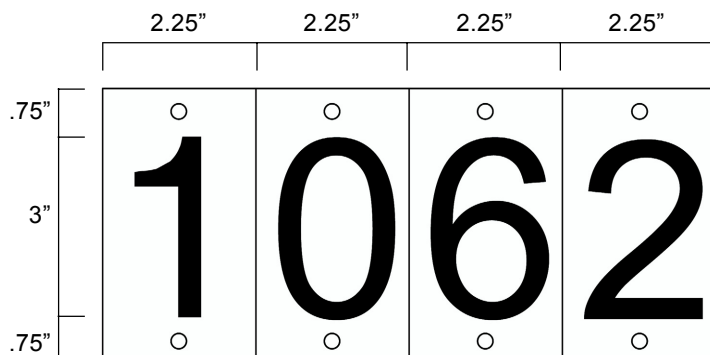
Legend Group 4: Standard safety record captions as shown.
Color: Black
Typeface: 1.25" Helvetica Regular

Replaceable numbers are to be mounted on white .060 aluminum plates and screw-mounted to background.
Color: Black
Typeface: 3" Helvetica Regular
Plate size: 2.5" x 4.5"

All typography is flush left and rag right, upper and lower case with initial capitals only as shown. Letter- and word-spacing to follow Corps standards as specified in Appendix D.



Sign Type	Legend Size (A)	Panel Size	Post Size	Specification Code	Mounting Height	Color Bkg/Lgd
CID-02	various	4"x4'	4"x4"	HDO-3	48"	WH/BK-SG



All Construction Project Identification signs and Safety Performance signs are to be fabricated and installed as described below. The signs are to be erected at a location designated by the contracting officer representative and shall conform to the size, format, and typographic standards shown on pages 16-2 and 16-3. Detailed specifications

for HDO plywood panel preparation are provided in Appendix B.

For additional information on the proper method to prepare sign panel graphics, contact the district Sign Program Manager.

Shown below the mounting diagram is a panel layout grid with spaces provided for project information. Photocopy this page and use as a worksheet when preparing sign legend orders.

The sign panels are to be fabricated from .75" High Density Overlay Plywood. Panel preparation to follow HDO specifications provided in Appendix B.

Sign graphics to be prepared on a white nonreflective vinyl film with positionable adhesive backing.

All graphics except for the Communication Red background with Corps Signature on the project sign are to be die-cut or computer-cut nonreflective vinyl, prespaced legends prepared in the sizes and typefaces specified and applied to the background panel following the graphic formats shown on pages 16-2 and 16-3.

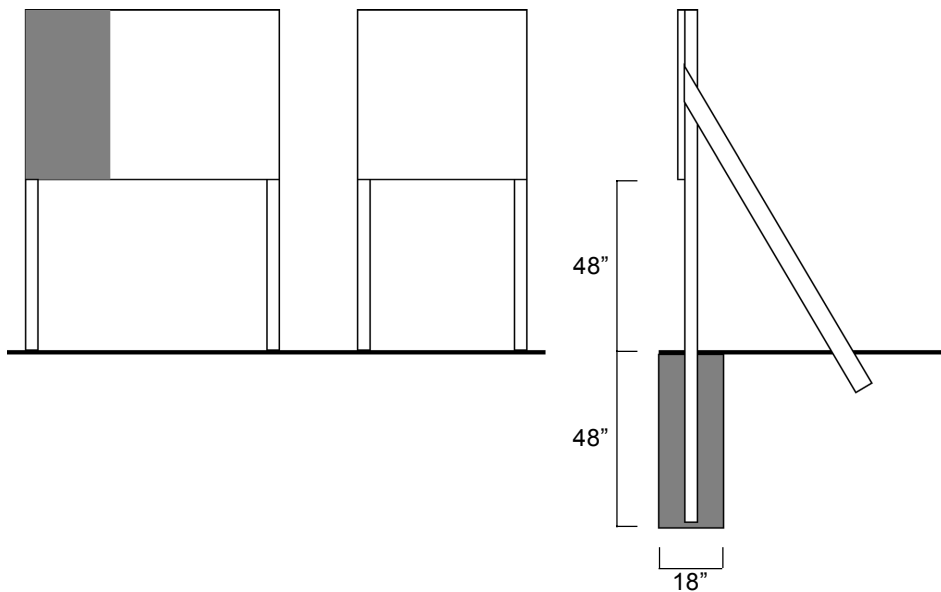
The 2'x 4' Communication Red panel (to match Pantone system 032) with full Corps Signature (reverse version) is to be screen-printed on the white background. Identification of the district or division may be applied under the signature with white cut vinyl letters prepared to Corps standards.

Drill and insert six (6) .375" T-nuts from the front face of the HDO sign panel. Position holes as shown. Flange of T-nut to be flush with sign face.

Apply graphic panel to prepared HDO plywood panel following manufacturers' instructions.

Sign uprights to be structural grade 4" x 4" treated Douglas Fir or Southern Yellow Pine, No.1 or better. Post to be 12' long. Drill six (6) .375" mounting holes in uprights to align with T-nuts in sign panel. Countersink (.5") back of hole to accept socket head cap screw (4" x .375").

Assemble sign panel and uprights. Imbed assembled sign panel and uprights in 4' hole. Local soil conditions and/or wind loading may require bolting additional 2" x 4" struts on inside face of uprights to reinforce installation as shown.



Construction Project Identification Sign Legend Group 1: Corps Relationship

1. _____
2. _____

Legend Group 2: Division/District Name

1. _____
2. _____

Legend Group 2a: Military/Civil Works Sponsor

1. _____
2. _____

Legend Group 3: Project Title

1. _____
2. _____
3. _____

Legend Group 4: Facility Name

1. _____
2. _____

Legend Group 5: Contractor/A&E

1. _____
2. _____
3. _____
4. _____
5. _____

Legend Group 5b: Contractor/A&E

1. _____
2. _____
3. _____
4. _____
5. _____

Safety Performance Sign

Legend Group 2: Project Title

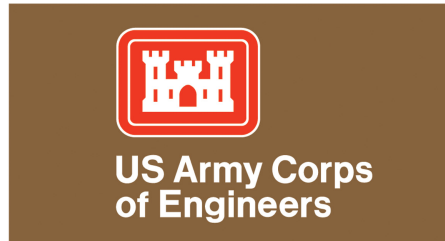
1. _____
2. _____

Legend Group 3: Contractor/A&E

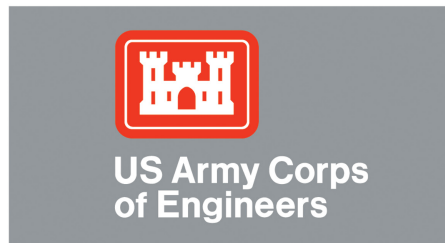
1. _____
2. _____

The illustrations below show the various color configurations possible when using the Corps Signature on signs. Note that there are fewer possible ways to render the Signature on a sign panel than are specified for print applications (see *Graphic Standards Manual*, pages 1-5).

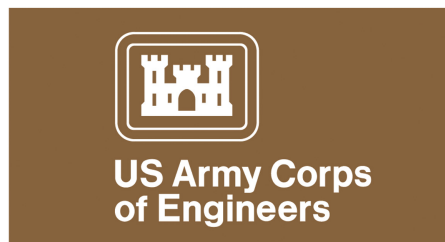
a) The most prominent use of the Signature will be on identification signs. For Standard Identification, post and panel signs, the reverse Signature is used; the Mark is Communication Red, the Signature type is white.



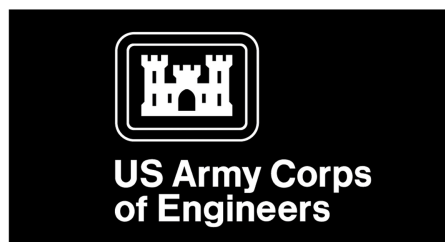
b) For large-scale Standard Identification signs of individual fabricated letters, the positive version is used; the Mark is Communication Red and the Signature typography is white (see page 5-7).



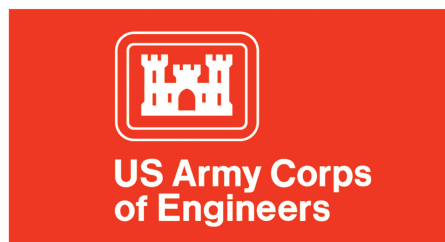
c) The Corps Participation Credit sign uses an all white reverse Signature on a Corps Brown background.



d) The header panels on Building Office Directories use a reverse Signature in white on Dark Grey.



e) Construction Project Identification signs use an all white reverse Signature on a Communication Red background.



f) Boundary signs use the positive Signature in black on a white background.



Within the Corps sign system there are five standard color palettes. Three have been developed by the Corps and include: 1) Recreation Area signs, 2) Lock, Dam and Waterway signs, and 3) Office Interior signs. Two color groups have been adopted from existing standards: 1) Traffic signs (MUTCD) and 2) Workplace Safety signs (ANSI). Each of these is illustrated on the following pages with descriptions for their use. The two-character color code is in parentheses immediately after the color. Additional color application instructions are included in each respective section.

Colors must conform to the standards presented on the following pages when preparing signs.

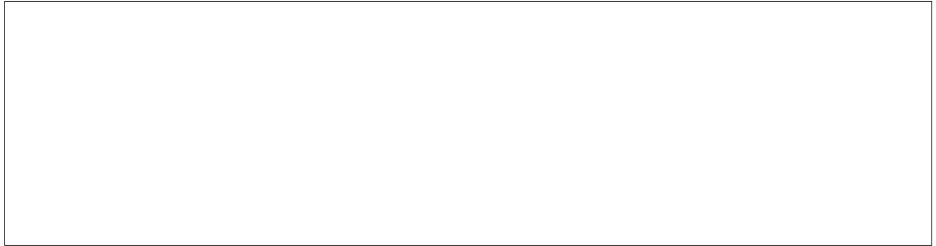
For many of the colors shown on the next five pages, a corresponding Federal Standard Color number is listed. These numbers refer to color samples contained in a fan deck titled *Federal Standard 595B Colors*. The fan deck is published by the General Services Administration, order number 7690-01-162-2210.

Shown below are the colors for use on Corps identification, directional, and recreation area signs.

Corps Brown (BR): Background for identification, directional, recreation, and symbol signs. The closest Federal Standard Color is 20095.



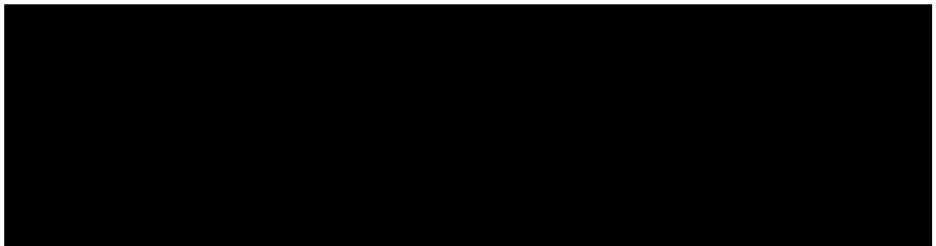
White (WH): Legend for identification, directional, and recreation signs. Background for boundary signs. The closest Federal Standard Color is 27925, but the match with the 595B fan deck is not exact.



Communication Red (CR): Corps Mark (Castle) on identification signs. The closest Federal Standard Color is 11350, but the match with the 595B fan deck is not exact. The Graphics Standards Manual (EP 310-1-6) specifies Communication Red shall match Pantone Red 032.



Black (BK): Legend and Signature for boundary signs. The closest Federal Standard Color is 17038.



The colors shown below are used on all safety signs as described in Section 11 of this manual.

Safety Red (SR): Federal Standard Color 11310, but the match with the 595B fan deck is not exact. Danger; warning of an immediate hazard.



Safety Yellow (SY): Federal Standard Color 13591, but the match with the 595B fan deck is not exact. Caution; warning of potential hazard.



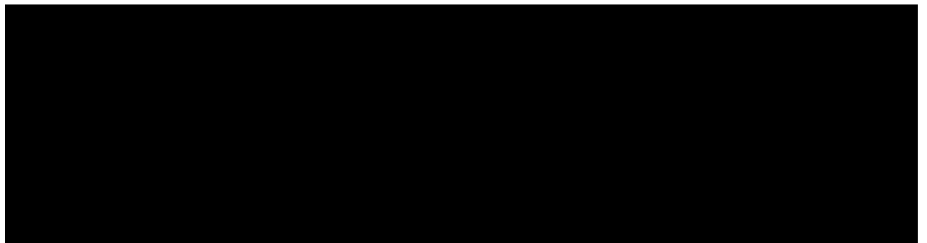
Safety Green (SG): Federal Standard Color 14109, but the match with the 595B fan deck is not exact. Notice; for safety.



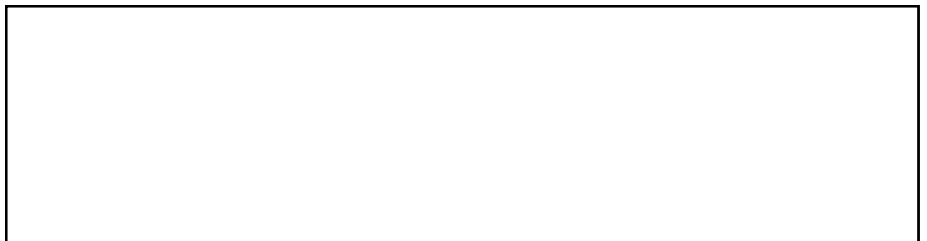
Safety Blue (SB): Federal Standard Color 15092. Information; general.



Black (SK): Federal Standard Color 17038. Directional and all descriptive legends.



White (SW): Federal Standard Color 27875. All sign backgrounds, except for Caution.



[Code of Federal Regulations]
[Title 33, Volume 2]
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[Page 314-316]

TITLE 33--NAVIGATION AND NAVIGABLE WATERS

CHAPTER I--COAST GUARD, DEPARTMENT OF HOMELAND SECURITY (CONTINUED)

PART 154_FACILITIES TRANSFERRING OIL OR HAZARDOUS MATERIAL IN BULK --Table of Contents

Subpart A_General

Sec. 154.105 Definitions.

As used in this part:

Barrel means a quantity of liquid equal to 42 U.S. gallons. Boundary Line means any of the lines described in 46 CFR part 7. Captain of the Port (COTP) means the U.S. Coast Guard officer commanding a Captain of the Port Zone described in Part 3 of this chapter, or that person's authorized representative.

Caretaker Status denotes a facility where all piping, hoses, loading arms, storage tanks, and related equipment in the marine transfer area are completely free of oil or hazardous materials, where these components have been certified as being gas free, where piping, hoses, and loading arms terminating near any body of water have been blanked, and where the facility operator has notified the COTP that the facility will be in caretaker status.

Commandant means the Commandant of the Coast Guard or an authorized representative.

Contiguous Zone means the entire zone established by the United States under Article 24 of the Convention on the Territorial Sea and the Contiguous Zone, but not extending beyond 12 miles from the baseline from which the breadth of the territorial sea is measured.

District Commander means the officer of the Coast Guard designated by the Commandant to command a Coast Guard District, as described in Part 3 of this chapter or an authorized representative.

Facility means either an onshore or offshore facility, except for an offshore facility operating under the jurisdiction of the Secretary of the Department of Interior, and includes, but is not limited to, structure, equipment, and appurtenances thereto, used or capable of being used to

transfer oil or hazardous materials to or from a vessel or public vessel. Also included are facilities that tank clean or strip and any floating structure that is used to support an integral part of the facility's operation. A facility includes federal, state, municipal, and private facilities.

Facility operator means the person who owns, operates, or is responsible for the operation of the facility. Hazardous material means a liquid material or substance, other than oil or liquefied gases, listed under 46 CFR 153.40 (a), (b), (c), or (e).

Marine transfer area means that part of a waterfront facility handling oil or hazardous materials in bulk between the vessel, or where the vessel moors, and the first manifold or shutoff valve on the pipeline encountered after the pipeline enters the secondary containment required under 40 CFR 112.7 or 49 CFR 195.264 inland of the terminal manifold or loading arm, or, in the absence of secondary containment, to the valve or manifold adjacent to the bulk storage tank, including the entire pier or wharf to which a vessel transferring oil or hazardous materials is moored.

MARPOL 73/78 means the International Convention for the Prevention of Pollution from Ships, 1973 (done at London, November 2, 1973) as modified by the Protocol of 1978 relating to the International Convention for the Prevention of Pollution from Ships, 1973 (done at London, February 17, 1978).

Mobile facility means any facility that can readily change location, such as a tank truck or tank car, other than a vessel or public vessel.

Monitoring device means any fixed or portable sensing device used to monitor for a discharge of oil or hazardous material onto the water, within or around a facility, and designed to notify operating personnel of a discharge of oil or hazardous material.

Officer in Charge, Marine Inspection (OCMI) means the U.S. Coast Guard officer commanding a Marine Inspection Zone described in Part 3 of this chapter, or an authorized representative.

Offshore facility means any facility of any kind located in, on, or under, any of the navigable waters of the United States, and any facility of any kind which is subject to the jurisdiction of the United States and is located in, on, or under any other waters, other than a vessel or a public vessel.

Oil means oil of any kind or in any form, including but not limited to, petroleum, fuel oil, sludge, oil refuse, and oil mixed with wastes other than dredged spoil.

Onshore facility means any facility (including, but not limited to, motor vehicles and rolling stock) of any kind located in, on, or under any land within the United States other than submerged land.

Person in charge means an individual designated as a person in charge of transfer operations under Sec. 154.710 (for facilities) or Sec. 155.700 (for vessels) of this chapter.

STCW means the International Convention on Standards of Training, Certification, and Watchkeeping for Seafarers, 1978.

Self-propelled tank vessel means a self-propelled tank vessel other than a tankship.

Tank barge means a non-self-propelled tank vessel.

Tankship means a self-propelled tank vessel constructed or adapted primarily to carry oil or hazardous material in bulk in the cargo spaces.

Tank vessel means a vessel that is constructed or adapted to carry, or that carries, oil or hazardous material in bulk as cargo or cargo residue, and that--

- (a) Is a vessel of the United States;
- (b) Operates on the navigable waters of the United States; or
- (c) Transfers oil or hazardous material in a port or place subject to the jurisdiction of the United States.

Transfer means any movement of oil or hazardous material to, from, or within a vessel by means of pumping, gravitation, or displacement. A transfer is considered to begin when the person in charge on the transferring vessel or facility and the person in charge on the receiving facility or vessel first meet to begin completing the declaration of inspection as required by Sec. 156.150 of this chapter. A transfer is considered to be complete when all the connections for the transfer have been uncoupled and secured with blanks or other closure devices and both of the persons in charge have completed the declaration of inspection to include the date and time the transfer was complete.

Vessel operator means a person who owns, operates, or is responsible for the operation of a vessel.

[CGD 75-124, 45 FR 7169, Jan. 31, 1980, as amended by CGD 86-034, 55 FR 36252, Sept. 4, 1990; CGD 79-116, 60 FR 17141, Apr. 4, 1995; CGD 93-056, 61 FR 41458, Aug. 8, 1996; 62 FR 3610, Jan. 24, 1997; CGD 79-116, 62 FR 25125, May 8, 1997]

TRANSFER OPERATIONS--Table of Contents

Subpart A_Oil and Hazardous Material Transfer Operations

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156.105 Definitions.

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Subpart B_Special Requirements for Lightering of Oil and Hazardous Material Cargoes

156.200 Applicability.
156.205 Definitions.
156.210 General.
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156.225 Designation of lightering zones.
156.230 Factors considered in designating lightering zones.

Subpart C_Lightering Zones and Operational Requirements for the Gulf of Mexico

156.300 Designated lightering zones.
156.310 Prohibited areas.
156.320 Maximum operating conditions.
156.330 Operations.

Authority: 33 U.S.C. 1231, 1321(j); 46 U.S.C. 3703a, 3715; E.O.11735, 3 CFR 1971-1975 Comp., p. 793. Section 156.120(bb) and (ee) are also issued under 46 U.S.C. 3703.

This subpart applies to the transfer of oil or hazardous material on the navigable waters or contiguous zone of the United States to, from, or within each vessel with a capacity of 250 barrels or more; except that, this subpart does not apply to transfer operations within a public vessel.

[CGD 86-034, 55 FR 36255, Sept. 4, 1990]

Subpart A_Oil and Hazardous Material Transfer Operations

Sec. 156.105 Definitions.

Except as specifically stated in a section, the definitions in Sec. 154.105 of this chapter apply to this subpart.

[CGD 90-071a, 59 FR 53291, Oct. 21, 1994]

Subpart A_Oil and Hazardous Material Transfer Operations

Sec. 156.107 Alternatives.

(a) The COTP may consider and approve alternative procedures, methods, or equipment standards to be used by a vessel or facility operator in lieu of any requirements in this part if:

(1) Compliance with the requirement is economically or physically impractical;

(2) The vessel or facility operator submits a written request for the alternative at least 30 days before operations under the alternative are proposed, unless the COTP authorizes a shorter time; and

(3) The alternative provides an equivalent level of safety and protection from pollution by oil or hazardous material, which is documented in the request.

(b) The COTP takes final approval or disapproval action on any alternative requested, in writing, within 30 days of receipt of the request.

[CGD 75-124, 45 FR 7177, Jan. 31, 1980, as amended by CGD 86-034, 55 FR 36255, Sept. 4, 1990]

Subpart A_Oil and Hazardous Material Transfer Operations

Sec. 156.110 Exemptions.

(a) The Assistant Commandant for Marine Safety, Security and Environmental Protection, acting for the Commandant, may grant an exemption or partial exemption from compliance with any requirement in this part, and the District Commander may grant an exemption or partial exemption from compliance with any operating condition or requirement in subpart C of this part, if:

(1) The vessel or facility operator submits an application for exemption via the COTP at least 30 days before operations under the exemption are proposed, unless the COTP authorizes a shorter time; and

(2) It is determined, from the application, that:

(i) Compliance with a specific requirement is economically or physically impractical;
(ii) No alternative procedures, methods, or equipment standards exist that would provide an equivalent level of safety and protection from pollution by oil or hazardous material; and
(iii) The likelihood of oil or hazardous material being discharged as a result of the exemption is minimal.

(b) If requested, the applicant must submit any appropriate information, including an environmental and economic assessment of the effects of and reasons for the exemption and proposed procedures, methods or equipment standards.

(c) The exemption may specify the procedures, methods, or equipment standards that will apply.

(d) An exemption is granted or denied in writing. The decision of the Assistant Commandant for Marine Safety, Security and Environmental Protection is a final agency action.

[CGD 75-124, 45 FR 7177, Jan. 31, 1980, as amended by CGD 88-052, 53 FR 25122, July 1, 1988; CGD 86-034, 55 FR 36255, Sept. 4, 1990; CGD 93-081, 60 FR 45017, Aug. 29, 1995; CGD 96-026, 61 FR 33666, June 28, 1996; CGD 93-056, 61 FR 41461, Aug. 8, 1996; CGD 97-023, 62 FR 33364, June 19, 1997; USCG-2002-12471, 67 FR 41333, June 18, 2002]

Subpart A_Oil and Hazardous Material Transfer Operations

Sec. 156.111 Incorporation by reference.

(a) Certain material is incorporated by reference into this part with the approval of the Director of the Federal Register under 5 U.S.C. 552(a) and 1 CFR part 51. To enforce any edition other than that specified in paragraph (b) of this section, the Coast Guard must publish notice of the change in the Federal Register; and the material must be available to the public. All approved material is available for inspection at the U.S. Coast Guard, Office of Compliance (G-MOC), 2100 Second Street, SW, Washington, DC 20593-0001 and at the National Archives and Records Administration (NARA). For information on the availability of this material at NARA, call 202-741-6030, or go to: <http://www.archives.gov/federal--register/code--of--federal--regulations/ibr--locations.html>. All approved material is available from the sources indicated in paragraph (b) of this section.

(b) The material approved for incorporation by reference in this part and the sections affected are as follows:

Oil Companies International Marine Forum (OCIMF)
15th Floor, 96 Victoria Street, London SW1E 5JW, England.
Ship to Ship Transfer Guide (Petroleum), Second Edition, 1988--
156.330.

International Chamber of Shipping

12 Carthusian Street, London EC1M 6EB, England.
Guide to Helicopter/Ship Operations, Third Edition, 1989--156.330.

[CGD 93-081, 60 FR 45017, Aug. 29, 1995, as amended by CGD 96-026, 61 FR 33666, June 28, 1996; 69 FR 18803, Apr. 9, 2004]

Subpart A_Oil and Hazardous Material Transfer Operations

Sec. 156.112 Suspension order.

The COTP or OCMI may issue a suspension order to suspend transfer operations to the vessel or facility operator when the COTP or OCMI finds there is a condition requiring action to prevent the discharge or threat of discharge of oil or hazardous material, or when the COTP or OCMI is unable to verify compliance with the regulations through an inspection. A suspension order:

- (a) May be effective immediately;
- (b) Is issued in writing unless it is effective immediately and then it may be issued orally and followed up in writing;
- (c) Includes a statement of each condition requiring correction to--
 - (1) Prevent the discharge of oil or hazardous material; or
 - (2) Comply with Sec. 154.735 of this chapter; and
- (d) Is withdrawn when the COTP, OCMI, or District Commander, as applicable, determines that the condition requiring action to prevent the discharge or threat of discharge of oil or hazardous material has been corrected or no longer exists.

[CGD 75-124, 45 FR 7177, Jan. 31, 1980, as amended by CGD 86-034, 55 FR 36255, Sept. 4, 1990]

Subpart A_Oil and Hazardous Material Transfer Operations

Sec. 156.113 Compliance with suspension order.

(a) No vessel or facility operator to whom a suspension order has been issued may conduct transfer operations from the time the order is effective until that order is withdrawn by the applicable COTP, OCMI, or by the District Commander.

(b) The vessel or facility operator may request reconsideration of the suspension order either orally or in writing to the COTP or OCMI who issued it. The request may contain supporting documentation and evidence that the vessel or facility operator wishes to have considered.

(c) Any person not satisfied with a ruling made under the procedure contained in paragraph (b) of this section may appeal that ruling in writing, except as allowed under paragraph (e) of this section, to the Coast Guard District Commander of the district in which the suspension order was issued. The appeal may contain supporting documentation and evidence that the appellant wishes to have considered. The appeal does not stay the effect of the suspension order while the COTP or OCMI ruling is being reviewed. The District Commander issues a ruling after reviewing the appeal.

(d) The ruling by the District Commander is final agency action.

(e) If the delay in presenting a written appeal under paragraph (c)

of this section would have a significant adverse impact on the appellant, the appeal may initially be presented orally. If an initial presentation of the appeal is made orally, the appellant must submit the appeal in writing within five days of the oral presentation to the District Commander to whom the oral appeal was made, containing, at a minimum the basis for the appeal and a summary of the material presented orally.

[CGD 75-124, 45 FR 7177, Jan. 31, 1980, as amended by CGD 86-034, 55 FR 36255, Sept. 4, 1990]

Subpart A_Oil and Hazardous Material Transfer Operations

Sec. 156.115 Person in charge: Limitations.

(a) No person may serve as the person in charge of transfer operations on more than one vessel at a time during transfers between vessels or between two or more vessels and a facility unless authorized by the COTP.

(b) No person may serve as the person in charge of both a vessel and a facility during transfer operations unless authorized by the COTP.

[CGD 75-124, 45 FR 7177, Jan. 31, 1980, as amended by CGD 86-034, 55 FR 36255, Sept. 4, 1990]

Subpart A_Oil and Hazardous Material Transfer Operations

Sec. 156.118 Advance notice of transfer.

(a) The COTP may require a facility operator to notify the COTP of the time and place of each transfer operation at least 4 hours before it begins for facilities that:

- (1) Are mobile;
- (2) Are in a remote location;
- (3) Have a prior history of oil or hazardous material spills; or
- (4) Conduct infrequent transfer operations.

(b) In the case of a vessel to vessel transfer, the COTP may require a vessel operator of a lightering or fueling vessel to notify the COTP of the time and place of each transfer operation, as specified by the COTP, at least 4 hours before it begins.

(c) No person may conduct such transfer operations until advance notice has been given as specified by the COTP.

Note: The notification may be accomplished by submitting a written schedule, periodically updated to be current.

[CGD 75-124, 45 FR 7177, Jan. 31, 1980, as amended by CGD 86-034, 55 FR 36255, Sept. 4, 1990]

Subpart A_Oil and Hazardous Material Transfer Operations

Sec. 156.120 Requirements for transfer.

A transfer is considered to begin when the person in charge on the transferring vessel or facility and the person in charge on the receiving facility or vessel first meet to begin completing the declaration of inspection, as required by Sec. 156.150 of this part. No person shall conduct an oil or hazardous material transfer operation unless:

(a) The vessel's moorings are strong enough to hold during all expected conditions of surge, current, and weather and are long enough to allow adjustment for changes in draft, drift, and tide during the transfer operation;

(b) Transfer hoses and loading arms are long enough to allow the vessel to move to the limits of its moorings without placing strain on the hose, loading arm, or transfer piping system;

(c) Each hose is supported to prevent kinking or other damage to the hose and strain on its coupling.

(d) Each part of the transfer system is aligned to allow the flow of oil or hazardous material;

(e) Each part of the transfer system not necessary for the transfer operation is securely blanked or shut off;

(f) The end of each hose and loading arm that is not connected for the transfer of oil or hazardous material is blanked off using the closure devices required by Sec. Sec. 154.520 and 155.805 of this chapter;

(g) The transfer system is attached to a fixed connection on the vessel and the facility except that when a vessel is receiving fuel, an automatic back pressure shutoff nozzle may be used;

(h) Each overboard discharge or sea suction valve that is connected to the vessel's transfer or cargo tank system is sealed or lashed in the closed position; except when used to receive or discharge ballast in compliance with 33 CFR Part 157;

(i) Each transfer hose has no unrepaired loose covers, kinks, bulges, soft spots, or any other defect which would permit the discharge of oil or hazardous material through the hose material and no gouges, cuts, or slashes that penetrate the first layer of hose reinforcement ("reinforcement" means the strength members of the hose, consisting of fabric, cord and/or metal);

(j) Each hose or loading arm in use meets Sec. Sec. 154.500 and 154.510 of this chapter, respectively;

(k) Each connection meets Sec. 156.130;

(l) Any monitoring devices required by Sec. 154.525 of this chapter are installed and operating properly;

(m) The discharge containment equipment required by Sec. 154.545 of this chapter is readily accessible or deployed as applicable;

(n) The discharge containment required by Sec. Sec. 154.530, 155.310, and 155.320 of this chapter, as applicable, is in place and periodically drained to provide the required capacity;

(o) Each drain and scupper is closed by the mechanical means required by Sec. 155.310;

(p) All connections in the transfer system are leak free except that a component in the transfer system, such as the packing glands of a pump, may leak at a rate that does not exceed the capacity of the discharge containment provided during the transfer operation;

(q) The communications required by Sec. Sec. 154.560 and 155.785 of this chapter are operable for the transfer operation;

(r) The emergency means of shutdown required by Sec. Sec. 154.550 and 155.780 of this chapter, as applicable, is in position and operable;

(s) There is a person in charge on the transferring vessel or facility and the receiving vessel or facility except as otherwise authorized under Sec. 156.115;

(t) Each person in charge required by paragraph (s) of this section:

(1) Is at the site of the transfer operation and immediately available to the transfer personnel;

(2) Has in his or her possession a copy of the facility operations manual or vessel transfer procedures, as appropriate; and

(3) Conducts the transfer operation in accordance with the facility operations manual or vessel transfer procedures, as appropriate;

(u) The personnel required, under the facility operations manual and the vessel transfer procedures, to conduct the transfer operation:

(1) Are on duty; and

(2) Conduct the transfer operation in accordance with the facility operations manual or vessel transfer procedures, as appropriate;

(v) At least one person is at the site of the transfer operation who fluently speaks the language or languages spoken by both persons in charge;

(w) The person in charge of the transfer on the transferring vessel or facility and the person in charge of it on the receiving vessel or facility have held a conference, to ensure that each person in charge understands--

(1) The identity of the product to be transferred;

(2) The sequence of transfer operations;

(3) The transfer rate;

(4) The name or title and location of each person participating in the transfer operation;

(5) Details of the transferring and receiving systems including procedures to ensure that the transfer pressure does not exceed the maximum allowable working pressure (MAWP) for each hose assembly, loading arm and/or transfer pipe system;

(6) Critical stages of the transfer operation;

(7) Federal, state, and local rules that apply to the transfer of oil or hazardous material;

(8) Emergency procedures;

(9) Discharge containment procedures;

(10) Discharge reporting procedures;

(11) Watch or shift arrangement;

(12) Transfer shutdown procedures; and,

(13) If the persons use radios, a predetermined frequency for communications during the transfer, agreed upon by both.

(x) The person in charge of transfer operations on the transferring vessel or facility and the person in charge of transfer operations on the receiving vessel or facility agree to begin the transfer operation;

(y) Between sunset and sunrise the lighting required by Sec. Sec. 154.570 and 155.790 of this chapter is provided; and

(z) For transfer operations between tank barges from sunset to sunrise, lighting is provided as described in Sec. 155.790 of this chapter.

(aa) A transfer operation which includes collection of vapor emitted from a vessel's cargo tanks through a venting system not located on the vessel must have the following verified by the person in charge:

- (1) Each manual valve in the vapor collection system is correctly positioned to allow the collection of cargo vapor;
- (2) A vapor collection hose or arm is connected to the vessel's vapor connection;
- (3) The electrical insulating device required by Sec. 154.810(g) of this chapter or 46 CFR 39.40-3(c) is fitted between the facility vapor connection and the vessel vapor connection;
- (4) The initial loading rate and the maximum transfer rate are determined;
- (5) The maximum and minimum operating pressures at the facility vapor connection are determined;
- (6) The tank barge overfill control system, if installed, is connected to the facility, tested, and operating properly;
- (7) The following have been performed not more than 24 hours prior to the start of the transfer operation:
 - (i) Each alarm and automatic shutdown system required by subpart E of part 154 of this chapter and 46 CFR part 39 has been tested and found to be operating properly, and
 - (ii) Analyzers required by Sec. 154.820(a), Sec. 154.824 (d) and (e) of this chapter or 46 CFR 39.40-3(a) have been checked for calibration by use of a span gas;
- (8) Each vapor recovery hose has no unrepaired loose covers, kinks, bulges, soft spots, or any other defect which would permit the discharge of vapor through the hose material, and no external gouges, cuts, or slashes that penetrate the first layer of hose reinforcement; and
- (9) The oxygen content of the vessel's cargo tanks, if inerted, is at or below 8 percent by volume.
- (bb) If the transfer operation involves loading oil, as defined in Sec. 151.05 of this chapter, into a cargo tank, the overfill device required by Sec. 155.480 of this chapter is installed and operating properly.
- (cc) Smoking is not permitted in the facilities marine transfer area except in designated smoking areas.
- (dd) Welding, hot work operations and smoking are prohibited on vessels during the transfer of flammable or combustible materials, except that smoking may be permitted in accommodation areas designated by the master.
- (ee) Each tank level or pressure monitoring device required under 33 CFR 155.490 must be activated and monitored whenever the tank is not actively being subjected to cargo operations.

(Approved by the Office of Management and Budget under control number 2115-0506)

[CGD 75-124, 45 FR 7177, Jan. 31, 1980, as amended by CGD 88-102, 55 FR 25445, June 21, 1990; CGD 86-034, 55 FR 36255, Sept. 4, 1990; CGD 90-071a, 59 FR 53291, Oct. 21, 1994; CGD 93-056, 61 FR 41461, Aug. 8, 1996; CGD 79-116, 62 FR 25127, May 8, 1997; USCG-2001-9046, 67 FR 58524, Sept. 17, 2002]

Subpart A--Oil and Hazardous Material Transfer Operations

Sec. 156.125 Discharge cleanup.

- (a) Each person conducting the transfer operation shall stop the transfer operation whenever oil or hazardous material from any source is discharged:

- (1) In the transfer operation work area; or
- (2) Into the water or upon the adjoining shoreline in the transfer area.
- (b) Except as permitted under paragraph (c) of this section, no person may resume the transfer operation after it has been stopped under paragraph (a) of this section, unless:
 - (1) Oil or hazardous material discharged in the transfer operation work area is cleaned up; and
 - (2) Oil or hazardous material discharged into the water or upon the adjoining shoreline is cleaned up, or is contained and being cleaned up.
- (c) The COTP may authorize resuming the transfer operation if it is deemed appropriate.

[CGD 75-124, 45 FR 7177, Jan. 31, 1980, as amended by CGD 86-034, 55 FR 36255, Sept. 4, 1990]

Subpart A_Oil and Hazardous Material Transfer Operations

Sec. 156.130 Connection.

- (a) Each person who makes a connection for transfer operations shall:
 - (1) Use suitable material in joints and couplings to ensure a leak-free seal;
 - (2) Use a bolt in at least every other hole, and in no case less than four bolts, in each temporary bolted connection that uses a flange that meets American National Standards Institute (ANSI) standard flange requirements under Sec. 154.500(d)(2) of this chapter;
 - (3) Use a bolt in each hole in each temporary bolted connection that uses a flange other than one that meets ANSI standards;
 - (4) Use a bolt in each hole of each permanently connected flange;
 - (5) Use bolts of the correct size in each bolted connection; and
 - (6) Tighten each bolt and nut uniformly to distribute the load and sufficiently to ensure a leak free seal.
- (b) A person who makes a connection for transfer operations must not use any bolt that shows signs of strain or is elongated or deteriorated.
- (c) Except as provided in paragraph (d) of this section, no person may use a connection for transfer operations unless it is:
 - (1) A bolted or full threaded connection; or
 - (2) A quick-connect coupling acceptable to the Commandant.
- (d) No person may transfer oil or hazardous material to a vessel that has a fill pipe for which containment cannot practically be provided unless an automatic back pressure shutoff nozzle is used.

[CGD 75-124, 45 FR 7177, Jan. 31, 1980, as amended by CGD 86-034, 55 FR 36256, Sept. 4, 1990]

Subpart A_Oil and Hazardous Material Transfer Operations

Sec. 156.150 Declaration of inspection.

(a) No person may transfer oil or hazardous material to or from a vessel unless each person in charge, designated under Sec. Sec. 154.710 and 155.700 of this chapter, has filled out and signed the declaration of inspection form described in paragraph (c) of this section.

(b) No person in charge may sign the declaration of inspection unless he or she has determined by inspection, and indicated by initialling in the appropriate space on the declaration of inspection form, that the facility or vessel, as appropriate, meets Sec. 156.120.

(c) The declaration of inspection may be in any form but must contain at least:

(1) The name or other identification of the transferring vessel or facility and the receiving vessel or facility;

(2) The address of the facility or location of the transfer operation if not at a facility;

(3) The date and time the transfer operation is started;

(4) A list of the requirements in Sec. 156.120 with spaces on the form following each requirement for the person in charge of the vessel or facility to indicate by initialling that the requirement is met for the transfer operation; and

(5) A space for the date, time of signing, signature, and title of each person in charge during transfer operations on the transferring vessel or facility and a space for the date, time of signing, signature, and title of each person in charge during transfer operations on the receiving facility or vessel certifying that all tests and inspections have been completed and that they are both ready to begin transferring product; and

(6) The date and time the transfer operation is completed.

(d) The form for the declaration of inspection may incorporate the declaration-of-inspection requirements under 46 CFR 35.35-30.

(e) The vessel and facility persons in charge shall each have a signed copy of the declaration of inspection available for inspection by the COTP during the transfer operation.

(f) The operators of each vessel and facility engaged in the transfer operation shall retain a signed copy of the declaration of inspection on board the vessel or at the facility for at least 1 month from the date of signature.

[CGD 75-124, 45 FR 7177, Jan. 31, 1980, as amended by CGD 86-034, 55 FR 36256, Sept. 4, 1990; CGD 93-056, 61 FR 41461, Aug. 8, 1996]

Subpart A--Oil and Hazardous Material Transfer Operations

Sec. 156.160 Supervision by person in charge.

(a) No person may connect or disconnect a hose, top off a tank, or engage in any other critical procedures during the transfer operation unless the person in charge, required by Sec. 156.120(s), supervises that procedure.

(b) No person may start the flow of oil or hazardous material to or from a vessel unless instructed to do so by either person in charge.

(c) No person may transfer oil or hazardous material to or from a vessel unless each person in charge is in the immediate vicinity and immediately available to the transfer personnel.

[CGD 75-124, 45 FR 7177, Jan. 31, 1980, as amended by CGD 86-034, 55 FR 36256, Sept. 4, 1990]

Subpart A_Oil and Hazardous Material Transfer Operations

Sec. 156.170 Equipment tests and inspections.

(a) Except as provided in paragraph (d) of this section, no person may use any equipment listed in paragraph (c) of this section for transfer operations unless the vessel or facility operator, as appropriate, tests and inspects the equipment in accordance with paragraphs (b), (c) and (f) of this section and the equipment is in the condition specified in paragraph (c) of this section.

(b) During any test or inspection required by this section, the entire external surface of the hose must be accessible.

(c) For the purpose of paragraph (a) of this section:

(1) Each nonmetallic transfer hose must:

(i) Have no unrepaired loose covers, kinks, bulges, soft spots or any other defect which would permit the discharge of oil or hazardous material through the hose material, and no gouges, cuts or slashes that penetrate the first layer of hose reinforcement as defined in Sec. 156.120(i).

(ii) Have no external deterioration and, to the extent internal inspection is possible with both ends of the hose open, no internal deterioration;

(iii) Not burst, bulge, leak, or abnormally distort under static liquid pressure at least $1\frac{1}{2}$ times the maximum allowable working pressure; and

(iv) Hoses not meeting the requirements of paragraph (c)(1)(i) of this section may be acceptable after a static liquid pressure test is successfully completed in the presence of the COTP. The test medium is not required to be water.

(2) Each transfer system relief valve must open at or below the pressure at which it is set to open;

(3) Each pressure gauge must show pressure within 10 percent of the actual pressure;

(4) Each loading arm and each transfer pipe system, including each metallic hose, must not leak under static liquid pressure at least $1\frac{1}{2}$ times the maximum allowable working pressure; and

(5) Each item of remote operating or indicating equipment, such as a remotely operated valve, tank level alarm, or emergency shutdown device, must perform its intended function.

(d) No person may use any hose in underwater service for transfer operations unless the operator of the vessel or facility has tested and inspected it in accordance with paragraph (c)(1) or (c)(4) of this section, as applicable.

(e) The test fluid used for the testing required by this section is limited to liquids that are compatible with the hose tube as recommended by the hose manufacturer.

(f) The frequency of the tests and inspections required by this section must be:

(1) For facilities, annually or not less than 30 days prior to the first transfer conducted past one year from the date of the last tests and inspections;

(2) For a facility in caretaker status, not less than 30 days prior to the first transfer after the facility is removed from caretaker status; and

(3) For vessels, annually or as part of the biennial and mid-period inspections.

(g) If a facility or vessel collects vapor emitted from a vessel cargo tank with a vapor control system, the system must not be used unless the following tests and inspections are satisfactorily completed:

(1) Each vapor hose, vapor collection arm, pressure or vacuum relief valve, and pressure sensor is tested and inspected in accordance with paragraphs (b), (c), and (f) of this section;

(2) Each remote operating or indicating device is tested for proper operation in accordance with paragraph (f) of this section;

(3) Each detonation arrester required by Sec. 154.820, Sec. 154.826(a), and Sec. 154.828(a) of this chapter or 46 CFR 39.40-3(d), and each flame arrester required by Sec. 154.826(a), Sec. 154.828 (a) and (c) of this chapter has been inspected internally within the last year, or sooner if operational experience has shown that frequent clogging or rapid deterioration is likely; and

(4) Each hydrocarbon and oxygen analyzer required by Sec. 154.820(a) and Sec. 154.824 (d) and (e) of this chapter or 46 CFR 39.40-3(a) is calibrated:

(i) Within the previous two weeks, or

(ii) Within 24 hours prior to operation when the vapor control system is operated less frequently than once a week.

(h) Upon the request of the owner or operator, the COTP may approve alternative methods of compliance to the testing requirements of paragraph (c) of this section if the COTP determines that the alternative methods provide an equal level of protection.

(Approved by the Office of Management and Budget under control number 2115-0096)

[CGD 75-124, 45 FR 7177, Jan. 31, 1980, as amended by CGD 88-102, 55 FR 25445, June 21, 1990; CGD 86-034, 55 FR 36256, Sept. 4, 1990; CGD 93-056, 61 FR 41461, Aug. 8, 1996]

Subpart B--Special Requirements for Lightering of Oil and Hazardous Material Cargoes

Sec. 156.200 Applicability.

Source: CGD 78-180, 49 FR 11172, Mar. 26, 1984, unless otherwise noted.

This subpart applies to each vessel to be lightered and each service vessel engaged in a lightering operation in the marine environment beyond the baseline from which the territorial sea is measured when the oil or hazardous material lightered is destined for a port or place subject to the jurisdiction of the U.S. This subpart does not apply to lightering operations involving public vessels, or to the dedicated response vessels and vessels of opportunity in accordance with the National Contingency Plan (40 CFR parts 9 and 300) when conducting response activities. These rules are in addition to the rules of subpart A of this part, as well as the rules in the applicable sections of parts 151, 153, 155, 156, and 157 of this chapter.

[CGD 93-081, 60 FR 45017, Aug. 29, 1995]

Subpart B_Special Requirements for Lightering of Oil and Hazardous Material Cargoes

Sec. 156.205 Definitions.

(a) In addition to the terms defined in this section, the definitions in Sec. 154.105 of this chapter apply to this subpart and to subpart C.

(b) As used in this subpart and subpart C:

Lightering or Lightering operation means the transfer of a cargo of oil or a hazardous material in bulk from one vessel to another, including all phases of the operation from the beginning of the mooring operation to the departure of the service vessel from the vessel to be lightered, except when that cargo is intended only for use as fuel or lubricant aboard the receiving vessel.

Marine environment means--

(1) The navigable waters of the United States;

(2) The waters of an area over which the United States asserts exclusive fishery management authority; and

(3) The waters superadjacent to the Outer Continental Shelf of the United States.

Service vessel means the vessel which receives a cargo of oil or a hazardous material from another vessel in a lightering operation.

Vessel to be lightered means the vessel which transports a cargo of oil or a hazardous material to a place within the marine environment for transfer of that cargo to another vessel for further transport to a port or place subject to the jurisdiction of the United States. The term "vessel to be lightered" does not include drilling rigs, or offshore supply vessels transferring cargo intended for use as fuel or lubricant aboard the receiving vessel.

Work includes any administrative duties associated with the vessel whether performed on board the vessel or onshore.

[CGD 78-180, 49 FR 11172, Mar. 26, 1984, as amended by CGD 86-034, 55 FR 36256, Sept. 4, 1990; CGD 90-052, 58 FR 48436, Sept. 15, 1993; CGD 93-081, 60 FR 45017, Aug. 29, 1995]

Subpart B--Special Requirements for Lightering of Oil and Hazardous Material Cargoes

Sec. 156.210 General.

(a) No vessel may transfer oil or hazardous materials in a port or place subject to the jurisdiction of the United States, if the cargo has been lightered from another vessel, unless:

(1) The regulations in this subpart have been complied with;

(2) Both the vessel to be lightered and service vessel have, on board, at the time of transfer, a valid Certificate of Inspection, Certificate of Compliance, or a Tank Vessel Examination Letter, as would have been required under 46 U.S.C. 3710 or 3711, had the transfer taken place in a port or place subject to the jurisdiction of the United States;

(3) The delivering and receiving vessels have on board at the time of transfer, evidence that each vessel is operating in compliance with section 311(j) of the Federal Water Pollution Control Act (33 U.S.C. 1321(j)) and applicable regulations issued under the authority of section 311(j) in the form of a Declaration of Inspection as required by Sec. 156.150 and a vessel response plan if required under part 155 of this chapter; and

Note: Under 46 U.S.C. 3715, the delivering and receiving vessels must have on board at the time of transfer, a Certificate of Financial Responsibility that would be required if the transfer had taken place in a location subject to the jurisdiction of the U.S. Regulations concerning

Certificates of Financial Responsibility for vessels using the navigable waters of the U.S. are in part 130 of this chapter.

(4) The vessel to be lightered has on board, at the time of transfer, an International Oil Pollution Prevention (IOPP) Certificate or equivalent documentation of compliance with Annex I of the International Convention for the Prevention of Pollution from Ships, 1973, as modified by the Protocol of 1978 relating thereto (MARPOL 73/78), as would be required by Part 151 of this chapter for vessels in navigable waters of the United States. The IOPP Certificate or documentation of compliance shall be that prescribed by Sec. 151.19 and 151.21 of this chapter, and shall be effective under the same timetable as specified in Sec. 151.19.

(b) Lightering operations involving hazardous materials, other than oil, may be conducted only with the specific approval of the Commandant. A request to lighter hazardous materials, other than oil, must be submitted to Commandant (G-M) prior to the planned beginning of lightering operations. The request must include the information described in Sec. 156.215(a) to the extent known, for the initial transfer, and the estimated frequency of subsequent lightering operations. After the entry into force of Annex II to MARPOL 73/78, vessels lightering hazardous materials shall carry an International Pollution Prevention Certificate for the Carriage of Noxious Liquid Substances in Bulk (1973), if required by Annex II to MARPOL 73/78, or equivalent documentation of compliance with the annex.

(c) In an emergency, the COTP, upon request, may authorize a deviation from any rule in this part if the COTP determines that its application will endanger persons, property, or the environment.

(d) On vessels conducting lightering operations in a designated lightering zone, a licensed individual or seaman may not work, except in an emergency or a drill, more than 15 hours in any 24-hour period, or more than 36 hours in any 72-hour period, including the 24-hour and 72-hour periods prior to commencing lightering operations.

[CGD 78-180, 49 FR 11172, Mar. 29, 1984, as amended by CGD 88-052, 53 FR 25122, July 1, 1988; CGD 90-052, 58 FR 48436, Sept. 15, 1993; CGD 93-081, 60 FR 45017, Aug. 29, 1995; USCG-2002-12471, 67 FR 41333, June 18, 2002]

Subpart B--Special Requirements for Lightering of Oil and Hazardous Material Cargoes

Sec. 156.215 Pre-arrival notices.

(a) The master, owner or agent of each vessel to be lightered must give at least 24 hours advance notice to the Captain of the Port nearest the lightering location or zone, prior to arrival in the lightering location or zone. This advance notice must include:

- (1) The vessel's name, call sign or official number, and registry;
- (2) The cargo type (if oil) or shipping name (if hazardous material) and approximate amount on board;
- (3) The number of transfers expected and the amount of cargo expected to be transferred during each transfer;
- (4) The lightering location or zone to be used;
- (5) The estimated time of arrival in the lightering location or zone;
- (6) The estimated duration of transfer operations; and

(7) The name and destination of service vessel(s).

(b) In the event the estimated time of arrival in the lightering location or zone changes by more than six hours, the Master, owner or agent of each vessel to be lightered must advise the Captain of the Port of this change as soon as possible.

(c) Where lightering is conducted as a result of collision, grounding, tank rupture or any similar emergency, immediate notice must be given to the Captain of the Port.

(d) In addition to the other requirements in this section, the master, owner, or agent of a vessel that requires a Tank Vessel Examination (TVE) or other special Coast Guard inspection in order to lighter in a designated lightering zone must request the TVE or other inspection from the cognizant Captain of the Port at least 72 hours prior to commencement of lightering operations.

[CGD 78-180, 49 FR 11172, Mar. 26, 1984, as amended by CGD 90-052, 58 FR 48437, Sept. 15, 1993; CGD 93-081, 60 FR 45017, Aug. 29, 1995]

Subpart B_Special Requirements for Lightering of Oil and Hazardous Material Cargoes

Sec. 156.220 Reporting of incidents.

(a) An immediate report must be made to the nearest Captain of the Port, by the service vessel, if fire, explosion, collision, grounding or any similar emergency, which poses a threat to the vessels involved, occurs during lightering.

(b) Any discharge of oil or hazardous material into the water shall be reported, by the service vessel, in accordance with the procedures specified in Sec. 151.15 of this chapter.

Subpart B--Special Requirements for Lightering of Oil and Hazardous Material Cargoes

Sec. 156.225 Designation of lightering zones.

The District Commander is delegated the authority to designate lightering zones and their operating requirements, where they are necessary for safety or environmental protection. When a lightering zone has been designated, lightering operations in a given geographic area may only be conducted within the designated lightering zone.

Subpart B_Special Requirements for Lightering of Oil and Hazardous Material Cargoes

Sec. 156.230 Factors considered in designating lightering zones.

The following factors are considered in designating a lightering zone:

(a) The findings of the environmental analysis or, if prepared, the Environmental Impact Statement;

- (b) The proximity of the zone to:
 - (1) Shipping lanes;
 - (2) Vessel traffic schemes or vessel separation systems;
 - (3) Anchorages;
 - (4) Fixed structures;
 - (5) Designated marine sanctuaries;
 - (6) Commercial and recreational fishing areas;
 - (7) Environmentally sensitive areas; and
 - (8) Designated units of the National Park System, National Wild and Scenic Rivers System, National Wilderness Preservation System, properties included on the National Register of Historic Places and National Registry of Natural Landmarks, and National Wildlife Refuge System.
- (c) The traditional use of areas for lightering operations;
- (d) The normal weather and sea conditions in the areas, and their effect on lightering operations, and the fate of possible cargo discharges;
- (e) The depth of water and underwater obstructions that may adversely impact anchorages and clearance of vessels;
- (f) Other relevant safety, environmental, or economic data.

U.S. Army Corps of Engineers (USACE)

ACCIDENT PREVENTION PLAN (APP)

For use of this form, see EM 385-1-1; the proponent agency is CESO.

Purpose: An APP is a written site-specific Safety & Occupational Health plan that documents project, contract, and job-specific potential hazards in the workplace, and the company policies, controls, and work practices that will be used to minimize those hazards. They are an integral part of the planning and risk management process. The APP must be developed by a Competent Person and reviewed and approved by the prime contractor and corporate safety official. Upon contractor approval, the plan must be submitted to the Contracting Officer (KO) or Contracting Officer Representative (COR) for review and acceptance prior to the performance of any work. No contract work can begin without a KO or COR accepted APP.

The completed APP must be posted on the SOH bulletin board, or a notice posted on the board stating the location of the plan.

PART 1 - SIGNATURES

Plan Preparer - For example: Qualified Person (QP), Competent Person (CP), or project Quality Control (QC).

1. Name:	2. Title:
3. Email Address:	4. Phone Number:
5. Signature	

Plan Approver - Corporate Safety Official

1. Name:	2. Title:
3. Email Address:	4. Phone Number:
5. Signature	

Plan Concurrence - For example: Industrial hygienist, Project Manager, Superintendent, Site Safety & Health Officer, Quality Control, etc.

1. Name:	2. Title:
3. Email Address:	4. Phone Number:
5. Signature:	

PART 2: PROJECT INFORMATION

1. Project Name:	
2. Project Address (attach map in Appendix 1):	
3. Estimated Project Start Date:	4. Estimated Project Completion Date:
5. Project Description / Description of work to be performed:	

PART 3: PRIME CONTRACTOR INFORMATION

1. Prime Contractor Name:

2. Contract Number:

3. Project Manager Name:

4. Quality Control (QC) Manager Name:

5. Contractor Corporate Safety Official Name:

6. Primary Site Safety & Health Officer (SSHO) Name:

7. Alternate Site Safety & Health Officer (SSHO) Name(s):

PART 4: SOH COMMITMENT AND POLICY

1. Provide a statement of safety and health policy detailing commitment to providing a safe and healthful workplace for all employees on this project.

2. Provide a statement outlining the Contractor's safety program goals and objectives.

3. Identify policies and procedure regarding non-compliance with safety requirements.

4. Provide written procedures for holding managers and supervisors accountable for safety.

5. Prime contractor is responsible for the implementation and enforcement of the SOH program for contractor employees, subcontractors, suppliers, and visitors at the site of work?

☐ Yes☐ No

6. Prime contractor will require subcontractors, suppliers, and visitors to comply with the APP and EM 385-1-1?

☐ Yes☐ No

7. No work will be performed unless a designated SSHO is present on the site of work.

☐ Yes☐ No

8. A list of all known subcontractor(s) and supplier(s) are listed in Appendix 2.

☐ Yes☐ No

9. If all subcontractor(s) and supplier(s) are not known at the time of initial APP submittal, Appendix 2 will be updated and resubmitted to the KO/COR for acceptance prior to the start of any work activities.

☐ Yes☐ No

10. All subcontractors will have a copy of the APP, applicable AHAs and will be required to comply with them.

☐ Yes☐ No

11. Subcontractors and suppliers at the site of work will abide by the EM 385-1-1, this APP, and all AHAs.

☐ Yes☐ No

12. This APP and AHAs will be available to all workers at the site of work.

☐ Yes☐ No

PART 5: TRAINING

1. All employees will be trained according to applicable EM 385-1-1, federal, state, and local requirements prior to the commencement of work. ☐ Yes ☐ No
2. The following personnel are identified and designated as personnel responsible for SOH on this project. Add the following documentation to Appendix 3 of this worksheet: 1) SSHO designation letter (ENG Form 6282), 2) instructor signed OSHA 30-hour card (or course completion certificate if within 90 days of having completed the OSHA 30-hour training), and 3) proof of 24 hours of competency of SOH training within the last 3 years for the personnel identified below. (EM 385-1-1, Chapter 2, 2-3 Personnel Qualification/Training):
(Check and list names of personnel being designated)
- ☐ Primary SSHO Name:
- ☐ Alternate SSHO Name(s):
3. QP(s) and CP(s) required by EM 385-1-1 (for example, excavation, confined space, scaffolding, fall protection, etc.) for this project will be included in Appendix 3. Include 1) List of names or designation letters and 2) proof of qualification/competency.

PART 6: SOH INSPECTIONS

1. All applicable inspections required by EM 385-1-1, contract, federal, state, and local requirements will be completed. ☐ Yes ☐ No
2. The following personnel are assigned to conduct inspections, the type of inspection and frequency for the worksite. At minimum the SSHO must conduct daily site inspections.
- | Who will conduct inspection? | Frequency? | What type of inspection? |
|------------------------------|------------|--------------------------|
| | | |
3. Employees that conduct inspections will have technical proficiency needed to perform inspections. Proof of inspector's training/qualification is included in Appendix 3. ☐ Yes ☐ No
4. Deficiencies will be documented and tracked as required by this EM 385-1-1? ☐ Yes ☐ No
6. Will any external inspections be required (for example, USCG, OSHA, etc.)? ☐ Yes ☐ No
If yes, describe:

PART 7: ACCIDENT REPORTING AND INVESTIGATION

1. Exposure data (man-hours worked) will be reported to KO/COR as required by the contract? ☐ Yes ☐ No
2. All accidents will be reported as soon as possible according to EM 385-1-1? ☐ Yes ☐ No
3. All accidents occurring incidentally to an operation, project, or facility for which the EM 385-1-1 is applicable will be thoroughly investigated and analyzed. Corrective actions to prevent reoccurrence will be implemented as soon as reasonably possible. The KO/COR will be notified when corrective actions are completed. ☐ Yes ☐ No
4. Accident notification will be provided to the KO/COR as stated below: ☐ Yes ☐ No
- | ACCIDENT TYPE | KO/COR NOTIFICATION TIME |
|---|--|
| Fatality, permanent and partial disability, or property damage over \$600,000 | Immediately, no later than (NLT) 8 hours |
| All other accidents and near misses | Immediately, NLT 24 hours |

PART 8: SOH OVERSIGHT

1. A risk management process that meets or exceeds the requirement of the EM 385-1-1 will be implemented on this project site?	☐ Yes	☐ No
2. Hazardous conditions and unsafe acts will be immediately corrected?	☐ Yes	☐ No
3. APP and AHAs will be prepared by a QP or CP according to the EM 385-1-1 prior to the start of any work activities on the site of work (as much as the information can be known at that point in time).	☐ Yes	☐ No
4. The plans and AHAs will be updated throughout the life of the project to include changes in personnel, equipment, conditions, etc. Additional revisions must be incorporated as necessary to reflect changing site conditions, construction methods, personnel roles and responsibilities and construction schedules.	☐ Yes	☐ No
5. No activity/work will be started at the site of work until the APP is reviewed and submitted to the KO/COR for acceptance, with the site-specific plans and procedures required by the EM 385-1-1 to complete the project?	☐ Yes	☐ No
6. APP and AHAs will be provided to and reviewed by all workers involved in the activity prior to work?	☐ Yes	☐ No
7. Workers will sign AHA(s) to concur with identified job steps and controls needed to mitigate hazards?	☐ Yes	☐ No

PART 9: SEVERE WEATHER PLAN

1. The SSHO or designated onsite personnel is responsible for checking the weather conditions at a minimum of twice a day?	☐ Yes	☐ No
2. What severe weather forecast will require the SSHO to monitor weather conditions continuously? Describe.		
3. What are the training requirements for severe weather precautions and actions?		
4. Identify area of retreat or other actions to be taken such as evacuation, shelter in place, etc.		
5. Identify procedures to stop outdoor activities if extreme weather conditions to include thunderstorms are in the area.		

PART 10: ACTIVITY HAZARD ANALYSIS (RISK MANAGEMENT)

1. Major phases of work anticipated:

2. Definable Features of Work (DFOW)

Note. An activity-specific AHA will be submitted to the KO/COR for each DFOW prior to any work being performed.

3. List equipment to be used:

4. Anticipated High-Risk Activities: (See examples below, check all that apply):

☐ Electrical and/or Hazardous Energy	☐ Confined Space
☐ Working at Heights	☐ Excavations & Trenching
☐ Scaffolding	☐ Other: _____
☐ Diving	☐ Other: _____
☐ Load Handling Equipment	☐ Other: _____
☐ Occupational Exposure	☐ Other: _____

5. Detailed project-specific hazards and controls will be provided utilizing AHAs for each activity/DFOW.	☐ Yes	☐ No
6. No work will begin on an activity/DFOW until the initial AHA addressing the project-specific hazards has been developed, reviewed, and accepted by the KO/COR. (See EM 385-1-1 Chapter 2 section 2-6).	☐ Yes	☐ No
7. AHAs are living documents and are intended to be created, utilized in the field, and updated (by the workers) as necessary.	☐ Yes	☐ No
8. Workers/crews will have accepted AHA(s) that reflects current site conditions, personnel, equipment, control measures, etc. while the work is being performed?	☐ Yes	☐ No
9. AHA will be used by the contractor personnel to assure work is being performed consistent with the AHA?	☐ Yes	☐ No
10. Once the activity has been completed, the AHA will be available and kept onsite for the length of the contract.	☐ Yes	☐ No
11. AHAs for unknown work activities will be submitted to the KO/COR prior to work and attached to Appendix 4 of this document.	☐ Yes	☐ No
12. Who has the authority to accept residual risk on AHA(s)? (List below)		

Category of Risk	Approval Authority (Name and Title)
Extremely High Risk	
High Risk	
Medium Risk	
Low Risk	

PART 11: REQUIRED PROJECT SITE-SPECIFIC PLANS AND PROCEDURES

1. Based on a risk assessment of contracted activities and on mandatory OSHA compliance programs, the contractor will ensure that all applicable SOH risks and associated compliance plans are in place.	☐ Yes	☐ No
2. Include all project-specific compliance plans, as applicable to the work being performed, and as identified below. The plans will incorporate project-wide procedures to control hazards to which the employees of all project employers may be exposed.	☐ Yes	☐ No
3. These plans and procedures will be coordinated with all project employers and be included in project-specific emergency response and evacuation procedures.	☐ Yes	☐ No

4. Address each of the plans in the outline below in the order that they are listed.

Option 1: If a plan is applicable, develop and attach it to Appendix 5. Submit to the KO/COR with this worksheet for acceptance prior to work.

Option 2: If a plan is applicable, but all of the minimum required information for the plan is not yet known, provide justification next to each plan title, and provide an expected date the plan will be created, reviewed, and attached to Appendix 5. Submit to the KO/COR with this worksheet for acceptance prior to work.

Option 3: If a plan is not applicable because of the nature of the work to be performed, provide justification next to each plan title.

Minimum plans required by EM 385-1-1	Reference EM 385-1-1 paragraph:	Select Option	Justification for Option 2 and Option 3
Exposure Control Plan	3-7.a		
AED Program	3-7.b		
Construction Site Plan	4-7.a		
Access/Haul Road Plan	4-7.b		
Hearing Conservation Program	5-7.a		
Respiratory Protection Program	5-7.b		
Hazard Communication (HazCom) Program	6-7.a		
Process Safety Management (PSM) Program	6-7.b		
Lead Compliance Plan	6-7.c		
Asbestos Management Plan	6-7.d		
Ionizing Radiation Safety Plan	6-7.e		
Radiofrequency Plan	6-7.e		
Abrasive Blasting Plan	6-7.f		
Thermal Stress Management Plan	6-7.g		
Mold Remediation Plan	6-7.h		
Silica Compliance Plan	6-7.i		
Fatigue Management Plan	6-7.j		
Night Operations Lighting Plan	7-7		
Traffic Control Plan	8-7		
Fire Prevention Plan	9-7.a		
Wildland Fire Management Plan	9-7.b		
Housekeeping Plan (Welding and Cutting)	10-7		
Electrical Safety Plan	11-7.a		
Assured Equipment Grounding Conductor Program	11-7.b		
Site-Specific Energy Control Plan	12-7.a		
Standard Lift Plan	16-7.a & b		

Standard Lift Plan (Floating Plant)	16-7.a & c		
Critical Lift Plan	16-7.a & d		
Pile Driving Plan	16-7.a & e		
Structural Demolition Plan	17-7		
Soft Demolition Plan	17-7		
Emergency Plan for Marine Activities	19-7.a		
Severe Weather Plan for Marine Activities	19-7.b		
Float Plans	19-7.c		
Tow Plans	19-7.d		
Fall Protection and Prevention Plan	21-7.a		
Rescue Plan	21-7.b		
Scaffold Work Plan	22-7.b		
Rope Access Work Plan	23-7		
Excavation and Trenching Plan	25-7		
Compressed Air Work Plan	26-7.a & b		
Contingency Response Plan	26-7.a & c		
Emergency Rescue Plans and Equipment	26-7.a & d		
Ventilation and Dust Control Plan	26-7.a & e		
Fire Prevention and Protection Plan	26-7.a & f		
Formwork and Shoring Plan	27-7.a		
Precast Concrete Plan	27-7.b		
Masonry Erection Plan	27-7.c		
Steel Erection Plan	28-7		
Explosive Site Safety Plan	29-7.a		
Master Blasting Plan	29-7.b		
Vibration Monitoring Plan	29-7.c		
Safe Practices Plan	30-7.a & b		
Dive Operations Plan	30-7.a & c		
Emergency Management Manual	30-7.a & d		
Snorkeling Plan	30-7.a & e		
Tree Maintenance and Removal Plan	31-7		
Construction Safety and Phasing Plan	32-7.a		
Safety Plan Compliance Document	32-7.b		
Aviation Pre-Accident Plan	33-7.f		
Confined Space Plan	34-7.b & c		
Housekeeping Plan (Sanitation)	35-7.a		
Extermination Plan	35-7.b		
Site Safety and Health Plan	36-7.a		
Comprehensive Work Plan	36-7.b		
Emergency Response Plan	36-7.c		

PART 12: PROJECT SITE COORDINATION

1. Provide procedures for coordinating SOH activities with other employers on the site of work:

PART 13: REQUIRED APPENDICES

Indicate if each of the following items are, or are not, attached to this plan.

Appendix 1. Project Map	☐ Yes	☐ No
Appendix 2. Subcontractor/Suppliers	☐ Yes	☐ No
Appendix 3. Personal Qualifications and Designations	☐ Yes	☐ No
Appendix 4. Activity Hazard Analysis	☐ Yes	☐ No
Appendix 5. Site-specific plans and procedures	☐ Yes	☐ No
Appendix 6. Any additional plans, procedures, etc. can be added to this appendix and will be coordinated with the KO/COR.	☐ Yes	☐ No

QUALITY CONTROL REPORT-BUCKET/PIPELINE										PAGE NO. Page 1 of X	
CONTRACT NO. W912DS26CXXXX NA		CONTRACT TITLE Maintenance Dredging of			CONTRACTOR			REPORT NO. X			
CHARACTER OF REPORT		☒ MAINTENANCE ☐ NEW WORK ENVIRONMENT					DATE X/XX/2026				
DREDGE	NAME AND TYPE XXX					SHIFTS PER DAY		DAYS PER WEEK			
	SIZE		HORSEPOWER			NO. OF CREW MEMBERS					
	PIPELINE	DIPPER OR BUCKET	DREDGE PUMP	SUCTION PIPE JET	CUTTER OR BUCKET	DREDGE	SHORE	OTHER	TOTAL		
LOCATION/CHANNEL OF WORK											
LOCATION OF WORK		REACH DREDGED: STATION TO STATION			DISPOSAL AREA USE		QTY DEPOSITED GROSS (CY)		CUMULATIVE AND QTY DEPOSIT FOR DA (CY)		
CHARACTER OF MATERIAL (%)		GRAVEL %	SAND %	CLAY %	MUD %	SILT %	HARDPAN %	STONE %	SHELL %	OTHER %	
CHANNEL CONDITION		AVERAGE DEPTH			BEFORE DREDGING			AFTER DREDGING			
RIVER/TIDE STAGE	MIN	0	TIME	00:00	MAX	0	TIME	00:00	GAGE LOCATION		
	MIN	0	TIME	00:00	MAX	0	TIME	00:00	GAGE DATUM		
WEATHER CONDITION		WEATHER Weather Caused No Delay			TEMP (min/max) F / F		VISIBILITY MI		WIND MPH		
WORK PERFORMED					DISTRIBUTION OF TIME AND MILES RUN						
ITEM		UNIT		QUANTITY		EFFECTIVE WORKING TIME				HR.	MIN.
AVERAGE WIDTH OF CUT		FT				PUMPING OR DREDGING					
TOTAL ADVANCED THIS PERIOD		FT				PCT OF EFFECTIVE TIME					
TOTALADVANCE PREVIOUSLY		FT				BOOSTER (IN LINE)					
TOTAL ADVANCE TO DATE		FT				NON-EFFECTIVE WORKING TIME (CHARGEABLE COST OF WORK)					
SCOWS LOADED		NUMBER				HANDLING PIPE LINES					
AVERAGE LOAD PER SCOW		CY				HANDLING ANCHOR LINES					
FLOATING PIPE 0		SHORE PIPE 0		SUBMERGED PIPE		CLEARING PUMP AND PUMP LINES					
						CLEARING CUTTER AND SUCTION HEAD					
						WAITING FOR SCOWS					
TOTAL LENGTH OF DISCHARGE PIPE		FT				TO AND FROM WHARF OR ANCHORAGE					
CUBIC YARDS REMOVED		GROSS		CREDITED		CHANGING LOCATION OF PLANT ON JOB					
AMOUNT DREDGE THIS DATE						LOSS DUE TO OPPOSING NATURAL ELEMENTS					
AMOUNT PREVIOUSLY REPORTED						SHORE LINE AND SHORE WORK					
TOTAL AMOUNT DREDGED TO DATE						WAITING FOR BOOSTER					
AMOUNT DREDGED PER PUMPING/CUTTING HR						MINOR OPERATING REPAIRS (EXPLAIN IN REMARKS)					
						WAITING FOR ATTENDANT PLANT					
						PREPARATION AND MAKING UP TOW					
						TRANSFERRING PLANT BETWEEN WORKS					
COMMODITY		CONSUMED		CREDITED		LAY TIME OFF SHIFT AND SATURDAYS					
ITEM	UNIT	QUANTITY		QUANTITY		SUNDAYS AND HOLIDAYS					
FUEL	BBL					FIRE DRILL					
ELECTRICITY	KW					MOVING OUT OF WAY OF TRAFFIC					
LUBRICANTS	GAL					MISCELLANEOUS (EXPLAIN IN REMARKS)					
MOB DATE		DREDGE START		DEMOB DATE		TOTAL NON-EFFECTIVE TIME					
						PCT. OF NON-EFFECTIVE					
						TOTAL EFFECTIVE AND NON-EFFECTIVE TIME				24	0

QC NARRATIVE(S)

RMS FORM 4267

TRANSPORTATION AND PLACEMENT LOG
CONTRACT NUMBER
PROJECT NAME

DATE: _____

LOAD NUMBER: _____

INSPECTOR: _____

WEATHER CONDITIONS: _____ **WIND SPEED:** _____ **VISIBILITY:** _____

TUG NAME: _____ **SCOW NAME:** _____

DESCRIPTION OF MATERIAL: _____

	<u>Date</u>	<u>Time</u>
LOADING STARTED:	_____	_____
LOADING COMPLETED:	_____	_____
SCOW DEPARTED DREDGING SITE:	_____	_____
SCOW ARRIVED DEWATERING SITE:	_____	_____
SCOW DEPARTED DEWATERING SITE:	_____	_____
SCOW ARRIVED PROCESSING SITE:	_____	_____
SCOW DEPARTED PROCESSING SITE:	_____	_____

COMMENTS: _____

Inspector Signature/date

DAILY SITE SAFETY & HEALTH INSPECTION LOG

Project:

Date: _____

Dredges, Scows, and other Work Areas Checked:

Names of All Employees in the Work area

_____	_____
_____	_____
_____	_____
_____	_____

Personal Protective Equipment and Work Equipment in Use

Special Safety and Health Issues & Notes

Name of Safety Personnel

Signature of Safety Personnel

DAILY WHALE REPORTING LOG

PROJECT: MAINTENANCE DREDGING, _____

1. DATE: _____

2. WHALE SIGHTED: YES _____ NO _____

3. TYPE OF WHALE: _____

4. TIME: _____

5. NUMBER OF WHALES SIGHTED:

ADULT _____ JUVENILE _____

6. NUMBER OF WHALES INJURED:

ADULT _____ JUVENILE _____ WORK-RELATED: YES _____ NO _____

7. NUMBER OF WHALES KILLED:

ADULT _____ JUVENILE _____ WORK-RELATED: YES _____ NO _____

8. LOCATION: _____

9. REMARKS: _____

10. SIGNATURE: _____

11. TITLE: _____

TURTLE OBSERVATION REPORTING LOG

PROJECT: MAINTENANCE DREDGING, _____

LOAD
NUMBER: _____ DATE _____ TIME _____

LOCATION IN CHANNEL: LATITUDE _____ LONGITUDE _____

WEATHER
CONDITIONS _____

PORT BASKET CONTENTS

TURTLE OR TURTLE PARTS PRESENT: YES _____ NO _____

COMMENTS AND OTHER OBSERVATIONS

BRIDGE WATCH: TIME _____ LOCATION _____

NUMBER OF TURTLES SIGHTED _____

OBSERVER'S NAME

Sea Turtle Handling and Resuscitation

It is unlikely that sea turtles will survive entrainment in a hopper dredge, as the turtles found in the dragheads are usually dead, dying, or dismantled. However, the procedures for handling live sea turtles follow in case the unlikely event should occur.

Please photograph all turtles (alive or dead) and turtle parts found during dredging activities and complete the Incident Report of Sea Turtle Take.

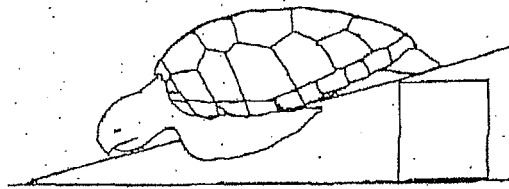
Live sea turtles

When a sea turtle is found in the dredge gear, observe it for activity and potential injuries.

- ▶ If the turtle is actively moving, it should be retained onboard until evaluated for injuries by a permitted rehabilitation facility. Due to the potential for internal injuries associated with hopper entrainment, it is necessary to transport the live turtle to the nearest rehabilitation facility as soon as possible, following these steps:
 - 1) Contact the nearest rehabilitation facility to inform them of the incident.
 - 2) Keep the turtle shaded and moist (e.g., with a water-soaked towel over the eyes, carapace, and flippers).
 - 3) Contact the crew boat to pick up the turtle as soon as possible from the dredge (within 12 to 24 hours maximum). The crew boat should be aware of the potential for such an incident to occur and should develop an appropriate protocol for transporting live sea turtles.
 - 4) Transport the live turtle to the closest permitted rehabilitation facility able to handle such a case.

Do not assume that an inactive turtle is dead. The onset of rigor mortis and/or rotting flesh are often the only definite indications that a turtle is dead. Releasing a comatose turtle into any amount of water will drown it, and a turtle may recover once its lungs have had a chance to drain.

- ▶ If a turtle appears to be comatose (unconscious), contact the designated stranding/rehabilitation personnel immediately. Once the rehabilitation personnel has been informed of the incident, attempts should be made to revive the turtle at once. Sea turtles have been known to revive up to 24 hours after resuscitation procedures have been followed. The resuscitation regulations can be found at 50 CFR 223.206(d)(1).
 - Place the animal on its bottom shell (plastron) so that the turtle is right side up and elevate the hindquarters at least 6 inches for a period of 4 up to 24 hours. The degree of elevation depends on the size of the turtle; greater elevations are required for larger turtles.
 - Periodically, rock the turtle gently left to right and right to left by holding the outer edge of the shell (carapace) and lifting one side about 3 inches then alternate to the other side.
 - Periodically, gently conduct one of the above reflex tests to see if there is a response.
 - Keep the turtle in a safe, contained place, shaded, and moist (e.g., with a water-soaked towel over the eyes, carapace, and flippers) and observe it for up to 24 hours.
 - If the turtle begins actively moving, retain the turtle until the appropriate rehabilitation personnel can evaluate the animal. The rehabilitation facility should eventually release the animal in a manner that minimizes the chances of re-impingement and potential harm to the animal (i.e., from cold stunning).
 - Turtles that fail to move within several hours (up to 24) must be handled in the manner described in Appendix B-II-E, or transported to a suitable facility for necropsy (if the condition of the sea turtle allows and the rehabilitation facility wants to necropsy the animal).



Stranding/rehabilitation contacts

- In New York, the stranding network contact is Kim Durham, Riverhead Foundation for Marine Research, 431 East Main Street, Riverhead, NY (631-369-9829), and New Jersey contacts include Bob Schoelkopf at the Marine Mammal Stranding Center, P.O. Box 773, Brigantine, NJ (609-266-0538).
- Dana Hartely, (NOAA Fisheries Stranding Network Coordinator: (508) 495-2090) should also be contacted immediately for any marine mammal injuries or mortalities.

ENDANGERED SPECIES OBSERVER FORM

Daily Report

Date: _____

Geographic Site: _____

Location: Lat/Long _____ Vessel Name _____

Weather conditions: _____

Water temperature: Surface _____ Below midwater (if known) _____

Condition of screening apparatus: _____

Incidents involving endangered or threatened species? (Circle) Yes No
(If yes, fill out Incident Report of Sea Turtle/Shortnose Sturgeon Mortality)

Comments (type of material, biological specimens, unusual circumstances, etc.):

Observer's Name: _____

Observer's Signature: _____

BRIDGE WATCH SUMMARY

[illegible][illegible]

Incident Report of Sea Turtle Take

Species _____ Date _____ Time (specimen found) _____

Geographic Site _____

Location: Lat/Long _____

Vessel Name _____ Load # _____

Begin load time _____ End load time _____

Begin dump time _____ End dump time _____

Sampling method _____

Condition of screening _____ Location where

specimen recovered _____

Draghead deflector used? YES / NO Rigid deflector draghead? YES / NO

Condition of deflector _____

Weather conditions _____

Water temp: Surface _____ Below midwater (if known) _____

Species Information: (please designate cm/m or inches.)

Head width _____ Plastron length _____

Straight carapace length (or total length) _____

Straight carapace width _____

Curved carapace length _____

Curved carapace width _____

Condition of specimen/description of animal (please complete attached
diagram) _____

Turtle Decomposed: NO SLIGHTLY MODERATELY SEVERELY

Turtle tagged: YES / NO Please record all tag numbers. Tag # _____

Photograph attached: YES / NO

(please label species, date, geographic site and vessel name on back of photograph)

Comments/other (include justification on how species was identified)

Observer's Name _____

Observer's Signature _____

Incident Report of Sea Turtle Take

Draw wounds, abnormalities, tag locations on diagram and briefly describe below.

Description of animal:

Incident Report of Atlantic Sturgeon Take

Photographs should be taken and the following information should be collected from all sturgeon (alive and dead) found in association with the project.

Date _____ Time (specimen found) _____

Geographic Site _____

Location: Lat/Long _____

Vessel Name _____ Load # _____

Begin load time _____ End load time _____

Begin dump time _____ End dump time _____

Sampling method _____

Condition of screening _____

Location where specimen recovered _____

Draghead deflector used? YES NO Rigid deflector draghead? YES NO

Condition of deflector _____

Weather conditions _____

Water temp: Surface _____ Below midwater (if known) _____

Species Information: *(please designate cm/m or inches.)*

Fork length (or total length) _____ Weight _____

Condition of specimen/description of animal _____

Fish Decomposed: NO SLIGHTLY MODERATELY SEVERELY

Fish tagged: YES / NO Please record all tag numbers. Tag # _____

Genetic sample taken: YES NO

Photograph attached: YES / NO

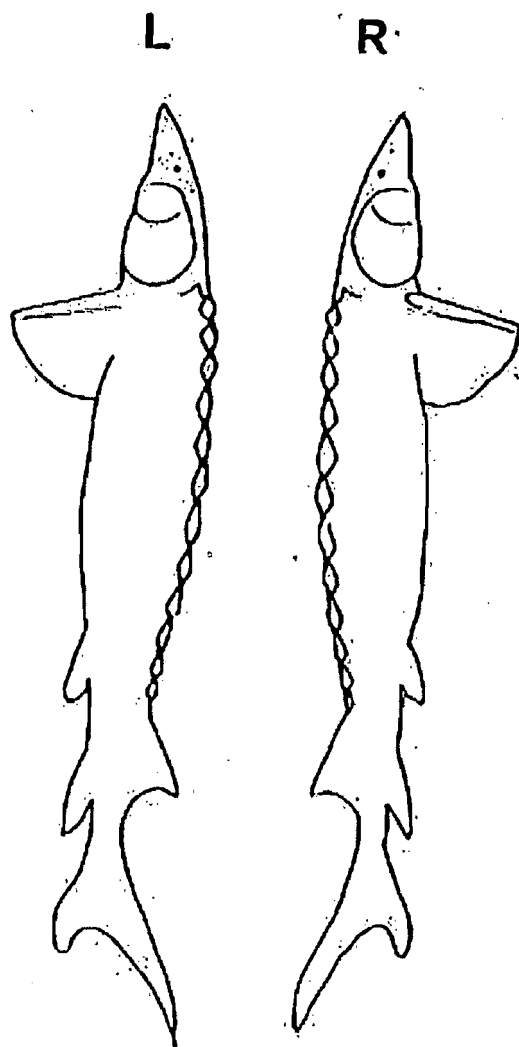
(please label species, date, geographic site and vessel name on back of photograph)

Comments/other (include justification on how species was identified)

Observer's Name _____

Observer's Signature _____

Draw wounds, abnormalities, tag locations on diagram and briefly describe below



Description of fish condition:

Sample Project Submittal Register

SUBMITTAL REGISTER											CONTRACT NO.						
TITLE AND LOCATION						CONTRACTOR											
MAINTENANCE DREDGING HAGUE BASIN, USMMA						CONTRACTOR: SCHEDULE DATES			CONTRACTOR ACTION		APPROVING AUTHORITY						
ACTIVITY NO	TRANSMITTAL NO	SPEC SECT	DESCRIPTION ITEM SUBMITTED	PARAGRAPH	GOVT CLASSIFICATION REVIEW	SUBMIT	APPROVAL NEEDED BY	MATERIAL NEEDED BY	ACTION CODE	DATE OF ACTION	DATE FWD TO APPR AUTH/ FROM CONTR	DATE FWD TO OTHER REVIEWER	DATE RCD FROM OTH REVIEWER	ACTION CODE	DATE OF ACTION	MAILED TO CONTR/ DATE RCD FRM APPR AUTH	REMARKS
(a)	(b)	(c)	(d)	(e)	(f)	(g)	(h)	(i)	(j)	(k)	(l)	(m)	(n)	(o)	(p)	(q)	(r)
		01 30 00	SD-01 Preconstruction Submittals														
			Certification of Insurance; G														
			Surety Bond; G														
			List Of Proposed Subcontractors; G														
			Order of Work; G														
			Work To Be Performed By The Contractor; G,														
			Subcontracting Plan; G														
			Project Schedules; G														
			Submittal Register; G														
			Letter Appointing Superintendent; G														
			Activity Hazard Analysis; G														
			Accident Prevention Plan; G														
			Work Plan; G														
			Quality Control (QC) plan, G														
			Environmental Protection Plan; G														
			Notice to Mariners; G														
			Determination of No Hazard to Air Navigation; G														
			SD-03 Product Data														
			Periodic Schedule Update; G														
			SD-11 Closeout Submittals														
			As-Built Drawings; G														
		01 32 01.00 10	SD-01 Preconstruction Submittals														

Sample Project Submittal Register

SUBMITTAL REGISTER											CONTRACT NO.						
TITLE AND LOCATION						CONTRACTOR											
MAINTENANCE DREDGING HAGUE BASIN, USMMA						CONTRACTOR: SCHEDULE DATES			CONTRACTOR ACTION		APPROVING AUTHORITY						
ACTIVITY NO	TRANSMITTAL NO	SPEC SECT	DESCRIPTION ITEM SUBMITTED	PARAGRAPH	GOVT CLASSIFICATION REVIEW	SUBMIT	APPROVAL NEEDED BY	MATERIAL NEEDED BY	ACTION CODE	DATE OF ACTION	DATE FWD TO APPR AUTH/ DATE RCD FROM CONTR	DATE FWD TO OTHER REVIEWER	DATE RCD FROM OTH REVIEWER	ACTION CODE	DATE OF ACTION	MAILED TO CONTR/ DATE RCD FRM APPR AUTH	REMARKS
		01 32 01.00 10	Preliminary Project Schedule		G												
			Initial Project Schedule	3.4.2	G												
			SD-03 Product Data														
			Periodic Schedule Update; G														
		01 33 00	SD-01 Preconstruction Submittals														
			Certification of Insurance; G														
			Surety Bond; G														
			List Of Proposed Subcontractors; G														
			Order of Work; G														
			Work To Be Performed By The Contractor; G,														
			Subcontracting Plan; G														
			Project Schedules; G														
			Submittal Register; G														
			Letter Appointing Superintendent; G														
			Activity Hazard Analysis; G														
			Accident Prevention Plan; G														
			Work Plan; G														
			Quality Control (QC) plan, G														
			Environmental Protection Plan; G														
			Notice to Mariners; G														
			Determination of No Hazard to Air Navigation; G														
			SD-03 Product Data														

SUBMITTAL REGISTER											CONTRACT NO.						
TITLE AND LOCATION						CONTRACTOR											
MAINTENANCE DREDGING HAGUE BASIN, USMMA						CONTRACTOR: SCHEDULE DATES			CONTRACTOR ACTION		APPROVING AUTHORITY						
ACTIVITY NO	TRANSMITTAL NO	SPEC SECT	DESCRIPTION ITEM SUBMITTED	PARAGRAPH	GOVT CLASSIFICATION REVIEW	SUBMIT	APPROVAL NEEDED BY	MATERIAL NEEDED BY	ACTION CODE	DATE OF ACTION	DATE FWD TO APPR AUTH/ FROM CONTR	DATE FWD TO OTHER REVIEWER	DATE RCD FROM OTH REVIEWER	ACTION CODE	DATE OF ACTION	MAILED TO CONTR/ DATE RCD FRM APPR AUTH	REMARKS
(a)	(b)	(c)	(d)	(e)	(f)	(g)	(h)	(i)	(j)	(k)	(l)	(m)	(n)	(o)	(p)	(q)	(r)
		01 33 00	Periodic Schedule Update; G														
			SD-11 Closeout Submittals														
			As-Built Drawings; G														
		01 35 26	SD-01 Preconstruction Submittals														
			Accident Prevention Plan (APP)	1.7	G												
			APP - Construction	1.7.1	G												
			Dive Operations Plan	1.16	G												
			SD-06 Test Reports														
			Monthly Exposure Reports	1.4													
			Notifications and Reports	1.12													
			Accident Reports	1.12.2	G												
			LHE Inspection Reports	1.12.3													
			SD-07 Certificates														
			Crane Operators/Riggers	1.6.1.5													
			Standard Lift Plan	1.7.3.2	G												
			Critical Lift Plan	1.7.3.3	G												
			Naval Architecture Analysis	1.7.3.4	G												
			Activity Hazard Analysis (AHA)	1.8													
			Confined Space Entry Permit	1.9.1													
			Hot Work Permit	1.9.1													
			Certificate of Compliance	1.12.4													
			License Certificates	1.14													
			Radiography Operation Planning	1.14.1	G												
			Work Sheet														
			Portable Gauge Operations	1.14.1	G												
			Planning Worksheet														

[illegible]

00 90 01 Attachment K Sampling and Testing Results

The complete sampling and testing results will be provided as attachments to this solicitation on SAM.gov prior to bid opening.

FEDERAL AVIATION ADMINISTRATION

OE/AAA®

OBSTRUCTION EVALUATION / AIRPORT AIRSPACE ANALYSIS

DESK REFERENCE GUIDE

SUBJECT: Add a New Case (Off Airport)

**You are required to have a registered e-filing account*

All references to software products remain the protected trademarks of their manufacturers. The instructions in this document may reference Microsoft application(s). This is not meant in any way to express a preference for any particular product since there are many different browsers, programs, and operating systems available to the user. For simplicity only, one brand/product is used in the examples that follow.

If you've successfully registered, you can use your OE/AAA account to file your Notice of Proposed Construction or Alteration.

Note1: Exit this guide if you are filing an Off Airport Notice of Proposed Construction or Alteration for Wind Turbine /Met Tower (w/WT Farm) or Wind Turbine-Barge Crane structures.

Note2: Use this DRG to Add a New Case (Off Airport) to include:

- E-file a crane mounted on a barge vessel for construction - Barge Crane (not associated with a wind turbine).
- E-file a Met Tower, not associated with a wind turbine farm, select structure type 'Met Tower (non-WT Farm)'.
- E-file a building with an auxiliary wind turbine mounted on a building or structure attached to a building, not associated with a wind turbine farm; select 'Building w/Wind Turbine'.
- For a wind turbine (not associated with a wind turbine farm), select "Wind Turbine."

Note3: To e-file **Wind Turbine /Met Tower (w / WT Farm) / Wind Turbine-Barge Crane** structure types, refer to the "Add a New Case (Off Airport) for Wind Turbine /Met Tower (w/WT Farm) /WT-Barge Crane" desk reference guide or the "Add Multiple Cases (Off Airport) for Wind Turbine /Met Tower (w/WT Farm)/ WT-Barge Crane" desk reference guide.

Note4: If you're e-filing a **large Off Airport project** with the following eligible Structure Types:

- Antenna Tower
- Billboard
- Bridge
- Building
- Building w/Wind Turbine
- Catenary Wire
- Cell-On-Wheels
- Chimney
- Drilling Rig
- Feasibility Study
- Flagpole
- High Mast Illumination
- Landfill
- Light Pole
- Lighting Study
- Met Tower (non-WT Farm)
- Monopole
- Other w/Antenna
- Other w/o Antenna
- Power Line
- Sign
- Solar Panel
- Solar Tower
- Stack
- Tower
- Transmission Line
- Utility Pole
- Waste Management Facility
- Water Tank
- Workover Rig

Review the “Add Multiple Cases (Off Airport)” desk reference guide (DRG) to consider e-filing via the OE/AAA data import feature.

Add a New Case (Off Airport)

The OE/AAA electronic filing (e-file) system allows you to:

- Submit an FAA Form 7460-1 via an electronic data screen.
- Generate a map directly from your account to be submitted electronically with your filing.
- Track the status of your case as it moves through the study process.

From your OE/AAA Portal Page you have:

- Instant access to your determination, requests for additional information, etc... as they are issued by the FAA.
- The ability to attach surveys, and additional background information directly to your electronic case file(s).

Create a New Case

To create a new case, click the **Add New Case (Off Airport)** link. This will bring up the *Notice of Proposed Construction or Alteration* Page. Complete each section according to the instructions below.

OE/AAA Portal Page

My Account	Off Airport Construction (includes on Military Airport)
Name: User Name: Login Time: IP Address: Actions:	 My Cases (Off Airport) Add New Case (Off Airport) Add Multiple Cases (Off Airport) Add Supplemental Notice (7460-2 Form) My Sponsors Add New Sponsor Off Airport Contacts My Circ Comments

Important: You must complete all required fields (indicated with an asterisk *) to successfully save your case. Missing data will result in a warning message at the top of your page identifying the required information.

Notice of Proposed Construction or Alteration - Off Airport

Sponsor (person, company, etc. proposing this action)						
* Sponsor:						
Construction / Alteration Information						
* Notice Of:						
* Duration:						
if Temporary : Months: Days:						
Work Schedule - Start:	(mm/dd/yyyy)					
Work Schedule - End:	(mm/dd/yyyy)					
*For temporary cranes-Does the permanent structure require separate notice to the FAA? To find out, use the Notice Criteria Tool. If separate notice is required, please ensure it is filed. If it is not filed, please state the reason in the Description of Proposal.						
State Filing:						
Structure Details						
* Latitude:	N					
* Longitude:	W					
* Horizontal Datum:	NAD83					
* Site Elevation (SE):	(nearest foot)					
* Structure Height (AGL):	(nearest foot)					
* Current Height (AGL):	(nearest foot)					
* For notice of alteration or existing provide the current AGL height of the existing structure. Include details in the Description of Proposal						
Minimum Operating Height (AGL):	(nearest foot)					
* For aeronautical study of a crane or construction equipment the maximum height should be listed above as the Structure Height (AGL). Additionally, provide the minimum operating height to avoid delays if impacts are identified that require negotiation to a reduced height. If the Structure Height and minimum operating height are the same enter the same value in both fields.						
* Requested Marking/Lighting:	None					
Other :						
Aircraft Detection Lighting System(ADLS): * Only check this box if you are proposing the installation and use of an Aircraft Detection Lighting System						
* Current Marking/Lighting:	Select One					
Other :						
* Nearest City:						
* Nearest State:						
* Description of Location:						
On the Project Summary page upload any certified survey.						
* Description of Proposal:						
Additional Location(s)						
Add New Location(s)						
Structure Summary						
* Structure Type:						
* Structure Name:						
NOTAM Number:						
FCC Number:						
Prior ASN:	- - - OE Validate Prior					
Proposed Frequency Bands						
Select any combination of the applicable frequencies/powers identified in the Colo Void Clause Coalition, Antenna System Co-Location, Voluntary Best Practices, effective 21 Nov 2007, to be evaluated by the FAA with your filing. If not within one of the frequency bands listed below, manually input your proposed frequency(ies) and power using the Add Specific Frequency link.						
Add Specific Frequency						
☐	Low Freq	High Freq	Freq Unit	ERP	ERP Unit	
☐	6	7	GHz	55	dBW	
☐	6	7	GHz	42	dBW	
☐	10	11.7	GHz	55	dBW	
☐	10	11.7	GHz	42	dBW	
☐	17.7	19.7	GHz	55	dBW	
☐	17.7	19.7	GHz	42	dBW	
☐	21.2	23.6	GHz	42	dBW	
☐	21.2	23.6	GHz	55	dBW	
☐	698	806	MHz	1000	W	
☐	806	901	MHz	500	W	
☐	806	824	MHz	500	W	
☐	824	849	MHz	500	W	
☐	851	866	MHz	500	W	
☐	869	894	MHz	500	W	
☐	896	901	MHz	500	W	
☐	901	902	MHz	7	W	
☐	929	932	MHz	3500	W	
☐	930	931	MHz	3500	W	
☐	931	932	MHz	3500	W	
☐	932	932.5	MHz	17	dBW	
☐	935	940	MHz	1000	W	
☐	940	941	MHz	3500	W	
☐	1670	1675	MHz	500	W	
☐	1710	1755	MHz	500	W	
☐	1850	1910	MHz	1640	W	
☐	1850	1990	MHz	1640	W	
☐	1930	1990	MHz	1640	W	
☐	1990	2025	MHz	500	W	
☐	2110	2200	MHz	500	W	
☐	2305	2360	MHz	2000	W	
☐	2305	2310	MHz	2000	W	
☐	2345	2360	MHz	2000	W	
☐	2496	2690	MHz	500	W	
Clone Prior ASN frequencies						
*Note: Selecting this link will only add frequency (ies)/power from the prior ASN listed in Structure Summary. Additional frequency (ies)/power must be manually added before submitting to the FAA if they are to be considered with your new filing.						
☐ I hereby certify that all of the above statements made by me are true, complete, and correct to the best of my knowledge. In addition, I agree to mark and/or light the structure in accordance with established marking and lighting standards as necessary.						
Save Cancel						

- A. ***Sponsor:** Select the Sponsor from the dropdown menu. This menu is populated from your *My Sponsors* list. The registered information will automatically display in your electronic public record as the Sponsor's Representative once the case has been completed and a valid FAA Determination is issued.
- B. ***Notice Of:** Select the type of proposal. New Construction would be a structure that has not yet been built. Alteration is a change to an existing structure such as the addition of a side mounted antenna, a change to the marking and/or lighting, a change to power and/or frequency, or a change to the height. Existing would be a correction to the latitude and/or longitude, a correction to the existing height, or if filing for an existing structure that has never been studied by the FAA.
- C. ***Duration:** If Permanent, so indicate. If Temporary, enter the estimated length of time the temporary structure will be up in Months/Days.
- D. **Work Schedule:** *(Not a Required Field)* Using the calendar icons next to the fields select the date that construction is expected to start and the date that construction should be completed.
- E. **State Filing:** *(Not a Required Field)* Indicate if the case has been filed with the state.
- F. ***Structure Type:** Select the type of structure from the Structure Type drop down list. "Note: Frequencies will not be accepted if your Structure Type is 'Lighting Study'."
- G. ***Structure Name:** Enter a name for the structure (e.g. 50 Ton Crane, Hotel, Tower, etc...)
- H. **FCC Number:** *(Not a Required Field)* If this is an existing tower that has been registered with the FCC, enter the Antenna Structure Registration number.
- I. **Prior ASN:** *(Not a Required Field)* If an FAA aeronautical study was previously conducted, enter the prior Aeronautical Study Number.

Prior ASN data can be pre-populated into the Notice of Proposed Construction or Alteration-Off Airport form data fields. When the e-filer confirms the Prior ASN data, the following data fields are available for pre-population:

- Latitude/Longitude
- Site Elevation
- Above Ground Level Height (determined AGL from valid prior ASN)
- Marking/Lighting (Recommended Marking /Lighting from valid prior ASN to requested Marking /Lighting)

J. ***Latitude /Longitude:** Latitude and Longitude must be precise geographic coordinates entered in Degrees, Minutes, and Seconds to the hundredth of a second (e.g. 25-47-4.75 N, 80-19-7.26 W).

K. ***Horizontal Datum:** Select either NAD83 or NAD27. North American Datum is a reference from which latitude/longitude measurements are made.

L. ***Site Elevation:** Enter the site elevation above mean sea level expressed in whole feet rounded to the nearest foot (e.g. 12' 3" should be entered as 12). This data should match the ground contour elevations for the site.

- **Add New Case (Off Airport) – Single e-file case entry:**
The OE/AAA system validates the Site Elevation (SE) of e-filer's entered location; if it passes the National Elevation Data (NED) terrain elevation validation check, the System takes the e-filer to the Map verify step. E-filers are alerted if the SE does not Pass the NED check. If this occurs, you must either adjust the SE or check the "SE comments provided in Additional Info" checkbox and provide SE comments in the Additional Info text box to explain the discrepancy.

- **Add New Case (Off Airport) - Additional Location(s) - Batch e-file entry:**
The OE/AAA system validates the SE entered on all Rows added when Save is selected; if they all pass the NED terrain elevation validation check, the system takes the e-filer back to the external e-Filing Form to certify their data entry and move to the Map verify step. The System validates all of the rows entered and alerts filers when the SE does not Pass the NED Data check for the location. If this occurs, you must either adjust the SE or check the "SE comments provided in Additional Info" checkbox and provide SE comments in the Additional Info text box to explain the discrepancy.

- M. * **Structure Height:** (AGL): Only for Structure Types that **ARE NOT** a **traverseway**. Your structure's height is the height above ground level in whole feet rounded to the next highest foot (e.g. 12' 3" should be entered as 13). The structure height includes anything mounted on top of the structure such as antennas, lightning rods, obstruction lights, etc.
- N. * **Unadjusted Structure Height:** (AGL): Only for Structure Types that **ARE** a **traverseway**. Your structure's height is the unadjusted structure height. Enter the unadjusted structure height above ground level in whole feet rounded to the next highest foot (e.g. 12' 3" should be entered as 13). The unadjusted structure height includes anything mounted on top of the structure such as antennas, lightning rods, obstruction lights, etc.
- O. * **Height Adjustment:**
Only for Structure Types that **ARE** a **traverseway**. The Unadjusted Structure Height AGL is adjusted upward by the system to account for the expected height of vehicles (or the highest mobile object [as applicable]) using the traverseway selected from the Structure Type drop down list in the Structure Summary section of the data entry screen.
- o For Structure Type "**Waterway**" and "**Other Traverseway**"
The Unadjusted Structure Height AGL is adjusted upward one (1) foot (default) by the system. **Enter the height** of the highest mobile object or vehicle expected to use the traverseway into the Height Adjustment field.
 - For Structure Type "**Private Road**"
The Unadjusted Structure Height AGL is adjusted upward ten (10) feet (default) by the system. **Enter the height** of the highest vehicle expected to use the traverseway into the Adjustment field.
- P. * **Total Structure Height** (AGL): Only for Structure Types that **ARE** a **traverseway**. The total of both the Unadjusted Structure Height and the Height Adjustment above ground level in whole feet rounded to the next highest foot (e.g. 12' 3" should be entered as 13).
- Q. * **Requested Marking and Lighting:** (Indicate the type Desired). The FAA Advisory Circular 70/7460-1 – Obstruction Marking and Lighting is recommended for determining the proper way to light and mark structures affecting navigable airspace. The AC can be accessed from the *Information*

Resources section of the website using the *Relevant Advisory Circulars* link.

Requested Marking/Lighting options:

- None
- Red lights
- Red lights and paint
- Red lights and flags
- Paint and 24-hour med-strobes
- Paint and a med-dual system
- Spherical markers and red lights
- Flag Marker
- Spherical Markers
- Dual-red and medium intensity
- Dual-red and high intensity white
- White-medium intensity
- White-high intensity
- White Paint/Synchronized Red Lights
- White Paint Only
- Dual medium catenary
- Dual high catenary
- White-medium catenary
- White-high catenary
- Paint day, red flashing twilight & night
- Paint day, med-strobes twilight & night
- Paint day, hi-strobes twilight & night
- Other – (if selected from the dropdown, enter the marking/lighting type in the “Other” field)

R. **Aircraft Detection Lighting System” (ADLS):** *(Not a Required Field)* Control device to operate marking/lighting systems on structures.

S. ***Current Marking /Lighting:** Indicate the current M/L on the structure; if a new structure, select N/A Proposed Structure.

T. **Current AGL:** Required for structures being e-filed as existing or alteration.

- U. **Min Operating Height** (AGL): * For aeronautical study of a crane or construction equipment the maximum height should be listed above as the Structure Height (AGL). Additionally, provide the minimum operating height to avoid delays if impacts are identified that require negotiation to a reduced height. If the Structure Height and minimum operating height are the same enter the same value in both fields.
- V. *** Nearest City/State**: Enter the name of the nearest city and the actual state where the site will be located.
- W. *** Description of Location**: Enter a brief description of the actual location of the site including the address or the relationship of the structure to roads, airports, prominent terrain, existing structures, etc.
- X. *** Description of Proposal**: Enter a complete description that details the nature of the filing.
- Y. **Add new location**: When submitting more than one case (e.g. a crane and a building or four building points) the following required fields indicated with an asterisk (*) must be completed to successfully save additional locations: J, K, L, M, G, Q. Additional rows may be added in increments of 1 thru 5. To remove an additional row, select the Delete link.
- Z. **Proposed Frequency Bands**: *(Not a Required Field)* Check any that apply. "Note: Frequencies will not be accepted if your Structure Type is 'Lighting Study'."
- AA. **Specific Frequencies**: *(Not a Required Field)* any frequency band not listed in the Proposed Frequency Bands should be added here. Select the Add Specific Frequency link and enter the Low Frequency, High Frequency, Frequency Unit, Effective Radiated Power (ERP), and ERP Unit. Select [Save] or [Cancel] to be returned to the *Case Data Entry* page. If an e-filer intends to overlap protected FAA frequencies, specific coordination with the FAA Spectrum Engineering Group will be required. A textbox allows filers to submit rationale for the frequency overlap in the e-filed Notice of Proposed Construction or Alteration-Off Airport form. "Note: Frequencies will not be accepted if your Structure Type is 'Lighting Study'."

BB. Clone Prior ASN frequencies – (Not a Required Field) The Prior ASN field must be filled before entering frequencies. This link is displayed after the Specific Frequency Bands section. This link is only available if the e-filer adds a Prior ASN that has frequencies included in the case. When selected the applicable Proposed Frequency Bands and/or Specific Frequencies from the prior ASN auto populate and are available for edit by the e-filer prior to saving the draft. Once the e-filer saves this data, it becomes part of the current filing and is transmitted to the FAA with the new ASN. The e-filer is permitted to add additional frequencies if necessary after cloned frequencies are pre-populated but duplicate entries are not allowed. “Note: Frequencies will not be accepted if your Structure Type is ‘Lighting Study’.”

Selecting the **checkbox** to accept the certify statement.

When all required fields are completed, select the **[Save] button**. This will save the case data as a draft and take you to the *Project Summary* screen.

After case data has been saved as a draft, filers are taken to the Map Verification screen that displays all cases created on the previous Add New Case(s) Off Airport screen and require Map verification before submission.

Map Verification
Mapping - Draft Reference Guide

To submit your project to the FAA, you must verify the coordinates of each case listed below
 Select the link labeled View Map to verify for each case
 Review the plotted location on the Map
 Select Verify once you have confirmed the location or click on the structure name link to go back to the Structure Name and review your entered coordinates
 NOTE: You may continue to the Project Summary page without verifying your map(s), however, before your case is eligible for submission to the FAA you will be required to verify your plotted location. This function will also be available on the next screen for you to complete later

Project Name:	City, State	Lat/Long	Sponsor:
Structure			Map
test1 Draft	test, CA	34° 12' 8.54" N 118° 29' 21.10" W	View Map to verify
test2 Draft	test, CA	34° 12' 8.54" N 118° 29' 21.10" W	View Map to verify
test3 Draft	test, CA	34° 12' 8.54" N 118° 29' 21.10" W	View Map to verify
test4 Draft	test, CA	34° 12' 8.54" N 118° 29' 21.10" W	View Map to verify
test5 Draft	test, CA	34° 12' 8.54" N 118° 29' 21.10" W	View Map to verify

Structure Name: test
Latitude: 34° 12' 8.54" N
Longitude: 118° 29' 21.10" W



By verifying the coordinates represented on this map, you agree that the location of the case you have entered is correct to the best of your knowledge.

Aerial Photography Transparency Setting (1% increments)

[Verify Map](#)

[Continue - Map/Verify Later](#)

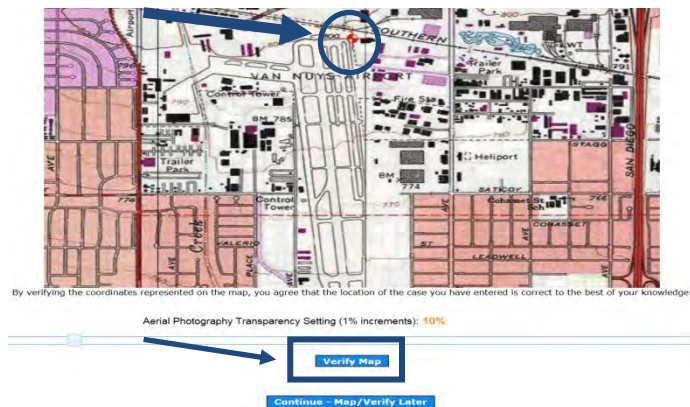
Enlarged View

Structure	City, State	Lat/Long	Map
test1 Draft	test, CA	34° 13' 8.54" N 118° 29' 21.20" W	View Map to verify
test2 Draft	test, CA	34° 13' 8.54" N 118° 29' 21.19" W	View Map to verify
test3 Draft	test, CA	34° 13' 8.54" N 118° 29' 21.18" W	View Map to verify
test4 Draft	test, CA	34° 13' 8.54" N 118° 29' 21.17" W	View Map to verify
test5 Draft	test, CA	34° 13' 8.54" N 118° 29' 21.16" W	View Map to verify

Structure Name: test5
Latitude: 34° 13' 8.54" N
Longitude: 118° 29' 21.16" W

To submit this project you must verify the coordinates of each case listed above by verifying the map

- Select the link labeled **View Map to Verify** (displayed above the map) when more than one map needs to be verified or click the **Verify Map** button (displayed below the map) to view a single case map.
 - Review the plotted structure location on the Map (red bullseye) to verify the crosshairs on the map match with your proposed structure location.
 - Select **“Verify Map”** (at the bottom of the map) once you have confirmed the structure location. This will save the verified map but will NOT submit the case to the FAA.



- It will return you to the Project Summary screen, where if needed, the **“Structure”** link is/are available to display saved draft(s) of the data form if entered case coordinates need to be revised.

NOTE: Once a map is verified, if the e-filer returns to the saved Off Airport data entry form draft and re-certifies and saves the form data, the filer is required to re-verify the map location prior to submission to the FAA.

Project Name:		Sponsor:	
Structure	City, State	Lat/Long	Map
test1 Draft	test, CA	34° 13' 8.54" N 118° 29' 21.20" W	View Map to verify
test2 Draft	test, CA	34° 13' 8.54" N 118° 29' 21.19" W	View Map to verify
test3 Draft	test, CA	34° 13' 8.54" N 118° 29' 21.18" W	View Map to verify
test4 Draft	test, CA	34° 13' 8.54" N 118° 29' 21.17" W	View Map to verify
test5 Draft	test, CA	34° 13' 8.54" N 118° 29' 21.16" W	View Map to verify

To submit this project you must

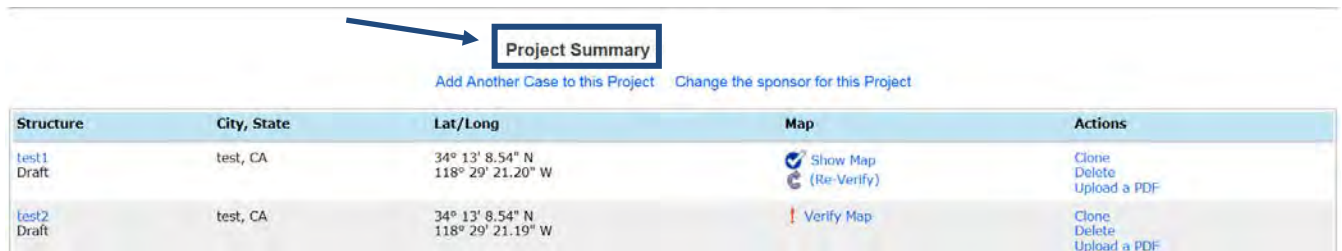
Structure Name: test5
Latitude: 34° 13' 8.54" N
Longitude: 118° 29' 21.16" W

If the e-filer returns to the saved Off Airport data entry form draft [view data] but cancels (does not re-certify the entered data), they won't be required to re-verify the Map.

NOTE: You may continue to the Project Summary screen without verifying your map(s), however, before your case is eligible for submission to the FAA you will be required to verify your plotted location. This function will also be available on the next screen for you to complete later.



When the only or last listed map in a project on the Map Verification screen is verified or if you continue to the Project Summary screen without verifying your map(s) the *Project Summary* screen will be displayed. Towards the right side of the page there will be a Map column and an Actions column. The Actions column contains the **Clone**, **Delete**, and **Upload a PDF** links. The Map column contains the **Verify Map** link.



Structure	City, State	Lat/Long	Map	Actions
test1 Draft	test, CA	34° 13' 8.54" N 118° 29' 21.20" W	Show Map (Re-Verify)	Clone Delete Upload a PDF
test2 Draft	test, CA	34° 13' 8.54" N 118° 29' 21.19" W	Verify Map	Clone Delete Upload a PDF

From the Project Summary page filers can verify or re-verify plotted location(s). To submit your project you must verify the coordinates of each case listed below by verifying the map".

To **verify** or re-verify your plotted map location from the Project Summary screen once you've confirmed the structure location; select the **"Verify Map"** or **"Re-Verify"** under the "Map" column header. On the map, click the "Verify Map" button at the bottom of the map or click on the **"Cancel"** button to return to Project Summary screen.

Notice of Proposed Construction or Alteration - Off Airport

[Add a new Case Off Airport - Desk Reference Guide](#)

[Add a New Case Off Airport for Wind Turbines - Met Towers - Desk Reference Guide](#)

Project Name:

Sponsor:

Project Summary :

[Add Another Case to this Project](#) [Change the sponsor for this Project](#)

Structure	City, State	Lat/Long	Map	Actions
test1 Draft	test, CA	34° 13' 8.54" N 118° 29' 21.20" W	 Show Map  (Re-Verify)	Clone Delete Upload a PDF
test2 Draft	test, CA	34° 13' 8.54" N 118° 29' 21.19" W	 Verify Map	Clone Delete Upload a PDF
test3 Draft	test, CA	34° 13' 8.54" N 118° 29' 21.18" W	 Verify Map	Clone Delete Upload a PDF
test4 Draft	test, CA	34° 13' 8.54" N 118° 29' 21.17" W	 Verify Map	Clone Delete Upload a PDF
test5 Draft	test, CA	34° 13' 8.54" N 118° 29' 21.16" W	 Verify Map	Clone Delete Upload a PDF

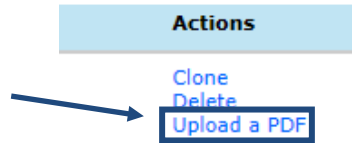
[Mapping - Desk Reference Guide](#)

[Attaching Documents - Desk Reference Guide](#)

[Upload a PDF to the Project](#)
Please upload all supporting case documentation including the latest certified survey, if available.

To submit this project, you must verify the coordinates for each case listed above.

Attach Documents to Cases



For Off Airport cases you can upload PDF documents before and after submitting your case if needed.

Projects

One or more cases can be grouped into a Project. For example, each of the four building corner points can be a Case of a building Project. Project makes it easier to file, evaluate, manage, and approve related cases.

A screenshot of a "Project Summary" screen. At the top, there is a "Project Summary" header with two links: "Add Another Case to this Project" and "Change the sponsor for this Project". Below the header is a table with five columns: "Structure", "City, State", "Lat/Long", "Map", and "Actions". The table contains three rows of data, each representing a case. The "Actions" column for each row contains links: "Clone", "Delete", and "Upload a PDF". A blue arrow points from the left towards the "Project Summary" header.

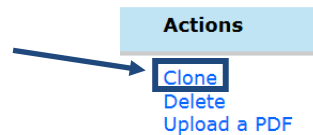
Structure	City, State	Lat/Long	Map	Actions
test1 Draft	test, CA	34° 13' 8.54" N 118° 29' 21.20" W	Show Map (Re-Verify)	Clone Delete Upload a PDF
test2 Draft	test, CA	34° 13' 8.54" N 118° 29' 21.19" W	Verify Map	Clone Delete Upload a PDF
test3 Draft	test, CA	34° 13' 8.54" N 118° 29' 21.18" W	Verify Map	Clone Delete Upload a PDF

Add a Case



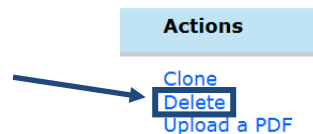
On the *Project Summary* screen you may select the **Add Another Case to this Project** link to add another case to this project. The cases entered this way will have the same project number.

Clone a Case



Another way to add a case to the project is to clone a new case from an existing case. E-filers can clone cases from the Project Summary screen of cases in their account regardless of the status (i.e. Draft/Submitted). To clone a case, click the **Clone** link. The cloning feature will copy most of the information over into a new *Case Data Entry* screen and link the cases together in a project. You may add as many cloned cases to your project as necessary. Once all of the maps for the project have been verified, the **[Submit]** button will appear on the *Project Summary* screen so that the entire project can be submitted to the FAA.

Delete a Case



You may only delete cases in Draft status. To delete a single case or a case from a project, select the **Delete** link located under the Actions header on the Project Summary screen. This will display the *Confirm Case Deletion* screen. To continue with the delete, select the **[I Confirm]** button to execute the deletion.

Submit to FAA

Note: Before submitting your case/project to the FAA, determine if you need to use the Clone or Delete features.

After the case data has been saved and map(s) verified, the **[Submit]** button will appear on the *Project Summary* screen to allow you to submit the case to the FAA. If you have provided all the information about your case or project, select the **[Submit]** button. This will take you to the *Confirm Project Submission* screen.

Project Name: Sponsor:

Project Summary :
[Add Another Case to this Project](#) [Change the sponsor for this Project](#)

Structure	City, State	Lat/Long	Map	Actions
Test Draft	Ashburn, PA	40° 24' 40.80" N 79° 15' 32.92" W	Show Map (Re-Verify)	Clone Delete Upload a PDF

[Mapping - Desk Reference Guide](#) [Attaching Documents - Desk Reference Guide](#)

You may submit your Project to the FAA.

Submit

[Upload a PDF to the Project](#)
 Please upload all supporting case documentation including the latest certified survey, if available.

Select the **[I Confirm]** button to submit the case or project to the FAA. When the submission is done, OE/AAA will display the *Project Submission Success* screen.

Confirm Project Submission
 Project Name:

Please confirm you would like to submit Project and associated cases to the FAA for processing.

I Confirm **Back**

The Aeronautical Study Number (ASN) assigned to your filed case(s) and other submission information is displayed. The Project Submission Success screen includes a link to a **state aviation contacts** map to determine if coordination of your proposed activity is necessary with your state aviation department.

Project Submission Success
 Project Name:

Project BRICK-00065811-18 has been submitted successfully to the FAA.

Your filing is assigned Aeronautical Study Number (ASN):
 2075-AWP-8894-OE
 2075-AWP-8895-OE
 2025-AWP-8896-OE
 2025-AWP-8897-OE
 2025-AWP-8898-OE
 2025-AWP-8899-OE

Please refer to the assigned ASN on all future inquiries regarding this filing.

Please return to the system at a later date for status updates.

It is the responsibility of each e-filer to exercise due diligence to determine if coordination of the proposed construction or alteration is necessary with their state aviation department. Please use the link below to contact your state aviation department to determine their requirements.
[State Aviation Contacts](#)

To ensure e-mail notifications are delivered to your inbox please add nonreply@faa.gov to your address book. Notifications sent from this address are system generated FAA e-mails and replies to this address will NOT be read or forwarded for review. Each system generated e-mail will contain specific FAA contact information in the text of the message.

Return to Portal

Please return to the system at a later date for status updates.

Attachment M: Hague Basin, USMMA XYZ Data

Separately attached to Sam.gov solicitation.

For additional survey data sets:

<https://navigation.usace.army.mil/>

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DIVISION 00 - PROCUREMENT AND CONTRACTING REQUIREMENTS

SECTION 00 90 02

WATER QUALITY CERTIFICATES

02/09

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3.1 DOCUMENTS, EXHIBITS, AND OTHER ATTACHMENTS

3.1.1 WATER QUALITY CERTIFICATE(S) / FEDERAL CONSISTENCY
DETERMINATION(S)

3.1.1.1 Attachment N - New York State Department of Environmental
Conservation (NYSDEC) Water Quality Certificate

3.2 Environmental No Dredge Windows

-- End of Section Table of Contents --

SECTION 00 90 02

WATER QUALITY CERTIFICATES
02/09

PART 1 GENERAL

PART 2 PRODUCTS

Not Used.

PART 3 EXECUTION

3.1 DOCUMENTS, EXHIBITS, AND OTHER ATTACHMENTS

The following attachments have been provided for reference to the bidder for use in performing the contract requirements.

3.1.1 WATER QUALITY CERTIFICATE(S) / FEDERAL CONSISTENCY DETERMINATION(S)

The contractor must comply with all conditions of the following Water Quality Certificate(s) (WQC) and Federal Consistency Determination(s) (FCD):

3.1.1.1 Attachment N - New York State Department of Environmental Conservation (NYSDEC) Water Quality Certificate

The WQC/FCD(s) will be provided as attachments to this solicitation on SAM.gov prior to bid opening. The contractor must comply with all conditions of the WQC/FCD(s). A copy of the WQC/FCD(s) shall be displayed in a highly visible location on the dredge at all times for the duration of the project.

3.2 Environmental No Dredge Windows

a. See attached WQC/FCD(s).

-- End of Section --

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DIVISION 01 - GENERAL REQUIREMENTS

SECTION 01 11 00

SUMMARY OF WORK

02/24

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- 1.3 WORK COVERED BY THE CONTRACT DOCUMENTS
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- 1.4 PERFORMANCE OF WORK BY THE CONTRACTOR
- 1.5 DFARS 236.204, DISCLOSURE OF THE MAGNITUDE OF CONSTRUCTION PROJECTS
- 1.6 DATUM AND BENCH MARKS
- 1.7 MISPLACED MATERIAL
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PART 2 PRODUCTS

PART 3 EXECUTION

-- End of Section Table of Contents --

SECTION 01 11 00

SUMMARY OF WORK
02/24

PART 1 GENERAL

1.1 SUBMITTALS

Government approval is required for submittals with a "G". Submittals not having a "G" classification are for information only. Submit the following in accordance with Section 01 33 00 SUBMITTAL PROCEDURES:

SD-01 Preconstruction Submittals; G

1.2 FAR 52.211-10, COMMENCEMENT, PROSECUTION AND COMPLETION OF WORK

a. The Contractor shall be required to (i) commence work under this contract within five (5) calendar days after the date the Contractor receives the Notice to Proceed, (ii) prosecute the work diligently, and (iii) complete the entire base work ready for use, not later than **12 calendar days** after the date the Contractor receives the notice to proceed.

b. Should Option 1 or Options 1 and 2 be exercised, an additional one (1) calendar day for each **2,500 cubic yards** to be removed under the option(s) will be allowed. The time stated for completion shall include final cleanup of the premises.
(FAR 52.212-3)

c. Should Option 3 or Option 4 be exercised, the contractor shall meet a production rate to complete the work based upon the required completion date set forth in the Option.

d. All work shall be in accordance with the drawings and specifications or instructions attached hereto and made a part thereof, or to be furnished hereafter by the Contracting Officer or Contracting Officer Representative (COR) and subject, in every detail, to his supervision, direction, and instructions.

1.3 WORK COVERED BY THE CONTRACT DOCUMENTS

1.3.1 Project Description

The work to be performed under this project consists of providing all materials, plant, labor, equipment and services (except those furnished by the Government) to perform maintenance dredging of Hague Basin, U.S. Merchant Marine Academy, New York, with placement of the material at a Contractor furnished, state-permitted, upland placement site(s). The Contractor will be solely responsible for coordinating, obtaining, and be in compliance with all requirements for transportation, offloading, dewatering, processing, and disposing of the dredge material, as well as for obtaining all permits and for meeting all requirements for the processing and disposal site(s) identified by the Contractor. See Section 35 20 29 DREDGED MATERIAL TRANSPORT AND PLACEMENT MONITORING for more information.

The maintenance for this project consists of dredging a total of

approximately **52,135 CY** of material based on the plans and specifications survey performed in September 2025. For more details, see ESTIMATED QUANTITIES in Section 01 30 00 ADMINISTRATIVE REQUIREMENTS of these Specifications. The dredge material has been determined to be composed of primarily silt and clay.

A summary of the Dredging Areas is shown in the table below:

DREDGING AREAS	TOTAL ESTIMATED QUANTITY (CY)
BASIC WORK - Dredging Area 1: (-15' MLLW + 2' OD)	11,360
OPTION 1 - Dredging Area 2: (-12' MLLW + 2' OD)	18,090
OPTION 2 - Dredging Area 3: (-12' MLLW + 2' OD)	22,685

Contract time for completion of the basic work and/or Option 1 and Option 2 is based on a minimum average production rate of **2,500 cubic yards** (CY) per day for dredging, transportation, processing and placement at a contractor furnished, state permitted, Government approved upland placement site(s). Should the total quantity of material exceed the estimated quantities within the Solicitation Contract Form, additional time will be allowed at the rate of one (1) calendar day for each 2,500 cubic yards in excess of the established limit. The time stated for completion shall include final clean up. See 1.2.c for contract time for completion should Option 3 or Option 4 be exercised.

The contractor must bid on all items of the bid schedule. The following CLINs require dredging of the Hague Basin, U.S. Merchant Marine Academy, New York, with subsequent transportation, processing and placement of the dredged material at a contractor furnished, state permitted, Government approved upland placement site(s):

CLIN 0002 (BASIC WORK - Dredging Area 1- requires dredging to the plane of -15 feet Mean Lower Low Water (MLLW) plus 2 feet allowable overdepth).

CLIN 0004 (OPTION 1 - Dredging Area 2- requires dredging to the plane of -12 feet MLLW plus 2 feet allowable overdepth).

CLIN 0005 (OPTION 2 - Dredging Area 3- requires dredging to the plane of -12 feet MLLW plus 2 feet allowable overdepth).

Based on the plans and specifications survey performed in September 2025, the maximum quantity available to be dredged is **52,135 CY** from the contract areas in the Hague Basin, U.S. Merchant Marine Academy. For a detailed breakdown of quantity available to be dredged, see paragraph 1.9 ESTIMATED QUANTITIES in Section 01 30 00 of the Specifications.

Scow monitoring is required for this project. The contractor is required to comply with Section 35 20 29 DREDGED MATERIAL TRANSPORT AND PLACEMENT MONITORING, of these specifications.

Sampling and testing was conducted by the Government in 2026. The complete sampling and testing results will be provided as attachments to this solicitation on SAM.gov prior to bid opening. Using all test results, the Apparent Low Bidder shall coordinate with the State(s) to obtain necessary offloading, transportation, dewatering, processing, and disposal

permits/requirements of the site(s) identified by the Apparent Low Bidder.

The Contractor shall be solely responsible for coordinating, obtaining, and complying with all the offloading, transportation, dewatering, processing and disposal permits/requirements of the site(s) identified by the Contractor.

For State Water Quality Certificate(s) (WQC) and Federal Consistency Determination(s) (FCD), see Section 00 90 02 WATER QUALITY CERTIFICATES. The contractor must comply with all conditions of the current WQC(s)/FCD(s). The WQC/FCD(s) will be provided as attachments to this solicitation on SAM.gov prior to bid opening.

Please take note of the Section 00 90 01, Attachment L. The Apparent Low Bidder must determine applicability and notify the Administrator of the Federal Aviation Administration (FAA) of his proposed construction methods, via Form 7460-1, Attachment L in Section 00 90 01. The Apparent Low Bidder is responsible for all coordination with the FAA, and for determining if any more recent FAA requirements now exist. FAA coordination/approval shall not impact the period of performance for this contract. All required FAA approval shall be considered a pre-construction submittal and is required to be provided by the Apparent Low Bidder before or at the pre-construction meeting and prior to the start of work / issuance of the Notice to Proceed.

1.4 PERFORMANCE OF WORK BY THE CONTRACTOR

The Contractor shall perform on the site, and with its own organization and equipment, work equivalent to at least forty (40) percent of the total amount of work to be performed under the contract. This percentage may be reduced by a supplemental agreement to this contract if, during performance of the work, the Contractor requests a reduction and the Contracting Officer and/or his Representative determines that the reduction would be to the advantage of the Government. (FAR 52.236-01)

1.5 DFARS 236.204, DISCLOSURE OF THE MAGNITUDE OF CONSTRUCTION PROJECTS

The entire work (CLINs 0001 through 0005) is estimated to cost between \$10,000,000.00 to \$25,000,000.00.

1.6 DATUM AND BENCH MARKS

Soundings and Elevations shown in the contract drawings are in US Survey Feet and refer to Mean Lower Low Water (MLLW) [epoch 1983-2001]. The Plane of MEAN LOWER LOW WATER (MLLW) is 4.1 FEET BELOW NAVD88 AS DETERMINED USING VDATUM (VER. 4.6.1). Coordinates refer to US State Plane coordinate system NAD 1983, Long Island Lambert - Zone 3104, US Survey Feet. The following Benchmark information should be referenced for defining local datum and required project depth.

NSRS Benchmark:

Benchmark: "851 6945 TIDAL 5"
PID: DE7792
Elevation: 10.88'

Local Control Data:

Benchmark: 851 6945 D
Elevation: 11.66'

All control should be verified prior to utilization. The contractor may contact the New York District Survey Section at (201)333-0284 for assistance in bench mark discrepancies or clarification in benchmark and / or tide gage location.

1.7 MISPLACED MATERIAL

Should the Contractor during the progress of the work, lose, dump, throw overboard, sink, or misplace any material, plant, machinery, or appliance, which in the opinion of the Contracting Officer and/or his Representative may be dangerous to or obstruct navigation, the Contractor shall recover and remove the same with the utmost dispatch. The Contractor shall give immediate notice, with description and location of such obstructions, to the Contracting Officer and/or his Representative or inspector, and when required shall mark or buoy such obstruction until the same are removed. Should he refuse, neglect, or delay compliance with the above requirements, such obstructions may be removed by the Contracting Officer and/or his Representative, and the cost of such removal may be deducted from any money due or to become due to the Contractor, or may be recovered under his bond. The liability of the Contractor for the removal of a vessel wrecked or sunk without fault or negligence shall be limited to that provided in Sections 15, 19, and 20 of the Rivers and Harbors Act of March 3, 1899 (33 USC. 410 et seq.) (DOD FARS SUPPL. 52.236-7006).

1.8 AUTHORIZED CONSTRUCTION AREA AND TRESPASSING

Do not inflict damage upon land and properties outside the authorized construction area by unwarranted entry upon, passage through, damage to, or disposal of, material on such land or property. The Contractor may make a separate agreement with any other party, regarding the use of, or right to, land or facilities outside the contract area. If such an agreement is made, it must be in writing and a copy shall be provided to the Contracting Officer. The Contractor must hold and save the Government, its officers, and agents free from liability arising from trespassing or damage occasioned by their operations.

1.9 EXISTING WORK

In addition to FAR 52.236-9 Protection of Existing Vegetation, Structures, Equipment, Utilities, and Improvements:

- a. Remove or alter existing work in such a manner as to prevent injury or damage to any portions of the existing work which remain.
- b. Repair or replace portions of existing work which have been altered during construction operations to match existing or adjoining work, as approved by the Contracting Officer. At the completion of operations, existing work must be in a condition equal to or better than that which existed before new work started.

PART 2 PRODUCTS

Not used.

PART 3 EXECUTION

Not used.

-- End of Section --

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SECTION 01 20 00

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11/20, CHG 5: 02/25

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SECTION 01 20 00

PRICE AND PAYMENT PROCEDURES

11/20, CHG 5: 02/25

PART 1 GENERAL

1.1 SUBMITTALS

Government approval is required for submittals with a "G" classification. Submittals not having a "G" are for information only. Submit the following in accordance with Section 01 33 00 SUBMITTAL PROCEDURES:

SD-01 Preconstruction Submittals; G

1.2 SINGLE JOB PAYMENT ITEMS

Payment items for the work of this Contract for which Contract job payments will be made are listed in the SCHEDULE and described below. All costs for items of work, which are not specifically mentioned to be included in a particular job or unit price payment item, are included in the listed job item most closely associated with the work involved. The job price and payment made for each item listed constitutes full compensation for furnishing all plant, labor, materials, and equipment, and performing any associated Contractor quality control, environmental protection, meeting safety requirements, tests and reports, and for performing all work required for which separate payment is not otherwise provided.

1.2.1 Mobilization and Demobilization

1.2.1.1 Payment

Payment will be made for costs associated with mobilization and demobilization, as defined in Special Clause PAYMENT FOR MOBILIZATION AND DEMOBILIZATION.

Mobilization shall include all costs for operations accomplished prior to commencement of actual dredging operations, such as transfer of dredge and attendant plant and equipment to site, initial installations of a pipeline, preparation of a beach fill area, and other incidentals in advance of the actual dredging. Demobilization shall include general preparation for transfer of plant to home base, removal of pipelines, cleanup of beach fill areas, and transfer of a plant to its home base. The cost of work other than mobilization and demobilization of the Contractor's dredging plant and equipment shall not be included in this item. For payment for Mobilization and Demobilization see contract clause Section 00 70 00 Contract Clauses.

All costs connected with the mobilization and demobilization of all of the contractor's dredging plant and equipment will be paid for at the contract lump sum price for this item. 60 percent of the lump sum price will be paid to the Contractor upon completion of his mobilization to the work site. The remaining forty percent 40 percent will be included in the final payment for work under this contract.

In the event the Contracting Officer and/or his Representative considers that the amount in this item 60 percent, which represents mobilization,

does not bear a reasonable relation to the cost of the work in this contract, the Contracting Officer and/or his Representative may require the Contractor to justify this portion of the bid. Failure to justify such price to the satisfaction of the Contracting Officer and/or his Representative will result in payment of actual mobilization costs as determined by the Contracting Officer and/or his Representative, at the completion of mobilization and payment of the remainder of this item in the final payment under this contract. The determination of the Contracting Officer and/or his Representative is not subject to appeal.

1.2.1.2 Unit of Measure

Unit of measure: job.

1.2.2 "Black Box" Monitoring Unit

1.2.2.1 Payment

Payment will be made for costs associated with operations necessary for furnishing, and equipping all container vessels used to transport dredged material to designated placement or treatment locations with container Vessel Monitoring Equipment ("Black Box") and software.

1.2.2.2 Unit of Measure

Unit of measure: job.

1.3 UNIT PRICE PAYMENT ITEMS

Payment items for the work of this Contract on which the Contract unit price payments will be made are listed in the SCHEDULE and described below. The unit price and payment made for each item listed constitutes full compensation for furnishing all plant, labor, materials, and equipment, and performing any associated Contractor quality control, environmental protection, meeting safety requirements, tests and reports, and for performing all work required for each of the unit price items.

1.3.1 DREDGING

1.3.1.1 Payment

Payment will be made for costs associated with dredging of the project, which includes performing required dredging and other operations incidental thereto Contractor-furnished disposal area(s) and disposition of dredged material.

1.3.1.2 Unit of Measure

Unit of measure: cubic yard (CY).

1.3.1.3 Measurement

The total amount of material removed and paid for under the contract will be measured by the cubic yard dredged. Measurement of the number of cubic yards dredged will be made by computing the volume between the bottom surface shown by soundings of the last survey made before dredging and the bottom surface shown by soundings of the survey made as soon as practicable after the entire work specified has been completed. The volume for measurement shall include the material within the limits of the overdepth,

side slopes described in SECTION 35 20 23, Paragraph 3.2.7.1 Quantity of Material, 3.2.7.2 Overdepth Dredging, and 3.2.7.3 Side Slopes.

The sounding maps and/or drawings accurately represent the channel conditions existing in September 2025. The soundings shown on the contract drawings were taken with an electronic depth recorder and/or multi-beam surveying system with a transducer frequency of 200-400 KHz. New soundings will be taken generally two weeks prior to dredging. Soundings after dredging will be made by an electronic depth recorder with a transducer frequency of 200-400 KHz or may be made by using a multi-beam surveying system of the same frequency. Weather dependent, after-dredging-surveys will commence generally within five (5) days of completion of the project. Determination of quantities to be paid in the area specified after having been made once, will not be reopened, except on evidence of collusion, fraud or obvious error. Computations for payment purposes will generally be made by the Corps of Engineers utilizing the Triangulated Irregular Network (TIN) method.

Shoaling in the areas to be dredged on this project does not occur at a rapid rate from existing depths. However, the unit price for dredging based on the above method of computation of the quantity for which payment is to be made shall include the Contractor evaluation of shoaling, changes in the regime of the waterway, or changes caused by the Contractor's operations that may occur during the period between the survey before dredging and the survey for acceptance of work.

Scows and Hopper Dredges: Where scows and hopper dredges are used in performance of work and where the Contractor maintains load measuring devices on such scows or hopper dredges, copies of all recorded measurements made in connection with the work shall be furnished to the Contracting Officer and/or his/her representative. If as the work progresses the Contractor determines that a significant difference exists between the recorded bin or scow quantities and the survey quantities computed from the check surveys described above, he shall immediately notify the the Contracting Officer and/or his/her representative of any such discrepancies. Such notification shall include a description of the Contractor's methods of measuring scow or bin quantities, certification of measuring techniques, documentation of material sampling and methods used to convert bin or scow measurements to in-place density.

It is emphasized that bin or scow measurements shall not be used as basis for partial or final payments.

14-day partial payments will be based on approximate quantities determined by soundings or sweepings taken behind the dredge by the Contractor. The Contractor soundings are to be used for partial payments only and will not form a basis for the acceptance of the work.

The Contractor must inform the Government, in writing, within three calendar days of completing the work.

The total quantity of excavated material for which payment will be made will be the theoretical quantity between the ground surface as determined by a survey and the grade and slope of the theoretical cross sections indicated. No allowance will be made for the removal of any material outside the required slope lines unless authorized.

When the Government performs surveys using multibeam, the data will be binned using the median soundings for contours and volumes. The maximum

bin size will not exceed 3'x3'.

In the event that unforeseen obstructions or hard material is discovered, shoals in these areas will be assessed using the minimum sounding within the bin. This method will not be used for computation.

1.4 CONTRACT MODIFICATIONS

In conjunction with the Contract Clause "DFARS 252.236-7000, Modification Proposals-Price Breakdown," and where actual ownership and operating costs of construction equipment cannot be determined from Contractor accounting records, equipment use rates shall be based upon the applicable provisions of the EP-1110-1-8.

1.5 PAYMENTS TO THE CONTRACTOR

Payments will be made on submission of itemized requests by the Contractor which comply with the requirements of this section, and will be subject to reduction for overpayments or increase for underpayments made on previous payments to the Contractor.

1.5.1 Obligation of Government Payments

The obligation of the Government to make payments required under the provisions of this contract will, at the discretion of the Contracting Officer, be subject to reductions and/or suspensions permitted under the FAR and agency regulations including the following in accordance with "FAR 32.503-6:

- a. Reasonable deductions due to defects in material or workmanship;
- b. Claims which the Government may have against the Contractor under or in connection with this contract;
- c. Unless otherwise adjusted, repayment to the Government upon demand for overpayments made to the Contractor; and
- d. Failure to provide up to date record drawings not current as stated in Contract Clause "FAC 5252.236-9310, Record Drawings.

1.6 SHOALING

If, before the contract is completed, shoaling occurs in the finished channel because of the natural lowering of the side slopes, re-dredging at the contract price, within the limit of available funds, may be done if agreeable to both the Contractor and the Contracting Officer and/or his Representative.

1.7 CONTINUITY OF WORK

No payment will be made for work done in any area designated by the Contracting Officer and/or his Representative until the full depth required under the contract is secured in the whole of such area, unless prevented by ledge rock; nor will payment be made for excavation in any area not adjacent to and in prolongation of areas where full depth has been secured except by decision of the Contracting Officer or Contracting Officer's Representative. Should any such nonadjacent area be excavated to full depth during the operations carried on under the contract, payment for all work therein may be deferred until the required depth has been made in the

area intervening. The Contractor may be required to suspend dredging at any time when for any reason the gauges or ranges cannot be seen or properly followed.

PART 2 PRODUCTS

2.1 QUANTITY SURVEYS

- a. Quantity surveys shall be conducted, and the data derived from these surveys shall be used in computing the quantities of work performed and the actual construction completed and in place.
- b. The Government shall conduct the before-dredge and after-dredge surveys and make the computations based on them. The Contractor shall conduct the survey for any periods for which progress payments are requested and shall make the computations based on these surveys. These surveys conducted by the Contractor shall be conducted under the direction of a representative of the Contracting Officer, unless the Contracting Officer waives this requirement in a specific instance.
- c. Promptly upon completing a survey, the Contractor shall furnish the originals of all field notes and all other records relating to the survey or to the layout of the work to the Contracting Officer and/or his Representative, who shall use them as necessary to determine the amount of progress payments. Raw data, edited survey data with all supporting files and documentation, and all data generated during such work shall be furnished by the Contractor to the Contracting Officer and/or his Representative. The Contractor shall retain copies of all such material furnished to the Contracting Officer and/or his Representative. (FAR 52.236-16). The Government will not commence work on the after-dredge survey until the Contractor has furnished the originals of all field notes, all other records relating to the Contractor's final survey or to the layout of the work, and all data generated during such work, to the Contracting Officer and/or his Representative.
- d. Contractor's participation in surveys: In accordance with agency policy guidance, the preferred methods of performance of all hydrographic quantity surveys shall be (in descending order):
 - (1) The Government will perform quantity surveys by using qualified in-house crews, if available.
 - (2) The Government will provide quantity surveys by contracting directly with qualified independent hydrographic survey contractors.
 - (3) The Government will permit, only in exceptional circumstances, the use of dredging contractor's surveys if the Contracting Officer and/or his Representative determine that such surveys are adequate and reasonable for payment purposes and a Government inspector, qualified in hydrographic surveying, is present during the collection of the survey data. Raw data, edited survey data with all supporting files and documentation, and all data generated during such work shall be furnished by the Contractor to the Contracting Officer and/or his Representative.

If it is determined by the Contracting Officer that it is impractical for Government personnel to perform the before-dredge and after-dredge

surveys and the Government wishes the Contractor's surveys to be used, the following will be required from the Contractor:

- (1) Acceptance of all monumentation and transponder locations.
- (2) Witness by a Corps of Engineers representative of all calibration procedures such as vertical and horizontal control.
- (3) Corps of Engineers observation of raw data collection.
- (4) Submittal of both unedited as well as edited versions of survey maps.
- (5) Subsequent acceptance of edited survey map after determination by Corps survey personnel that editing was conducted in accordance with U.S. Army Corps of Engineers specifications and guidelines.
(FAR 52.236-16 - ALTERNATE I, APR 1984)

e. Any disagreements with the data collection process, and / or any data generated during such work shall be brought to the attention of the Contracting Officer or his representative within five (5) business days of the data collection process. The Contracting Officer or his representative will then determine the necessary corrective measures, if any. Failure to notify the Contracting Officer or his representative within 5 business days of the data collection process, disqualifies the Contractor from any such related claims.

f. Any survey related disagreement(s) as it pertains to this contract must be submitted in writing to the Contracting Officer or his representative within 5 business days of occurrence of such survey related event. Failure to notify the Contracting Officer or his representative within 5 business days of such survey related event disqualifies the Contractor from any such related claims.

PART 3 EXECUTION

Not used.

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PART 2 PRODUCTS

PART 3 EXECUTION

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SECTION 01 30 00

ADMINISTRATIVE REQUIREMENTS
01/20

PART 1 GENERAL

1.1 SUMMARY

The requirements of these section apply to, and are component part of, each section of the project specifications.

1.2 SUBMITTALS

Government approval is required for submittals with a "G" designation. Submittals not having a "G" designation are for information only. Submit the following in accordance with Section 01 33 00 SUBMITTAL PROCEDURES:

SD-01 Pre-Construction Submittals; G

Preconstruction Submittals shall be submitted to the Contracting Officer or Contracting Officer Representative **within eighteen (18) days after the opening of bids**. Submit the following:

Certification of Insurance; G

Surety Bond; G

List Of Proposed Subcontractors; G

Order of Work; G

The Contractor's order of work for dredging and performing other work, including disposal area plan.

Work To Be Performed By The Contractor; G,

Subcontracting Plan; G

Project Schedules; G

A Preliminary Project Schedule and an Initial Project Schedule shall be submitted in accordance with Section 01 32 01.00 10 PROJECT SCHEDULE.

Submittal Register; G

Letter Appointing Superintendent; G

Activity Hazard Analysis; G

See Section 01 35 26, GOVERNMENTAL SAFETY REQUIREMENTS

Accident Prevention Plan; G

See Section 01 35 26, GOVERNMENTAL SAFETY REQUIREMENTS

Work Plan; G

Quality Control (QC) plan, G See Section 01 45 00.00 20

Environmental Protection Plan; G

Notice to Mariners; G

Determination of No Hazard to Air Navigation; G
See Section 00 90 01, Attachment L

SD-03 Product Data

Periodic Schedule Update; G
Submitted in accordance with Section 01 32 01.00 10 PROJECT SCHEDULE.

SD-11 Closeout Submittals

As-Built Drawings; G

1.3 PRECONSTRUCTION CONFERENCE

Work shall not commence prior to the conference. After award of contract, a pre-construction conference will be held at such time and location as determined by the Contracting Officer. The purpose of this conference is to discuss and develop a mutual understanding of the administrative requirements of the Contract including but not limited to: daily reporting, invoicing, value engineering, safety, base-access, outage requests, hot work permits, schedule requirements, quality control, schedule of prices or earned value report, shop drawings, submittals, cybersecurity, prosecution of the work, government acceptance, final inspections and contract close-out. Contractor must present and discuss their basic approach to scheduling the construction work and any required phasing. Members of the conference from the Government will include the quality assurance staff, the Contracting Officer or his authorized representative, and construction staff. Members from the Contractor shall include the site superintendent, project safety officer, and the quality control staff. The discussion will include, and may not be limited to, the following:

- a. Contractor Supervisory and Quality Control staff
- b. Correspondence Procedures
- c. Accident Prevention Plan
- d. Determination of No Hazard to Air Navigation (FAA - OE/AAA)
- e. Pollution Control Plan
- f. Project Scheduling and Payment Procedures
- g. Other subjects that may be of interest to the contracting parties
- h. Schedule of Weekly Meeting
- i. Quality control plan
- j. Construction site plan
- k. Site safety and health plan
- l. Notice to Mariners

1.4 CONTRACTOR IDENTIFIED OFFLOADING, PROCESSING, AND DISPOSAL SITE COMPLIANCE

The following will be used to determine the Bidder's responsibility: The Apparent Low Bidder must perform all work to demonstrate to the Government within **20 calendar days** from the date the Apparent Low Bidder is notified of being the Apparent Low Bidder: that the contractor-identified offloading, processing and disposal site(s) is operational, capable of processing and disposing of all the dredged material on that date for the in-situ quantity as per the Supplies/Services (Price) Schedule; and that it is in compliance with the New York State Department of Environmental Conservation Water Quality Certificate and/or Federal Consistency Determination Policies or other host state compliance as appropriate.

Offloading, processing and disposal of the dredged material shall be in a fully permitted facility that has been permitted by the host state, with beneficial reuse wherever possible. Dredging, dewatering and/or other processing (if any), transfer, transportation and material disposal shall be performed in accordance with applicable laws and requirements of all associated permits, approvals and government authorities having jurisdiction.

1.4.1 Synopsis of Proposed Operation

As a part of the work plan, the low bidder shall include a narrative of no more than seven (7) pages detailing the operation to move the dredged material from the dredging site to its state approved, permitted placement site that the Apparent Low Bidder has identified. The synopsis shall provide suitable detail to adequately track the material from dredging, through offloading, transportation and processing to its ultimate placement. The synopsis shall include but not be limited to the following:

- a. Provide a list of the names, locations, and point of contact, telephone number, offloading and loading facilities for each processing and/or disposal facility including site capacity.
- b. Provide a detailed map indicating locations of offloading and loading facilities or area within the proposed property to be utilized, for each disposal location, with a description of the material handling process at each disposal location.
- c. Provide hours of operation, transportation and operating procedures at offloading facilities.
- d. Provide Facilities information: access to offloading facilities, acceptable scow size, disposal site O&M manual, demurrage time to unload scow or trucks, anticipated processing time and placement materials, and other facility restriction if any.
- e. Provide a detailed description of the dredging procedure proposed to include the identification of dredges, buckets, scows, tugs and other salient equipment to be used for the project.
- f. Submit a detailed description of the loading and transportation procedures to be utilized.

1.4.2 Information Submitted by Apparent Low Bidder-20 Calendar Days

The Apparent Low Bidder shall submit five (5) copies of the following

information within **20 Calendar days** from the date notified of being the Apparent Low Bidder.

- a. Name of the contractor-identified offloading, processing and disposal site(s).
- b. Location (street address, city, state) of the contractor-identified site(s).
- c. Point of Contact for the contractor-identified site and telephone number.
- d. Evidence of Anticipated Daily Production Capability - Evidence of the anticipated daily production capability (CY /day) and the output rates for the proposed integrated system of dredging, offloading, transportation, processing, and placement for each contractor-identified site(s).
- e. Offloading, processing and disposal Site Elements Information:
 - (1) State the capacity of each element of the system. This should include both the total capacity and uncommitted capacity of the disposal site(s), as well as the average daily production rate and workdays per week that the processing site will operate.
 - (2) Time frame for availability for each element of the system: hours of operation in each day; days of operation in each week; months of operation in each year.
 - (3) Location of each element of the system: Descriptions with reference maps; Distances between the elements, measured in miles.
- f. Offloading, Processing and Disposal Site(s) Construction Activity Schedule and Project Construction Schedule - A schedule showing the order in which the Apparent Low Bidder proposes to perform the work and the dates on which the Apparent Low Bidder contemplates starting and completing the salient features of work (including acquiring materials, plant and equipment...etc). The schedule shall indicate that the production rate of the facility is sufficient to ensure that the project will be completed within the contract's required completion date. The Apparent Low Bidder shall consider its proposed integrated system of dredging, transportation, processing, and placement. The schedule shall be in the form of a progress chart of suitable scale to indicate approximately the percentage of work scheduled for completion by any given date during the period. The Apparent Low Bidder must indicate on this schedule the salient features of work for the contractor-identified offloading, processing and disposal site(s) that are needed to be completed **within 20 calendar days** from date the Apparent Low Bidder is notified of being the Apparent Low Bidder so that the site(s) is operational, capable of processing and disposing of all the dredged material for the in-situ quantity identified in the price schedule.
- g. Evidence demonstrating that the contractor-identified offloading, processing and disposal site(s) is Permitted, Operational, Capable of Offloading, Processing and Disposing Dredged Material from the project site. The Apparent Low Bidder must demonstrate to the Government within **20 calendar days** from the date notified of being the Apparent Low Bidder that the contractor-identified offloading, processing and

disposal site(s) is permitted, operational, capable of processing and disposing of all the dredged material for the in-situ quantity as per the Price Schedule. The Apparent Low Bidder must also identify by calendar day 20 that the offloading, processing and/or disposal site(s) is in compliance with the New York State Department of Environmental Conservation or New Jersey State Department of Environmental Protection Policies or other host state compliance as appropriate for the offloading, processing and disposal of all dredged material. Sampling and testing necessary for obtaining permits required for dredged material transportation, processing or placement has been performed by the Government and the results are included in these specifications, in Section 00 90 01 as Attachment K. Bidder must provide within the 20-day submittal to the Government proof that the material to be dredged from the project site and transported to the Apparent Low Bidder's upland site(s), meets all regulatory testing requirements of the permit under which the upland placement site(s) operates.

- h. Copies of Required Permits - The Apparent Low Bidder shall provide copies of all required permits and approvals for dewatering and/or other processing (if any), the transfer, transportation and final disposal of all dredged materials, and shall submit evidence of such permits and approvals to the Government. Documentation of compliance with any other legal or regulatory requirement has been provided to the Government including Water Quality Certificates (WQC) in accordance with Section 401 of the Clean Water Act, Federal consistency determinations (FCD), and State agreement pursuant to Section 307 of the Coastal Zone Management Act of 1972 as amended, for activities conducted in a state, which has a federally approved Coastal Zone Management program. WQC and CZM permits related to the dredging (as opposed to dredged material transport, disposal and placement) will be amended to this solicitation .
- i. The Apparent Low Bidder must provide:
 - (1) Proof of the contractor-identified Offloading, Processing and/or Disposal Site(s) being licensed for acceptance of dredged material by all appropriate regulatory entities (permits for the site previously provided should be also included in this submission).
 - (2) Proof of Offloading, Processing and Disposal Site(s) Owner's approval granting the Apparent Low Bidder the right to offload, process and/or dispose dredged material at that site.
 - (3) Proof of Disposal Site(s) uncommitted capacity adequate for the project.
 - (4) Certification of the offloading, processing and/or disposal Site's availability corresponding to the current project schedule.
 - (5) Proof of approval by the appropriate regulatory agencies that the dredged material for this contract is compatible for processing and/or disposal at the proposed processing and/or Disposal Site(s).
 - (6) Demonstrate minimum required offloading, processing and disposal Site(s) production capability to ensure that the project will be completed within the contract requirement. The Apparent Low Bidder shall provide the estimated daily production rates for processing and disposal for each contractor-identified disposal site(s).

- (7) Proof of Apparent Low Bidder's experience in the proposed offloading, processing and disposal Site(s) operations, or, provide supplemental information demonstrating ability to execute the proposed disposal method, if no direct experience is applicable.
- j. Transportation Capabilities - The Apparent Low Bidder must provide the following:
 - (1) Provide proof and certification that sufficient transportation capabilities are available to ensure that the project will be completed within the contract requirement. Provide proof that the proposed transportation equipment has current permits, licenses, registrations, or other required certifications.
 - (2) Provide proof of the Apparent Low Bidder's experience in the proposed dredged material transportation or provide supplemental information demonstrating the ability to execute the proposed transportation method, if no direct experience is applicable.
- k. Processing Capabilities - The Apparent Low Bidder must provide the following:
 - (1) Provide detailed description of the proposed processing technology, including but not limited to, the following stages, if applicable:
 - (a) Dewatering, addressing retention time, any limitations on return of effluent, limitations on location for effluent release, proposed method for effluent disposal, if applicable. Debris removal, addressing the methods of removal and disposal.
 - (b) Material treatment, specifying the method of treatment, additives used during the processing, mechanical processing used, decontamination methods incorporated, stabilization methods incorporated, and chemical treatment (if any).
 - (c) Interim storage, if required, identifying the method of storage, required and available storage capacity, and the time frame it will be used, if applicable.
 - (d) Rehandling of material (if any) used in the processing of dredged material affecting the project.
 - (2) Provide any permits and/or licenses applicable to the proposed process, if any.
 - (3) Provide any patented or proprietary permissions applicable to the proposed process, if any. See paragraph 1.28 of this Section for additional information on patents.
 - (4) Provide proof of processing plant availability for use by the Apparent Low Bidder.
 - (5) Certify processing plant's availability corresponding to the current project schedule.
 - (6) Provide proof of Apparent Low Bidder's experience in the proposed

processing method or, provide supplemental information demonstrating ability to execute the proposed processing method, if no direct experience is applicable.

1.5 WEEKLY PROGRESS MEETINGS

The Contractor and/or Contractor Representatives shall attend Weekly Progress Meetings (or as otherwise mutually agreed to) scheduled by the Government in accordance with Section 01 32 01.00 10 PROJECT SCHEDULE. The Contractor's Superintendent shall be in attendance at these scheduled project meetings.

1.6 SUBMITTAL OF WORK TO BE PERFORMED BY THE CONTRACTOR

Provide the Contracting Officer, within five (5) days after award, items of work to be performed by contractor's employees and the estimated cost of those items. For the purposes of this contract, the percentage of work that must be performed by the Contractor is stated in Section 00 70 00 Contract Clauses, FAR Clause 52.236-01, and in Section 01 11 00 SUMMARY OF WORK, paragraph 1.3 entitled: "PERFORMANCE OF WORK BY THE CONTRACTOR" of these specifications.

1.7 LIQUIDATED DAMAGES-CONSTRUCTION

- a. If the Contractor fails to complete the work within the time specified in the contract, the Contractor shall pay liquidated damages to the Government in the amount of **\$3,252** for each calendar day of delay until the work is completed or accepted.
- b. If the Government terminates the Contractor's right to proceed, liquidated damages will continue to accrue until the work is completed. These liquidated damages are in addition to excess costs of repurchase under the Termination clause.

1.8 PHYSICAL CONDITIONS

The information and data furnished or referred to below are not intended as representations or warranties but are furnished for information only. It is expressly understood that the Government will not be responsible for the accuracy thereof or for any deduction, interpretation or conclusion drawn by the Contractor.

- a. Weather Conditions: The site of the work is not exposed to severe wind and wave action and the Contractor's operations are not likely to be affected by ordinary storms. Real-time data are available online at <http://www.ndbc.noaa.gov/index.shtml>.

- (1) FOG: An examination of the records of the U.S. Weather Bureau at John F. Kennedy International Airport, New York, discloses an average of 31 days per year on which dense fog (visibility of 1/4 mile or less) occurs in the New York Harbor area. The maximum number of days in which dense fog occurred in any month was 4 days in June.

Visibility data are available on the Internet at <https://www.ncdc.noaa.gov>

- (2) WINDS: Wind conditions in the project area, based upon hourly data obtained from NOAA's National Buoy Center (NDBC) observation

at Station KPTN6 - Kings Point, NY (8516945) is provided below:

MONTH	AVE WIND SPEED (MPH)	PEAK WIND GUST (MPH)
JAN	9.8	59.3
FEB	10.4	55.3
MAR	9.2	56.4
APR	8.1	44.3
MAY	6.9	47.2
JUN	6.3	48.3
JUL	6.3	49.5
AUG	5.8	48.9
SEP	6.9	47.2
OCT	8.6	49.5
NOV	8.6	50.1
DEC	9.8	59.3

- (3) Weather conditions exceeding in severity the fog conditions described above or average wind speeds exceeding 25 mph, or wave heights exceeding 3 feet will be considered unusually severe if delays are caused thereby to operations for more than 50% of the day under this contract.
- (4) ICE: Icing within the project vicinity during the contract period is not anticipated. However, in the event that icing does occur, this will be considered to be unusually severe weather if delays are caused thereby to operations for more than 50% of the day under this contract.
- (5) TIDES: The mean range of tide at the Northern Boulevard Bridge in Flushing Creek, Queens, New York is 6.8 feet and the mean range of spring tides is 8.1 feet. Irregular fluctuations due to wind and atmospheric pressure have varied from about 14.4 feet about mean low water to about 3.9 feet below mean low water.

b. Bridge and Utility Crossings

The Contractor shall identify and verify the locations and depths of all utility crossings and take precautions against damages which might result from the operations, especially the sinking of dredge spuds and/or anchors into the channel bottom, in the vicinity of utility crossings. If any damage occurs as a result of the operations, suspend dredging until the damage is repaired and approved by the Contracting Officer. Costs of such repairs and downtime of the dredge and attendant plant will be at the Contractor's expense.

The contractor shall exercise the utmost caution when dredging in the vicinity of any bridge, pier, abutment, or bulkhead to prevent the collapse, undermining or damage to these structures. In no case shall the contractor moor any plant to or tie any line, cable, chain or anchor line around any part of a bridge structure, pier, abutment or bulkhead connected therewith.

(1) BRIDGES:

No bridge exist within the project area.

c. Location

The Hague Basin, U.S. Merchant Marine Academy is located in Kings Point, New York.

d. Channel and Transportation Facilities

Railroads and first class highways serve the locality / project vicinity.

e. Channel Traffic

Vessel traffic may cause some delay to the dredging required in these specifications.

f. Obstruction of Channel

The Government will not undertake to keep the area free from vessels or other obstructions except to the extent of such regulations, if any, as may be prescribed by the Secretary of the Army in accordance with the provisions of section 7 of the Rivers and Harbors Act in such manner as to obstruct navigation as little as possible, and in case the contractor's plant so obstructs the channel as to make difficult or endanger the passage of vessels, said plant shall be promptly moved on the approach of any vessel to such an extent as may be necessary to afford a practicable passage. Upon the completion of the work the Contractor shall promptly remove his plant, including ranges, buoys, piles and other marks placed by him under the contract in navigable waters or on shore.

g. Bridge-To-Bridge Radio-Telephone Equipment

In order that radio-telephone communication may be made with passing vessels, all dredges engaged in work under the contract shall be equipped with and operate bridge-to-bridge radio-telephone equipment on VHF Channel 13 (156.65 MHz with low power output having a communication range of approximately ten (10) miles). The Federal Communication Commission has approved the frequency.

1.9 ESTIMATED QUANTITIES

The total estimated quantities of material necessary to be removed from the specified limits to complete the work described in this specifications are computed from the plans and specifications survey performed in the Hague Basin, U.S. Merchant Marine Academy, New York project area in September 2025.

Distribution of volumes is summarized below:

DREDGING AREA	REQUIRED DREDGING DEPTH (FEET) MLLW	TOTAL ESTIMATED QUANTITY (CY)
Basic Work Dredging Area 15' MLLW + 2' OD	15	11,360
Basic Work Dredging Area 2 : -12' MLLW + 2' OD	12	18,090
Option Dredging Area 3 : -12' MLLW + 2' OD	12	22,685

Total Estimated Quantity Available: **52,135 CY**

The Government will survey the project prior to starting work.

Above estimated quantities were computed from the data shown on the contract drawings. The quantities that may be removed and paid for will be computed by the Triangulated Irregular Network (TIN) method or average end area method as indicated in Section 01 20 00.

1.10 VARIATION IN ESTIMATED QUANTITIES

Where the quantity of a pay item in this contract is an estimated quantity and where the actual quantity of material within the required dredging prism varies more than fifteen percent (15%) above or below the stated estimated quantity within the required dredging prism, an equitable adjustment in the contract unit price will be made upon the demand of either party. The equitable adjustment will be based upon any increase or decrease in costs due solely to the variations above one-hundred fifteen percent (115%) or below eighty-five percent (85%) of the estimated quantity. An adjustment in the contract unit price will also apply to that part of the actual quantity of allowable overdepth material above one-hundred fifteen percent (115%) or below eighty-five percent (85%) of the estimated quantity. (UAI 52.211-5001 Variation in Estimated Quantities MAR 1995)

1.11 FINAL EXAMINATION AND ACCEPTANCE

- a. As soon as practicable after the completion of the entire work, as in the opinion of the Contracting Officer and/or his Representative, will not be subject to damage by further operation under the contract, such work will be thoroughly examined at the cost and expense of the Government by sounding or by sweeping, or both, as determined by the Contracting Officer and/or his Representative. Only after the contractor has submitted a complete survey of the entire contract area(s), and submitted mapping and all data acquired to create such map, will the government perform its survey. Raw data, edited survey data with all supporting files and documentation, and all data

generated during such work shall be furnished by the Contractor to the Contracting Officer and/or his Representative. Should any shoals, lumps, or other lack of contract depth be disclosed by this examination, the Contractor will be required to remove same by dredging at the contract rate for dredging or by other method approved by the Contracting Officer, but if the bottom is soft and the shoal areas are small and form no material obstruction to navigation, the removal of such shoals may be waived by the discretion of the Contracting Officer and/or his Representative. The Contractor or his authorized representative will be notified when soundings and/or sweepings are to be made, and will be required to accompany the survey party. When the entire contract area(s) is found to be in a satisfactory condition, it will be accepted as final. Should more than two soundings or sweeping operations by the Government over an area be necessary by reason of work for the removal of shoals disclosed at a prior sounding or sweeping operations, this work will be charged against the Contractor. The rate for each day in which the Government plant is engaged in such sounding or sweeping operations and/or is en route to or from the site or held, for the Contractor's convenience, at or near the site for these operations shall be \$12,500.

- b. Final acceptance of the entire work and the deductions or corrections of deductions made thereon will not be reopened after having once been made, except on evidence of collusion, fraud, or obvious error, and the acceptance of the entire work shall not change the time of payment of the retained percentages of the whole or any part of the work.
- c. The entire area within the contract limits will be surveyed for final examination and acceptance. This contract has no partial acceptance areas.
- d. All hydrographic survey data is to be collected in accordance with the Army Corps of Engineers manual EM-1110-2-1003.
- e. Any survey related disagreement(s) as it pertains to this contract must be submitted in writing to the Contracting Officer or his Representative within 5 business days of occurrence of such survey related event. Failure to notify the Contracting Officer or his representative within 5 business days of such survey related event disqualifies the Contractor from any such related claims.

1.12 PERFORMANCE EVALUATION OF CONTRACTOR

- a. As a minimum, the Contractor's performance will be evaluated upon final acceptance of the work. However, interim evaluation may be prepared at any time during contract performance when determined to be in the best interest of the Government.
- b. The Contractor will be rated either Exceptional, Very Good, Satisfactory, Marginal, or Unsatisfactory in the areas of Contractor Quality Control, Timely Performance, Effectiveness of Management, Compliance with Labor Standards, and Compliance with Safety Standards. The Contractor will be advised of any unsatisfactory rating, either in an individual element or in the overall rating, prior to completing the evaluation, and all Contractor comments will be maintained as part of the official record. Performance Evaluation Reports will be available to all DOD contracting offices for their future use in determining

Contractor responsibility, in compliance with FAR 36.201 (c).

- c. The Federal Acquisition Regulation (FAR) requires that Past Performance Information (PPI) be collected on DoD contracts. The Contractor Performance Assessment Reporting System (CPARS) is a web-enabled application that supports the completion, distribution and retrieval of all contract performance evaluations. Contractor Representative is responsible for reviewing and commenting on evaluations submitted on the Contractor Performance Assessment Reporting System (CPARS) website at <https://www.cpars.gov/index.htm>.

1.13 CERF IMPLEMENTATION

If the work specified in this contract is performed by a hopper dredge(s), the owner must have an active Basic Ordering Agreement (BOA) for the hopper dredge(s) on file with the Corps of Engineers. The Contractor shall be obligated to make the hopper dredge(s) available to serve in the Corps of Engineers Reserve Fleet (CERF) at any time that the hopper dredge(s) is performing work under this contract. When the Contracting Officer and/or his Representative is notified of the decision to activate the dredge(s) into the CERF, he shall take appropriate action to release the dredge(s). He may then extend or terminate the contract to implement whichever action is in the best interest of the Government. The CERF contract shall also be subject to the following condition:

- a. The Director of Civil Works may require the contractor to perform emergency dredging at another CONUS (48 contiguous states) site for a period of time equal to the remaining time under this contract at the date of notification plus up to ninety (90) days at the previously negotiated rate which appears on the schedule of prices in the BOA.
- b. The Chief of Engineers may require the contractor to perform emergency dredging at an OCONUS (Outside CONUS which includes Alaska, Hawaii, Puerto Rico, the Virgin Islands, or U.S. Trust Territories) site for a period of time equal to the time remaining under this contract at the date of notification plus up to one hundred eighty (180) days at the negotiated rate which appears on the schedule of prices in the BOA.
- c. The CERF shall be activated by the Chief of Engineers or the Director of Civil Works; then the Ordering Contracting Officer and/or his Representative will notify the contractor. From the time of notification, the selected hopper dredge(s) must depart for the emergency assignment within seventy-two (72) hours for CONUS or ten (10) days for OCONUS assignments.
- d. A confirming delivery order will be issued pursuant to the Basic Ordering Agreement (BOA) by the Ordering Contracting Officer and/or his Representative. Such delivery order shall utilize the schedule of rates in the BOA for the specific hopper dredges(s).
- e. If during the time period specified in a, b, or c, above, a CERF vessel(s) is still required, the contract performance may be continued for additional time by mutual agreement.

1.14 THE SEAGOING BARGE ACT (46 USC 395 ET SEQ)

The Seagoing Barge Act applies to this project. In the event the Apparent Low Bidder contemplates using plant that requires U.S. Coast Guard

certification to comply with this Act, the Apparent Low Bidder shall within five (5) calendar days after bid opening submit a copy of said certificate to the Contracting Officer and/or his Representative. Failure to produce the certificate within the required time shall subject the bidder to a determination of non-responsibility.

1.15 PRICING OF ADJUSTMENTS

When costs are a factor in any determination of a contract price adjustment pursuant to the Changes clause or any other clause of this contract, such costs shall be in accordance with Part 31 of the Federal Acquisition Regulation and the DOD FAR Supplement in effect on the date of this contract (DOD FAR SUPP 52.243.7001) costs shall be in accordance with Part 31 of the Federal Acquisition Regulation.

1.16 BID GUARANTEE

- a. The offeror (bidder) shall furnish a separate bid bond, or United States bonds, Treasury notes or other public debt obligation of the United States, in the proper amount, by the time set for opening of bids. Failure to do so may be cause for rejection of the bid. The Contracting Officer and/or his Representative will return bid guarantees, other than bid bonds, (1) to unsuccessful bidders as soon as practicable after the opening of bids, and (2) to the successful bidder upon execution of contractual documents and bonds (including any necessary coinsurance or reinsurance agreements), as required by the bid as accepted.
- b. If the successful bidder, upon acceptance of its bid by the Government within the period specified for acceptance, fails to execute all contractual documents or give a bond(s) as required by the solicitation within the time specified, the Contracting Officer and/or his Representative may terminate the contract for default.
- c. Unless otherwise specified in the bid, the bidder will (1) allow the number of days as indicated in paragraph 13D of Standard Form 1442 for acceptance of its bid and (2) give bond within 5 days after receipt of the forms by the bidder.
- d. In the event the contract is terminated for default, the bidder is liable for any cost of acquiring the work that exceeds the amount of its bid. The bid bond, or bonds or notes of the United States, is available to offset the difference.

1.17 EQUAL OPPORTUNITY PREAWARD CLEARANCE OF SUBCONTRACTORS

Notwithstanding the clause of this contract entitled "Subcontracts," the Contractor shall not enter into a first-tier subcontract for an estimated or actual amount of \$1 million or more without obtaining in writing from the Contracting Officer and/or his Representative a clearance that the proposed subcontractor is in compliance with the equal opportunity requirements and therefore is eligible for award.

1.18 SPECIAL PROHIBITION ON EMPLOYMENT

- a. Definitions: "Arising out of a contract with the Department of Defense," as used in this clause, means any act in connection with (1) attempting to obtain, (2) obtaining, or (3) performing a contract or subcontract of any agency, department or component of the Department of

Defense.

- b. "Convictions of fraud or any other felony," as used in this clause, means any conviction for fraud or a felony in violation of state or Federal criminal statutes, whether entered on a verdict or plea, including a plea of nol contendere, for which sentence has been imposed.
- c. Section 941, Title IX, Pub. L. 99-500 (10 U.S.C. 2408) prohibits a person who is convicted of fraud or any other felony arising out of a contract with the Department of Defense from working in a management or supervisory capacity on any defense contract, or serving on the board of directors of any defense contractor, for a period, as determined by the Secretary of Defense, of not less than one (1) year from the date of conviction. Defense contractors are subject to a criminal penalty of not more than \$500,000 if they are convicted of knowingly employing a person under a prohibition or allowing such person to serve on their board of directors.
- d. The Contractor agrees not to knowingly employ any person, convicted of fraud or any other felony arising out of a contract with the Department of Defense contract or subcontract or allow such person to serve on its board of directors from the date the Contractor learns of the conviction until one (1) year has expired from the date of conviction. However, if the person has also been debarred pursuant to FAR subpart 9.4, the above prohibition shall extend for the period of debarment, but in no event shall the prohibition be less than (1) year from the date of conviction.
- e. If the Contractor knowingly employs a convicted person in a management or supervisory capacity on any defense contract or subcontract or knowingly allows such person to serve on its board of directors within the prohibited period, the Government may consider, in addition to the criminal penalties contained in Section 941 of Pub. L. 99-500, other available remedies, such as suspension or debarment and may direct the cancellation of this contract at no cost to the Government, or terminate this contract for default.
- f. The Contractor agrees to include the substance of this clause, including this paragraph (e), appropriately modified to reflect the identity and relationship of the parties, in all subcontracts exceeding \$25,000.

1.19 SUPERINTENDENCE OF SUBCONTRACTS

- a. The Contractor shall be required to furnish the following, in addition to the superintendence required by the Contract Clauses entitled: "Superintendence by the Contractor."
 - (1) If more than 50% and less than 70% of the value of the contract work is subcontracted, one superintendent shall be provided at the site and on the Contractor's payroll to be responsible for coordinating, directing, inspecting and expediting the subcontract work.
 - (2) If 70% or more of the value of the work is subcontracted, the Contractor shall be required to furnish two such superintendents to be responsible for coordinating, directing, inspecting and expediting the subcontract work.

- b. If the Contracting Officer, at any time after 50% of the subcontracted work has been completed, finds that satisfactory progress is being made, he may waive all or part of the above requirement for additional superintendence subject to the right of the Contracting Officer to reinstate such requirement if at any time during the progress of the remaining work he finds that satisfactory progress is not being made. (DOD FAR Supplement 52.236-7008)

1.20 PROCEDURES FOR SUBMISSION & CONTRACT PAYMENTS

In addition to the requirements contained in the Contract Clause entitled "Payments Under Fixed-Price Construction Contracts" and to implement the requirements of the Prompt Payment Act Amendments of 1988, P.L. 100-496, the following shall apply to all payments made under this contract:

- a. At the time of submission of the progress chart, the contractor shall submit for approval by the Contracting Officer or his authorized representative a breakdown of the contract work which shall be to the degree of detail required by the Contracting Officer or his representative to effect reasonable progress payments. The Contracting Officer or his representative shall review this breakdown within 30 calendar days after receipt and either advise the contractor that it is approved or disapproved, and if disapproved the reasons for disapproval. Only after the breakdown is approved shall any payment invoice be accepted from the contractor and any payment made to him. The Contracting Officer can determine it is in the best interest of the Government to make payment without an approved breakdown, however, in no case shall more than 10% of the contract amount be paid unless the breakdown is approved.
- b. The contractor shall submit his request for payment by submission of a proper invoice to the office or person(s) designated in paragraph "d". For purposes of payment a "proper invoice" is defined as the following:
 - (1) An estimate of the work completed in accordance with the approved breakdown indicating the percentage of work of each item and the associated costs.
 - (2) A properly completed ENG Form 93 and 93a (where required).
 - (3) All contractual submissions indicated elsewhere in this contract to be submitted with payment, such as updated progress schedules, updated submittal registers, etc.
- c. Include the following certification executed by a responsible official of the organization authorized to bind the firm. A "responsible official" would be either a corporate officer, partner, or owner, in the case of a sole proprietorship:

I hereby certify, to the best of my knowledge and belief, that:

- (1) The amounts requested are only for performance in accordance with the specifications, terms and conditions of the contract;
- (2) Payments to subcontractors and suppliers have been made from previous payments received under the contract and timely payments will be made from the proceeds of the payment covered by this certification, in accordance with subcontract requirements and the

requirements of Chapter 39 of Title 31, United States Code; and

(3) This request for progress payments does not include any amounts, which the prime contractor intends to withhold or retain from a subcontractor or supplier in accordance with the terms and conditions of the subcontract.

(4) All required prime and subcontractor payrolls have been submitted.

(Name)

(Title)

(Date)

- d. The Government shall designate the office or person(s) who shall first receive the invoice submissions and the Contractor shall be notified at the preconstruction conference. In addition, the contractor shall at the same time submit one copy of the detailed breakdown and the ENG Form 93 and 93a Form to the Project Engineer.
- e. The Government representative shall return any request for payment, which is deemed defective within 7 days of receipt and shall specify the defects. Telephone calls with MFR or E-mail notification of the contractor about the defective invoice shall be considered sufficient notice to the contractor. If the defect concerns a disagreement as to the amount of work performed and or the amount of the payment being submitted, the Government and the contractor's representative should meet to resolve the differences and reach agreement. Upon agreement, the contractor shall submit a new breakdown and ENG Form 93 (and 93a) and any other submissions requiring correction. These will be incorporated with the previous submittal and will then constitute a proper invoice.
- f. If agreement cannot be reached, the Government shall determine the proper amount per Contract Clause entitled: "Payments Under Fixed-Price Construction Contracts" and process the payment accordingly. In this event, "a proper invoice" for Prompt Payment Act purposes will not have been submitted to the Government.
- g. The Government shall pay the contractor in accordance with the following time frames:
 - (1) Progress Payments. From the date a "Proper invoice" is received, in accordance with subparagraphs "b" and "d" of this clause, the Government will issue a check within 14 calendar days.
 - (2) Reduction in Retaining Payment. If during the course of the contract, a reduction in retainage payment is required, the Government shall issue a check within 30 calendar days after the approval of the release to the contractor by the Contracting Officer or his authorized representative.

- (3) Final Payment. A final payment request shall not be considered valid until the contractor has fulfilled all contract requirements including all administrative items, payrolls, warranties, etc. and has submitted a release of claims. When the contractor has fulfilled all contract requirements and a "proper invoice" has been submitted, the Government shall issue a check within 30 days from the date of acceptance of the project by the Contracting Officer.

1.21 SUBMISSION OF CLAIMS

The following shall be submitted to the Contracting Officer at the following address: U.S. Army Corps of Engineers, New York District, 26 Federal Plaza, New York, New York 10278-0090:

- a. Claims referencing or mentioning the Contract Disputes Act of 1978.
- b. Requests for a written decision by the Contracting Officer.
- c. Claims certified in accordance with the Contract Disputes Act of 1978.

No other Government representative is authorized to accept such requests. A copy shall also be provided to the Authorized Representative of the Contracting Officer.

The Contractor shall also provide the Contracting Officer with a copy of any requests for additional time, money or interpretation of contract requirements which were provided to the Authorized Representative of the Contracting Officer and which have not been resolved after 90 days.

1.22 OPERATOR QUALIFICATIONS FOR FLOATING CRANES & FLOATING DERRICKS

All floating cranes and floating derricks may be only operated by qualified operators. Operators shall be designated as qualified by a source which qualifies crane and derrick operators (e.g. an independent testing and qualifying company, a union, a governmental agency, a qualified consultant (can be an in-house resource)). Qualification shall be written (or oral) and practical operating examination unless the operator is licensed by a state or city licensing agency for the particular type of crane or derrick. Proof of qualification of crane and derrick operators shall be provided to the Contracting Officer's representative prior to the start of work.

1.23 EQUIPMENT OWNERSHIP & OPERATING EXPENSE SCHEDULE

- a. Allowable costs for construction of marine plant and equipment in sound workable condition owned or controlled and furnished by a contractor or subcontractor at any tier shall be based on actual cost data when the Government can determine both ownership and operating costs for each piece of equipment or equipment groups of similar serial and series from the contractor's accounting records. When both ownership and operating costs cannot be determined from the contractor's accounting records, equipment costs shall be based upon the applicable provision of EP 1110-1-8, "Construction Equipment Ownership and Operating Expense Schedule," Region I. Working conditions shall be considered to be average for determining equipment rates using the schedule unless specified otherwise by the contracting officer. For equipment not included in the schedule, rates

for comparable pieces of equipment may be used or a rate may be developed using the formula provided in the schedule. For forward pricing, the schedule effect at the time of negotiations shall apply. For retrospective pricing, the schedule in effect at the time the work was performed shall apply.

- b. Equipment rental costs are allowable, subject to the provisions of FAR 31.105(d)(ii) and FAR 31.205-36 substantiated by certified copies of paid invoices. Rates for equipment rented from an organization under common control, lease-purchase or sale-leaseback arrangements will be determined using the schedule except that rental costs leased from an organization under common control that has an established practice of leasing the same or similar equipment to unaffiliated leases are allowable. Costs for major repairs and overhaul are unallowable.
- c. When actual equipment costs are proposed and the total amount of the pricing action is over \$25,000, cost or pricing data shall be submitted on Standard Form 1411, "Contract Pricing Proposal Cover Sheet." By submitting cost or pricing data, the contractor grants to the contracting officer or an authorizing representative the right to examine those books, records, documents and other supporting data that will permit evaluation of the proposed equipment costs. After price agreement the contractor shall certify that the equipment costs or pricing data submitted are accurate, complete and current. (UAI 31.105-101 Equipment Ownership & Operating Expense Schedule MAR 1995)

1.24 WAGE RATES

The schedule of wage rates contains rates applicable to all work under this contract (see Section 00 90 00).

1.25 LABOR-ADDITIONAL REQUIREMENTS

Fringe benefits statement: The method of payment of applicable fringe benefits will be indicated on DD Form 879, Statement of Compliance, and attached to each weekly payroll.

1.26 NOTICE TO MARINERS

The Contractor shall, prior to commencement of work, notify the 1st Coast Guard District, Aids to Navigation Officer, of his proposed operations including location and duration of operations and request that the information be published in the "Notice to Mariners." This notification must be in sufficient time so that it appears in the Notice at least 30 days prior to the commencement of the dredging operation.

1.27 ENVIRONMENTAL LITIGATION

- a. If the performance of all or any part of the work is suspended, delayed, or interrupted due to an order of a court of competent jurisdiction as a result of environmental litigation, as defined below, the Contracting Officer and/or his Representative, at the request of the Contractor, shall determine whether the order is due in any part to the acts or omissions of the Contractor or a Subcontractor at any tier not required by the terms of this contract. If it is determined that the order is not due in any part to acts or omissions of the Contractor or a Subcontractor at any tier other than as required by the terms of this contract, such suspension, delay, or interruption shall be considered as if ordered by the Contracting Officer and/or his

Representative in the administration of this contract under the terms of Section I, contract clause entitled "SUSPENSION OF WORK." The period of such suspension, delay or interruption shall be considered unreasonable, and an adjustment shall be made for any increase in the cost of performance of this contract (excluding profit) as provided in that clause, subject to all the provisions thereof.

- b. The term "environmental litigation," as used herein, means a lawsuit alleging that the work will have an adverse effect on the environment or that the Government has not duly considered, either substantively or procedurally, the effect of the work on the environment.

1.28 PATENTS

All potential bidders need to be aware of the following patents, which may be related to performance of this contract.

Patent 6,293,731
Patent 5,007,590
Patent 5,028,010
Patent 5,353,998
Patent 5,542,614
Patent 5,794,862
Patent 5,931,605
Patent 6,017,169

The foregoing patents, and any others which may be applicable to activities performed under this contract, are neither required nor prohibited. However, if you use the methods or technology described in these or other patents, please factor license costs into your bid. The successful bidder needs to obtain the proper license(s) if he wishes to use the methods, processes, or technology described in any applicable patents.

1.29 VERIFICATION OF SMALL BUSINESS UTILIZATION

- a. This clause is applicable to small business concerns whose contracts exceed \$1,000,000.
- b. In accordance with the clause at FAR 52.219-8, entitled Utilization of Small Business Concerns, in effect on the date of this contract, the Contracting Officer may survey the extent of small and small disadvantaged business utilization under this contract. The Contractor may be required to report to the Contracting Officer statistical data on the number and dollar amounts of subcontracting awards with small businesses and small disadvantaged businesses.
- c. As appropriate, the Contracting Officer may require one or more follow-up reports to the initial report.
- d. The Contractor agrees to insert this clause in any subcontract that may exceed \$1,000,000, including this subparagraph (d).

1.30 CONTRACT INFORMATION RELEASE

This constitutes notification that, pursuant to CECW-OD Memo, 5 February 1996, "Release of Information - Dredging Projects", plant operation reports, including Engineer Form 27/27A, Report of Operations - Hopper Dredges and Engineer Form 4267, Daily Report of Operations - Pipeline, Dipper or Bucket Dredges, are public information and shall be provided upon

proper FOIA request for active and completed contract information.

1.31 ALTERATIONS IN CONTRACT

Portions of the contract are altered as follows:

- a. The following clause is incorporated as part of the contract: "By entering into this contract the Contractor certifies that neither it, nor any person or firm who has an interest in the Contractor's firm, is a person, or firm ineligible in accordance with FAR subpart "9.4" (DEAN-PRP EFAR Acquisition Letter 85-1 dated 11 Sept 85)

1.32 CONTRACTOR SUPPLY AND USE OF ELECTRONIC SOFTWARE FOR PROCESSING DAVIS-BACON ACT CERTIFIED LABOR PAYROLLS

The contractor is encouraged to use a commercially-available electronic system to process and submit certified payrolls electronically to the Government. The requirements for preparing, processing and providing certified labor payrolls are established by the Davis-Bacon Act as stated in FAR 52.222-8, PAYROLLS AND BASIC RECORDS and FAR 52.222-13, COMPLIANCE WITH DAVIS-BACON AND RELATED ACT REGULATIONS. If the contractor elects to use an electronic Davis-Bacon payroll processing system, then the contractor shall be responsible for obtaining and providing for all access, licenses, and other services required to provide for receipt, processing, certifying, electronically transmitting to the Government, and storing weekly payrolls and other data required for the contractor to comply with Davis-Bacon and related Act regulations. When the contractor uses an electronic Davis-Bacon payroll system, the electronic payroll service shall be used by the contractor to prepare, process, and maintain the relevant payrolls and basic records during all work under this construction contract and the electronic payroll service shall be capable of preserving these payrolls and related basic records for the required 3 years after contract completion. If the contractor chooses to use an electronic Davis-Bacon payroll system, then the contractor shall obtain and provide electronic system access to the Government, as required to comply with the Davis-Bacon and related Act regulations over the duration of this construction contract. The access shall include electronic review access by the Government contract administration office to the electronic payroll processing system used by the contractor. The contractor's provision and use of an electronic payroll processing system shall meet the following basic functional criteria: commercially available; compliant with appropriate Davis Bacon Act payroll provisions in the FAR; able to accommodate the required numbers of employees and subcontractors planned to be employed under the contract; capable of producing an Excel spreadsheet compatible electronic output of weekly payroll records (format at <http://www.rmssupport.com/guides.aspx>) for export in an Excel spreadsheet to be imported into the contractor's Quality Control System (QCS) version of Resident Management System (RMS), that in turn shall export payroll data to the Government's Resident Management System (RMS); demonstrated security of data and data entry rights; ability to produce contractor-certified electronic versions of weekly payroll data; ability to identify erroneous entries and track the data/time of all versions of the certified Davis Bacon payrolls submitted to the government over the life of the contract; capable of generating a durable record copy, that is, a CD or DVD and PDF file record of data from the system database at end of the contract closeout. This durable record copy of data from the electronic Davis-Bacon payroll processing system shall be provided to the Government during contract closeout. All contractor-incurred costs related to the contractor's provision and use of an electronic payroll processing service

shall be included in the contractor's price for the overall work under the contract. The costs for Davis-Bacon Act compliance using electronic payroll processing services shall not be a separately bid/proposed or reimbursed item under this contract.

1.33 FUEL USAGE

The Contractor shall furnish the Contracting Officer and/or his Representative a report, to be received on or before the last day of the calendar month, listing the totals of fuels consumed by the dredging plant, supporting vessels, and other construction equipments. The report shall list the quantities of different fuels separately. The report shall cover the period from the 25th of the preceding month to the 25th of the current month.

PART 2 PRODUCTS

Not Used.

PART 3 EXECUTION

Not Used.

-- End of Section --

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PROJECT SCHEDULE
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PART 1 GENERAL

1.1 REFERENCES

The publications listed below form a part of this specification to the extent referenced. The publications are referred to within the text by the basic designation only.

AACE INTERNATIONAL (AACE)

AACE 29R-03	(2011) Forensic Schedule Analysis
AACE 52R-06	(2006) Time Impact Analysis - As Applied in Construction
AACE 84R-13	(2015) Planning and Accounting for Adverse Weather

AMERICAN SOCIETY OF CIVIL ENGINEERS (ASCE)

ASCE 67-17	(2017) Schedule Delay Analysis
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U.S. ARMY CORPS OF ENGINEERS (USACE)

ER 1-1-11	(2017) Administration -- Project Schedules
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1.2 SUBMITTALS

Government approval is required for submittals with a "G" classification. Submittals not having a "G" classification are for information only. Submit the following in accordance with Section 01 33 00 SUBMITTAL PROCEDURES:

SD-01 Preconstruction Submittals; G

Preliminary Project Schedule; G

Initial Project Schedule; G

SD-03 Product Data

Periodic Schedule Update; G

1.3 PROJECT SCHEDULER QUALIFICATIONS

Designate an authorized representative to be responsible for the preparation of the schedule and all required updating and production of reports. The Designated Project Scheduler must have prepared and maintained previous construction schedules for projects of similar size and complexity to this contract, using Primavera P6. Representative must have a suitable knowledge of CPM scheduling principles and application.

PART 2 PRODUCTS

2.1 SOFTWARE

The scheduling software utilized to produce and update the schedules required herein must be capable of meeting all requirements of this specification.

2.1.1 Government Default Software

The Government uses Primavera P6. Ensure exported schedule files are compatible with the version of P6 used by the Government.

2.1.2 Contractor Software

Scheduling software used by the contractor must be commercially available from the software vendor for purchase with vendor software support agreements available. The software routine used to create the required sdef file must be created and supported by the software manufacturer.

2.1.2.1 Primavera

If Primavera P6 is selected for use, provide the "xer" export file in a version of P6 importable by the Government system. Verify at the SEKO meeting which version of P6 is in use by the Government. Export the schedule in a version of P6 no newer than that used by the Government.

PART 3 EXECUTION

3.1 GENERAL REQUIREMENTS

Prepare for approval a Project Schedule, as specified herein, pursuant to FAR Clause 52.236-15 Schedules for Construction Contracts. Show in the schedule the proposed sequence to perform the work and dates contemplated for starting and completing all schedule activities. The scheduling of the entire project is required. The scheduling of construction is the responsibility of the Contractor. Contractor management personnel must actively participate in its development. Subcontractors, and suppliers working on the project must also contribute in developing and maintaining an accurate Project Schedule. Provide a schedule that is a forward planning as well as a project monitoring tool. Use the Critical Path Method (CPM) of network calculation to generate all Project Schedules. Prepare each Project Schedule using the Precedence Diagram Method (PDM).

3.2 BASIS FOR PAYMENT AND COST LOADING

The schedule is the basis for determining contract earnings during each update period and therefore the amount of each progress payment. The aggregate value of all activities coded to a contract CLIN must equal the value of the CLIN. Match the progress payment "Pay Period Thru" date in RMS to the schedule data date.

3.2.1 Activity Cost Loading

Activity cost loading must be reasonable and without front-end loading. Activities with a negative cost loading is not allowed. Provide additional documentation to demonstrate reasonableness if requested by the Contracting Officer.

3.2.2 Cost Loading of Submittals

No costs are to be assigned to activities for the preparation, review, or approval of submittals, except as described under paragraph COST LOADING OF CLOSEOUT ACTIVITIES, paragraph AS-BUILT DRAWINGS, and paragraph O&M MANUALS.

3.2.3 Withholdings / Payment Rejection

Failure to meet the requirements of this specification may result in the disapproval of the preliminary, initial, or periodic schedule updates and subsequent rejection of payment requests until compliance is met.

In the event that the Contracting Officer directs schedule revisions and those revisions have not been included in subsequent Project Schedule revisions or updates, the Contracting Officer may withhold 10 percent of pay request amount from each payment period until such revisions to the project schedule have been made.

3.3 PROJECT SCHEDULE DETAILED REQUIREMENTS

3.3.1 Level of Detail Required

Develop the Project Schedule to the appropriate level of detail to address major milestones and to allow for satisfactory project planning and execution. Failure to develop the Project Schedule to an appropriate level of detail will result in its disapproval. The Contracting Officer will consider, but is not limited to, the following characteristics and requirements to determine appropriate level of detail:

3.3.2 Activity Durations

Reasonable activity durations are those that allow the progress of ongoing activities to be accurately determined between update periods. Non-procurement activities Original Durations (OD) are not to exceed 20 workdays or 30 calendar days.

3.3.3 Procurement Activities

Include in the schedule activities associated with the critical submittals and their approvals, procurement, fabrication, and delivery of long lead materials, equipment, fabricated assemblies, and supplies. Long lead procurement activities are those with an anticipated procurement sequence of over 90 calendar days.

3.3.4 Mandatory Activities

Include the following activities in the initial project schedule and all updates.

- a. Submission, review and acceptance of SD-01 Preconstruction Submittals (individual activity for each).
- b. Mobilization Completion
- c. Individual Dredging Area Completion (e.g. CLIN X - Dredging Area Y Completion)
- d. Project Physical Completion

- e. Final inspection.
- f. Demobilization Completion

3.3.5 Government Activities

Show in schedule, Government and other agency activities that could impact progress. These activities include, but are not limited to environmental permit approvals by State regulators, inspections, utility tie-in, Government Furnished Equipment (GFE) and Notice to Proceed (NTP) for phasing requirements.

3.3.6 Standard Activity Coding Dictionary

Use the activity coding structure defined in the Standard Data Exchange Format (SDEF) in ER 1-1-11. This exact structure is mandatory. Develop and assign all Activity Codes to activities as detailed herein.

The SDEF format is as follows:

Field	Activity Code	Length	Description
1	WRKP	3	Workers per day
2	RESP	4	Responsible party
3	AREA	4	Area of work
4	MODF	6	Modification Number
5	BIDI	6	Bid Item (CLIN)
6	PHAS	2	Phase of work
7	CATW	1	Category of work
8	FOW	20	Feature of work*
*Some systems require that FEATURE OF WORK values be placed in several activity code fields. The notation shown is for Primavera P6. Refer to the specific software guidelines with respect to the FEATURE OF WORK field requirements.			

3.3.6.1 Workers Per Day (WRKP)

Assign Workers per Day for all field construction or direct work activities, if directed by the Contracting Officer. Workers per day is based on the average number of workers expected each day to perform a task for the duration of that activity.

3.3.6.2 Responsible Party Coding (RESP)

Assign responsibility code for all activities to the Prime Contractor, Subcontractor(s) or Government agency(ies) responsible for performing the

activity.

- a. Activities coded with a Government Responsibility code include, but are not limited to: Government approvals, Government design reviews, environmental permit approvals by State regulators, Government Furnished Property/Equipment (GFP) and Notice to Proceed (NTP) for phasing requirements.
- b. Activities cannot have more than one Responsibility Code. Examples of acceptable activity code values are: DOR (for the designer of record); ELEC (for the electrical subcontractor); MECH (for the mechanical subcontractor); and GOVT (for USACE).

3.3.6.3 Area of Work Coding (AREA)

Assign Work Area code to activities based upon the work area in which the activity occurs. Define work areas based on resource constraints or space constraints that would preclude a resource, such as a particular trade or craft work crew from working in more than one work area at a time due to restraints on resources or space.

3.3.6.4 Modification Number (MODF)

Assign a Modification Number Code to any activity or sequence of activities added to the schedule as a result of a Contract Modification, when approved by Contracting Officer. Key all Code values to the Government's modification numbering system. An activity can have only one Modification Number Code.

3.3.6.5 Bid Item Coding (BIDI)

Assign a Bid Item Code to all activities using the Contract Line Item Number (CLIN) to which the activity belongs, even when an activity is not cost loaded. An activity can have only one BIDI Code.

3.3.6.6 Phase of Work Coding (PHAS)

Assign Phase of Work Code to all activities. Examples of phase of work are procurement phase and construction phase. Each activity can have only one Phase of Work code.

- a. Code proposed fast track design and construction phases proposed to allow filtering and organizing the schedule by fast track design and construction packages.
- b. If the contract specifies phasing with separately defined performance periods, identify a Phase Code to allow filtering and organizing the schedule accordingly.

3.3.6.7 Category of Work Coding (CATW)

Assign a Category of Work Code to all activities. Category of Work Codes include, but are not limited to construction submittal, procurement, fabrication, weather sensitive installation, non-weather sensitive installation, start-up, and testing activities. Each activity can have no more than one Category of Work Code.

3.3.6.8 Feature of Work Coding (FOW)

Assign a Feature of Work Code to appropriate activities based on the Definable Feature of Work to which the activity belongs based on the approved QC plan.

Definable Feature of Work is defined in Section 01 45 00 QUALITY CONTROL. An activity can have only one Feature of Work Code.

3.3.7 Contract Milestones and Constraints

Milestone activities are to be used for significant project events including, but not limited to, project phasing, project start and end activities, or interim completion dates. The use of artificial float constraints such as "zero free float" or "zero total float" are prohibited.

Mandatory constraints that ignore or affect network logic are prohibited. No constrained dates are allowed in the schedule other than those specified herein. Submit additional constraints to the Contracting Officer for approval on a case by case basis.

3.3.7.1 Project Start Date Milestone and Constraint

The first activity in the project schedule must be a start milestone titled "NTP Acknowledged," which must have a "Start On" constraint date equal to the date that the NTP is acknowledged.

3.3.7.2 End Project Finish Milestone and Constraint

The last activity in the schedule must be a finish milestone titled "End Project."

Constrain the project schedule to the Contract Completion Date in such a way that if the schedule calculates an early finish, then the float calculation for "End Project" milestone reflects positive float on the longest path. If the project schedule calculates a late finish, then the "End Project" milestone float calculation reflects negative float on the longest path.

3.3.7.3 Interim Completion Dates and Constraints

Constrain contractually specified interim completion dates to show negative float when the calculated late finish date of the last activity in that phase is later than the specified interim completion date.

3.3.7.3.1 Start Phase

Use a start milestone as the first activity for a project phase. Call the start milestone "Start Phase X" where "X" refers to the phase of work.

3.3.7.3.2 End Phase

Use a finish milestone as the last activity for a project phase. Call the finish milestone "End Phase X" where "X" refers to the phase of work.

3.3.8 Adverse Weather

Ensure anticipated adverse weather is accounted for in the Project Schedule. AACE 84R-13 provides methodologies for techniques in planning

for adverse weather. The preferred methodology is the use of a weather calendar. If a method other than a weather calendar is proposed, discuss the reason during the SEKO meeting.

3.3.9 Calendars

Schedule activities on a Calendar to which the activity logically belongs. Develop calendars to accommodate any contract defined work period such as a 7-day calendar for Government Acceptance activities, concrete cure times, etc. Develop the default Calendar to match the physical work plan with non-work periods identified including weekends and holidays. Develop Seasonal Calendar(s) and assign to seasonally affected activities as applicable.

If a weather calendar is used its implementation and execution is to be in accordance with AACE 84R-13

3.3.10 Open Ended Logic

Only two open ended activities are allowed: the first activity "NTP Acknowledged" is to have no predecessor logic, and the last activity -"End Project" is to have no successor logic. Except as noted above, each activity must have at least a start-to-start or finish-to-start relationship with its predecessor and a finish-to-finish or finish-to-start relationship with its successor.

Predecessor open ended logic may be allowed in a time impact analyses upon the Contracting Officer's approval.

3.3.11 Default Progress Data Disallowed

Actual Start and Finish dates must not automatically update with default mechanisms included in the scheduling software. Updating of the percent complete and the remaining duration of any activity must be independent functions. Disable program features that calculate one of these parameters from the other. Activity Actual Start (AS) and Actual Finish (AF) dates assigned during the updating process must match those dates provided in the Contractor Quality Control Reports. Failure to document the AS and AF dates in the Daily Quality Control report will result in disapproval of the Contractor's schedule.

3.3.12 Out-of-Sequence Progress

Activities that have progressed before all preceding logic has been satisfied (Out-of-Sequence Progress) will be allowed only on a case-by-case basis subject to approval by the Contracting Officer. Propose logic corrections to eliminate out of sequence progress or justify not changing the sequencing for approval prior to submitting an updated project schedule. Address out of sequence progress or logic changes in the Narrative Report and in the periodic schedule update meetings.

3.3.13 Added and Deleted Activities

Do not delete activities from the project schedule or add new activities to the schedule without approval from the Contracting Officer. Activity ID and description changes are considered new activities and cannot be changed without Contracting Officer approval.

3.3.14 Original Durations

Activity Original Durations (OD) must be reasonable to perform the work item. OD changes are prohibited unless justification is provided and approved by the Contracting Officer.

3.3.15 Leads, Lags, and Start to Finish Relationships

Lags must be reasonable as determined by the Government and not used in place of realistic original durations, must not be in place to artificially absorb or create float, or to replace proper schedule logic.

- a. Leads (negative lags) are prohibited.
- b. Start to Finish (SF) relationships are prohibited.

3.3.16 Retained Logic

Schedule calculations must retain the logic between predecessors and successors ("retained logic" mode) even when the successor activity(s) starts and the predecessor activity(s) has not finished (out-of-sequence progress). Software features that in effect sever the tie between predecessor and successor activities when the successor has started and the predecessor logic is not satisfied ("progress override") are not be allowed.

3.3.17 Percent Complete

Update the percent complete for each activity started, based on the realistic assessment of earned value. Activities which are complete but for remaining minor punch list work and which do not restrain the initiation of successor activities may be declared 100 percent complete to allow for proper schedule management. Budgeted cost of activity is to be reduced by the amount needed to correct deficiency. The activity referenced in paragraph COST LOADING of CLOSEOUT ACTIVITIES must have its budgeted cost increased by this amount.

3.3.18 Remaining Duration

Update the remaining duration for each activity based on the number of estimated workdays it will take to complete the activity. Remaining duration may not mathematically correlate with percentage found under paragraph entitled Percent Complete. The remaining duration for unstarted activities are not to be less than its original duration.

3.3.19 Early Completion Schedule and the Right to Finish Early

An Early Completion Schedule is an Initial Project Schedule (IPS) that indicates all scope of the required contract work will be completed before the contractually required completion date.

- a. No IPS indicating an Early Completion will be accepted without being fully resource-loaded (including crew sizes and hours) and the Government agreeing that the schedule is reasonable and achievable.
- b. The Government is under no obligation to accelerate work items it is responsible for to ensure that the early completion is met nor is it responsible to modify incremental funding (if applicable) for the project to meet the contractor's accelerated work.

3.4 PROJECT SCHEDULE SUBMISSIONS

Provide the submissions as described below. The data reports and network diagrams required for each submission are contained in paragraph SUBMISSION REQUIREMENTS. If the Contractor fails or refuses to furnish the information and schedule updates as set forth herein, the Contractor will be deemed not to have provided an estimate upon which a progress payment can be made.

Review comments made by the Government on the schedule(s) do not relieve the Contractor from compliance with requirements of the Contract Documents.

3.4.1 Preliminary Project Schedule Submission

Submit the Preliminary Project Schedule in either completed or draft form no later than 7 days prior to the Preconstruction Conference; defining the planned operations detailed for the first 90 calendar days for approval. The approved Preliminary Project Schedule will be used for payment purposes not to exceed 90 calendar days after NTP. Completely cost load the Preliminary Project Schedule to balance the contract award CLINS shown on the Price Schedule. The Preliminary Project Schedule may be summary in nature for the remaining performance period. It must be early start and late finish constrained and logically tied as specified. The Preliminary Project Schedule forms the basis for the Initial Project Schedule specified herein and must include all of the required plan and program preparations, submissions and approvals identified in the contract (for example, Quality Control Plan, Safety Plan, and Environmental Protection Plan) as well as design activities, planned submissions of all early design packages, permitting activities, design review conference activities, and other non-construction activities intended to occur within the first 90 calendar days. Government acceptance of the associated design package(s) and all other specified Program and Plan approvals must occur prior to any planned construction activities. Code activities that are summary in nature, after the first 90 calendar days, with the following activity codes: Bid Item (CLIN) code (BIDI), Responsibility Code (RESP), and Feature of Work code (FOW)..

3.4.2 Initial Project Schedule Submission

Submit the Initial Project Schedule for approval within 5 calendar days after notice to proceed is issued. The schedule must demonstrate a reasonable and realistic sequence of activities which represent all work through the entire contract performance period. No payment will be made for work items not fully detailed in the Project Schedule.

3.4.3 Periodic Schedule Updates

Update the Project Schedule on a regular basis, monthly at a minimum. Provide a draft Periodic Schedule Update for review at the schedule update meetings as prescribed in the paragraph PERIODIC SCHEDULE UPDATE MEETINGS. These updates will enable the Government to assess Contractor's progress.

- a. Update information including Actual Start Dates (AS), Actual Finish Dates (AF), Remaining Durations (RD), and Percent Complete. Updated information is subject to the approval of the Government at the meeting.
- b. AS and AF dates must match the date(s) reported on the Contractor's Quality Control Report for an activity start or finish.

3.5 SUBMISSION REQUIREMENTS

Submit the following items for the Preliminary Schedule, Initial Schedule, and every Periodic Schedule Update throughout the life of the project:

3.5.1 Electronic Scheduling Data

Provide electronic scheduling data containing the current project schedule and all previously submitted schedules in the format of the scheduling software (e.g. .xer). Also include the Narrative Report and all required Schedule Reports. The electronic file is to identify the type of schedule (Preliminary, Initial, Update), full contract number, Data Date and schedule file name. Each schedule must have a unique file name and use project specific settings.

3.5.2 Narrative Report

Provide a Narrative Report with each schedule submission. The Schedule Narrative Report is a "stand alone" report in PDF or Word format. Title the report "Schedule Narrative Report". Show the Report date, schedule name, and contract number on the first page. Indicate who is responsible for the schedule update and narrative report. Provide a brief description of the Project Scope. The Narrative Report is expected to communicate to the Government the thorough analysis of the schedule output and the plans to compensate for problems, either current or potential, which are revealed through that analysis. Include the following information at a minimum in the Narrative Report:

- a. Identify and discuss the work scheduled to start in the next update period.
- b. Describe activities along the critical path in addition to activities on the next float path after the critical path.
- c. Describe current and anticipated problem areas, delaying factors and their impact, and an explanation of corrective actions taken or required to be taken. Identify the party responsible for delay, if applicable.
- d. Identify and explain why activities, based on their calculated late dates, should have either started or finished during the update period but did not.
- e. Identify and discuss all schedule changes by activity ID and activity name including what specifically was changed and why the change was needed. Include at a minimum new and deleted activities, logic changes, duration changes, calendar changes, lag changes, resource changes, and actual start and finish date changes.
- f. Identify and discuss out-of-sequence work.
- g. If the longest path changes from a monthly update to the next, provide an explanation of the factors driving the change.
- h. Respond to USACE Schedule Review Comments from the previous update(s).

3.5.3 Schedule Reports

The format, filtering, organizing, and sorting for each schedule report will be as directed by the Contracting Officer. Typically, reports contain Activity Numbers, Activity Description, Original Duration, Remaining Duration, Early Start Date, Early Finish Date, Late Start Date, Late Finish Date, Total Float, Actual Start Date, Actual Finish Date, and Percent Complete. Provide the reports electronically in .pdf format. The following lists typical reports that will be requested:

3.5.3.1 Activity Report

List of all activities sorted according to activity number.

3.5.3.2 Logic Report

List of detailed predecessor and successor activities for every activity in ascending order by activity number.

3.5.3.3 Total Float Report

A list of all incomplete activities sorted in ascending order of total float. List activities which have the same amount of total float in ascending order of Early Start Dates. Do not show completed activities on this report.

3.5.3.4 Earnings Report by CLIN

A compilation of the Total Earnings on the project from the NTP to the data date, which reflects the earnings of activities based on the agreements made in the schedule update meeting defined herein. Provided a complete schedule update has been furnished, this report serves as the basis of determining progress payments. Group activities by CLIN number and sort by activity number. Provide a total CLIN percent earned value, CLIN percent complete, and project percent complete. The printed report must contain the following for each activity: the Activity Number, Activity Description, Original Budgeted Amount, Earnings to Date, Earnings this period, Total Quantity, Quantity to Date, and Percent Complete (based on cost).

3.5.3.5 Scheduling and Leveling Report

Provide a Scheduling/Leveling Report generated from the current project schedule being submitted.

3.5.4 Network Diagram

The Network Diagram is required for the Preliminary, Initial and Periodic Updates. Depict and display the order and interdependence of activities and the sequence in which the work is to be accomplished. The Contracting Officer will use, but is not limited to, the following conditions to review compliance with this paragraph:

3.5.4.1 Continuous Flow

Show a continuous flow from left to right with no arrows from right to left. Show the activity number, description, duration, and estimated earned value on the diagram.

3.5.4.2 Project Milestone Dates

Show dates on the diagram for start of project, any contract required interim completion dates, and contract completion dates.

3.5.4.3 Critical Path

Show all activities on the critical path. The critical path is defined as the longest path.

3.5.4.4 Grouping and Sorting

Group and sort activities as directed to assist in the understanding of the activity sequence. Typically, this flow will group activities by major elements of work, category of work, work area and/or responsibility.

3.5.4.5 Cash Flow / Schedule Variance Control (SVC) Diagram

With each schedule submission, provide a SVC diagram showing 1) Cash Flow S-Curves indicating planned project cost based on projected early and late activity finish dates, and 2) Earned Value to-date.

3.6 PERIODIC SCHEDULE UPDATE

3.6.1 Periodic Schedule Update Meetings

Conduct periodic schedule update meetings for the purpose of reviewing the proposed Periodic Schedule Update, Narrative Report, Schedule Reports, and progress payment. Conduct meetings at least monthly (or as otherwise mutually agreed to). Following the schedule update meeting, make corrections to the schedule and resubmit. Include only those changes approved by the Government in the schedule review meeting. Only approved schedules may be used to generate invoices for payment.

3.6.2 Update Submission Following Progress Meeting

Submit the complete Periodic Schedule Update of the Project Schedule containing all approved progress, revisions, and adjustments, pursuant to paragraph SUBMISSION REQUIREMENTS not later than 4 workdays after the periodic schedule update meeting.

3.7 WEEKLY PROGRESS MEETINGS

Conduct a weekly meeting with the Government (or as otherwise mutually agreed to) between the meetings described in paragraph entitled PERIODIC SCHEDULE UPDATE MEETINGS for the purpose of jointly reviewing the actual progress of the project as compared to the as planned progress and to review planned activities for the upcoming two weeks. Use the current approved schedule update for the purposes of this meeting and for the production and review of reports. At the weekly progress meeting, address the status of RFIs, RFPs and Submittals.

3.8 REQUESTS FOR TIME EXTENSIONS

ASCE 67-17 provides delay analysis guidelines. If there is a conflict between the contract and guidance provided in ASCE 67-17, the contract will govern. Provide justification of delay to the Contracting Officer in accordance with the contract provisions and clauses for approval, within 10 days of a delay occurring. Also prepare a time impact analysis for each

Government request for proposal (RFP).

3.8.1 Time Extension for Unusually Severe Weather

This provision specifies the procedure for determination of time extensions for unusually severe weather in accordance with the Contract Clause entitled "Default (Fixed-Price Construction)".

Upon acknowledgment of the notice to proceed and continuing throughout the contract on a monthly basis, adverse weather days shall be recorded by the contractor on a calendar day basis (include weekends and holidays) within the Daily QC Report in RMS (SECTION 01 45 00.15 10 par. 1.6.3.1). The number of adverse weather days shall be calculated chronologically from the first to the last day in each month. At the end of each calendar month, the Contracting Officer or his/her Representative will examine the recorded adverse weather days to determine whether a contractor is entitled to a time extension. These adverse weather days must prevent work for 50 percent or more of the Contractor's work day and delay work critical to the timely completion of the project. The Contracting Officer or his/her Representative will convert any delays meeting the above requirement to calendar days and issue a modification in accordance with the general provision entitled "Termination for Default - Damages for Delay - Time Extensions".

The Contractor's schedule must reflect anticipated adverse weather delays on all weather dependent activities.

3.8.2 Justification of Delay

Provide a description of the event(s) that caused the delay and/or impact to the work. As part of the description, identify all schedule activities impacted. Show that the event that caused the delay/impact was the responsibility of the Government. Provide a time impact analysis that demonstrates the effects of the delay or impact on the project completion date, or interim completion date(s). Evaluate multiple impacts chronologically; each with its own justification of delay. With multiple impacts consider any concurrency of delay. A time extension and the schedule fragnet becomes part of the project schedule and all future schedule updates upon approval by the Contracting Officer.

3.8.3 Changes That Do Not Cause Delay

If it is determined that a change does not constitute a schedule time extension, a fragnet as described in paragraph FRAGMENTARY NETWORK, is to be created and inserted into the Project schedule.

3.8.4 Time Impact Analysis (Prospective Analysis)

Submit requests for time extensions based on a prospective analysis if the work involved or the impact identified has not already occurred. Where the impact is ongoing a prospective analysis may be considered. However, the Government reserves the right to require a retrospective analysis be prepared after the impact has ended.

Prepare a time impact analysis for approval by the Contracting Officer based on industry recommended practice AACE 52R-06. Utilize a copy of the last approved schedule prior to the first day of the impact or delay for the time impact analysis. If Contracting Officer determines the time frame between the last approved schedule and the first day of impact is too

great, prepare an interim updated schedule to perform the time impact analysis. Unless approved by the Contracting Officer, no other changes may be incorporated into the schedule being used to justify the time impact.

3.8.5 Forensic Schedule Analysis (Retrospective Analysis)

Submit requests for time extensions based on a retrospective analysis if the work involved or the impact identified has already occurred. The analysis must account for the actual performance of both the impacted work and all other contract work in the schedule.

If a methodology is chosen from AACE 29R-03, the method must adhere to the principles identified in ASCE 67-17. If there is a conflict with the methodology chosen from AACE 29R-03 and ASCE 67-17, ASCE 67-17 will govern. Choice of methodology should be discussed prior to submission to Government.

3.8.6 Fragmentary Network (Fragnet)

Prepare a proposed fragnet for time impact analysis consisting of a sequence of new activities that are proposed to be added to the project schedule to demonstrate the influence of the delay or impact to the project's contractual dates. Clearly show how the proposed fragnet is to be tied into the project schedule including all predecessors and successors to the fragnet activities. The proposed fragnet must be approved by the Contracting Officer prior to incorporation into the project schedule.

3.8.7 Time Extension

The Contracting Officer must approve the Justification of Delay including the time impact analysis before a time extension will be granted. No time extension will be granted unless the delay consumes all available Project Float and extends the projected finish date ("End Project" milestone) beyond the Contract Completion Date. The time extension will be in calendar days.

Actual delays that are found to be caused by the Contractor's own actions, which result in a calculated schedule delay, are not a cause for an extension to the performance period, completion date, or any interim milestone date.

3.8.8 Impact to Early Completion Schedule

No extended overhead will be paid for delay prior to the original Contract Completion Date for an Early Completion IPS unless the Contractor actually performed work in accordance with that Early Completion Schedule. The Contractor must show that an early completion was achievable had it not been for the impact.

3.9 FAILURE TO ACHIEVE PROGRESS

Should the progress fall behind the approved project schedule for reasons other than those that are excusable within the terms of the contract, the Contracting Officer may require provision of a written recovery plan for approval. The plan must detail how progress will be made-up to include which activities will be accelerated by adding additional crews, longer work hours, extra workdays, etc.

3.9.1 Artificially Improving Progress

Artificially improving progress by means such as, but not limited to, revising the schedule logic, modifying, or adding constraints, shortening activity durations, or changing calendars in the project schedule is prohibited. Indicate assumptions made and the basis for any logic, constraint, duration, and calendar changes used in the creation of the recovery plan. Any additional resources, manpower, or daily and weekly work hour changes proposed in the recovery plan must be evident at the work site and documented in the daily report along with the Schedule Narrative Report.

3.9.2 Failure to Perform

Failure to perform work and maintain progress in accordance with the supplemental recovery plan may result in an interim and final unsatisfactory performance rating and may result in corrective action directed by the Contracting Officer pursuant to FAR 52.236-15 Schedules for Construction Contracts, FAR 52.249-10 Default (Fixed-Price Construction), and other contract provisions.

3.9.3 Recovery Schedule

Should the Contracting Officer find it necessary, submit a recovery schedule pursuant to FAR 52.236-15 Schedules for Construction Contracts.

3.10 OWNERSHIP OF FLOAT

Except for the provision given in the paragraph IMPACT TO EARLY COMPLETION SCHEDULE, float available in the schedule, at any time, belongs to the Project and is available for Contractor and Government use. This includes activity and project float. Activity float is the number of workdays that an activity can be delayed without causing a delay to the "End Project" finish milestone. Project float (if applicable) is the number of work days between the projected early finish and the "End Project" finish.

3.11 TRANSFER OF SCHEDULE DATA INTO RESIDENT MANAGEMENT SYSTEM

Ensure schedule data is uploaded to RMS. This data is additional supporting data in a form and detail required by the Contracting Officer pursuant to FAR 52.232-5 Payments under Fixed-Price Construction Contracts. The receipt of a proper payment request pursuant to FAR 52.232-27 Prompt Payment for Construction Contracts is contingent upon the Government receiving both acceptable and approvable hard copies and matching electronic versions of the application for progress payment.

3.12 PRIMAVERA P6 MANDATORY REQUIREMENTS

Ensure Primavera P6 settings provide a schedule capable of fulfilling the requirements of the contract. The following settings are mandatory and required in all schedule submissions to the Government:

- a. Activity Codes must be Project Level, not Global or EPS level.
- b. Calendars must be Project Level, not Global or Resource level.
- c. Activity Duration Types must be set to "Fixed Duration & Units".
- d. Percent Complete Types must be set to "Physical".

- e. Time Period Admin Preferences must remain the default "8.0 hr/day, 40 hr/week, 172 hr/month, 2000 hr/year". Set Calendar Work Hours/Day to 8.0 Hour days.
- f. Set Schedule Option for defining Critical Activities to "Longest Path".
- g. Set Schedule Option for defining progressed activities to "Retained Logic".
- h. Set up cost loading using a single lump sum non-labor resource. The Price/Unit must be \$1/hr, Default Units/Time must be "8h/d", and settings "Auto Compute Actuals" and "Calculate costs from units" un-selected.
- i. Activity ID's must not exceed 10 characters.
- j. Activity Names must have a verb-noun structure and contain the most defining and detailed description within the first 30 characters.
- k. The daily ending hour for all work calendars must be the same.

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SECTION 01 33 00

SUBMITTAL PROCEDURES

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PART 1 GENERAL

1.1 SUMMARY

1.1.1 Submittal Information

The Contracting Officer may request submittals in addition to those specified when deemed necessary to adequately describe the work covered in the respective sections. Each submittal is to be complete and in sufficient detail to allow ready determination of compliance with contract requirements.

Units of weights and measures used on all submittals are to be the same as those used in the contract drawings.

1.1.2 Submission of Submittals

Schedule and provide submittals requiring Government approval before acquiring the material or equipment covered thereby. Pick up and dispose of samples not incorporated into the work in accordance with manufacturer's Safety Data Sheets (SDS) and in compliance with existing laws and regulations.

1.2 DEFINITIONS

1.2.1 Submittal Descriptions (SD)

Submittal requirements are specified in the technical sections. Examples and descriptions of submittals identified by the Submittal Description (SD) numbers and titles follow:

SD-01 Preconstruction Submittals

Submittals that are required prior to or at the start of construction (work) or the next major phase of the construction on a multiphase contract.

Preconstruction Submittals include schedules and a tabular list of locations, features, and other pertinent information regarding products, materials, equipment, or components to be used in the work.

SD-02 Shop Drawings

Drawings, diagrams and schedules specifically prepared to illustrate some portion of the work.

Diagrams and instructions from a manufacturer or fabricator for use in producing the product and as aids to the Contractor for integrating the product or system into the project.

Drawings prepared by or for the Contractor to show how multiple systems and interdisciplinary work will be coordinated.

SD-03 Product Data

Catalog cuts, illustrations, schedules, diagrams, performance charts, instructions and brochures illustrating size, physical appearance and other characteristics of materials, systems or equipment for some portion of the work.

Samples of warranty language when the contract requires extended product warranties.

SD-06 Test Reports

Report signed by authorized official of testing laboratory that a material, product or system identical to the material, product or system to be provided has been tested in accord with specified requirements. Unless specified in another section, testing must have been within three years of date of contract award for the project.

Report that includes findings of a test required to be performed on an actual portion of the work or prototype prepared for the project before shipment to job site.

Report that includes finding of a test made at the job site or on sample taken from the job site, on portion of work during or after installation.

SD-07 Certificates

Statements printed on the manufacturer's letterhead and signed by responsible officials of manufacturer of product, system or material attesting that the product, system, or material meets specification requirements. Must be dated after award of project contract and clearly name the project.

Document required of Contractor, or of a manufacturer, supplier, installer or Subcontractor through Contractor. The document purpose is to further promote the orderly progression of a portion of the work by documenting procedures, acceptability of methods, or personnel qualifications.

SD-11 Closeout Submittals

Documentation to record compliance with technical or administrative requirements or to establish an administrative mechanism.

Submittals required for Guiding Principle Validation (GPV) or Third Party Certification (TPC).

Special requirements necessary to properly close out a construction contract. For example, Record Drawings and as-built drawings. Also, submittal requirements necessary to properly close out a major phase of construction on a multi-phase contract.

1.2.2 Approving Authority

Office or designated person authorized to approve the submittal.

1.2.3 Work

As used in this section, on-site and off-site construction required by contract documents, including labor necessary to produce submittals, construction, materials, products, equipment, and systems incorporated or to be incorporated in such construction. In exception, excludes work to produce SD-01 submittals.

1.3 SUBMITTALS

Government approval is required for submittals with a "G" classification. Submittals not having a "G" classification are for information only. Submit the following in accordance with Section 01 33 00 SUBMITTAL PROCEDURES:

SD-01 Preconstruction Submittals; G

Preconstruction Submittals shall be submitted to the Contracting Officer or Contracting Officer Representative **within eighteen (18) days after the opening of bids**. Submit the following:

Certification of Insurance; G

Surety Bond; G

List Of Proposed Subcontractors; G

Order of Work; G

The Contractor's order of work for dredging and performing other work, including disposal area plan.

Work To Be Performed By The Contractor; G,

Subcontracting Plan; G

Project Schedules; G

A Preliminary Project Schedule and an Initial Project Schedule shall be submitted in accordance with Section 01 32 01.00 10 PROJECT SCHEDULE.

Submittal Register; G

Letter Appointing Superintendent; G

Activity Hazard Analysis; G

See Section 01 35 26, GOVERNMENTAL SAFETY REQUIREMENTS

Accident Prevention Plan; G

See Section 01 35 26, GOVERNMENTAL SAFETY REQUIREMENTS

Work Plan; G

Quality Control (QC) plan, G See Section 01 45 00.00 20

Environmental Protection Plan; G

Notice to Mariners; G

Determination of No Hazard to Air Navigation; G

See Section 00 90 01, Attachment L

SD-03 Product Data

Periodic Schedule Update; G

Submitted in accordance with Section 01 32 01.00 10 PROJECT SCHEDULE.

SD-11 Closeout Submittals

As-Built Drawings; G

1.4 SUBMITTAL CLASSIFICATION

1.4.1 Government Approved (G)

Within the terms of the Contract Clause SPECIFICATIONS AND DRAWINGS FOR CONSTRUCTION, submittals are considered to be "shop drawings."

1.4.2 For Information Only

Submittals not requiring Government approval will be for information only. Within the terms of the Contract Clause SPECIFICATIONS AND DRAWINGS FOR CONSTRUCTION, they are not considered to be "shop drawings."

1.5 PREPARATION

1.5.1 Transmittal Form

Use the ENG Form 4025-R transmittal form for submitting both Government-approved and information-only submittals. Submit in accordance with the instructions on the reverse side of the form. These forms or similar forms are included in the RMS CM software that the Contractor is required to use for this contract. Properly complete this form by filling out all the heading blank spaces and identifying each item submitted. Exercise special care to ensure proper listing of the specification paragraph and sheet number of the contract drawings pertinent to the data submitted for each item.

1.5.2 Submittal Format

1.5.2.1 Format of SD-01 Preconstruction Submittals

When the submittal includes a document that is to be used in the project, or is to become part of the project record, other than as a submittal, do not apply the Contractor's approval stamp to the document itself, but to a separate sheet accompanying the document.

Provide data in the unit of measure used in the contract documents.

1.5.2.2 Format for SD-02 Shop Drawings

Provide shop drawings not less than 8 1/2 by 11 inches nor more than 30 by 42 inches, except for full-size patterns or templates. Prepare drawings to accurate size, with scale indicated, unless another form is required. Ensure drawings are suitable for reproduction and of a quality to produce clear, distinct lines and letters, with dark lines on a white background.

- a. Include the nameplate data, size, and capacity on drawings. Also include applicable federal, military, industry, and technical society publication references.

- b. Dimension drawings, except diagrams and schematic drawings. Prepare drawings demonstrating interface with other trades to scale. Use the same unit of measure for shop drawings as indicated on the contract drawings. Identify materials and products for work shown.

1.5.2.2.1 Drawing Identification

Include on each drawing the drawing title, number, date, and revision numbers and dates, in addition to information required in paragraph IDENTIFYING SUBMITTALS.

Number drawings in a logical sequence. Each drawing is to bear the number of the submittal in a uniform location next to the title block. Place the Government contract number in the margin, immediately below the title block, for each drawing.

1.5.2.3 Format of SD-03 Product Data

Present product data submittals for each section. Include a table of contents, listing the page and catalog item numbers for product data.

Indicate, by prominent notation, each product that is being submitted; indicate the specification section number and paragraph number to which it pertains.

1.5.2.3.1 Product Information

Supplement product data with material prepared for the project to satisfy the submittal requirements where product data does not exist. Identify this material as developed specifically for the project, with information and format as required for submission of SD-07 Certificates.

Provide product data in units used in the Contract documents. Where product data are included in preprinted catalogs with another unit, submit the dimensions in contract document units, on a separate sheet.

1.5.2.3.2 Standards

Where equipment or materials are specified to conform to industry or technical-society reference standards of such organizations as the American National Standards Institute (ANSI), ASTM International (ASTM), National Electrical Manufacturer's Association (NEMA), Underwriters Laboratories (UL), or Association of Edison Illuminating Companies (AEIC), submit proof of such compliance. The label or listing by the specified organization will be acceptable evidence of compliance. In lieu of the label or listing, submit a certificate from an independent testing organization, competent to perform testing, and approved by the Contracting Officer. State on the certificate that the item has been tested in accordance with the specified organization's test methods and that the item complies with the specified organization's reference standard.

1.5.2.3.3 Data Submission

Collect required data submittals for each specific material, product, unit of work, or system into a single submittal that is marked for choices, options, and portions applicable to the submittal. Mark each copy of the product data identically. Partial submittals will [not] be accepted for expedition of the construction effort.

Submit the manufacturer's instructions before installation.

1.5.2.4 Format of SD-04 Samples

1.5.2.4.1 Sample Characteristics

Furnish samples in the following sizes, unless otherwise specified or unless the manufacturer has prepackaged samples of approximately the same size as specified:

- a. Sample of Equipment or Device: Full size.
- b. Sample of Materials Less Than 2 by 3 inches: Built up to 8 1/2 by 11 inches.
- c. Sample of Materials Exceeding 8 1/2 by 11 inches: Cut down to 8 1/2 by 11 inches and adequate to indicate color, texture, and material variations.
- d. Sample of Linear Devices or Materials: 10 inch length or length to be supplied, if less than 10 inches. Examples of linear devices or materials are conduit and handrails.
- e. Sample Volume of Nonsolid Materials: Pint. Examples of nonsolid materials are sand and paint.
- f. Color Selection Samples: 2 by 4 inches. Where samples are specified for selection of color, finish, pattern, or texture, submit the full set of available choices for the material or product specified. Sizes and quantities of samples are to represent their respective standard unit.
- g. Sample Panel: 4 by 4 feet.
- h. Sample Installation: 100 square feet.

1.5.2.4.2 Sample Incorporation

Reusable Samples: Incorporate returned samples into work only if so specified or indicated. Incorporated samples are to be in undamaged condition at the time of use.

Recording of Sample Installation: Note and preserve the notation of any area constituting a sample installation, but remove the notation at the final clean-up of the project.

1.5.2.4.3 Comparison Sample

Samples Showing Range of Variation: Where variations in color, finish, pattern, or texture are unavoidable due to nature of the materials, submit sets of samples of not less than three units showing extremes and middle of range. Mark each unit to describe its relation to the range of the variation.

When color, texture, or pattern is specified by naming a particular manufacturer and style, include one sample of that manufacturer and style, for comparison.

1.5.2.5 Format of SD-05 Design Data

Provide design data and certificates on 8 1/2 by 11 inch paper.

1.5.2.6 Format of SD-06 Test Reports

By prominent notation, indicate each report in the submittal. Indicate the specification number and paragraph number to which each report pertains.

1.5.2.7 Format of SD-07 Certificates

Provide design data and certificates on 8 1/2 by 11 inch paper.

1.5.2.8 Format of SD-08 Manufacturer's Instructions

Present manufacturer's instructions submittals for each section. Include the manufacturer's name, trade name, place of manufacture, and catalog model or number on product data. Also include applicable federal, military, industry, and technical-society publication references. If supplemental information is needed to clarify the manufacturer's data, submit it as specified for SD-07 Certificates.

Submit the manufacturer's instructions before installation.

1.5.2.8.1 Standards

Where equipment or materials are specified to conform to industry or technical-society reference standards of such organizations as the American National Standards Institute (ANSI), ASTM International (ASTM), National Electrical Manufacturer's Association (NEMA), Underwriters Laboratories (UL), or Association of Edison Illuminating Companies (AEIC), submit proof of such compliance. The label or listing by the specified organization will be acceptable evidence of compliance. In lieu of the label or listing, submit a certificate from an independent testing organization, competent to perform testing, and approved by the Contracting Officer. State on the certificate that the item has been tested in accordance with the specified organization's test methods and that the item complies with the specified organization's reference standard.

1.5.2.9 Format of SD-09 Manufacturer's Field Reports

By prominent notation, indicate each report in the submittal. Indicate the specification number and paragraph number to which each report pertains.

1.5.2.10 Format of SD-10 Operation and Maintenance Data (O&M)

Comply with the requirements specified in Section 01 78 23 OPERATION AND MAINTENANCE DATA for O&M Data format.

1.5.2.11 Format of SD-11 Closeout Submittals

When the submittal includes a document that is to be used in the project or is to become part of the project record, other than as a submittal, do not apply the Contractor's approval stamp to the document itself, but to a separate sheet accompanying the document.

Provide data in the unit of measure used in the contract documents.

1.5.3 Source Drawings for Shop Drawings

1.5.3.1 Source Drawings

The entire set of source drawing files (DWG) will not be provided to the Contractor. Request the specific Drawing Number for the preparation of shop drawings. Only those drawings requested to prepare shop drawings will be provided. These drawings are provided only after award.

1.5.3.2 Terms and Conditions

Data contained on these electronic files must not be used for any purpose other than as a convenience in the preparation of construction data for the referenced project. Any other use or reuse is at the sole risk of the Contractor and without liability or legal exposure to the Government. The Contractor must make no claim, and waives to the fullest extent permitted by law any claim or cause of action of any nature against the Government, its agents, or its subconsultants that may arise out of or in connection with the use of these electronic files. The Contractor must, to the fullest extent permitted by law, indemnify and hold the Government harmless against all damages, liabilities, or costs, including reasonable attorney's fees and defense costs, arising out of or resulting from the use of these electronic files.

These electronic source drawing files are not construction documents. Differences may exist between the source drawing files and the corresponding construction documents. The Government makes no representation regarding the accuracy or completeness of the electronic source drawing files, nor does it make representation to the compatibility of these files with the Contractor hardware or software. The Contractor is responsible for determining if any conflict exists. In the event that a conflict arises between the signed and sealed construction documents prepared by the Government and the furnished source drawing files, the signed and sealed construction documents govern. Use of these source drawing files does not relieve the Contractor of the duty to fully comply with the contract documents, including and without limitation the need to check, confirm and coordinate the work of all contractors for the project. If the Contractor uses, duplicates or modifies these electronic source drawing files for use in producing construction data related to this contract, remove all previous indication of ownership (seals, logos, signatures, initials and dates).

1.6 QUANTITY OF SUBMITTALS

1.6.1 Number of SD-01 Preconstruction Submittal Copies

Unless otherwise specified, submit two sets of administrative submittals.

1.6.2 Number of SD-04 Samples

- a. Submit two samples, or two sets of samples showing the range of variation, of each required item. One approved sample or set of samples will be retained by the approving authority and one will be returned to the Contractor.
- b. Submit one sample panel or provide one sample installation where directed. Include components listed in the technical section or as directed.

- c. Submit one sample installation, where directed.
- d. Submit one sample of nonsolid materials.

1.7 INFORMATION ONLY SUBMITTALS

Submittals without a "G" designation must be certified by the QC manager and submitted to the Contracting Officer for information-only. Provide information-only submittals to the Contracting Officer a minimum of 14 calendar days prior to the Preparatory Meeting for the associated Definable Feature of Work (DFOW). Approval of the Contracting Officer is not required on information only submittals. The Contracting Officer will mark "receipt acknowledged" on submittals for information and will return only the transmittal cover sheet to the Contractor. Normally, submittals for information only will not be returned. However, the Government reserves the right to return unsatisfactory submittals and require the Contractor to resubmit any item found not to comply with the contract. This does not relieve the Contractor from the obligation to furnish material conforming to the plans and specifications; will not prevent the Contracting Officer from requiring removal and replacement of nonconforming material incorporated in the work; and does not relieve the Contractor of the requirement to furnish samples for testing by the Government laboratory or for check testing by the Government in those instances where the technical specifications so prescribe.

1.8 PROJECT SUBMITTAL REGISTER

A sample Project Submittal Register showing items of equipment and materials for when submittals are required by the specifications is provided as an attachment to Section 00 09 01.

1.8.1 Submittal Management

Prepare and maintain a submittal register, as the work progresses. Do not change data that is output in columns (c), (d), (e), and (f) as delivered by Government; retain data that is output in columns (a), (g), (h), and (i) as approved. As an attachment, provide a submittal register showing items of equipment and materials for which submittals are required by the specifications. This list may not be all-inclusive and additional submittals may be required. Maintain a submittal register for the project in accordance with Section 01 45 00.15 10 RESIDENT MANAGEMENT SYSTEM CONTRACTOR MODE(RMS CM).

Column (c): Lists specification section in which submittal is required.

Column (d): Lists each submittal description (SD Number. and type, e.g., SD-02 Shop Drawings) required in each specification section.

Column (e): Lists one principal paragraph in each specification section where a material or product is specified. This listing is only to facilitate locating submitted requirements. Do not consider entries in column (e) as limiting the project requirements.

Thereafter, the Contractor is to track all submittals by maintaining a complete list, including completion of all data columns and all dates on

which submittals are received by and returned by the Government.

1.8.2 Preconstruction Use of Submittal Register

Submit the submittal register. Include the QC plan and the project schedule. Verify that all submittals required for the project are listed and add missing submittals. Coordinate and complete the following fields on the register submitted with the QC plan and the project schedule:

Column (a) Activity Number: Activity number from the project schedule.

Column (g) Contractor Submit Date: Scheduled date for the approving authority to receive submittals.

Column (h) Contractor Approval Date: Date that Contractor needs approval of submittal.

Column (i) Contractor Material: Date that Contractor needs material delivered to Contractor control.

1.8.3 Contractor Use of Submittal Register

Update the following fields in the Government-furnished submittal register program or equivalent fields in the program used by the Contractor with each submittal throughout the contract.

Column (b) Transmittal Number: List of consecutive, Contractor-assigned numbers.

Column (j) Action Code (k): Date of action used to record Contractor's review when forwarding submittals to QC.

Column (l) Date submittal transmitted.

Column (q) Date approval was received.

1.8.4 Approving Authority Use of Submittal Register

Update the following fields:

Column (b) Transmittal Number: List of consecutive, Contractor-assigned numbers.

Column (l) Date submittal was received.

Column (m) through (p) Dates of review actions.

Column (q) Date of return to Contractor.

1.8.5 Action Codes

1.8.6 Delivery of Copies

Submit an updated electronic copy of the submittal register to the Contracting Officer with each invoice request. Provide an updated Submittal Register monthly regardless of whether an invoice is submitted.

1.9 VARIATIONS

Variations from contract requirements require Contracting Officer approval pursuant to contract Clause FAR 52.236-21 Specifications and Drawings for Construction, and will be considered where advantageous to the Government.

1.9.1 Considering Variations

Discussion of variations with the Contracting Officer before submission [of a variation submittal] will help ensure that functional and quality requirements are met and minimize rejections and resubmittals. For variations that include design changes or some material or product substitutions, the Government may require an evaluation and analysis by a licensed professional engineer hired by the contractor.

Specifically point out variations from contract requirements in a [transmittal letter][variation submittal]. Failure to point out variations may cause the Government to require rejection and removal of such work at no additional cost to the Government.

1.9.2 Proposing Variations

Check the column "variation" of ENG Form 4025 for submittals that include variations proposed by the Contractor. Set forth in writing the reason for any variations and note such variations on the submittal. The Government reserves the right to rescind inadvertent approval of submittals containing unnoted variations.

1.9.3 Warranting that Variations are Compatible

When delivering a variation for approval, the Contractor warrants that this contract has been reviewed to establish that the variation, if incorporated, will be compatible with other elements of work.

1.9.4 Review Schedule Extension

In addition to the normal submittal review period, a period of 14 calendar days will be allowed for the Government to consider submittals with variations.

1.10 SCHEDULING

Schedule and submit concurrently product data and shop drawings covering component items forming a system or items that are interrelated. Submit pertinent certifications at the same time. No delay damages or time extensions will be allowed for time lost in late submittals.

- a. Coordinate scheduling, sequencing, preparing, and processing of submittals with performance of work so that work will not be delayed by submittal processing. The Contractor is responsible for additional time required for Government reviews resulting from required resubmittals. The review period for each resubmittal is the same as for the initial submittal.
- b. Submittals required by the contract documents are listed on the submittal register. If a submittal is listed in the submittal register but does not pertain to the contract work, the Contractor is to include the submittal in the register and annotate it "N/A" with a brief

explanation. Approval by the Contracting Officer does not relieve the Contractor of supplying submittals required by the contract documents but that have been omitted from the register or marked "N/A."

- c. Resubmit the submittal register and annotate it monthly with actual submission and approval dates. When all items on the register have been fully approved, no further resubmittal is required.

Contracting Officer review will be completed within 7 calendar days after the date of submission.

1.11 GOVERNMENT APPROVING AUTHORITY

When the approving authority is the Contracting Officer, the Government will:

- a. Note the date on which the submittal was received.
- b. Review submittals for approval within the scheduling period specified and only for conformance with project design concepts and compliance with contract documents.
- c. Identify returned submittals with one of the actions defined in paragraph REVIEW NOTATIONS and with comments and markings appropriate for the action indicated.

Upon completion of review of submittals requiring Government approval, stamp and date submittals. A copy of the submittal will be retained by the Contracting Officer and a copy of the submittal will be returned to the Contractor.

1.11.1 Review Notations

Submittals will be returned to the Contractor with the following notations:

- a. Submittals marked "approved" or "accepted" authorize proceeding with the work covered.
- b. Submittals marked "approved as noted" or "approved, except as noted, resubmittal not required," authorize proceeding with the work covered provided that the Contractor takes no exception to the corrections.
- c. Submittals marked "not approved," "disapproved," or "revise and resubmit" indicate incomplete submittal or noncompliance with the contract requirements or design concept. Resubmit with appropriate changes. Do not proceed with work for this item until the resubmittal is approved.
- d. Submittals marked "not reviewed" indicate that the submittal has been previously reviewed and approved, is not required, does not have evidence of being reviewed and approved by Contractor, or is not complete. A submittal marked "not reviewed" will be returned with an explanation of the reason it is not reviewed. Resubmit submittals returned for lack of review by Contractor or for being incomplete, with appropriate action, coordination, or change.
- e. Submittals marked "receipt acknowledged" indicate that submittals have been received by the Government. This applies only to "information-only submittals" as previously defined.

1.12 DISAPPROVED SUBMITTALS

Make corrections required by the Contracting Officer. If the Contractor considers any correction or notation on the returned submittals to constitute a change to the contract drawings or specifications, give notice to the Contracting Officer as required under the FAR clause titled CHANGES. The Contractor is responsible for the dimensions and design of connection details and the construction of work. Failure to point out variations may cause the Government to require rejection and removal of such work at the Contractor's expense.

If changes are necessary to submittals, make such revisions and resubmit in accordance with the procedures above. No item of work requiring a submittal change is to be accomplished until the changed submittals are approved.

1.13 APPROVED SUBMITTALS

The Contracting Officer's approval of submittals is not to be construed as a complete check, and indicates only that

Approval or acceptance by the Government for a submittal does not relieve the Contractor of the responsibility for meeting the contract requirements or for any error that may exist, because under the Quality Control (QC) requirements of this contract, the Contractor is responsible for ensuring information contained within each submittal accurately conforms with the requirements of the contract documents.

After submittals have been approved or accepted by the Contracting Officer, no resubmittal for the purpose of substituting materials or equipment will be considered unless accompanied by an explanation of why a substitution is necessary.

1.14 APPROVED SAMPLES

Approval of a sample is only for the characteristics or use named in such approval and is not to be construed to change or modify any contract requirements. Before submitting samples, provide assurance that the materials or equipment will be available in quantities required in the project. No change or substitution will be permitted after a sample has been approved.

Match the approved samples for materials and equipment incorporated in the work. If requested, approved samples, including those that may be damaged in testing, will be returned to the Contractor, at its expense, upon completion of the contract. Unapproved samples will also be returned to the Contractor at its expense, if so requested.

Failure of any materials to pass the specified tests will be sufficient cause for refusal to consider, under this contract, any further samples of the same brand or make as that material. The Government reserves the right to disapprove any material or equipment that has previously proved unsatisfactory in service.

Samples of various materials or equipment delivered on the site or in place may be taken by the Contracting Officer for testing. Samples failing to meet contract requirements will automatically void previous approvals. Replace such materials or equipment to meet contract requirements.

1.15 WITHHOLDING OF PAYMENT

Payment for materials incorporated in the work will not be made if required approvals have not been obtained.

1.16 CERTIFICATION OF SUBMITTAL DATA

Certify the submittal data as follows on Form ENG 4025: "I certify that the above submitted items had been reviewed in detail and are correct and in strict conformance with the contract drawings and specifications except as otherwise stated.

_____NAME OF CONTRACTOR _____SIGNATURE OF CONTRACTOR

PART 2 PRODUCTS

Not Used

PART 3 EXECUTION

Not Used

-- End of Section --

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GOVERNMENTAL SAFETY REQUIREMENTS

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PART 1 GENERAL

1.1 REFERENCES

The publications listed below form a part of this specification to the extent referenced. The publications are referred to within the text by the basic designation only.

AMERICAN SOCIETY OF MECHANICAL ENGINEERS (ASME)

ASME B30.3	(2020) Tower Cranes
ASME B30.5	(2021) Mobile and Locomotive Cranes
ASME B30.7	(2021) Winches
ASME B30.8	(2020) Floating Cranes and Floating Derricks
ASME B30.9	(2018) Slings
ASME B30.20	(2018) Below-the-Hook Lifting Devices
ASME B30.22	(2023) Articulating Boom Cranes
ASME B30.23	(2022) Personnel Lifting Systems Safety Standard for Cableways, Cranes, Derricks, Hoists, Hooks, Jacks, and Slings
ASME B30.26	(2015; R 2020) Rigging Hardware

AMERICAN SOCIETY OF SAFETY PROFESSIONALS (ASSP)

ASSP A10.22	(2007; R 2017) Safety Requirements for Rope-Guided and Non-Guided Workers' Hoists
ASSP A10.34	(2021) Protection of the Public on or Adjacent to Construction Sites
ASSP A10.44	(2020) Control of Energy Sources (Lockout/Tagout) for Construction and Demolition Operations
ASSP Z244.1	(2016) The Control of Hazardous Energy Lockout, Tagout and Alternative Methods
ASSP Z359.0	(2018) Definitions and Nomenclature Used for Fall Protection and Fall Arrest
ASSP Z359.1	(2020) The Fall Protection Code
ASSP Z359.2	(2017) Minimum Requirements for a

Comprehensive Managed Fall Protection Program

ASSP Z359.3	(2019) Safety Requirements for Lanyards and Positioning Lanyards
ASSP Z359.4	(2013) Safety Requirements for Assisted-Rescue and Self-Rescue Systems, Subsystems and Components
ASSP Z359.6	(2016) Specifications and Design Requirements for Active Fall Protection Systems
ASSP Z359.7	(2019) Qualification and Verification Testing of Fall Protection Products
ASSP Z359.11	(2014) Safety Requirements for Full Body Harnesses
ASSP Z359.12	(2019) Connecting Components for Personal Fall Arrest Systems
ASSP Z359.13	(2013) Personal Energy Absorbers and Energy Absorbing Lanyards
ASSP Z359.14	(2014) Safety Requirements for Self-Retracting Devices for Personal Fall Arrest and Rescue Systems
ASSP Z359.15	(2014) Safety Requirements for Single Anchor Lifelines and Fall Arresters for Personal Fall Arrest Systems
ASSP Z359.16	(2016) Safety Requirements for Climbing Ladder Fall Arrest Systems
ASSP Z359.18	(2017) Safety Requirements for Anchorage Connectors for Active Fall Protection Systems

ASTM INTERNATIONAL (ASTM)

ASTM F855	(2019) Standard Specifications for Temporary Protective Grounds to Be Used on De-energized Electric Power Lines and Equipment
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INSTITUTE OF ELECTRICAL AND ELECTRONICS ENGINEERS (IEEE)

IEEE 1048	(2016) Guide for Protective Grounding of Power Lines
IEEE C2	(2023) National Electrical Safety Code

NATIONAL FIRE PROTECTION ASSOCIATION (NFPA)

NFPA 10	(2022; ERTA 1 2021) Standard for Portable Fire Extinguishers
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NFPA 51B	(2024) Standard for Fire Prevention During Welding, Cutting, and Other Hot Work
NFPA 70	(2023; ERTA 4 2023; ERTA 5 2023; ERTA 6 2023) National Electrical Code
NFPA 70E	(2024) Standard for Electrical Safety in the Workplace
NFPA 241	(2022) Standard for Safeguarding Construction, Alteration, and Demolition Operations
NFPA 306	(2024) Standard for the Control of Gas Hazards on Vessels

TELECOMMUNICATIONS INDUSTRY ASSOCIATION (TIA)

TIA-222	(2018H; Add 1 2019) Structural Standard for Antenna Supporting Structures and Antennas and Small Wind Turbine Support Structures
TIA-1019	(2012; R 2016) Standard for Installation, Alteration and Maintenance of Antenna Supporting Structures and Antennas

U.S. ARMY CORPS OF ENGINEERS (USACE)

EM 385-1-1	(2024) Safety and Health Requirements Manual
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U.S. NATIONAL ARCHIVES AND RECORDS ADMINISTRATION (NARA)

10 CFR 20	Standards for Protection Against Radiation
29 CFR 1910	Occupational Safety and Health Standards
29 CFR 1910.146	Permit-required Confined Spaces
29 CFR 1910.147	The Control of Hazardous Energy (Lock Out/Tag Out)
29 CFR 1910.333	Selection and Use of Work Practices
29 CFR 1915	Confined and Enclosed Spaces and Other Dangerous Atmospheres in Shipyard Employment
29 CFR 1915.89	Control of Hazardous Energy (Lockout/Tags-Plus)
29 CFR 1926	Safety and Health Regulations for Construction
29 CFR 1926.16	Rules of Construction
29 CFR 1926.450	Scaffolds

29 CFR 1926.500	Fall Protection
29 CFR 1926.552	Material Hoists, Personal Hoists, and Elevators
29 CFR 1926.553	Base-Mounted Drum Hoists
29 CFR 1926.1400	Cranes and Derricks in Construction
49 CFR 173	Shippers - General Requirements for Shipments and Packagings
CPL 02-01-056	(2014) Inspection Procedures for Accessing Communication Towers by Hoist
CPL 2.100	(1995) Application of the Permit-Required Confined Spaces (PRCS) Standards, 29 CFR 1910.146

1.2 DEFINITIONS

1.2.1 Competent Person (CP)

The CP is a person designated in writing, who, through training, knowledge and experience, is capable of identifying, evaluating, and addressing existing and predictable hazards in the working environment or working conditions that are dangerous to personnel, and who has authorization to take prompt corrective measures with regards to such hazards.

1.2.2 Competent Person, Confined Space

The CP, Confined Space, is a person meeting the competent person requirements as defined EM 385-1-1 Chapter 34, with thorough knowledge of OSHA's Confined Space Standard, 29 CFR 1910.146, and designated in writing to be responsible for the immediate supervision, implementation and monitoring of the confined space program, who through training, knowledge and experience in confined space entry is capable of identifying, evaluating and addressing existing and potential confined space hazards and, who has the authority to take prompt corrective measures with regard to such hazards.

1.2.3 Competent Person, Cranes and Rigging

The CP, Cranes and Rigging, as defined in EM 385-1-1 Chapters 15 and 16, is a person meeting the competent person requirements, who has been designated in writing to be responsible for the immediate supervision, implementation and monitoring of the Crane and Rigging Program, who through training, knowledge and experience in crane and rigging is capable of identifying, evaluating and addressing existing and potential hazards and, who has the authority to take prompt corrective measures with regard to such hazards.

1.2.4 Competent Person, Excavation/Trenching

A CP, Excavation/Trenching, is a person meeting the competent person requirements as defined in EM 385-1-1 Chapter 25 and 29 CFR 1926, who has been designated in writing to be responsible for the immediate supervision, implementation and monitoring of the excavation/trenching program, who through training, knowledge and experience in excavation/trenching is

capable of identifying, evaluating and addressing existing and potential hazards and, who has the authority to take prompt corrective measures with regard to such hazards.

1.2.5 Competent Person, Fall Protection

The CP, Fall Protection, is a person meeting the competent person requirements as defined in EM 385-1-1 Chapter 21 and in accordance with ASSP Z359.0, who has been designated in writing by the employer to be responsible for immediate supervising, implementing and monitoring of the fall protection program, who through training, knowledge and experience in fall protection and rescue systems and equipment, is capable of identifying, evaluating and addressing existing and potential fall hazards and, who has the authority to take prompt corrective measures with regard to such hazards.

1.2.6 Competent Person, Scaffolding

The CP, Scaffolding is a person meeting the competent person requirements in EM 385-1-1 Chapter 22, and designated in writing by the employer to be responsible for immediate supervising, implementing and monitoring of the scaffolding program. The CP for Scaffolding has enough training, knowledge and experience in scaffolding to correctly identify, evaluate and address existing and potential hazards and also has the authority to take prompt corrective measures with regard to these hazards. CP qualifications must be documented including experience on the specific scaffolding systems/types being used, assessment of the base material that the scaffold will be erected upon, load calculations for materials and personnel, and erection and dismantling. The CP for scaffolding must have a documented minimum of 8-hours of scaffold training to include training on the specific type of scaffold being used (e.g. mast-climbing, adjustable, tubular frame), in accordance with EM 385-1-1 paragraph 22-2.a.

1.2.7 Competent Person (CP) Trainer

A competent person trainer as defined in EM 385-1-1 Chapter 2, who is qualified in the training material presented, and who possesses a working knowledge of applicable technical regulations, standards, equipment and systems related to the subject matter on which they are training Competent Persons. A competent person trainer must be familiar with the typical hazards and the equipment used in the industry they are instructing. The training provided by the competent person trainer must be appropriate to that specific industry. The competent person trainer must evaluate the knowledge and skills of the competent persons as part of the training process.

1.2.8 High Risk Activities

High Risk Activities are activities that involve work at heights, crane and rigging, excavations and trenching, scaffolding, electrical work, and confined space entry.

1.2.9 High Visibility Accident

A High Visibility Accident is any mishap which may generate publicity or high visibility.

1.2.10 Load Handling Equipment (LHE)

LHE is a term used to describe cranes, hoists and all other hoisting equipment (hoisting equipment means equipment, including crane, derricks, hoists and power operated equipment used with rigging to raise, lower or horizontally move a load).

1.2.11 Medical Treatment

Medical Treatment is treatment administered by a physician or by registered professional personnel under the standing orders of a physician. Medical treatment does not include first aid treatment even when provided by a physician or registered personnel.

1.2.12 Near Miss

A Near Miss is a mishap resulting in no personal injury and zero property damage, but given a shift in time or position, damage or injury may have occurred (e.g., a worker falls off a scaffold and is not injured; a crane swings around to move the load and narrowly misses a parked vehicle).

1.2.13 Operating Envelope

The Operating Envelope is the area surrounding any crane or load handling equipment. Inside this "envelope" is the crane, the operator, riggers and crane walkers, other personnel involved in the operation, rigging gear between the hook, the load, the crane's supporting structure (i.e. ground or rail), the load's rigging path, the lift and rigging procedure.

1.2.14 Qualified Person (QP)

The QP is a person designated in writing, who, by possession of a recognized degree, certificate, or professional standing, or extensive knowledge, training, and experience, has successfully demonstrated their ability to solve or resolve problems related to the subject matter, the work, or the project.

1.2.15 Qualified Person, Fall Protection (QP for FP)

A QP for FP is a person meeting the definition requirements of EM 385-1-1 Chapter 21, and ASSP Z359.2 standard, having a recognized degree or professional certificate and with extensive knowledge, training and experience in the fall protection and rescue field who is capable of designing, analyzing, and evaluating and specifying fall protection and rescue systems.

1.2.16 Recordable Injuries or Illnesses

Recordable Injuries or Illnesses are any work-related injury or illness that results in:

- a. Death, regardless of the time between the injury and death, or the length of the illness;
- b. Days away from work (any time lost after day of injury/illness onset);
- c. Restricted work;
- d. Transfer to another job;

- e. Medical treatment beyond first aid;
- f. Loss of consciousness; or
- g. A significant injury or illness diagnosed by a physician or other licensed health care professional, even if it did not result in (a) through (f) above

1.2.17 Government Property and Equipment

Interpret "USACE" property and equipment specified in USACE EM 385-1-1 as Government property and equipment.

1.2.18 Load Handling Equipment (LHE) Accident or Load Handling Equipment Mishap

A LHE accident occurs when any one or more of the eight elements in the operating envelope fails to perform correctly during operation, including operation during maintenance or testing resulting in personnel injury or death; material or equipment damage; dropped load; derailment; two-blocking; overload; or collision, including unplanned contact between the load, crane, or other objects. A dropped load, derailment, two-blocking, overload and collision are considered accidents, even though no material damage or injury occurs. A component failure (e.g., motor burnout, gear tooth failure, bearing failure) is not considered an accident solely due to material or equipment damage unless the component failure results in damage to other components (e.g., dropped boom, dropped load, or roll over). Document an LHE mishap using the Crane High Hazard working group mishap reporting form.

1.3 SUBMITTALS

Government approval is required for submittals with a "G" or "S" classification. Submittals not having a "G" or "S" classification are for information only. When used, a code following the "G" classification identifies the office that will review the submittal for the Government. Submit the following in accordance with Section 01 33 00 SUBMITTAL PROCEDURES:

SD-01 Preconstruction Submittals

Accident Prevention Plan (APP); G

APP - Construction; G

Dive Operations Plan; G

SD-06 Test Reports

Monthly Exposure Reports

Notifications and Reports

Accident Reports; G

LHE Inspection Reports

SD-07 Certificates

Crane Operators/Riggers
Standard Lift Plan; G
Critical Lift Plan ; G
Naval Architecture Analysis; G
Activity Hazard Analysis (AHA)
Confined Space Entry Permit
Hot Work Permit
Certificate of Compliance
License Certificates
Radiography Operation Planning Work Sheet; G
Portable Gauge Operations Planning Worksheet; G

1.4 MONTHLY EXPOSURE REPORTS

Provide a Monthly Exposure Report and attach to the monthly billing request. This report is a compilation of employee-hours worked each month for all site workers, both Prime and subcontractor. Failure to submit the report may result in retention of up to 10 percent of the voucher.

1.5 REGULATORY REQUIREMENTS

In addition to the detailed requirements included in the provisions of this Contract, comply with the most recent edition of USACE EM 385-1-1, and the following federal, state, and local laws, ordinances, criteria, rules and regulations. Submit matters of interpretation of standards to the appropriate administrative agency for resolution before starting work. Where the requirements of this specification, applicable laws, criteria, ordinances, regulations, and referenced documents vary, the most stringent requirements govern.

1.6 SITE QUALIFICATIONS, DUTIES, AND MEETINGS

1.6.1 Personnel Qualifications

1.6.1.1 Site Safety and Health Officer (SSHO)

Provide an SSHO that meets the requirements of EM 385-1-1 Chapter 2 paragraph 3. The SSHO must ensure that the requirements of 29 CFR 1926.16 are met for the project. Provide a Safety oversight team that includes a minimum of one person at each project site to function as the Site Safety and Health Officer (SSHO). The SSHO or an equally-qualified Alternate SSHO must be at the work site at all times to implement and administer the Contractor's safety program and Government-accepted Accident Prevention Plan. The SSHO and Alternate SSHO must have the required training, experience, and qualifications in accordance with EM 385-1-1 Chapter 2 paragraph 3, and all associated sub-paragraphs.

1.6.1.1.1 Additional Site Safety and Health Officer (SSHO) Requirements and Duties

The SSHO may not serve as the Quality Control Manager. The SSHO may not serve as the Superintendent.

1.6.1.2 Competent Person Qualifications

Provide Competent Persons in accordance with EM 385-1-1, Chapter 2 paragraph 3 and herein. Competent Persons for high risk activities include confined space, cranes and rigging, excavation/trenching, fall protection, and electrical work. The CP for these activities must be designated in writing, and meet the requirements for the specific activity (i.e. competent person, fall protection).

The Competent Person identified in the Contractor's Safety and Health Program and accepted Accident Prevention Plan, must be on-site at all times when the work that presents the hazards associated with their professional expertise is being performed. Provide the credentials of the Competent Persons(s) to the Contracting Officer for information in consultation with the Safety Office.

1.6.1.2.1 Competent Person for Confined Space Entry

Provide a Confined Space (CP) Competent Person who meets the requirements of EM 385-1-1, Chapter 34, and herein. The CP for Confined Space Entry must supervise the entry into each confined space in accordance with EM 385-1-1, Chapter 34.

Since this work involves operations that handle combustible or hazardous materials, this person must have the ability to understand and follow through on the air sampling, Personal Protective Equipment (PPE), and instructions of a Marine Chemist, Coast Guard authorized persons, or Certified Industrial Hygienist. Confined space and enclosed space work must comply with NFPA 306, OSHA 29 CFR 1915, Subpart B, "Confined and Enclosed Spaces and Other Dangerous Atmospheres in Shipyard Employment," or as applicable, 29 CFR 1910.146 for general industry.

1.6.1.2.2 Competent Person for Scaffolding

Provide a Competent Person for Scaffolding who meets the requirements of EM 385-1-1, Chapter 22 and herein.

1.6.1.2.3 Competent Person for Fall Protection

Provide a Competent Person for Fall Protection who meets the requirements of EM 385-1-1, Chapters 21 and 22, and herein.

1.6.1.3 Qualified Trainer Requirements

Individuals qualified to instruct the 40 hour contract safety awareness course, or portions thereof, must meet the definition of a Competent Person Trainer, and, at a minimum, possess a working knowledge of the following subject areas: EM 385-1-1, Electrical Standards, Lockout/Tagout, Fall Protection, Confined Space Entry for Construction; Excavation, Trenching and Soil Mechanics, and Scaffolds in accordance with 29 CFR 1926.450, Subpart L.

Instructors are required to:

- a. Prepare class presentations that cover construction-related safety requirements.
- b. Ensure that all attendees attend all sessions by using a class roster signed daily by each attendee. Maintain copies of the roster for at least five years. This is a certification class and must be attended 100 percent. In cases of emergency where an attendee cannot make it to a session, the attendee can make it up in another class session for the same subject.
- c. Update training course materials whenever an update of the EM 385-1-1 becomes available.
- d. Provide a written exam of at least 50 questions. Students are required to answer 80 percent correctly to pass.
- e. Request, review and incorporate student feedback into a continuous course improvement program.

1.6.1.4 Dredging Contract Requirements

1.6.1.4.1 Dredging Safety Personnel Requirements

- a. Provide a minimum of one full-time SSHO assigned per project site for the primary working shift.
- b. For a project involving multiple work shifts, provide one full-time SSHO for each additional shift.
- c. An example of one dredging project site is reflected in each of the following:
 - (1) a mechanical dredge, tug(s) and scow(s), scow route, and material placement site; or
 - (2) a hydraulic pipeline dredge, attendant plant, and material placement site; or,
 - (3) a hopper dredge (include land-based material placement site - if applicable.)

1.6.1.4.2 SSHO Requirements for Dredging

- a. In addition to requirements stated elsewhere in this specification, an individual serving as a SSHO must be present at the construction work site, located so that they have full mobility and access to all major work operations when work is being performed. The SSHO must be available during their shift for immediate verbal consultation and notification, either by phone or radio.
- b. The SSHO must report to a senior project (or corporate) official.
- c. The SSHO must inspect all work areas and operations during initial set-up. For additional shifts, the SSHO must inspect all work areas and operations and provide personal oversight during dredge operations.

1.6.1.4.3 Collateral Duty Safety Officer (CDSO) Requirements for Dredging

- a. A CDSO is an individual who is assigned collateral duty safety responsibilities in addition to their full-time occupation, and who supports and supplements the SSHO efforts in managing, implementing and enforcing the Contractor's Safety and Health Program. An assigned CDSO must be an individual(s) with work oversight responsibilities, such as master, mate, fill foreman, or superintendent. A CDSO must not be an employee responsible for continuous mechanical or equipment operations, such as an equipment operator.
- b. A CDSO must perform safety program tasks as assigned by the SSHO and must report safety findings to the SSHO. The SSHO must document results of safety findings and provide information for inclusion in the CQC reports to the Contracting Officer.

1.6.1.4.4 Safety Personnel Training Requirements for Dredging

A SSHO and a CDSO for dredging Contracts must take either a formal classroom or online OSHA 30-hour Construction Safety Course, or an equivalent 30 hours of formal classroom or online safety and health training covering the subjects of the OSHA 30-hour Course in accordance with EM 385-1-1 section 2-3, applicable to dredging work, and given by qualified instructors. In exception to EM 385-1-1 paragraph 2-4.b, comply with the following:

- a. The SSHO must maintain competency through having taken 24 hours of formal classroom or online safety and health related coursework every year for, at minimum, the last 3 years. Hours spent as an instructor in such courses will be considered the same as attending them, but each course only gets credit once (for example, instructing a 1-hour asbestos awareness course five times in a year provides one hour credit for training).
- b. The SSHO and a CDSO must have a minimum of five years of experience within the past ten years in one of the following:
 - (1) Supervising/managing dredging activities (managing safety programs or processes and conducting hazard analyses and developing controls in activities or environments with similar hazards)
 - (2) Supervising/managing marine construction activities (managing safety programs or processes and conducting hazard analyses and developing controls in activities or environments with similar hazards)
 - (3) Supervising/managing land-based construction activities (managing safety programs or processes and conducting hazard analyses and developing controls in activities or environments with similar hazards)

1.6.1.5 Crane Operators/Riggers

Provide Operators, Signal Persons, and Riggers meeting the requirements in EM 385-1-1, Chapter 15 for Riggers and Chapter 16 for Crane Operators and Signal Persons. In addition, for mobile cranes with Original Equipment Manufacturer (OEM) rated capacities of 50,000 pounds or greater, designate crane operators qualified by a source that qualifies crane operators (i.e., union, a Government agency, or an organization that tests and qualifies

crane operators). Provide proof of current qualification.

1.6.2 Personnel Duties

1.6.2.1 Duties of the Site Safety and Health Officer (SSHO)

The SSHO must:

- a. Conduct daily safety and health inspections and maintain a written log which includes area/operation inspected, date of inspection, identified hazards, recommended corrective actions, estimated and actual dates of corrections. Attach safety inspection logs to the Contractors' daily production report.
- b. Conduct mishap investigations and complete required accident reports. Report mishaps and near misses.
- c. Use and maintain OSHA's Form 300 to log work-related injuries and illnesses occurring on the project site for Prime Contractors and subcontractors, and make available to the Contracting Officer upon request. Post and maintain the Form 300A on the site Safety Bulletin Board.
- d. Maintain applicable safety reference material on the job site.
- e. Attend the pre-construction conference, pre-work meetings including preparatory meetings, and periodic in-progress meetings.
- f. Review the APP and AHAs for compliance with EM 385-1-1, and approve, sign, implement and enforce them.
- g. Establish a Safety and Occupational Health (SOH) Deficiency Tracking System that lists and monitors outstanding deficiencies until resolution.
- h. Ensure subcontractor compliance with safety and health requirements.
- i. Maintain a list of hazardous chemicals on site and their material Safety Data Sheets (SDS).
- j. Maintain a weekly list of high hazard activities involving energy, equipment, excavation, entry into confined space, and elevation, and be prepared to discuss details during QC Meetings.
- k. Provide and keep a record of site safety orientation and indoctrination for Contractor employees, subcontractor employees, and site visitors.

Superintendent, QC Manager, and SSHO are subject to dismissal if the above or any other required duties are not being effectively carried out. If either the Superintendent, QC Manager, or SSHO are dismissed, project work will be stopped and will not be allowed to resume until a suitable replacement is approved and the above duties are again being effectively carried out.

1.6.3 Meetings

1.6.3.1 Preconstruction Conference

- a. Contractor representatives who have a responsibility or significant

role in accident prevention on the project must attend the preconstruction conference. This includes the project superintendent, Site Safety and Occupational Health Officer, quality control manager, or any other assigned safety and health professionals who participated in the development of the APP (including the Activity Hazard Analyses (AHAs) and special plans, program and procedures associated with it).

- b. Discuss the details of the submitted APP to include incorporated plans, programs, procedures and a listing of anticipated AHAs that will be developed and implemented during the performance of the Contract. This list of proposed AHAs will be reviewed and an agreement will be reached between the Contractor and the Contracting Officer as to which phases will require an analysis. In addition, establish a schedule for the preparation, submittal, and Government review of AHAs to preclude project delays.
- c. Deficiencies in the submitted APP, identified during the Contracting Officer's review, must be corrected, and the APP re-submitted for review prior to the start of construction. Work is not permitted to begin until an APP is established that is acceptable to the Contracting Officer.

1.6.3.2 Safety Meetings

Conduct safety meetings to review past activities, plan for new or changed operations, review pertinent aspects of appropriate AHA (by trade), establish safe working procedures for anticipated hazards, and provide pertinent Safety and Occupational Health (SOH) training and motivation. Conduct meetings at least once a month for all supervisors at the project location. The SSHO, supervisors, foremen, or CDSOs must conduct meetings at least once a week for the trade workers. Document meeting minutes to include the date, persons in attendance, subjects discussed, and names of individual(s) who conducted the meeting. Maintain documentation on-site and furnish copies to the Contracting Officer on request. Notify the Contracting Officer of all scheduled meetings 7 calendar days in advance.

1.6.3.3 Daily Toolbox Safety Talks

Conduct daily "Toolbox Safety Talks" or "Toolbox Talks" to reinforce key safety procedures and involve workers in discussion of safety and health procedures and program requirements. Document meeting with meeting agenda or discussion summary, to include the date, persons in attendance, subjects discussed, and names of individual(s) who conducted the meeting. Maintain documentation on-site and attach documentation to the Contractors' daily safety inspection logs in accordance with paragraph 1.6.2.1.

1.7 ACCIDENT PREVENTION PLAN (APP)

1.7.1 APP - Construction

A qualified person must prepare the written site-specific APP. Prepare the APP in accordance with the format and requirements of EM 385-1-1, and as supplemented herein. Cover all paragraph and subparagraph elements in EM 385-1-1. The APP must be job-specific and address any unusual or unique aspects of the project or activity for which it is written. The APP must interface with the Contractor's overall safety and health program referenced in the APP in the applicable APP element, and made site-specific. Describe the methods to evaluate past safety performance of potential subcontractors in the selection process. Also, describe

innovative methods used to ensure and monitor safe work practices of subcontractors. The Government considers the Prime Contractor to be the "controlling authority" for all work site safety and health of the subcontractors. Contractors are responsible for informing their subcontractors of the safety provisions under the terms of the Contract and the penalties for noncompliance, coordinating the work to prevent one craft from interfering with or creating hazardous working conditions for other crafts, and inspecting subcontractor operations to ensure that accident prevention responsibilities are being carried out. The APP must be signed by an officer of the firm (Prime Contractor senior person), the individual preparing the APP, the on-site superintendent, the designated SSHO, the Contractor Quality Control Manager, and any designated Certified Safety Professional (CSP) or Certified Health Physicist (CIH). The SSHO must provide and maintain the APP and a log of signatures by each subcontractor foreman, attesting that they have read and understand the APP, and make the APP and log available on-site to the Contracting Officer. If English is not the foreman's primary language, the Prime Contractor must provide an interpreter.

Submit the APP to the Contracting Officer within 15 calendar days of Contract award and not less than 10 calendar days prior to the date of the preconstruction conference for acceptance. Work cannot proceed without an accepted APP. Once reviewed and accepted by the Contracting Officer, the APP and attachments will be enforced as part of the Contract. Disregarding the provisions of this Contract or the accepted APP is cause for stopping of work, at the discretion of the Contracting Officer, until the matter has been rectified. Continuously review and amend the APP, as necessary, throughout the life of the Contract. Changes to the accepted APP must be made with the knowledge and concurrence of the Contracting Officer, project superintendent, SSHO and Quality Control Manager. Incorporate unusual or high-hazard activities not identified in the original APP as they are discovered. Should any severe hazard exposure (i.e. imminent danger) become evident, stop work in the area, secure the area, and develop a plan to remove the exposure and control the hazard. Notify the Contracting Officer within 24 hours of discovery. Eliminate and remove the hazard. In the interim, take all necessary action to restore and maintain safe working conditions in order to safeguard onsite personnel, visitors, the public (as defined by ASSP A10.34), and the environment.

1.7.2 Names and Qualifications

Provide plans in accordance with the requirements outlined in section 2-7 of EM 385-1-1, including the following:

- a. Names and qualifications (resumes including education, training, experience and certifications) of site safety and health personnel designated to perform work on this project to include the designated Site Safety and Health Officer and other competent and qualified personnel to be used. Specify the duties of each position.
- b. Qualifications of competent and of qualified persons. As a minimum, designate and submit qualifications of competent persons for each of the following major areas: excavation; scaffolding; fall protection; hazardous energy; confined space; health hazard recognition, evaluation and control of chemical, physical and biological agents; and personal protective equipment and clothing to include selection, use and maintenance.

1.7.3 Plans

Provide plans in the APP in accordance with the requirements outlined in Appendix A of EM 385-1-1, including the following:

1.7.3.1 Confined Space Entry Plan

Develop a confined or enclosed space entry plan in accordance with EM 385-1-1, applicable OSHA standards 29 CFR 1910, 29 CFR 1915, and 29 CFR 1926, OSHA Directive CPL 2.100, and any other federal, state and local regulatory requirements identified in this Contract. Identify the qualified person's name and qualifications, training, and experience. Delineate the qualified person's authority to direct work stoppage in the event of hazardous conditions. Include procedure for rescue by Contractor personnel and the coordination with emergency responders. (If there is no confined space work, include a statement that no confined space work exists and none will be created.)

1.7.3.2 Standard Lift Plan (SLP)

Plan lifts to avoid situations where the operator cannot maintain safe control of the lift. Prepare a written SLP in accordance with EM 385-1-1, Chapter 16 paragraph 7, using ENG Form 6203 (16-10.a) for every lift or series of lifts (if duty cycle or routine lifts are being performed). The SLP must be developed, reviewed and accepted by all personnel involved in the lift in conjunction with the associated AHA. Signature on the AHA constitutes acceptance of the plan. Maintain the SLP on the LHE for the current lift(s) being made. Maintain historical SLPs for a minimum of three months.

1.7.3.3 Critical Lift Plan - Crane or Load Handling Equipment

Provide a Critical Lift Plan as required by EM 385-1-1, Chapter 16 paragraph 7, using ENG Form 6213 (16-10.c). In addition, Critical Lift Plans are required for the following:

- a. Lifts over 50 percent of the capacity of barge mounted mobile crane's hoist.
- b. When working around energized power lines where the work will get closer than the minimum clearance distance in EM 385-1-1 Table 16-1.
- c. For lifts with anticipated binding conditions.
- d. When erecting cranes.

1.7.3.3.1 Critical Lift Plan Planning and Schedule

Critical lifts require detailed planning and additional or unusual safety precautions. Develop and submit a critical lift plan to the Contracting Officer 30 calendar days prior to critical lift. Comply with load testing requirements in accordance with EM 385-1-1, paragraph 16-7.d.

1.7.3.3.2 Lifts of Personnel

In addition to the requirements of EM 385-1-1, paragraph 16-8.hh, for lifts of personnel, demonstrate compliance with the requirements of 29 CFR 1926.1400 and EM 385-1-1.

1.7.3.4 Barge Mounted Mobile Crane Lift Plan

Provide a Naval Architecture Analysis and include an LHE Manufacturer's Floating Service Load Chart in accordance with EM 385-1-1, paragraph 16-8.z(3).

1.7.3.5 Multi-Purpose Machines, Material Handling Equipment, and Construction Equipment Lift Plan

Multi-purpose machines, material handling equipment, and construction equipment used to lift loads that are suspended by rigging gear, require proof of authorization from the machine OEM that the machine is capable of making lifts of loads suspended by rigging equipment. Written approval from a qualified registered professional engineer, after a safety analysis is performed, is allowed in lieu of the OEM's approval. Demonstrate that the operator is properly trained and that the equipment is properly configured to make such lifts and is equipped with a load chart.

1.7.3.6 Fall Protection and Prevention (FP&P) Plan

The plan must be in accordance with the requirements of EM 385-1-1, Chapter 21 and ASSP Z359.2, be site specific, and address all fall hazards in the work place and during different phases of construction. Address how to protect and prevent workers from falling to lower levels when they are exposed to fall hazards above 6 feet. A competent person or qualified person for fall protection must prepare and sign the plan documentation. Include fall protection and prevention systems, equipment and methods employed for every phase of work, roles and responsibilities, assisted rescue, self-rescue and evacuation procedures, training requirements, and monitoring methods. Review and revise, as necessary, the Fall Protection and Prevention Plan documentation as conditions change, but at a minimum every six months, for lengthy projects, reflecting any changes during the course of construction due to changes in personnel, equipment, systems or work habits. Keep and maintain the accepted Fall Protection and Prevention Plan documentation at the job site for the duration of the project. Include the Fall Protection and Prevention Plan documentation in the Accident Prevention Plan (APP).

1.7.3.7 Rescue and Evacuation Plan

Provide a Rescue and Evacuation Plan in accordance with EM 385-1-1 Chapter 21 and ASSP Z359.2, and include in the FP&P Plan and as part of the APP. Include a detailed discussion of the following: methods of rescue; methods of self-rescue; equipment used; training requirement; specialized training for the rescuers; procedures for requesting rescue and medical assistance; and transportation routes to a medical facility.

1.7.3.8 Hazardous Energy Control Program (HECP)

Develop a HECP in accordance with EM 385-1-1 Chapter 12, 29 CFR 1910.147, 29 CFR 1910.333, 29 CFR 1915.89, ASSP Z244.1, and ASSP A10.44. Submit this HECP as part of the Accident Prevention Plan (APP). Conduct a preparatory meeting and inspection with all effected personnel to coordinate all HECP activities. Document this meeting and inspection in accordance with EM 385-1-1, Chapter 12. Ensure that each employee is familiar with and complies with these procedures.

1.7.3.9 Excavation Plan

Identify the safety and health aspects of excavation, and provide and prepare the plan in accordance with EM 385-1-1, paragraph 25-8.

1.7.3.10 Lead, Cadmium, and Chromium Compliance Plan

Identify the safety and health aspects of work involving lead, cadmium and chromium, and prepare in accordance with Section 02 83 00 LEAD REMEDIATION.

1.7.3.11 Asbestos Hazard Abatement Plan

Identify the safety and health aspects of asbestos work, and prepare in accordance with Section 02 82 00 ASBESTOS REMEDIATION.

1.7.3.12 Site Safety and Health Plan

Identify the safety and health aspects, and prepare in accordance with Section 01 35 29.13 HEALTH, SAFETY, AND EMERGENCY RESPONSE PROCEDURES FOR CONTAMINATED SITES.

1.7.3.13 Polychlorinated Biphenyls (PCB) Plan

Identify the safety and health aspects of Polychlorinated Biphenyls work, and prepare in accordance with Sections 02 84 33 REMOVAL AND DISPOSAL OF POLYCHLORINATED BIPHENYLS (PCBs) and 02 61 23 REMOVAL AND DISPOSAL OF PCB CONTAMINATED SOILS.

1.7.3.14 Site Demolition Plan

Identify the safety and health aspects, and prepare in accordance with Section 02 41 00 DECONSTRUCTION and referenced sources.

1.8 ACTIVITY HAZARD ANALYSIS (AHA)

Before beginning each activity, task or Definable Feature of Work (DFOW) involving a type of work presenting hazards not experienced in previous project operations, or where a new work crew or subcontractor is to perform the work, the Contractor(s) performing that work activity must prepare an AHA. AHAs must be developed by the Prime Contractor, subcontractor, or supplier performing the work, and provided for Prime Contractor review and approval before submitting to the Contracting Officer. AHAs must be signed by the SSHO, Superintendent, QC Manager and the subcontractor Foreman performing the work. Format the AHA in accordance with EM 385-1-1, Chapter 2 or as directed by the Contracting Officer. Submit the AHA for review at least 15 working days prior to the start of each activity task, or DFOW. The Government reserves the right to require the Contractor to revise and resubmit the AHA if it fails to effectively identify the work sequences, specific anticipated hazards, site conditions, equipment, materials, personnel and the control measures to be implemented.

AHAs must identify competent persons required for phases involving high risk activities, including confined entry, crane and rigging, excavations, trenching, electrical work, fall protection, and scaffolding.

1.8.1 AHA Management

Review the AHA list periodically (at least monthly) at the Contractor supervisory safety meeting, and update as necessary when procedures,

scheduling, or hazards change. Use the AHA during daily inspections by the SSHO to ensure the implementation and effectiveness of the required safety and health controls for that work activity.

1.8.2 AHA Signature Log

Each employee performing work as part of an activity, task or DFOV must review the AHA for that work and sign a signature log specifically maintained for that AHA prior to starting work on that activity. The SSHO must maintain a signature log on site for every AHA. Provide employees whose primary language is other than English, with an interpreter to ensure a clear understanding of the AHA and its contents.

1.9 DISPLAY OF SAFETY INFORMATION

1.9.1 Safety Bulletin Board

Prior to commencement of work, erect a safety bulletin board at the job site. Where size, duration, or logistics of project do not facilitate a bulletin board, an alternative method, acceptable to the Contracting Officer, that is accessible and includes all mandatory information for employee and visitor review, may be deemed as meeting the requirement for a bulletin board. Include and maintain information on safety bulletin board as required by EM 385-1-1, Chapter 1. Additional items required to be posted include:

- a. Confined space entry permit.
- b. Hot work permit.

1.9.2 Safety and Occupational Health (SOH) Deficiency Tracking System

Establish a SOH deficiency tracking system that lists and monitors the status of SOH deficiencies in chronological order. Use the tracking system to evaluate the effectiveness of the APP. A monthly evaluation of the data must be discussed in the QC or SOH meeting with everyone on the project. The list must be posted on the project bulletin board and updated daily, and provide the following information:

- a. Date deficiency identified;
- b. Description of deficiency;
- c. Name of person responsible for correcting deficiency;
- d. Projected resolution date;
- e. Date actually resolved.

1.10 SITE SAFETY REFERENCE MATERIALS

Maintain safety-related references applicable to the project, including those listed in paragraph REFERENCES. Maintain applicable equipment manufacturer's manuals.

1.11 EMERGENCY MEDICAL TREATMENT

Contractors must arrange for their own emergency medical treatment in accordance with EM 385-1-1. Government has no responsibility to provide

emergency medical treatment.

1.12 NOTIFICATIONS and REPORTS

1.12.1 Mishap Notification

Notify the Contracting Officer as soon as practical, but no more than twenty-four hours, after any mishaps, including recordable accidents, incidents, and near misses, as defined in EM 385-1-1 Chapter 2, any report of injury, illness, or any property damage. For LHE or rigging mishaps, notify the Contracting Officer as soon as practical but not more than four hours after mishap. The Contractor is responsible for obtaining appropriate medical and emergency assistance and for notifying fire, law enforcement, and regulatory agencies. Immediate reporting is required for electrical mishaps, to include Arc Flash; shock; uncontrolled release of hazardous energy (includes electrical and non-electrical); load handling equipment or rigging; fall from height (any level other than same surface); and underwater diving. These mishaps must be investigated in depth to identify all causes and to recommend hazard control measures.

Within notification include Contractor name; Contract title; type of Contract; name of activity, installation or location where accident occurred; date and time of accident; names of personnel injured; extent of property damage, if any; extent of injury, if known, and brief description of accident (for example, type of construction equipment used and PPE used). Preserve the conditions and evidence on the accident site until the Government investigation team arrives on-site and Government investigation is conducted. Assist and cooperate fully with the Government's investigation(s) of any mishap.

1.12.2 Accident Reports

- a. Conduct an accident investigation for recordable injuries and illnesses, property damage, and near misses as defined in EM 385-1-1, to establish the root cause(s) of the accident. Complete the applicable USACE Accident Report Form 3394, and provide the report to the Contracting Officer within 5 calendar days of the accident. The Contracting Officer will provide copies of any required or special forms.
- b. Near Misses: Report all "Near Misses" within 24 hrs. The Contracting Officer will provide the Contractor the required forms. Near miss reports are considered positive and proactive Contractor safety management actions.
- c. Conduct an accident investigation for any load handling equipment accident (including rigging accidents) to establish the root cause(s) of the accident. Complete the LHE Accident Report (Crane and Rigging Accident Report) form and provide the report to the Contracting Officer within 30 calendar days of the accident. Do not proceed with crane operations until cause is determined and corrective actions have been implemented to the satisfaction of the Contracting Officer. The Contracting Officer will provide a blank copy of the accident report form.

1.12.3 LHE Inspection Reports

Submit LHE inspection reports required in accordance with EM 385-1-1 and as specified herein with Daily Reports of Inspections.

1.12.4 Certificate of Compliance and Pre-lift Plan/Checklist for LHE and Rigging

Provide a ENG Form 6209 Certificate of Compliance for LHE entering an activity under this Contract and in accordance with EM 385-1-1. Post certifications on the crane.

Develop a Standard Lift Plan (SLP) in accordance with EM 385-1-1, Chapter 16 using ENG Form 6203 Crane Standard Lift Plan for each lift planned. Submit SLP to the Contracting Officer for approval within 15 calendar days in advance of planned lift.

1.13 HOT WORK

1.13.1 Permit and Personnel Requirements

Submit and obtain a written permit prior to performing "Hot Work" (i.e. welding or cutting) or operating other flame-producing/spark producing devices, from the Fire Division. A permit is required from the Explosives Safety Office for work in and around where explosives are processed, stored, or handled. CONTRACTORS ARE REQUIRED TO MEET ALL CRITERIA BEFORE A PERMIT IS ISSUED. Provide at least two 20 pound 4A:20 BC rated extinguishers for normal "Hot Work". The extinguishers must be current inspection tagged, and contain an approved safety pin and tamper resistant seal. It is also mandatory to have a designated FIRE WATCH for any "Hot Work" done at this activity. The Fire Watch must be trained in accordance with NFPA 51B and remain on-site for a minimum of one hour after completion of the task or as specified on the hot work permit.

When starting work in the facility, require personnel to familiarize themselves with the location of the nearest fire alarm boxes and place in memory the emergency Fire Division phone number. REPORT ANY FIRE, NO MATTER HOW SMALL, TO THE RESPONSIBLE FIRE DIVISION IMMEDIATELY.

1.13.2 Work Around Flammable Materials

Obtain permit approval from a NFPA Certified Marine Chemist, or Certified Industrial Hygienist for "HOT WORK" within or around flammable materials (such as fuel systems or welding/cutting on fuel pipes) or confined spaces (such as sewer wet wells, manholes, or vaults) that have the potential for flammable or explosive atmospheres.

Whenever these materials, except beryllium and chromium (VI), are encountered in indoor operations, local mechanical exhaust ventilation systems that are sufficient to reduce and maintain personal exposures to within acceptable limits must be used and maintained in accordance with manufacturer's instruction and supplemented by exceptions noted in EM 385-1-1, Chapter 6.

1.14 RADIATION SAFETY REQUIREMENTS

Submit License Certificates, employee training records, and Leak Test Reports for radiation materials and equipment to the Contracting Officer and Radiation Safety Office (RSO) for all specialized and licensed material and equipment proposed for use on the construction project (excludes portable machine sources of ionizing radiation including moisture density and X-Ray Fluorescence (XRF)). Maintain on-site records whenever licensed radiological materials or ionizing equipment are on Government property.

Protect workers from radiation exposure in accordance with 10 CFR 20, ensuring any personnel exposures are maintained As Low As Reasonably Achievable.

1.14.1 Radiography Operation Planning Work Sheet

Submit a Gamma and X-Ray Radiography Operation Planning Work Sheet to Contracting Officer 14 days prior to commencement of operations involving radioactive materials or radiation generating devices. For portable machine sources of ionizing radiation, including moisture density and XRF, use and submit the Portable Gauge Operations Planning Worksheet instead. The Contracting Officer will review the submitted worksheet and provide questions and comments.

Contractors must use primary dosimeters process by a National Voluntary Laboratory Accreditation Program (NVLAP) accredited laboratory.

1.14.2 Site Access and Security

Coordinate site access and security requirements with the Contracting Officer for all radiological materials and equipment containing ionizing radiation that are proposed for use on a government facility. For gamma radiography materials and equipment, a Government escort is required for any travels on the Installation. The Government authorized representative will meet the Contractor at a designated location outside the Installation, ensure safety of the materials being transported, and will escort the Contractor for gamma sources onto the Installation, to the job site, and off the Installation. For portable machine sources of ionizing radiation, including moisture density and XRF, the Government authorized representative will meet the Contractor at the job site.

Provide a copy of all calibration records, and utilization records for radiological operations performed on the site.

1.14.3 Loss or Release and Unplanned Personnel Exposure

Loss or release of radioactive materials, and unplanned personnel exposures must be reported immediately to the Contracting Officer, RSO, and Base Security Department Emergency Number.

1.14.4 Site Demarcation and Barricade

Properly demark and barricade an area surrounding radiological operations to preclude personnel entrance, in accordance with EM 385-1-1, Nuclear Regulatory Commission, and Applicable State regulations and license requirements, and in accordance with requirements established in the accepted Radiography Operation Planning Work Sheet.

Do not close or obstruct streets, walks, and other facilities occupied and used by the Government without written permission from the Contracting Officer.

1.14.5 Security of Material and Equipment

Properly secure the radiological material and ionizing radiation equipment at all times, including keeping the devices in a properly marked and locked container, and secondarily locking the container to a secure point in the Contractor's vehicle or other approved storage location during

transportation and while not in use. While in use, maintain a continuous visual observation on the radiological material and ionizing radiation equipment. In instances where radiography is scheduled near or adjacent to buildings or areas having limited access or one-way doors, make no assumptions as to building occupancy. Where necessary, the Contracting Officer will direct the Contractor to conduct an actual building entry, search, and alert. Where removal of personnel from such a building cannot be accomplished and it is otherwise safe to proceed with the radiography, position a fully instructed employee inside the building or area to prevent exiting while external radiographic operations are in process.

1.14.6 Transportation of Material

Comply with 49 CFR 173 for Transportation of Regulated Amounts of Radioactive Material. Notify Local Fire authorities and the site Radiation Safety Officer (RSO) of any Radioactive Material use.

1.14.7 Schedule for Exposure or Unshielding

Actual exposure of the radiographic film or unshielding the source must not be initiated until after 5 p.m. on weekdays.

1.14.8 Transmitter Requirements

Adhere to the base policy concerning the use of transmitters, such as radios and cell phones. Obey Emissions control (EMCON) restrictions.

1.15 CONFINED SPACE ENTRY REQUIREMENTS

Confined space entry must comply with Chapter 34 of EM 385-1-1, OSHA 29 CFR 1926, OSHA 29 CFR 1910, OSHA 29 CFR 1910.146, and OSHA Directive CPL 2.100. Any potential for a hazard in the confined space requires a permit system to be used.

1.15.1 Entry Procedures

Prohibit entry into a confined space by personnel for any purpose, including hot work, until the qualified person has conducted appropriate tests to ensure the confined or enclosed space is safe for the work intended and that all potential hazards are controlled or eliminated and documented. Comply with EM 385-1-1, Chapter 34 for entry procedures. Hazards pertaining to the space must be reviewed with each employee during review of the AHA.

1.15.2 Forced Air Ventilation

Forced air ventilation is required for all confined space entry operations and the minimum air exchange requirements must be maintained to ensure exposure to any hazardous atmosphere is kept below its action level.

1.15.3 Sewer Wet Wells

Sewer wet wells require continuous atmosphere monitoring with audible alarm for toxic gas detection.

1.15.4 Rescue Procedures and Coordination with Local Emergency Responders

Develop and implement an on-site rescue and recovery plan and procedures. The rescue plan must not rely on local emergency responders for rescue from

a confined space.

1.16 DIVE SAFETY REQUIREMENTS

Develop a Dive Operations Plan, AHA, emergency management plan, and personnel list that includes qualifications, for each separate diving operation. Submit these documents to the District Dive Coordinator (DDC) via the Contracting Officer or Government Designated Authority (GDA), for review and approval at least 15 working days prior to commencement of diving operations. These documents must be at the diving location at all times. Provide each of these documents as a part of the project file.

1.17 SEVERE STORM PLAN

In the event of a severe storm warning, the Contractor must comply with the applicable Storm Plan and:

- a. Secure outside equipment and materials and place materials that could be damaged in protected areas.
- b. Check surrounding area, including roof, for loose material, equipment, debris, and other objects that could be blown away or against existing facilities.
- c. Ensure that temporary erosion controls are adequate.

PART 2 PRODUCTS

Not Used

PART 3 EXECUTION

3.1 CONSTRUCTION AND OTHER WORK

Comply with EM 385-1-1, NFPA 70, NFPA 70E, NFPA 241, the APP, the AHA, Federal and State OSHA regulations, and other related submittals and activity fire and safety regulations. The most stringent standard prevails.

PPE is governed in all areas by the nature of the work the employee is performing. Use personal hearing protection at all times in designated noise hazardous areas or when performing noise hazardous tasks. Safety glasses must be worn or carried/available on each person. Mandatory PPE includes:

- a. Hard Hat
- b. Long Pants
- c. Appropriate Safety Shoes
- d. Appropriate Class Reflective Vests

3.1.1 Worksite Communication

Employees working alone in a remote location or away from other workers must be provided an effective means of emergency communications (i.e., cellular phone, two-way radios, land-line telephones or other acceptable means). The selected communication must be readily available (easily

within the immediate reach) of the employee and must be tested prior to the start of work to verify that it effectively operates in the area/environment. Develop an employee check-in/check-out communication procedure to ensure employee safety.

3.1.2 Hazardous Material Exclusions

Notwithstanding any other hazardous material used in this Contract, radioactive materials or instruments capable of producing ionizing/non-ionizing radiation (with the exception of radioactive material and devices used in accordance with EM 385-1-1 such as nuclear density meters for compaction testing and laboratory equipment with radioactive sources) as well as materials which contain asbestos, mercury or polychlorinated biphenyls, di-isocyanates, lead-based paint, and hexavalent chromium, are prohibited. The Contracting Officer, upon written request by the Contractor, may consider exceptions to the use of any of the above excluded materials. Low mercury lamps used within fluorescent lighting fixtures are allowed as an exception without further Contracting Officer approval. Notify the Radiation Safety Officer (RSO) prior to excepted items of radioactive material and devices being brought on base.

3.1.3 Unforeseen Hazardous Material

Contract documents identify materials such as PCB, lead paint, and friable and non-friable asbestos and other OSHA regulated chemicals (i.e. 29 CFR Part 1910.1000). If material(s) that may be hazardous to human health upon disturbance are encountered during construction operations, stop that portion of work and notify the Contracting Officer immediately. Within 14 calendar days the Government will determine if the material is hazardous. If material is not hazardous or poses no danger, the Government will direct the Contractor to proceed without change. If material is hazardous and handling of the material is necessary to accomplish the work, the Government will issue a modification pursuant to FAR 52.243-4 Changes and FAR 52.236-2 Differing Site Conditions.

3.2 UTILITY OUTAGE REQUIREMENTS

Apply for utility outages at least 10 days in advance. At a minimum, the written request must include the location of the outage, utilities being affected, duration of outage, any necessary sketches, and a description of the means to fulfill energy isolation requirements in accordance with EM 385-1-1, Chapter 11. Some examples of energy isolation devices and procedures are highlighted in EM 385-1-1, Chapter 12. In accordance with EM 385-1-1, Chapter 12, where outages involve Government or Utility personnel, coordinate with the Government on all activities involving the control of hazardous energy.

These activities include, but are not limited to, a review of HECF and HEC procedures, as well as applicable Activity Hazard Analyses (AHAs). In accordance with EM 385-1-1, Chapter 11 and NFPA 70E, work on energized electrical circuits must not be performed without prior Government authorization. Government permission is considered through the permit process and submission of a detailed AHA. Energized work permits are considered only when de-energizing introduces additional or increased hazard or when de-energizing is infeasible.

3.3 OUTAGE COORDINATION MEETING

After the utility outage request is approved and prior to beginning work on

the utility system requiring shut-down, conduct a pre-outage coordination meeting in accordance with EM 385-1-1, paragraph 12-8. This meeting must include the Prime Contractor, the Prime and subcontractors performing the work, the Contracting Officer, and the Public Utilities representative. All parties must fully coordinate HEC activities with one another. During the coordination meeting, all parties must discuss and coordinate on the scope of work, HEC procedures (specifically, the lock-out/tag-out procedures for worker and utility protection), the AHA, assurance of trade personnel qualifications, identification of competent persons, and compliance with HECP training in accordance with EM 385-1-1, paragraph 12-3. Clarify when personal protective equipment is required during switching operations, inspection, and verification.

3.4 CONTROL OF HAZARDOUS ENERGY (LOCKOUT/TAGOUT)

Provide and operate a Hazardous Energy Control Program (HECP) in accordance with EM 385-1-1 Chapter 12, 29 CFR 1910.333, 29 CFR 1915.89, ASSP A10.44, NFPA 70E, and paragraph HAZARDOUS ENERGY CONTROL PROGRAM (HECP).

3.4.1 Safety Preparatory Inspection Coordination Meeting with the Government or Utility

For electrical distribution equipment that is to be operated by Government or Utility personnel, the Prime Contractor and the subcontractor performing the work must attend the safety preparatory inspection coordination meeting, which will also be attended by the Contracting Officer's Representative, and required by EM 385-1-1, paragraph 12-5.a. The meeting will occur immediately preceding the start of work and following the completion of the outage coordination meeting. Both the safety preparatory inspection coordination meeting and the outage coordination meeting must occur prior to conducting the outage and commencing with lockout/tagout procedures.

3.4.2 Lockout/Tagout Isolation

Where the Government or Utility performs equipment isolation and lockout/tagout, the Contractor must place their own locks and tags on each energy-isolating device and proceed in accordance with the HECP. Before any work begins, both the Contractor and the Government or Utility must perform energy isolation verification testing while wearing required PPE detailed in the Contractor's AHA and required by EM 385-1-1, Chapters 2, 5, and 11. Install personal protective grounds, with tags, to eliminate the potential for induced voltage in accordance with EM 385-1-1, Chapter 12.

3.4.3 Lockout/Tagout Removal

Upon completion of work, conduct lockout/tagout removal procedure in accordance with the HECP. In accordance with EM 385-1-1, Chapter 12, each lock and tag must be removed from each energy isolating device by the authorized individual or systems operator who applied the device. Provide formal notification to the Government (by completing the Government form if provided by Contracting Officer's Representative), confirming that steps of de-energization and lockout/tagout removal procedure have been conducted and certified through inspection and verification. Government or Utility locks and tags used to support the Contractor's work will not be removed until the authorized Government employee receives the formal notification.

3.5 FALL PROTECTION PROGRAM

Establish a fall protection program, for the protection of all employees exposed to fall hazards. Within the program include company policy, identify roles and responsibilities, education and training requirements, fall hazard identification, prevention and control measures, inspection, storage, care and maintenance of fall protection equipment and rescue and evacuation procedures in accordance with ASSP Z359.2 and EM 385-1-1, Chapter 21.

3.5.1 Training

Institute a fall protection training program. As part of the Fall Protection Program, provide training for each employee who might be exposed to fall hazards and using personal fall protection equipment. Provide training by a competent person for fall protection in accordance with EM 385-1-1, Chapter 21. Document training and practical application of the competent person in accordance with EM 385-1-1, Chapter 21 and ASSP Z359.2 in the AHA.

3.5.2 Fall Protection Equipment and Systems

Enforce use of personal fall protection equipment and systems designated (to include fall arrest, restraint, and positioning) for each specific work activity in the Site Specific Fall Protection and Prevention Plan and AHA at all times when an employee is exposed to a fall hazard. Protect employees from fall hazards as specified in EM 385-1-1, Chapter 21.

Provide personal fall protection equipment, systems, subsystems, and components that comply with EM 385-1-1 Chapter 21, 29 CFR 1926.500 Subpart M, ASSP Z359.0, ASSP Z359.1, ASSP Z359.2, ASSP Z359.3, ASSP Z359.4, ASSP Z359.6, ASSP Z359.7, ASSP Z359.11, ASSP Z359.12, ASSP Z359.13, ASSP Z359.14, ASSP Z359.15, ASSP Z359.16 and ASSP Z359.18.

3.5.2.1 Additional Personal Fall Protection Measures

In addition to the required fall protection systems, other protective measures such as safety skiffs, personal floatation devices, and life rings, are required when working above or next to water in accordance with EM 385-1-1, Chapter 21. Personal fall protection systems and equipment are required when working from an articulating or extendible boom, swing stages, or suspended platform. In addition, personal fall protection systems are required when operating other equipment such as scissor lifts. The need for tying-off in such equipment is to prevent ejection of the employee from the equipment during raising, lowering, travel, or while performing work.

3.5.2.2 Personal Fall Protection Equipment

Only a full-body harness with a shock-absorbing lanyard or self-retracting lanyard is an acceptable personal fall arrest body support device. The use of body belts is not acceptable. Harnesses must have a fall arrest attachment affixed to the body support (usually a Dorsal D-ring) and specifically designated for attachment to the rest of the system. Snap hooks and carabineers must be self-closing and self-locking, capable of being opened only by at least two consecutive deliberate actions and have a minimum gate strength of 3,600 lbs in all directions. Use webbing, straps, and ropes made of synthetic fiber. The maximum free fall distance when using fall arrest equipment must not exceed 6 feet, unless the proper

energy absorbing lanyard is used. Always take into consideration the total fall distance and any swinging of the worker (pendulum-like motion), that can occur during a fall, when attaching a person to a fall arrest system. Equip all full body harnesses with Suspension Trauma Preventers such as stirrups, relief steps, or similar in order to provide short-term relief from the effects of orthostatic intolerance in accordance with EM 385-1-1, Chapter 21.

3.5.3 Fall Protection for Roofing Work

Implement fall protection controls based on the type of roof being constructed and work being performed. Evaluate the roof area to be accessed for its structural integrity including weight-bearing capabilities for the projected loading.

a. Low Sloped Roofs:

(1) For work within 6 feet from unprotected edge of a roof having a slope less than or equal to 4:12 (vertical to horizontal), protect personnel from falling by the use of conventional fall protection systems (personal fall arrest/restraint systems, guardrails, or safety nets) in accordance with EM 385-1-1, Chapter 21 and 29 CFR 1926.500. A safety monitoring system is not adequate fall protection and is not authorized.

(2) For work greater than 6 feet from the unprotected roof edge, addition to the use of conventional fall protection systems the use of a warning line system is also permitted, in accordance with 29 CFR 1926.500 and EM 385-1-1, Chapter 21.

b. Steep-Sloped Roofs: Work on a roof having a slope greater than 4:12 (vertical to horizontal) requires a personal fall arrest system, guardrails with toe-boards, or safety nets. This requirement also applies to residential or housing type construction.

3.5.4 Horizontal Lifelines (HLL)

Provide HLL in accordance with EM 385-1-1, Chapter 21. Commercially manufactured horizontal lifelines (HLL) must be designed, installed, certified and used, under the supervision of a qualified person, for fall protection as part of a complete fall arrest system which maintains a safety factor of 2 (29 CFR 1926.500). The competent person for fall protection may (if deemed appropriate by the qualified person) supervise the assembly, disassembly, use and inspection of the HLL system under the direction of the qualified person. Locally manufactured HLLs are not acceptable unless they are custom designed for limited or site specific applications by a Registered Professional Engineer who is qualified in designing HLL systems.

3.5.5 Guardrails and Safety Nets

Design, install and use guardrails and safety nets in accordance with EM 385-1-1, Chapter 21 and 29 CFR 1926 Subpart M.

3.5.6 Rescue and Evacuation Plan and Procedures

When personal fall arrest systems are used, ensure that the mishap victim can self-rescue or can be rescued promptly should a fall occur. Prepare a Rescue and Evacuation Plan and include a detailed discussion of the

following: methods of rescue; methods of self-rescue or assisted-rescue; equipment used; training requirement; specialized training for the rescuers; procedures for requesting rescue and medical assistance; and transportation routes to a medical facility. Include the Rescue and Evacuation Plan within the Activity Hazard Analysis (AHA) for the phase of work, in the Fall Protection and Prevention (FP&P) Plan, and the Accident Prevention Plan (APP). The plan must be in accordance with the requirements of EM 385-1-1, ASSP Z359.2, and ASSP Z359.4.

3.6 WORK PLATFORMS

3.6.1 Scaffolding

Provide employees with a safe means of access to the work area on the scaffold. Climbing of any scaffold braces or supports not specifically designed for access is prohibited. Comply with the following requirements:

- a. Scaffold platforms greater than 20 feet in height must be accessed by use of a scaffold stair system.
- b. Ladders commonly provided by scaffold system manufacturers are prohibited for accessing scaffold platforms greater than 20 feet maximum in height.
- c. An adequate gate is required.
- d. Employees performing scaffold erection and dismantling must be qualified.
- e. Scaffold must be capable of supporting at least four times the maximum intended load, and provide appropriate fall protection as delineated in the accepted fall protection and prevention plan.
- f. Stationary scaffolds must be attached to structural building components to safeguard against tipping forward or backward.
- g. Special care must be given to ensure scaffold systems are not overloaded.
- h. Side brackets used to extend scaffold platforms on self-supported scaffold systems for the storage of material are prohibited. The first tie-in must be at the height equal to 4 times the width of the smallest dimension of the scaffold base.
- i. Scaffolding other than suspended types must bear on base plates upon wood mudsills (2 in x 10 in x 8 in minimum) or other adequate firm foundation.
- j. Scaffold or work platform erectors must have fall protection during the erection and dismantling of scaffolding or work platforms that are more than 6 feet.
- k. Delineate fall protection requirements when working above 6 feet or above dangerous operations in the Fall Protection and Prevention (FP&P) Plan and Activity Hazard Analysis (AHA) for the phase of work.

3.6.2 Elevated Aerial Work Platforms (AWPs)

Workers must be anchored to the basket or bucket in accordance with

manufacturer's specifications and instructions (anchoring to the boom may only be used when allowed by the manufacturer and permitted by the CP). Lanyards used must be sufficiently short to prohibit worker from climbing out of basket. The climbing of rails is prohibited. Lanyards with built-in shock absorbers are acceptable. Self-retracting devices are not acceptable. Tying off to an adjacent pole or structure is not permitted unless a safe device for 100 percent tie-off is used for the transfer.

Use of AWP's must be operated, inspected, and maintained as specified in the operating manual for the equipment and delineated in the AHA. Operators of AWP's must be designated as qualified operators by the Prime Contractor. Maintain proof of qualifications on site for review and include in the AHA.

3.7 EQUIPMENT

3.7.1 Material Handling Equipment (MHE)

- a. Material handling equipment such as forklifts must not be modified with work platform attachments for supporting employees unless specifically delineated in the manufacturer's printed operating instructions. Material handling equipment fitted with personnel work platform attachments are prohibited from traveling or positioning while personnel are working on the platform.
- b. The use of hooks on equipment for lifting of material must be in accordance with manufacturer's printed instructions. Material Handling Equipment Operators must be trained in accordance with OSHA 29 CFR 1910, Subpart N.
- c. Operators of forklifts or power industrial trucks must be licensed in accordance with OSHA.

3.7.2 Load Handling Equipment (LHE)

The following requirements apply. In exception, these requirements do not apply to commercial truck mounted and articulating boom cranes used solely to deliver material and supplies (not prefabricated components, structural steel, or components of a systems-engineered metal building) where the lift consists of moving materials and supplies from a truck or trailer to the ground; to cranes installed on mechanics trucks that are used solely in the repair of shore-based equipment; to crane that enter the activity but are not used for lifting; nor to other machines not used to lift loads suspended by rigging equipment. However, LHE accidents occurring during such operations must be reported.

- a. Equip cranes and derricks as specified in EM 385-1-1, Chapter 16.
- b. Notify the Contracting Officer 15 working days in advance of any LHE entering the activity, in accordance with EM 385-1-1, Chapter 21, so that necessary quality assurance spot checks can be coordinated. Contractor's operator must remain with the crane during the spot check. Rigging gear must be in accordance with OSHA, ASME B30.9 Standards safety standards.
- c. Comply with the LHE manufacturer's specifications and limitations for erection and operation of cranes and hoists used in support of the work. Perform erection under the supervision of a designated person (as defined in ASME B30.5). Perform all testing in accordance with the manufacturer's recommended procedures.

- d. Comply with ASME B30.5 for mobile and locomotive cranes, ASME B30.22 for articulating boom cranes, ASME B30.3 for construction tower cranes, ASME B30.8 for floating cranes and floating derricks, ASME B30.9 for slings, ASME B30.20 for below the hook lifting devices and ASME B30.26 for rigging hardware.
- e. When operating in the vicinity of overhead transmission lines, operators and riggers must be alert to this special hazard and follow the requirements of EM 385-1-1 Chapter 11, and ASME B30.5 or ASME B30.22 as applicable.
- f. Do not use crane suspended personnel work platforms (baskets) unless the Contractor proves that using any other access to the work location would provide a greater hazard to the workers or is impossible. Do not lift personnel with a line hoist or friction crane. Additionally, submit a specific AHA for this work to the Contracting Officer. Ensure the activity and AHA are thoroughly reviewed by all involved personnel.
- g. Inspect, maintain, and recharge portable fire extinguishers as specified in NFPA 10, Standard for Portable Fire Extinguishers.
- h. All employees must keep clear of loads about to be lifted and of suspended loads, except for employees required to handle the load.
- i. Use cribbing when performing lifts on outriggers.
- j. The crane hook/block must be positioned directly over the load. Side loading of the crane is prohibited.
- k. A physical barricade must be positioned to prevent personnel access where accessible areas of the LHE's rotating superstructure poses a risk of striking, pinching or crushing personnel.
- l. Maintain inspection records in accordance by EM 385-1-1, Chapter 16, including shift, monthly, and annual inspections, the signature of the person performing the inspection, and the serial number or other identifier of the LHE that was inspected. Records must be available for review by the Contracting Officer.
- m. Maintain written reports of operational and load testing in accordance with EM 385-1-1, Chapter 16, listing the load test procedures used along with any repairs or alterations performed on the LHE. Reports must be available for review by the Contracting Officer.
- n. Certify that all LHE operators have been trained in proper use of all safety devices (e.g. anti-two block devices).
- o. Take steps to ensure that wind speed does not contribute to loss of control of the load during lifting operations. At wind speeds greater than 20 mph, the operator, rigger and lift supervisor must cease all crane operations, evaluate conditions and determine if the lift may proceed. Base the determination to proceed or not on wind calculations per the manufacturer and a reduction in LHE rated capacity if applicable. Include this maximum wind speed determination as part of the activity hazard analysis plan for that operation.
- q. Follow FAA guidelines when required based on project location.

3.7.3 Machinery and Mechanized Equipment

- a. Proof of qualifications for operator must be kept on the project site for review.
- b. Manufacture specifications or owner's manual for the equipment must be on-site and reviewed for additional safety precautions or requirements that are sometimes not identified by OSHA or USACE EM 385-1-1. Incorporate such additional safety precautions or requirements into the AHAs.

3.7.4 Base Mounted Drum Hoists

- a. Operation of base mounted drum hoists must be in accordance with EM 385-1-1 and ASSP A10.22.
- b. Rigging gear must be in accordance with applicable ASME/OSHA standards.
- c. When used on telecommunication towers, base mounted drum hoists must be in accordance with TIA-1019, TIA-222, ASME B30.7, 29 CFR 1926.552, and 29 CFR 1926.553.
- d. When used to hoist personnel, the AHA must include a written standard operating procedure. Operators must have a physical examination in accordance with EM 385-1-1 paragraph 16-3.f and trained, at a minimum, in accordance with EM 385-1-1 paragraph 16-8.hh and 16-1.b. The base mounted drum hoist must also comply with OSHA Instruction CPL 02-01-056 and ASME B30.23.
- e. Material and personnel must not be hoisted simultaneously.
- f. Personnel cage must be marked with the capacity (in number of persons) and load limit in pounds.
- g. Construction equipment must not be used for hoisting material or personnel or with trolley/tag lines. Construction equipment may be used for towing and assisting with anchoring guy lines.

3.7.5 Use of Explosives

Explosives must not be used or brought to the project site without prior written approval from the Contracting Officer. Such approval does not relieve the Contractor of responsibility for injury to persons or for damage to property due to blasting operations.

Storage of explosives, when permitted on Government property, must be only where directed and in approved storage facilities. These facilities must be kept locked at all times except for inspection, delivery, and withdrawal of explosives.

3.8 EXCAVATIONS

Soil classification must be performed by a competent person in accordance with 29 CFR 1926 and EM 385-1-1.

3.8.1 Utility Locations

Provide a third party, independent, private utility locating company to positively identify underground utilities in the work area in addition to

any station locating service and coordinated with the station utility department.

3.8.2 Utility Location Verification

Physically verify underground utility locations, including utility depth, by hand digging using wood or fiberglass handled tools when any adjacent construction work is expected to come within 3 feet of the underground system.

3.8.3 Utilities Within and Under Concrete, Bituminous Asphalt, and Other Impervious Surfaces

Utilities located within and under concrete slabs or pier structures, bridges, parking areas, and the like, are extremely difficult to identify. Whenever Contract work involves chipping, saw cutting, or core drilling through concrete, bituminous asphalt or other impervious surfaces, the existing utility location must be coordinated with station utility departments in addition to location and depth verification by a third party, independent, private locating company. The third party, independent, private locating company must locate utility depth by use of Ground Penetrating Radar (GPR), X-ray, bore scope, or ultrasound prior to the start of demolition and construction. Outages to isolate utility systems must be used in circumstances where utilities are unable to be positively identified. The use of historical drawings does not alleviate the Contractor from meeting this requirement.

3.9 ELECTRICAL

Perform electrical work in accordance with EM 385-1-1, Chapters 11 and 12.

3.9.1 Conduct of Electrical Work

As delineated in EM 385-1-1, electrical work is to be conducted in a de-energized state unless there is no alternative method for accomplishing the work. In those cases obtain an energized work permit from the Contracting Officer. The energized work permit application must be accompanied by the AHA and a summary of why the equipment/circuit needs to be worked energized. Underground electrical spaces must be certified safe for entry before entering to conduct work. Cables that will be cut must be positively identified and de-energized prior to performing each cut. Attach temporary grounds in accordance with ASTM F855 and IEEE 1048. Perform all high voltage cable cutting remotely using hydraulic cutting tool. When racking in or live switching of circuit breakers, no additional person other than the switch operator is allowed in the space during the actual operation. Plan so that work near energized parts is minimized to the fullest extent possible. Use of electrical outages clear of any energized electrical sources is the preferred method.

When working in energized substations, only qualified electrical workers are permitted to enter. When work requires work near energized circuits as defined by NFPA 70, high voltage personnel must use personal protective equipment that includes, as a minimum, electrical hard hat, safety shoes, insulating gloves and electrical arc flash protection for personnel as required by NFPA 70E. Insulating blankets, hearing protection, and switching suits may also be required, depending on the specific job and as delineated in the Contractor's AHA. Ensure that each employee is familiar with and complies with these procedures and 29 CFR 1910.147.

3.9.2 Qualifications

Electrical work must be performed by QP with verifiable credentials who are familiar with applicable code requirements. Verifiable credentials consist of State, National and Local Certifications or Licenses that a Master or Journeyman Electrician may hold, depending on work being performed, and must be identified in the appropriate AHA. Journeyman/Apprentice ratio must be in accordance with State, Local requirements applicable to where work is being performed.

3.9.3 Arc Flash

Conduct a hazard analysis/arc flash hazard analysis whenever work on or near energized parts greater than 50 volts is necessary, in accordance with NFPA 70E.

All personnel entering the identified arc flash protection boundary must be QPs and properly trained in NFPA 70E requirements and procedures. Unless permitted by NFPA 70E, no Unqualified Person is permitted to approach nearer than the Limited Approach Boundary of energized conductors and circuit parts. Training must be administered by an electrically qualified source and documented.

3.9.4 Grounding

Ground electrical circuits, equipment and enclosures in accordance with NFPA 70 and IEEE C2 to provide a permanent, continuous and effective path to ground unless otherwise noted by EM 385-1-1.

Check grounding circuits to ensure that the circuit between the ground and a grounded power conductor has a resistance low enough to permit sufficient current flow to allow the fuse or circuit breaker to interrupt the current.

3.9.5 Testing

Temporary electrical distribution systems and devices must be inspected, tested and found acceptable for Ground-Fault Circuit Interrupter (GFCI) protection, polarity, ground continuity, and ground resistance before initial use, before use after modification and at least monthly. Monthly inspections and tests must be maintained for each temporary electrical distribution system, and signed by the electrical CP or QP.

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SOURCES FOR REFERENCE PUBLICATIONS

05/24

PART 1 GENERAL

1.1 REFERENCES

Various publications are referenced in other sections of the specifications to establish requirements for the work. These references are identified in each section by document number, date and title. The document number used in the citation is the number assigned by the standards producing organization (e.g., ASTM B564 Standard Specification for Nickel Alloy Forgings). However, when the standards producing organization has not assigned a number to a document, an identifying number has been assigned for reference purposes.

1.2 ORDERING INFORMATION

The addresses of the standards publishing organizations whose documents are referenced in other sections of these specifications are listed below, and if the source of the publications is different from the address of the sponsoring organization, that information is also provided.

AACE INTERNATIONAL (AACE)
726 East Park Avenue #180
Fairmont, WV 26554 USA
Ph: 304-296-8444
Fax: 304-291-5728
Internet: <https://web.aacei.org/>

AMERICAN SOCIETY OF CIVIL ENGINEERS (ASCE)
1801 Alexander Bell Drive
Reston, VA 20191
Ph: 800-548-2723; 703-295-6300
Email: customercare@asce.org
Internet: <https://www.asce.org/>

AMERICAN SOCIETY OF MECHANICAL ENGINEERS (ASME)
Two Park Avenue
New York, NY 10016-5990
Ph: 800-843-2763
Fax: 973-882-1717
E-mail: customercare@asme.org
Internet: <https://www.asme.org/>

AMERICAN SOCIETY OF SAFETY PROFESSIONALS (ASSP)
520 N. Northwest Highway
Park Ridge, IL 60068
Ph: 847-699-2929
E-mail: customerservice@assp.org
Internet: <https://www.assp.org/>

ASTM INTERNATIONAL (ASTM)
100 Barr Harbor Drive, P.O. Box C700
West Conshohocken, PA 19428-2959

Ph: 610-832-9500
Fax: 610-832-9555
E-mail: service@astm.org
Internet: <https://www.astm.org/>

INSTITUTE OF ELECTRICAL AND ELECTRONICS ENGINEERS (IEEE)
445 and 501 Hoes Lane
Piscataway, NJ 08854-4141
Ph: 732-981-0060 or 800-701-4333
Fax: 732-981-9667
E-mail: onlinesupport@ieee.org
Internet: <https://www.ieee.org/>

NATIONAL FIRE PROTECTION ASSOCIATION (NFPA)
1 Batterymarch Park
Quincy, MA 02169-7471
Ph: 800-344-3555
Fax: 800-593-6372
Internet: <https://www.nfpa.org>

TELECOMMUNICATIONS INDUSTRY ASSOCIATION (TIA)
1320 North Courthouse Road, Suite 200
Arlington, VA 22201
Ph: 703-907-7700
Fax: 703-907-7727
E-mail: marketing@tiaonline.org
Internet: <https://www.tiaonline.org/>

U.S. ARMY CORPS OF ENGINEERS (USACE)
CRD-C DOCUMENTS available on Internet:
<http://www.wbdg.org/ffc/army-coe/standards>
Order Other Documents from:
Official Publications of the Headquarters, USACE
E-mail: hqpublications@usace.army.mil
Internet: <http://www.publications.usace.army.mil/>
or
<https://www.hnc.usace.army.mil/Missions/Engineering-Directorate/TECHINFO/>

U.S. NATIONAL ARCHIVES AND RECORDS ADMINISTRATION (NARA)
8601 Adelphi Road
College Park, MD 20740-6001
Ph: 866-272-6272
Internet: <https://www.archives.gov/>
Order documents from:
Superintendent of Documents
U.S. Government Publishing Office (GPO)
732 N. Capitol Street, NW
Washington, DC 20401
Ph: 202-512-1800 or 866-512-1800
Bookstore: 202-512-0132
Internet: <https://www.gpo.gov/>

PART 2 PRODUCTS

Not used

PART 3 EXECUTION

Not used

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QUALITY CONTROL
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PART 1 GENERAL

1.1 REFERENCES

The publications listed below form a part of this specification to the extent referenced. The publications are referred to in the text by the basic designation only.

ASTM INTERNATIONAL (ASTM)

ASTM D3740 (2019) Minimum Requirements for Agencies Engaged in the Testing and/or Inspection of Soil and Rock as Used in Engineering Design and Construction

ASTM E329 (2023) Standard Specification for Agencies Engaged in Construction Inspection, Testing, or Special Inspection

U.S. ARMY CORPS OF ENGINEERS (USACE)

EM 385-1-1 (2024) Safety -- Safety and Occupational Health (SOH) Requirements

1.2 PAYMENT

Separate payment will not be made for providing and maintaining an effective Quality Control program. Include all associated costs in the applicable Schedule item.

1.3 SUBMITTALS

Government approval is required for submittals with a "G" classification. Submittals not having a "G" classification are for information only. Submit the following in accordance with Section 01 33 00 SUBMITTAL PROCEDURES.

SD-01 Preconstruction Submittals

Contractor Quality Control (CQC) Plan; G

1.4 GENERAL REQUIREMENTS

Establish and maintain an effective quality control (QC) system that complies with FAR 52.246-12 Inspection of Construction. QC is comprised of plans, procedures, and organization necessary to produce an end product that complies with the Contract requirements. The QC system covers all construction operations, both onsite and offsite, and must be keyed to the proposed construction sequence. The Quality Control Manager, Superintendent, Site Safety and Health Officer (SSHO), and all on-site supervisors are responsible for the quality of work and are subject to removal by the Contracting Officer for non-compliance with the quality

requirements specified in the Contract. The Quality Control Manager must maintain a physical presence at the work site at all times and is the primary individual responsible for all quality control.

1.5 QUALITY CONTROL (QC) PROGRAM REQUIREMENTS

Establish and maintain a QC program as described in this section. The QC program consists of a QC Organization, QC Plan, QC Plan Meeting(s), a Coordination and Mutual Understanding Meeting, QC meetings, three phases of control, submittal review and approval, testing, completion inspections, QC certifications, and documentation necessary to provide materials, equipment, workmanship, fabrication, construction and operations that comply with the requirements of this Contract. The QC program must cover on-site and off-site work and be keyed to the work sequence. No construction work or testing may be performed unless the QC Manager is on the work site. The QC Manager must report to an officer of the firm and not be subordinate to the Project Superintendent or the Project Manager. The QC Manager, Project Superintendent and Project Manager must work together effectively. Although the QC Manager is the primary individual responsible for quality control, all individuals will be held responsible for the quality of work on the job.

1.5.1 Meetings

1.5.1.1 Quality Control Plan Meeting

Prior to submission of the QC Plan, the Contractor may request a meeting with the Contracting Officer to discuss the QC Plan requirements of this Contract.

The purpose of this meeting is to develop a mutual understanding of the QC Plan requirements prior to plan development and submission and to agree on the Contractor's list of Definable Feature of Work (DFOW).

1.5.1.2 Coordination and Mutual Understanding Meeting

After the before start of construction, and prior to acceptance by the Government of the CQC Plan, meet with the Contracting Officer and discuss the Contractor's quality control system. During the meeting, a mutual understanding of the system details must be developed, including the forms for recording the CQC operations, control activities, testing, administration of the system for both onsite and offsite work, and the interrelationship of Contractor's Management and control with the Government's Quality Assurance. Minutes of the meeting will be prepared by the QC Manager and signed by the Contractor and the Government. Provide a copy of the signed minutes to all attendees[and include in the QC Plan]. At a minimum the Coordination and Mutual Understanding Meeting must be repeated when a new QC Manager is appointed. There can be other occasions when subsequent conferences will be called by either party to reconfirm mutual understandings or address deficiencies in the CQC system or procedures which can require corrective action by the Contractor.

1.5.1.2.1 Purpose

The purpose of this meeting is to develop a mutual understanding of the QC details, including documentation, administration for on-site and off-site work, design intent, environmental requirements and procedures, coordination of activities to be performed, and the coordination of the Contractor's management, production, and QC personnel. At the meeting, the

Contractor must explain in detail how three phases of control will be implemented for each DFOW, as well as how each DFOW will be affected by each management plan or requirement as listed below:

- a. Waste Management Plan.
- b. Procedures for noise and acoustics management.
- c. Environmental Protection Plan.
- d. Environmental regulatory requirements.

1.5.1.2.2 Coordination of Activities

Coordinate activities included in various sections to assure efficient and orderly installation of each component. Coordinate operations included under different sections that are dependent on each other for proper installation and operation.

1.5.1.2.3 Attendees

As a minimum, the Contractor's personnel required to attend include an officer of the firm, the Project Manager, Project Superintendent, QC Manager, Alternate QC Manager, Environmental Manager, and subcontractor representatives. Each subcontractor who will be assigned QC responsibilities must have a principal of the firm at the meeting.

1.5.1.3 Quality Control (QC) Meetings

After the start of construction, conduct weekly QC meetings led by the QC Manager at the work site with the Project Superintendent, and the other personnel as necessary. The QC Manager is to prepare the minutes of the meeting and provide a copy to the Contracting Officer within 2 working days after the meeting. The Contracting Officer may attend these meetings. As a minimum, accomplish the following at each meeting:

- a. Review the minutes of the previous meeting.
- b. Review the schedule and the status of work and deficiencies/rework. Review the most current approved schedule (in accordance with schedule specification) and the status of work and deficiencies/rework.
- c. Review the status of submittals and Request For Information (RFIs).
- d. Review the work to be accomplished in the next 3 weeks as defined by the schedule section paragraph WEEKLY PROGRESS MEETINGS in Section 01 32 01.00 10 PROJECT SCHEDULE and all documentation required for that work.
- e. Review Testing Plan and Log including status of tests performed since last QC Meeting.
- f. Resolve QC and production problems. Discuss status of pending change orders.
- g. Address items that may require revising the QC Plan.
- h. Review Accident Prevention Plan (APP) and effectiveness of the safety program.

- i. Review environmental requirements and procedures.
- j. Review Environmental Management Plan.
- k. Review Waste Management Plan.
- l. Review the status of training completion.

1.5.2 Contractor Quality Control (CQC) Plan

Submit no later than 7 days prior to the Preconstruction Conference, the CQC Plan proposed to implement the requirements FAR 52.246-12 Inspection of Construction. Construction will be permitted to begin only after acceptance of the CQC Plan and other Contract requirements or acceptance of an interim plan applicable to the particular feature of work to be started. Work outside of the accepted interim plan will not be permitted to begin until acceptance of a CQC Plan or another interim plan containing the additional work.

1.5.2.1 Content of Contractor Quality Control (CQC) Plan

Provide a CQC Plan, prior to start of construction that includes a table of contents, with major sections identified, pages numbered sequentially, and that documents the proposed methods and responsibilities for accomplishing quality control during the construction of the project. The CQC Plan must at a minimum include the following sections:

- a. A description of the quality control organization and acknowledgment that the CQC staff will implement the three phase control system for all aspects of the work specified.
- b. An organizational chart showing the quality control organization with individual names and job titles and lines of authority up to an executive of the company at the home office.
- c. NAMES AND QUALIFICATIONS: Names and qualifications, in resume format, (including position titles and durations for qualifying experiences) for each person in the QC organization. Include the Construction Quality Management (CQM) for Contractors course certifications for the QC personnel as required by the paragraph CONSTRUCTION QUALITY MANAGEMENT TRAINING.
- d. DUTIES, RESPONSIBILITY AND AUTHORITY OF QC PERSONNEL: Duties, responsibilities, and authorities of each person in the QC organization.
- e. OUTSIDE ORGANIZATIONS: A listing of outside organizations, such as architectural and consulting engineering firms, that will be employed by the Contractor and a description of the services these firms will provide.
- f. APPOINTMENT LETTERS: Letters signed by an officer of the firm appointing the QC Manager and Alternate QC Manager, and stating that they are responsible for implementing and managing the QC program as described in this Contract. Include in this letter the responsibility of the QC Manager and Alternate QC Manager to implement and manage the three phases of control, and their authority to stop work that is not in compliance with the Contract. Letters of direction are to be issued by the QC Manager to all other QC Specialists or quality control

representatives outlining their duties, authorities, and responsibilities. Include copies of the letters in the QC Plan.

- g. SUBMITTAL PROCEDURES AND INITIAL SUBMITTAL REGISTER: Procedures for reviewing, approving, scheduling, and managing submittals, including those of subcontractors, offsite fabricators, suppliers, and purchasing agents. Provide the name(s) of the person(s) in the QC organization authorized to review and certify submittals prior to approval. Provide the initial submittal of the Submittal Register as specified in Section 01 33 00 SUBMITTAL PROCEDURES.
- h. TESTING LABORATORY INFORMATION: Testing laboratory information required by the paragraph ACCREDITATION REQUIREMENTS, as applicable.
- i. TESTING PLAN AND LOG: A Testing Plan and Log that includes the tests required, associated feature of work required, referenced by the specification paragraph number requiring the test, the frequency, and the person responsible for each test.
- j. Procedures to complete construction deficiencies from identification through acceptable corrective action. Establish verification procedures that identified deficiencies have been corrected. This phase is performed prior to beginning work on each definable feature of work, after all required plans, documents, materials are approved, and after copies are at the work site.
- k. Reporting procedures, including proposed reporting formats.
- l. Procedures for submitting and reviewing design changes/variations prior to submission to the Contracting Officer.
- m. LIST OF DEFINABLE FEATURES: A Definable Feature of Work (DFOW) is a task that is separate and distinct from other tasks and has control requirements and work crews unique to that task. A DFOW is identified by different trades or disciplines, or it is work by the same trade in a different environment. A DFOW is by definition any item or activity on the construction schedule, and the schedule specification provides direction regarding how the DFOWs are to be structured. Include in the list of DFOWs for all activities on the Construction Schedule. Although each section of the specifications can generally be considered as a definable feature of work, there are frequently more than one definable features under a particular section. Identify the specification section number and schedule activity ID for each DFOW listed. The DFOW list will be reviewed in coordination with the construction schedule and agreed upon during the Coordination of Mutual Understanding Meeting.
- n. PROCEDURES FOR PERFORMING AND TRACKING THE THREE PHASES OF CONTROL: Identify procedures used to ensure the three phases of control to manage the quality on this project. For each Definable Feature of Work (DFOW), a Preparatory and Initial phase checklist will be filled out during the Preparatory and Initial phase meetings. Conduct the Preparatory and Initial Phases and meetings with a view towards obtaining quality construction by planning ahead and identifying potential problems for each DFOW.
- o. PROCEDURES FOR COMPLETION INSPECTION: Procedures for identifying and documenting the completion inspection process. Include in these procedures the responsible party for punch out inspection, pre-final

inspection, and final acceptance inspection.

- p. TRAINING PROCEDURES AND TRAINING LOG: Procedures for coordinating and documenting the training of personnel required by the Contract.
- q. ORGANIZATION AND PERSONNEL CERTIFICATIONS LOG: Procedures for coordinating, tracking and documenting all certifications required for entities such as subcontractors, testing laboratories, suppliers, and personnel. The QC Manager will ensure that certifications are current, appropriate for the work being performed, and will not lapse during any period of the Contract that the work is being performed.

1.5.3 Acceptance of the Quality Control (QC) Plan

The Contracting Officer's acceptance of the Contractor QC Plan is required prior to the start of construction. The Contracting Officer reserves the right to require changes in the QC Plan and operations as necessary, including removal or addition of personnel, to ensure the specified quality of work. The Contracting Officer reserves the right to interview any member of the QC organization at any time to verify the submitted qualifications. All QC organization personnel are subject to acceptance by the Contracting Officer. The Contracting Officer may require the removal of any individual for non-compliance with quality requirements specified in the Contract.

1.5.4 Notification of Changes

Notify the Contracting Officer, in writing, of any proposed changes in the QC Plan or changes to the QC organization personnel. Proposed changes are subject to acceptance by the Contracting Officer.

1.6 QUALITY CONTROL (QC) ORGANIZATION

1.6.1 Personnel Requirements

The requirements for the CQC organization are a Site Safety and Health Officer (SSHO), QC Manager, a Design Quality Manager, and enough qualified personnel to ensure safety and Contract compliance. The SSHO reports directly to a senior project (or corporate) official independent from the QC Manager. The SSHO will also serve as a member of the CQC Staff. Personnel identified in the technical provisions as requiring specialized skills to assure the required work is being performed properly. The CQC staff always maintains a presence at the site during progress of the work and have complete authority and responsibility to take any action necessary to ensure Contract compliance. The CQC staff will be subject to acceptance by the Contracting Officer. Provide adequate office space, filing systems and other resources as necessary to maintain an effective and fully functional CQC organization. Promptly complete and furnish all letters, material submittals, shop drawing submittals, schedules, and all other project documentation to the CQC organization. The CQC organization is responsible for always maintaining these documents and records at the site, except as otherwise acceptable to the Contracting Officer.

1.6.2 Quality Control (QC) Manager

1.6.2.1 Duties

Provide a QC Manager at the work site to implement and manage the QC program. The QC Manager must be employed by the Prime Contractor. The only

duties and responsibilities of the QC Manager are to manage and implement the QC program on this Contract. The QC Manager must attend the partnering meetings, QC Plan Meetings, Coordination and Mutual Understanding Meeting, conduct the QC meetings, perform the three phases of control, perform submittal review and approval, ensure testing is performed and provide QC certifications and documentation required in this Contract. The QC Manager is responsible for managing and coordinating the three phases of control and documentation performed by testing laboratory personnel and any other inspection and testing personnel required by this Contract. The QC Manager is the manager of all QC activities.

1.6.2.2 Qualifications

The QC Manager must be an individual with a minimum of 5 years combined experience in the following positions: Project Superintendent, QC Manager, Project Manager, Project Engineer or Construction Manager on similar size and type construction contracts which included the major trades that are part of this Contract. The individual must have at least 2 years experience as a QC Manager. The individual must be familiar with the requirements of EM 385-1-1 and have experience in the areas of hazard identification, safety compliance, and sustainability.

The QC Manager and all members of the QC organization must be capable of reading, writing, and conversing fluently in the English language.

1.6.2.3 Construction Quality Management Training

In addition to the above experience and education requirements, the QC Manager and all members of the QC team must have completed the CQM for Contractors course. If the QC Manager does not have a current certification, obtain the CQM for Contractors course certification within 90 days of award. This course is periodically offered by the Naval Facilities Engineering Systems Command and the Army Corps of Engineers. Contact the Contracting Officer for information on the next scheduled class.

The Construction Quality Management Training certificate expires after 5 years. If the QC Manager's certificate has expired, retake the course to remain current.

1.6.3 Organizational Changes

Maintain the QC staff with personnel as required by the specification section at all times. When it is necessary to make changes to the QC staff, revise the CQC Plan to reflect the changes and submit the changes to the Contracting Officer for acceptance.

1.6.4 Alternate Quality Control (QC) Manager Duties and Qualifications

Designate an alternate for the QC Manager at the work site to serve in the event of the designated QC Manager's absence. The qualification requirements for the Alternate QC Manager must be the same as for the QC Manager.

1.7 SUBMITTAL AND DELIVERABLES REVIEW AND APPROVAL

Procedures for submission, review and approval of submittals are described in Section 01 33 00 SUBMITTAL PROCEDURES. Procedures must include field verification of relevant dimensions and component characteristics by the QC organization prior to submittal being sent to the Contracting Officer. The

CQC organization is responsible for certifying that all submittals and deliverables are in compliance with the Contract.

1.8 THREE PHASES OF CONTROL

CQC enables the Contractor to ensure that the construction, including that of subcontractors and suppliers, complies with the requirements of the Contract. At least three phases of control must be conducted by the QC Manager to adequately cover both on-site and off-site work for each definable feature of the construction work as follows:

1.8.1 Preparatory Phase

Document the results of the preparatory phase actions by separate minutes prepared by the QC Manager and attach to the daily CQC report. Instruct applicable workers as to the acceptable level of workmanship required to meet Contract specifications.

Notify the Contracting Officer at least 2 business days in advance of each preparatory phase meeting. The meeting will be conducted by the QC Manager and attended by the Project Superintendent, and the foreman responsible for the DFOW. When the DFOW will be accomplished by a subcontractor, that subcontractor's foreman must attend the preparatory phase meeting. This phase is performed prior to beginning work on each definable feature of work, after all required plans/documents/materials are approved/accepted, and after copies are at the work site. Perform the following prior to beginning work on each DFOW:

- a. Review each paragraph of the applicable specification sections, reference codes, and standards. Make available during the preparatory inspection a copy of those sections of referenced codes and standards applicable to that portion of the work to be accomplished in the field. Maintain and make available in the field for use by Government personnel until final acceptance of the work.
- b. Review the Contract drawings.
- c. Verify that field measurements are as indicated on construction or shop drawings or both before confirming product orders, to minimize waste due to excessive materials.
- d. Verify that appropriate shop drawings and submittals for materials and equipment have been submitted and approved. Verify receipt of approved factory test results, when required.
- e. Review the testing plan and ensure that provisions have been made to provide the required QC testing.
- f. Examine the work area to ensure that the required preliminary work has been completed and complies with the Contract and ensure any deficiencies/rework items in the preliminary work have been corrected and confirmed by the Contracting Officer.
- g. Review coordination of product/material delivery to designated prepared areas to execute the work.
- h. Examine the required materials, equipment and sample work to ensure that they are on hand and conform to the approved shop drawings and submitted data and are properly stored.

- i. Check to assure that all materials and equipment have been tested, submitted, and approved.
- j. Discuss specific controls to be used, construction methods, construction tolerances, workmanship standards, and the approach that will be used to provide quality construction by planning ahead and identifying potential problems for each DFOW. Ensure any portion of the plan requiring separate Contracting Officer acceptance has been approved.
- k. Review the APP and appropriate Activity Hazard Analysis (AHA) to ensure that applicable safety requirements are met, and that required Safety Data Sheets (SDS) are submitted.

1.8.2 Initial Phase

Notify the Contracting Officer at least 2 business days in advance of each initial phase. When construction crews are ready to start work on a DFOW, conduct the initial phase with the Project Superintendent, and the foreman responsible for that DFOW. Observe the initial segment of the DFOW to ensure that the work complies with Contract requirements. Document the results of the initial phase in the Initial Phase Checklist. Repeat the initial phase for each new crew to work on-site when acceptable levels of specified quality are not being met. Indicate the exact location of initial phase for definable feature of work for future reference and comparison with follow-up phases. Perform the following for each DFOW:

- a. Check work to ensure that it is in full compliance with Contract requirements. Review minutes of the preparatory meeting.
- b. Verify adequacy of controls to ensure full Contract compliance. Verify required control inspection and testing comply with the Contract.
- c. Establish level of workmanship and verify that it meets the minimum acceptable workmanship standards. Compare with required sample panels as appropriate.
- d. Resolve any workmanship issues.
- e. Ensure that testing is performed by the approved laboratory.
- f. Check work procedures for compliance with the APP and the appropriate AHA to ensure that applicable safety requirements are met.
- g. Review project specific work plans (i.e., HAZMAT Abatement, Stormwater Management) to ensure all preparatory work items have been completed and documented.

1.8.3 Follow-Up Phase

Perform the following for on-going DFOW daily, or more frequently as necessary, until the completion of each DFOW. The Final Follow-Up for any DFOW will clearly note in the daily report the DFOW is completed, and all deficiencies/rework items have been completed in accordance with the paragraph DEFICIENCY/REWORK ITEMS LIST. Each DFOW that has completed the Initial Phase and has not completed the Final Follow-up must be included on each daily report. If no work was performed on that DFOW for the period of that daily report, it must be so noted. Document all Follow-Up activities

for DFOWs in the daily CQC Report:

- a. Ensure the work including control testing complies with Contract requirements until completion of that particular work feature. Record checks in the CQC documentation.
- b. Maintain the quality of workmanship required.
- c. Ensure that testing is performed by the approved laboratory.
- d. Ensure that deficiencies/rework items are being corrected. Conduct final follow-up checks and correct all deficiencies prior to the start of additional features of work which may be affected by the deficient work.
- e. Do not build upon nor conceal non-conforming work.
- f. Assure manufacturers' representatives have performed necessary inspections if required and perform safety inspections.

1.8.4 Additional Preparatory and Initial Phases

Conduct additional preparatory and initial phases on the same DFOW if the quality of on-going work is unacceptable, if there are changes in the applicable QC organization, if there are changes in the on-site production supervision or work crew, if work on a DFOW has not started within 45 days of the initial preparatory meeting or has resumed after 45 days of inactivity, or if other problems develop.

1.8.5 Notification of Three Phases of Control for Off-Site Work

Notify the Contracting Officer at least 2 weeks prior to the start of the preparatory and initial phases.

1.8.6 Deficiency/Rework Items List

The QC Manager must maintain a list of work that does not comply with the Contract, identifying what items need to be corrected, the activity ID number associated with the item, the date the item was originally discovered, the date the item will be corrected by, and the date the item was corrected.

The QC Manager reviews the list at each weekly QC Meeting:

- a. There is no requirement to report a deficiency/rework item that is corrected the same day it is discovered.
- b. No successor task may be advanced beyond the preparatory phase meeting until all deficiencies/rework items have been cleared by the QC Manager and concurred with by the Contracting Officer. This must be confirmed as part of the Preparatory Phase activities.
- c. Attach a copy of the "Deficiency/Rework Items List" to the last daily CQC Report of each month.
- d. The Contractor is responsible for including those items identified by the Contracting Officer.
- e. All deficiencies/rework items must be confirmed as corrected by the QC

Manager, and concurred by the Contracting Officer, prior to commencement of any completion inspections per paragraph COMPLETION INSPECTIONS unless specifically exempted by the Contracting Officer.

- f. Non-Compliance with these requirements is grounds for removal in accordance with paragraph ACCEPTANCE OF THE QUALITY CONTROL (QC) PLAN.
- g. All delays, concurrent or related to failure to manage, monitor, control, and correct deficiencies/rework items are entirely the responsibility of the Contractor and can not be made the subject, or any component of any request for additional time or compensation.

1.9 TESTING

Perform specified or required tests to verify that control measures are adequate to provide a product which conforms to Contract requirements. Upon request, furnish to the Government duplicate samples of test specimens for possible testing by the Government. Testing includes operation and acceptance tests when specified. Procure the services of an U.S. Army Corps of Engineers approved testing laboratory or establish an approved testing laboratory at or near the project site. Perform the following activities and record and provide the following data:

- a. Verify that testing procedures comply with Contract requirements.
- b. Verify that facilities and testing equipment are available and comply with testing standards.
- c. Check test instrument calibration data against certified standards.
- d. Verify that recording forms and test identification control number system, including all test documentation requirements, have been prepared.
- e. Record results of all tests taken, both passing and failing on the CQC report for the date taken. Specification paragraph reference, location where tests were taken, and the sequential control number identifying the test. If approved by the Contracting Officer, actual test reports are submitted later with a reference to the test number and date taken. Provide an information copy of tests performed by an offsite or commercial test facility directly to the Contracting Officer. Failure to submit timely test reports as stated results in nonpayment for related work performed and disapproval of the test facility for this Contract.

1.9.1 Laboratory Accreditation Authorities

All testing laboratories must be validated by the USACE Material Testing Center (MTC) for the tests to be performed. Information on the USACE MTC with web-links to both a list of validated testing laboratories and for the laboratory inspection request for can be found at:
<https://mtc.erdcdren.mil>

1.9.2 Capability Check

The Contracting Officer retains the right to check laboratory equipment in the proposed laboratory and the laboratory technician's testing procedures, techniques, and other items pertinent to testing, for compliance with the standards set forth in this Contract. Laboratories utilized for testing

soils, concrete, asphalt, and steel must meet criteria detailed in ASTM D3740 and ASTM E329.

1.9.2.1 Onsite Laboratory

The Government reserves the right to utilize the Contractor's control testing laboratory and equipment to make assurance tests, and to check the Contractor's testing procedures, techniques, and test results at no additional cost to the Government.

1.9.3 Test Results

Cite applicable Contract requirements, tests or analytical procedures used. Provide actual results and include a statement that the item tested or analyzed conforms or fails to conform to specified requirements. If the item fails to conform, notify the Contracting Officer immediately. Conspicuously stamp the cover sheet for each report in large red letters "CONFORMS" or "DOES NOT CONFORM" to the specification requirements, whichever is applicable. Test results must be signed by a testing laboratory representative authorized to sign certified test reports. Furnish the signed reports, certifications, and other documentation to the Contracting Officer via the QC Manager.

1.10 COMPLETION INSPECTIONS

1.10.1 Punch-Out Inspection

Near the completion of all work or any increment thereof, established by a completion time stated in the Contract Clause entitled "Commencement, Prosecution, and Completion of Work," or stated elsewhere in the specifications, the QC Manager must conduct an inspection of the work and develop a "punch list" of items which do not conform to the approved drawings, specifications, and Contract. Include in the punch list any remaining items on the "Deficiency/Rework Items List", that were not corrected prior to the Punch-Out Inspection as approved by the Contracting Officer in accordance with the paragraph DEFICIENCY/REWORK ITEMS LIST. Include within the punch list the estimated date by which the deficiencies will be corrected. Provide a copy of the punch list to the Contracting Officer.

The QC Manager, or staff, must make follow-on inspections to ascertain that all deficiencies have been corrected. All punch list items must be confirmed as corrected by the QC Manager and concurred by the Contracting Officer. Once this is accomplished, notify the Government that the facility is ready for the Government "Pre-Final Inspection".

1.10.2 Pre-Final Inspection

The Government and QC Manager will perform this inspection to verify that the facility is complete and ready to be occupied. A Government "Pre-Final Punch List" will be documented by the QC Manager as a result of this inspection. The QC Manager will ensure that all items on this list are corrected and concurred by the Contracting Officer prior to notifying the Government that a "Final" inspection with the Client can be scheduled. All items noted on the "Pre-Final" inspection must be corrected and concurred by the Contracting Officer in a timely manner and be accomplished before the Contract completion date for the work, or any increment thereof, if the project is divided into increments by separate completion dates unless exceptions are directed by the Contracting Officer.

1.10.3 Final Acceptance Inspection

Notify the Contracting Officer at least 14 calendar days prior to the date a final acceptance inspection can be held. State within the notice that all items previously identified on the pre-final punch list will be corrected and acceptable, along with any other unfinished Contract work, by the date of the final acceptance inspection. The Contractor must be represented by the QC Manager, the Project Superintendent, and others deemed necessary. Attendees for the Government will include the Contracting Officer, other Government QA personnel, and personnel representing the Client. Failure of the Contractor to have all Contract work acceptably complete for this inspection will be cause for the Contracting Officer to bill the Contractor for the Government's additional inspection cost in accordance with the Contract Clause entitled "Inspection of Construction."

1.11 QUALITY CONTROL (QC) CERTIFICATIONS

1.11.1 Contractor Quality Control (CQC) Report Certification

Contain the following statement within the CQC Report: "On behalf of the Contractor, I certify that this report is complete and correct and equipment and material used, and work performed during this reporting period is in compliance with the Contract drawings and specifications to the best of my knowledge, except as noted in this report."

1.11.2 Completion Certification

Upon completion of work under this Contract, the QC Manager must furnish a certificate to the Contracting Officer attesting that "the work has been completed, inspected, tested and is in compliance with the Contract." Provide a copy of this final QC Certification for completion to the preparer of the Operation & Maintenance (O&M) documentation.

1.12 DOCUMENTATION AND INFORMATION FOR THE CONTRACTING OFFICER

Maintain current and complete records of on-site and off-site QC program operations and activities.

Contact the Contracting Officer for sample forms or print from RMS-QCS as needed. Prior to commencing work on construction, the Contractor must obtain a copy set of the current report forms. The report forms will consist of the Contractor Quality Control (CQC) Report, CQC Report (Continuation Sheet), Contractor Production Report, Contractor Production Report (Continuation Sheet), Preparatory Phase Checklist, Initial Phase Checklist, Testing Plan and Log, and Rework Items List. Unless otherwise provided by the Contracting Officer, Contractor may use the forms provided as related material located at <https://www.wbdg.org/ffc/dod/unified-facilities-guide-specifications-ufgs/ufgs-01-45-00>.

1.12.1 Construction Documentation

Reports are required for each day that work is performed and must be attached to the Contractor Quality Control Report prepared for the same day. Maintain current and complete records of on-site and off-site QC program operations and activities. Reports are required for each day work is performed. Account for each calendar day throughout the life of the Contract.

The Project Superintendent and the QC Manager must prepare and sign the Contractor Production and CQC Reports, respectively. Every space on the forms must be filled in. Use N/A if nothing can be reported in one of the spaces. The reporting of work must be identified by terminology consistent with the construction schedule. In the "Remarks" sections of the reports, enter pertinent information including directions received, problems encountered during construction, work progress and delays, conflicts or errors in the drawings or specifications, field changes, safety hazards encountered, instructions given and corrective actions taken, delays encountered, a record of visitors to the work site, quality control problem areas, deviations from the QC Plan, construction deficiencies encountered, and meetings held. For each entry in the report(s), identify the Schedule Activity No. that is associated with the entered remark.

1.12.2 Quality Control Activities

CQC and Contractor Production reports will be prepared daily to maintain current records providing factual evidence that required quality control activities and tests have been performed. Include in these records the work of subcontractors and suppliers on an acceptable form that includes, as a minimum, the following information:

- a. The name and area of responsibility of the Contractors and any subcontractors.
- b. Operating plant/equipment with hours worked, idle, or down for repair.
- c. Work performed each day, giving location, description, and by whom. When a Network Analysis Schedule (NAS) is used, identify each item of work performed each day by NAS activity number.
- d. Control phase activities performed. Preparatory, and Initial phase Checklists associated with the DFOW referenced to the construction schedule. Follow-up phase activities identified to the DFOW. If testing or specific QC Specialist activities are associated with the Follow-up phase activities for a specific DFOW note this and include those reports.
- e. Test and control activities performed with results and references to specifications and drawings requirements. Identify the control phase (Preparatory, Initial, Follow-up). List of deficiencies noted, along with corrective action in accordance with the paragraph DEFICIENCY/REWORK ITEMS LIST.
- f. Quantity of materials received at the site with statement as to acceptability, storage, and reference to specifications and drawings requirements.
- g. Submittals and deliverables reviewed, with Contract reference, by whom, and action taken.
- h. Offsite surveillance activities, including actions taken.
- i. Job safety evaluations stating what was checked, results, and instructions or corrective actions.
- j. Instructions given/received and conflicts in plans and specifications.

1.12.3 Verification Statement

Indicate a description of trades working on the project; the number of personnel working; weather conditions encountered; and any delays encountered. Cover both conforming and deficient features and include a statement that equipment and materials incorporated in the work and workmanship comply with the Contract.

Furnish the original and one copy of these records in report form to the Government by 10:00 AM the next working day after the date covered by the report. As a minimum, prepare and submit one report for every 7 days of no work and on the last day of a no work period. All calendar days need to be accounted for throughout the life of the Contract. The first report following a day of no work will be for that day only. Reports need to be signed and dated by the QC Manager. Include copies of test reports and copies of reports prepared by all subordinate quality control personnel within the QC Manager Report.

1.12.4 Quality Control Validation

Establish and maintain the following in an electronic folder. Divide folder into a series of tabbed sections as shown below. Ensure folder is updated at each required progress meeting.

- a. CQC Meeting minutes in accordance with paragraph QUALITY CONTROL (QC) MEETINGS.
- b. All completed Preparatory and Initial Phase Checklists, arranged by specification section, further sorted by DFOV referenced to the construction schedule. Submit each individual Phase Checklist the day the phase event occurs as part of the CQC daily report.
- c. All milestone inspections, arranged by Activity Number referenced to the construction schedule.
- d. An up-to-date copy of the Testing Plan and Log with supporting field test reports, arranged by specification section referenced to the DFOV to which individual reports results are associated. Individual field test reports will be submitted within 2 working days after the test is performed in accordance with the paragraph QUALITY CONTROL ACTIVITIES.
- e. Copies of all Contract modifications, arranged in numerical order. Also include documentation that modified work was accomplished.
- f. An up-to-date copy of the paragraph DEFICIENCY/REWORK ITEMS LIST.
- g. Upon commencement of Completion Inspections of the entire project or any defined portion, maintain up-to-date copies of all punch lists issued by the QC staff to the Contractor and subcontractors and all punch lists issued by the Government in accordance with the paragraph COMPLETION INSPECTIONS.

1.12.5 Testing Plan and Log

As tests are performed, the QC Manager will record on the "Testing Plan and Log" the date the test was performed and the date the test results were forwarded to the Contracting Officer. Attach a copy of the updated "Testing Plan and Log" to the last daily CQC Report of each month. Provide a copy of the final "Testing Plan and Log" to the preparer of the Operation

& Maintenance (O&M) documentation.

1.12.6 As-Built Drawings

The QC Manager must ensure the as-built drawings, required by Section 01 78 00 CLOSEOUT SUBMITTALS are kept current on a daily basis and marked to show deviations which have been made from the Contract drawings. The as-built drawings document shall commence with the QC Manager ensuring all amendments, or changes to the Contract prior to Contract award are accurately noted in the initial document set creating the accurate baseline of the Contract prior to any work starting. Ensure each deviation has been identified with the appropriate modifying documentation (e.g., PC No., Modification No., Request for Information No.). The QC Manager must initial each revision. Upon completion of work, the QC Manager will furnish a certificate attesting to the accuracy of the as-built drawings prior to submission to the Contracting Officer.

1.13 NOTIFICATION ON NON-COMPLIANCE

The Contracting Officer will notify the Contractor of any detected non-compliance with the Contract. Take immediate corrective action after receipt of such notice. Such notice, when delivered to the Contractor at the work site, is deemed sufficient for the purpose of notification. If the Contractor fails or refuses to comply promptly, the Contracting Officer may issue an order stopping all or part of the work until satisfactory corrective action has been taken. No part of the time lost due to such stop orders will be made the subject of a claim for extension of time for excess costs or damages by the Contractor.

1.14 DELIVERY, STORAGE, AND HANDLING

Designate receiving/storage areas for incoming material to be delivered according to installation schedule and to be placed convenient to work area in order to minimize waste due to excessive materials handling and misapplication. Store and handle materials in a manner as to prevent loss from weather and other damage. Keep materials, products, and accessories covered and off the ground, and store in a dry, secure area. Prevent contact with material that may cause corrosion, discoloration, or staining. Protect all materials and installations from damage by the activities of other trades.

PART 2 PRODUCTS

Not used.

PART 3 EXECUTION

Not used.

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11/23

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RESIDENT MANAGEMENT SYSTEM CONTRACTOR MODE (RMS CM)

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PART 1 GENERAL

1.1 REFERENCES

The publications listed below form a part of this section to the extent referenced. The publications are referred to within the text by the basic designation only.

U.S. ARMY CORPS OF ENGINEERS (USACE)

EM 385-1-1

(2024) Safety -- Safety and Occupational Health (SOH) Requirements

1.2 MEASUREMENT AND PAYMENT

The work of this section is not measured for payment. The Contractor is responsible for the work of this section, without any direct compensation other than the payment received for contract items.

1.3 CONTRACT ADMINISTRATION

The Government will use the Resident Management System (RMS) to assist in its monitoring and administration of this contract. The Government accesses the system using the Government Mode of RMS (RMS GM) and the Contractor accesses the system using the Contractor Mode (RMS CM). The term RMS will be used in the remainder of this section for both RMS GM and RMS CM. The joint Government-Contractor use of RMS facilitates electronic exchange of information and overall management of the contract. The Contractor accesses RMS to record, maintain, input, track, and electronically share information with the Government throughout the contract period in the following areas:

- Administration
- Finances
- Quality Control
- Submittal Monitoring
- Scheduling
- Closeout
- Import/Export of Data

1.3.1 Correspondence and Electronic Communications

For ease and speed of communications, exchange correspondence and other documents in electronic format to the maximum extent feasible. Paper documents will govern in the event of discrepancy with the electronic version. Contracting Officer will determine which documents require submission of paper copies.

1.3.2 Other Factors

Other portions of this document have a direct relationship to the reporting accomplished through RMS. Particular attention is directed to FAR

52.236-15 Schedules for Construction Contracts; FAR 52.232-27 Prompt Payment for Construction Contracts; FAR 52.232-5 Payments Under Fixed-Price Construction Contracts; Section 01 32 01.00 10 PROJECT SCHEDULE; Section 01 33 00 SUBMITTAL PROCEDURES; Section 01 35 26 GOVERNMENTAL SAFETY REQUIREMENTS; and Section 01 45 00 QUALITY CONTROL.

1.4 RMS SOFTWARE

RMS is a web based application. Download, install and be able to utilize the latest version of RMS within 7 calendar days of receipt of the Notice to Proceed. RMS software, user manuals, access and installation instructions, program updates and training information are available from the RMS website (<https://rms.usace.army.mil>). The Government and the Contractor will have different access authorities to the same contract database through RMS. The common database will be updated automatically each time a user finalizes an entry or change.

1.5 CONTRACT DATABASE - GOVERNMENT

The Government will enter the basic contract award data in RMS prior to granting the Contractor access. The Government entries into RMS will generally be related to submittal reviews, correspondence status, and Quality Assurance (QA) comments, as well as other miscellaneous administrative information.

1.6 CONTRACT DATABASE - CONTRACTOR

Contractor entries into RMS establish, maintain, and update data throughout the duration of the contract. Contractor entries generally include prime and subcontractor information, daily reports, submittals, RFI's, schedule updates and payment requests. RMS includes the ability to import attachments and export reports in many of the modules, including submittals. The Contractor responsibilities for entries in RMS typically include the following items:

1.6.1 Administration

1.6.1.1 Contractor Information

Enter all current Contractor administrative data and information into RMS within 7 calendar days of receiving access to the contract in RMS. This includes, but is not limited to, Contractor's name, address, telephone numbers, management staff, and other required items.

1.6.1.2 Subcontractor Information

Enter all missing subcontractor administrative data and information into RMS CM within seven calendar days of receiving access to the Contract in RMS or within seven calendar days of the signing of the subcontractor agreement for agreements signed at a later date. This includes name, trade, address, phone numbers, and other required information for all subcontractors. A subcontractor is listed separately for each trade to be performed.

1.6.1.3 Correspondence

Identify all Contractor correspondence to the Government with a serial number. Prefix correspondence initiated by the Contractor's site office with "S". Prefix letters initiated by the Contractor's home (main) office

with "H". Letters are numbered starting from 0001. (e.g., H-0001 or S-0001). The Government's letters to the Contractor will be prefixed with "C" or "RFP".

1.6.1.4 Equipment

Enter and maintain a current list of equipment planned for use or being used on the jobsite, including the most recent and planned equipment inspection dates in accordance with Section 01 45 00 QUALITY CONTROL.

1.6.1.5 Reports

Track the status of the project using the reports available in RMS. The value of these reports reflects the quality of the data input. These reports include but are not limited to the Progress Payment Request worksheet, Quality Control (QC) comments, Deficiency Tracking Log, Submittal Register Status, and Three-Phase Control worksheets in accordance with Sections 01 20 00 PRICE AND PAYMENT PROCEDURES, Section 01 32 01.00 10 PROJECT SCHEDULE, 01 33 00 SUBMITTAL PROCEDURES, and 01 45 00 QUALITY CONTROL.

1.6.1.6 Request For Information (RFI)

Create and track all Requests For Information (RFI) in the RMS Administration Module for Government review and response. Provide status at weekly progress meeting in accordance with Section 01 32 01.00 10 PROJECT SCHEDULE.

1.6.2 Finances

1.6.2.1 Pay Activity Data

Develop and enter a list of pay activities in conjunction with the project schedule in accordance with Section 01 32 01.00 10 PROJECT SCHEDULE. The sum of pay activities equals the total Contract amount, including modifications. Each pay activity must be assigned to a Contract Line Item Number (CLIN). The sum of the activities assigned to a CLIN equals the amount of each CLIN.

1.6.2.2 Payment Requests

Prepare all progress payment requests using RMS. Update the work completed under the Contract at least monthly, measured as percent or as specific quantities. After the update, generate a payment request and prompt payment certification using RMS. Submit the signed prompt payment certification and payment request as well as supporting data, either electronically or by hard copy.

1.6.3 Quality Control (QC)

Enter and track implementation of the 3-phase QC Control System, QC testing, transferred and installed property and warranties in RMS. Link each deficiency and QC test to a pay activity. Prepare daily reports, identify and track deficiencies, document progress of work, and support other Contractor QC requirements in RMS. Maintain all data on a daily basis. Ensure that RMS reflects all quality control methods, tests and actions contained within the Contractor Quality Control (CQC) Plan and Government review comments. Provide within seven calendar days of Government acceptance of the CQC Plan.

1.6.3.1 Quality Control (QC) Reports

The Contractor's Quality Control (QC) Daily Report in RMS is the official report. The Contractor can use other supplemental formats to record QC data, but information from any supplemental formats are to be consolidated and entered into the RMS QC Daily Report. Any supplemental information may be entered into RMS as an attachment to the report. QC Daily Reports must be finalized and signed in RMS within 24 hours after the date covered by the report.

1.6.3.2 Deficiency Tracking

Use the QC Daily Report Module to enter and track deficiencies. Deficiencies identified and entered into RMS by the Contractor or the Government will be sequentially numbered with a QC or QA prefix for tracking purposes. Enter each deficiency into RMS the same day that the deficiency is identified. Monitor, track and resolve all QC and QA entered deficiencies. A deficiency is not considered to be corrected until the Government indicates concurrence in RMS.

1.6.3.3 Three-Phase Control Meetings

Maintain scheduled and actual dates and times of preparatory and initial control meetings in RMS, and upload meeting minutes of the meetings. Worksheets for the three-phase control meetings are generated within RMS.

1.6.3.4 Labor and Equipment Hours

Enter labor and equipment exposure hours on a daily basis. Roll up the labor and equipment exposure data into a monthly exposure report.

1.6.3.5 Accident/Safety Reporting

Both the Contractor and the Government enter safety related comments in RMS as a deficiency. The Contractor must monitor, track and show resolution for safety issues in the QC Daily Report area of the RMS QC Module. In addition, follow all reporting requirements for accidents and incidents as required in EM 385-1-1, Section 01 35 26 GOVERNMENTAL SAFETY REQUIREMENTS and as required by any other applicable Federal, State or local agencies.

1.6.3.6 Definable Features of Work

Enter each feature of work, as defined in the approved CQC Plan, into the RMS QC Module. A feature of work may be associated with a single or multiple pay activities, however a pay activity is only to be linked to a single feature of work.

1.6.3.7 Activity Hazard Analysis

Import activity hazard analysis electronic document files into the RMS QC Module utilizing the document package manager. Prepare activity hazard analysis in accordance with Section 01 35 26 GOVERNMENT SAFETY REQUIREMENTS.

1.6.4 Submittal Management

Enter all current submittal register data and information into RMS within seven calendar days of receiving access to the Contract in RMS. The Contractor is responsible for entering Activity Numbers for each submittal

item corresponding to their Schedule. The Contractor will import the information shown in the submittal register following the specification Section 01 33 00 SUBMITTAL PROCEDURES unless otherwise directed by the Contracting Officer. Group electronic submittal documents into transmittal packages to send to the Government, except very large electronic files, samples, spare parts, mock ups, color boards, or where hard copies are specifically required. Track transmittals and update the submittal register in RMS on a daily basis throughout the duration of the Contract.

Contractor may request submittals to be added to RMS throughout the lifecycle of the project. Approval/disapproval of Contractor requests is at the discretion of the Contracting Officer. Submittals entry into RMS must be updated daily or as practical for performance of the Contract, as approved by the Contracting Officer.

1.6.5 Schedule

Enter and update the contract project schedule in RMS by either manually entering all schedule data or by importing the Standard Data Exchange Format (SDEF) file, based on the requirements in Section 01 32 01.00 10 PROJECT SCHEDULE.

1.6.6 Closeout

Closeout documents, processes and forms are managed and tracked in RMS by both the Contractor and the Government. Ensure that all closeout documents are entered, completed and documented within RMS.

1.7 IMPLEMENTATION

Use of RMS as described in the preceding paragraphs is mandatory. Ensure that sufficient resources are available to maintain contract data within the RMS system. RMS is an integral part of the Contractor's required management of quality control.

1.8 NOTIFICATION OF NONCOMPLIANCE

Take corrective action within seven calendar days after receipt of notice of RMS non-compliance by the Contracting Officer.

PART 2 PRODUCTS

Not Used

PART 3 EXECUTION

Not Used

-- End of Section --

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PART 1 GENERAL

1.1 REFERENCES

The publications listed below form a part of this specification to the extent referenced. The publications are referred to within the text by the basic designation only.

U.S. ARMY CORPS OF ENGINEERS (USACE)

EM 385-1-1

(2024) Safety -- Safety and Health
Requirements Manual

1.2 SUBMITTALS

Government approval is required for submittals with a "G" classification. Submittals not having a "G" classification are for information only. Submit the following in accordance with Section 01 33 00 SUBMITTAL PROCEDURES:

SD-01 Preconstruction Submittals

Construction Site Plan; G

1.3 CONSTRUCTION SITE PLAN

Prior to the start of work, submit for Government approval a site plan showing the locations and dimensions of temporary facilities (including layouts and details, equipment and material storage area (onsite and offsite), and access and haul routes, avenues of ingress/egress to the fenced area and details of the fence installation. Identify any areas which may have to be graveled to prevent the tracking of mud. Indicate if the use of a supplemental or other staging area is desired. Show locations of safety and construction fences, site trailers, construction entrances, trash dumpsters, temporary sanitary facilities, and worker parking areas.

1.4 NAVIGATION AIDS

Notify the Federal Aids to Navigation Officer 30 days prior to the commencement of work.

The Contractor shall not relocate or move any aids to navigation that have been established by the U.S. Coast Guard. If it becomes necessary to have any aids to navigation moved in order to complete dredging operations under this contract, the Contractor shall notify the appropriate Coast Guard Office, with a copy to the Contracting Officer and/or his Representative, not less than 30 days prior to the need for movement. The Contractor shall notify the appropriate Coast Guard Office of the approximate time of completion of dredging.

The Coast Guard has indicated that the requirements of navigation may make

it necessary to establish times other than those requested. IT SHALL BE THE CONTRACTOR'S RESPONSIBILITY TO COORDINATE HIS PLANS WITH THE COAST GUARD SUFFICIENTLY IN ADVANCE OF THE PLANNED CLOSING TO PREVENT DELAY TO THE DREDGING OPERATIONS AND COMPLY WITH THE COAST GUARD REQUIREMENT.

1.5 OBSTRUCTION EVALUATION / AIRPORT AIRSPACE ANALYSIS

The Contractor shall file forms 7460-1 and 7460-2 if applicable and as specified in Section 00 90 01, Attachment L, Obstruction Evaluation / Airport Airspace Analysis Desk Reference Guide to ensure that 14 CFR Part 77.9 is met.

1.6 LAYOUT OF WORK

- a. The Government will establish the following base lines and bench marks at the site of the work: (Monuments and bench marks as shown on the drawings.)
- b. From the base lines and bench marks established by the Government, complete the layout of the work and provide measurements for the execution of the work to the location and limit marks indicated, subject to such modifications as the Contracting Officer may require to meet changed conditions or as a result of necessary modifications to the contract work.
- c. Provide stakes, templates, platforms, equipment, tools and material, and labor as required for laying out the work from the base lines and bench marks established by the Government. Maintain and preserve all stakes and other marks established by the Contracting Officer until authorized to remove them, and if such marks are destroyed by the Contractor or through his negligence prior to their authorized removal, they may be replaced by the Contracting Officer, at his discretion, and the expense of replacement will be deducted from any amounts due or to become due the Contractor. The Contracting Officer may require that work be suspended at any time when location and limit marks established by the Contractor are not reasonably adequate to permit checking of the work.

1.7 SUBMERGED PIPELINES

Should it become necessary in the performance of this contract to use a submerged pipelines across a navigable channel, the Contractor must notify the Contracting Officer, in writing to be received in the District Office at least ten working days prior to the desired closure date. This notification shall include the following:

- (1) Location (Channel Centerline Stationing) and depth (over the top of the pipeline) at which the submerged line will be placed;
- (2) The desired length of time the channel is to be closed for installation of the pipeline;
- (3) The date and hour placement or removal will commence;
- (4) The date and hour of anticipated completion; and
- (5) The name and telephone number of the person to be contacted for information and response to any emergency condition.

The requirements of navigation may make it necessary to establish times other than those requested. It is the contractor's responsibility to coordinate his/her plans with the Coast Guard sufficiently in advance of the planned closing to prevent delay to the dredging operations and comply with the Coast Guard requirements.

1.8 FLOATING PIPELINE

Design rubber float lines to minimize the number of connections in the discharge line and reduce the need to disconnect the float line from the submerged line in moderate storm conditions. Provide an information-only design submittal prior to starting this Definable Feature of Work. Floating pipeline, used as access ways, shall be equipped with walkways and guard rails. The walkway must be securely anchored to the pipeline and a guard rail equivalent in strength to a wood rail 2 inch by 4 inch must be provided on at least one side of the walkway and must be secured to upright at intervals of not more than 8 feet and of not less than 36 nor more than 42 inches in height above the walkway. Float pipelines not equipped with walkways must be barricaded to prevent personnel access.

1.9 BRIDGE-TO-BRIDGE RADIO-TELEPHONE EQUIPMENT

In order that radio-telephone communication may be made with passing vessels, all dredges engaged in work under the contract shall be equipped with and operate bridge-to-bridge radio-telephone equipment on VHF Channel 13 (156.65 MHz with low power output having a communication range of approximately ten (10) miles). The Federal Communication Commission has approved the frequency.

1.10 HEAD PROTECTION AREA

THE ENTIRE WORK SITE UNDER THIS CONTRACT IS DESIGNATED AS A HARD HAT AREA. The Contractor shall post the area in accordance with the requirements of EM 385-1-1, and shall ensure that all prime and subcontractor personnel, vendors, and visitors utilize hard hats while within the project area. (EM 385-1-1 2024)

1.11 SIGNAL LIGHTS

The Contractor shall display signal lights and conduct his operations in accordance with the General Regulations of the Coast Guard governing lights and day signals to be displayed by towing vessels with tows on which no light signals can be displayed. Vessels working on wrecks, dredges, and vessels engaged in laying cables or pipe or in submarine or bank protection operations, lights to be displayed on dredge pipelines, and day signals to be displayed by vessels of more than 65 feet in length moored or anchored in a fairway or channel, and the passing by other vessels or floating plant working in navigable channels, as approved by the Commandant, U.S. Coast Guard with respect to vessels on the high seas (33 CAR 81 App. A-72 COLREGS, Part C), vessels in inland waters (33-CFR 93.18 - 93.31a), and vessels in western rivers (33 CFR 95.5.51 - 95.70)), as applicable. (DAEN-PRP Ind dtd. 12 Sep. 83)

1.12 REVERSE SIGNAL ALARM

- a. All construction equipment, except light service trucks, panels, pickup trucks, station wagons, crawler-type cranes, power shovels and draglines, whether moving alone or in combination shall be equipped with reverse signal alarms. The alarm shall be mounted on the rear of

the equipment and shall be protected or constructed as to withstand severe wear and tear, adverse weather and unfavorable environmental working conditions and shall be certified by the manufacturer to fully meet the following performance standards.

- b. The alarm shall produce a relatively pure tone which shall peak within the American National Std's. Inst. standard octave pass band of 600 to 2400 cycles per second and shall produce a 0.2 to 0.5 second audible warning within the initial three (3) feet of backward movement of the vehicle on which it is mounted and at regular intervals, not to exceed three (3) seconds throughout the backward movement. The alarm shall automatically stop when backward movement ceases. The sound intensity of the alarm shall range from and not exceed 90-100 db (decibels) at a horizontal distance of five feet from the alarm.
- c. Actuation of the alarm shall be automatic by direct connections to any part of the equipment that moves or acts in a manner distinctive only to the rearward movement of the vehicle with no manual controls of any kind between the source of actuation and the alarm. Where application of this requirement to specific types of the equipment has impractical application, other means of actuation may be used upon written approval of the Contracting Officer and/or his Representative.
- d. The use of the alarm shall be in the addition to prescribed requirements for signalmen.

1.13 INSPECTION

The inspectors will assess whether the gauges, ranges, location marks and limit marks are maintained in proper order; but the presence of the inspector shall not relieve the Contractor of the responsibility for the proper execution of the work in accordance with the specifications. The Contractor will be required:

- a. To furnish, on the request of the Contracting Officer and/or his Representative or any inspector, the use of such boats, boatmen, laborers, a part of the ordinary and usual equipment and crew of the dredging plant as may be reasonably necessary in inspecting and supervising the work. However, the Contractor will not be required to furnish such facilities for the surveys prescribed in the clause entitled: "Final Examination and Acceptance."
- b. To furnish, on the request of the Contracting Officer or the Contracting Officer's Representative or any inspector, suitable transportation from all points on shore designated by the Contracting Officer and/or his Representative to and from the various pieces of plant and to and from the placement area. Should the Contractor refuse, neglect, or delay compliance with these requirements, the specific facilities may be furnished and maintained by the Contracting Officer or Contracting Officer Representative, and the cost thereof will be deducted from any amounts due or to become due to the Contractor.
- c. To provide the Contracting Officer and/or his Representative or any inspector, a contact available to assist in coordinating/conducting virtual inspections in cases when in person inspections cannot be performed.

1.14 DOD CONDITION OF READINESS

DOD will set the Condition of Readiness (COR) based on the weather forecast for sustained winds 50 knots (58 mph) or greater. Contact the Contracting Officer for the current COR setting.

Monitor weather conditions a minimum of twice a day and take appropriate actions according to the approved Emergency Plan in the accepted Accident Prevention Plan, EM 385-1-1 Emergency Plan requirements and the instructions below.

Unless otherwise directed by the Contracting Officer, comply with:

- a. Condition FOUR (Sustained winds of 58 mph or greater expected within 72 hours): Normal daily jobsite cleanup and good housekeeping practices. Collect and store in piles or containers scrap lumber, waste material, and rubbish for removal and disposal at the close of each work day. Maintain the construction site including storage areas, free of accumulation of debris. Stack form lumber in neat piles less than 3.3 feet high. Remove all debris, trash, or objects that could become missile hazards. Review requirements pertaining to "Condition THREE" and continue action as necessary to attain "Condition FOUR" readiness. Contact Contracting Officer for weather and COR updates and completion of required actions.
- b. Condition THREE (Sustained winds of 58 mph or greater expected within 48 hours): Maintain "Condition FOUR" requirements and commence securing operations necessary for "Condition ONE" which cannot be completed within 18 hours. Cease all routine activities which might interfere with securing operations. Commence securing and stow all gear and portable equipment. Make preparations for securing buildings. Reinforce or remove formwork and scaffolding. Secure machinery, tools, equipment, materials, or remove from the jobsite. Expend every effort to clear all missile hazards and loose equipment from general base areas. Contact Contracting Officer for weather and COR updates and completion of required actions. Review requirements pertaining to "Condition TWO" and continue action as necessary to attain "Condition THREE" readiness.
- c. Condition TWO (Sustained winds of 58 mph or greater expected within 24 hours): Secure the jobsite, and leave Government premises.
- d. Condition ONE. (Sustained winds of 58 mph or greater expected within 12 hours): Contractor access to the jobsite and Government premises is prohibited.

PART 2 PRODUCTS

2.1 TEMPORARY SIGNAGE

2.1.1 Bulletin Board

Prior to the commencement of work activities, provide a clear weatherproof covered bulletin board not less than 36 by 48 inches in size for displaying the Equal Employment Opportunity poster, a copy of the wage decision contained in the Contract, Wage Rate Information poster, Safety and Health Information as required by EM 385-1-1 and other information approved by the Contracting Officer. Coordinate requirements herein with 01 35 26 GOVERNMENTAL SAFETY REQUIREMENTS. Locate the bulletin board at the project

site in a conspicuous place easily accessible to all employees, and in location as approved by the Contracting Officer.

2.1.2 Project Identification Sign

The requirements for the signs, their content, and location are as specified in Section 01 58 00 PROJECT IDENTIFICATION. Erect signs within 15 days after receipt of the notice to proceed. Correct the data required by the safety sign daily, with light colored metallic or non-metallic numerals.

The Contractor shall furnish and erect a project sign at a location directed by the Contracting Officer or Contracting Officer's Representative. The project sign shall conform with all requirements as specified in Section 00 90 01, Attachment C, Project Identification and Safety Signs.

The Contractor shall maintain the sign in good condition throughout the construction period. No separate payment will be made for erecting and maintaining the project sign, and all costs in connection therewith will be considered the obligation of the Contractor. Upon completion of the project, the Contractor shall remove the sign from the work site.

2.1.3 Safety Sign

The Contractor shall construct a safety sign at a location directed by the Contracting Officer and/or his Representative. The sign shall be 6 feet by 4 feet and shall conform to the requirements as specified in Section 00 90 01, Attachment C, Project Identification and Safety Signs.

The sign shall be erected as soon as possible and within 5 calendar days after the date of the receipt of the Notice to Proceed. The data required by the sign shall be corrected daily. No separate payment will be made for erecting and maintaining the safety sign and all costs in connection therewith will be considered the obligation of the contractor. Upon completion of the project, the Contractor shall remove the sign from the work site.

2.1.4 Warning Signs

Post temporary signs, tags, and labels to give workers and the public adequate warning and caution of construction hazards according to the EM 385-1-1. Attach signs to the perimeter fencing every 150 feet warning the public of the presence of construction hazards. Signs must require unauthorized persons to keep out of the construction site. Correct the data required by safety signs daily. Post signs at all points of entry designating the construction site as a hard hat area.

PART 3 EXECUTION

3.1 CONTRACTOR'S TEMPORARY FACILITIES

Contractor is responsible for security of their property. Provide adequate outside security lighting at the temporary facilities. Trailers must be anchored to resist high winds and meet applicable state or local standards for anchoring mobile trailers. Coordinate anchoring with EM 385-1-1. The Contract Clause entitled "FAR 52.236-10, Operations and Storage Areas" and the following apply:

3.2 ACCOMMODATIONS FOR GOVERNMENT INSPECTIONS

The Contractor shall furnish regularly to Government inspectors onboard the dredge or other craft upon which they are employed a suitable separate room for an office. The room shall be fully equipped and maintained to the satisfaction of the Contracting Officer and/or his Representative; it shall be properly heated, ventilated, and lighted, and shall have a desk which can be locked, and a chair for each inspector, beverage (e.g. water, coffee and tea) and bathroom conveniences. In addition, the Contractor shall provide a suitable sleeping area for use by the Government inspector when weather or sea conditions preclude safe transfer to shore. The entire cost to the Contractor for furnishing, equipping and maintaining the foregoing accommodations shall be included in the contract price. If the Contractor fails to meet these requirements, the Contracting Officer and/or his Representative will secure the facilities referred to above, and the cost thereof will be deducted from payments to the Contractor.

3.3 CLEANUP

Remove construction debris, waste materials, packaging material and the like from the work site daily. Any dirt or mud which is tracked onto paved or surfaced roadways must be cleaned away. Store all salvageable materials resulting from demolition activities within the fenced area described above or at the supplemental storage area. Neatly stack stored materials not in trailers, whether new or salvaged.

3.4 RESTORATION OF STORAGE AREA

Upon completion of the project remove the bulletin board, signs, barricades, haul roads, and all other temporary products from the site. After removal of trailers, materials, and equipment from within the fenced area, remove the fence. Restore areas used during the performance of the Contract to the original or better condition. Remove gravel used to traverse grassed areas and restore the area to its original condition, including top soil and seeding as necessary.

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TEMPORARY ENVIRONMENTAL CONTROLS

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PART 1 GENERAL

1.1 REFERENCES

The publications listed below form a part of this specification to the extent referenced. The publications are referred to within the text by the basic designation only.

U.S. NATIONAL ARCHIVES AND RECORDS ADMINISTRATION (NARA)

29 CFR 1910.1200	Hazard Communication
40 CFR 50	National Primary and Secondary Ambient Air Quality Standards
40 CFR 60	Standards of Performance for New Stationary Sources
40 CFR 63	National Emission Standards for Hazardous Air Pollutants for Source Categories
40 CFR 64	Compliance Assurance Monitoring
40 CFR 68	Chemical Accident Prevention Provisions
40 CFR 112	Oil Pollution Prevention
40 CFR 241	Guidelines for Disposal of Solid Waste
40 CFR 243	Guidelines for the Storage and Collection of Residential, Commercial, and Institutional Solid Waste
40 CFR 258	Subtitle D Landfill Requirements
40 CFR 260	Hazardous Waste Management System: General
40 CFR 261	Identification and Listing of Hazardous Waste
40 CFR 261.7	Residues of Hazardous Waste in Empty Containers
40 CFR 262	Standards Applicable to Generators of Hazardous Waste
40 CFR 262.11	Hazardous Waste Determination and Recordkeeping
40 CFR 263	Standards Applicable to Transporters of Hazardous Waste

40 CFR 264	Standards for Owners and Operators of Hazardous Waste Treatment, Storage, and Disposal Facilities
40 CFR 265	Interim Status Standards for Owners and Operators of Hazardous Waste Treatment, Storage, and Disposal Facilities
40 CFR 266	Standards for the Management of Specific Hazardous Wastes and Specific Types of Hazardous Waste Management Facilities
40 CFR 268	Land Disposal Restrictions
40 CFR 273	Standards for Universal Waste Management
40 CFR 273.2	Standards for Universal Waste Management - Batteries
40 CFR 273.3	Standards for Universal Waste Management - Pesticides
40 CFR 273.4	Standards for Universal Waste Management - Mercury Containing Equipment
40 CFR 273.5	Standards for Universal Waste Management - Lamps
40 CFR 273.6	Applicability - Aerosol Cans
40 CFR 279	Standards for the Management of Used Oil
40 CFR 300	National Oil and Hazardous Substances Pollution Contingency Plan
40 CFR 300.125	National Oil and Hazardous Substances Pollution Contingency Plan - Notification and Communications
40 CFR 302	Designation, Reportable Quantities, and Notification
40 CFR 355	Emergency Planning and Notification
40 CFR 403	General Pretreatment Regulations for Existing and New Sources of Pollution
40 CFR 68	Chemical Accident Prevention Provisions
49 CFR 171	General Information, Regulations, and Definitions
49 CFR 172	Hazardous Materials Table, Special Provisions, Hazardous Materials Communications, Emergency Response Information, and Training Requirements
49 CFR 173	Shippers - General Requirements for Shipments and Packagings

49 CFR 178

Specifications for Packagings

1.2 DEFINITIONS

1.2.1 Class I and II Ozone Depleting Substance (ODS)

Class I ODS is defined in Section 602(a) of The Clean Air Act. A list of Class I ODS can be found on the EPA website at the following weblink.
<https://www.epa.gov/ozone-layer-protection/ozone-depleting-substances>.

Class II ODS is defined in Section 602(s) of The Clean Air Act. A list of Class II ODS can be found on the EPA website at the following weblink.
<https://www.epa.gov/ozone-layer-protection/ozone-depleting-substances>.

1.2.2 Contractor Generated Hazardous Waste

Contractor generated hazardous waste is materials that, if abandoned or disposed of, may meet the definition of a hazardous waste. These waste streams would typically consist of material brought on site by the Contractor to execute work, but are not fully consumed during the course of construction. Examples include, but are not limited to, excess paint thinners (i.e., methyl ethyl ketone, toluene), waste thinners, excess paints, excess solvents, waste solvents, excess pesticides, and contaminated pesticide equipment rinse water.

1.2.3 Electronics Waste

Electronics waste is discarded electronic devices intended for salvage, recycling, or disposal.

1.2.4 Environmental Pollution and Damage

Environmental pollution and damage is the presence of chemical, physical, or biological elements or agents which adversely affect human health or welfare; unfavorably alter ecological balances of importance to human life; affect other species of importance to humankind; or degrade the environment aesthetically, culturally or historically.

1.2.5 Environmental Protection

Environmental protection is the prevention/control of pollution and habitat disruption that may occur to the environment during construction. The control of environmental pollution and damage requires consideration of land, water, and air; biological and cultural resources; and includes management of visual aesthetics; noise; solid, chemical, gaseous, and liquid waste; radiant energy and radioactive material as well as other pollutants.

1.2.6 Hazardous Debris

As defined in paragraph SOLID WASTE, debris that contains listed hazardous waste (either on the debris surface, or in its interstices, such as pore structure) in accordance with 40 CFR 261. Hazardous debris also includes debris that exhibits a characteristic of hazardous waste in accordance with 40 CFR 261.

1.2.7 Hazardous Materials

Hazardous material is any material that: Is defined in 49 CFR 171, listed in 49 CFR 172, regulated as a hazardous material in accordance with 49 CFR 173; or requires a Safety Data Sheet (SDS) in accordance with 29 CFR 1910.1200; or during end use, treatment, handling, packaging, storage, transportation, or disposal meets or has components that meet or have potential to meet the definition of a hazardous waste as defined by 40 CFR 261 Subparts A, B, C, or D. Designation of a material by this definition, when separately regulated or controlled by other sections or directives, does not eliminate the need for adherence to that hazard-specific guidance which takes precedence over this section for "control" purposes. Such material includes ammunition, weapons, explosive actuated devices, propellants, pyrotechnics, chemical and biological warfare materials, medical and pharmaceutical supplies, medical waste and infectious materials, bulk fuels, radioactive materials, and other materials such as asbestos, mercury, and polychlorinated biphenyls (PCBs).

1.2.8 Hazardous Waste

Hazardous Waste is any material that meets the definition of a solid waste and exhibits a hazardous characteristic (ignitability, corrosivity, reactivity, or toxicity) as specified in 40 CFR 261, Subpart C, or contains a listed hazardous waste as identified in 40 CFR 261, Subpart D, or meets a state, local, or host nation definition of a hazardous waste.

1.2.9 Land Application

Land Application means spreading or spraying discharge water at a rate that allows the water to percolate into the soil. No sheeting action, soil erosion, discharge into storm sewers, discharge into defined drainage areas, or discharge into the "waters of the United States" must occur. Comply with federal, state, and local laws and regulations.

1.2.10 Municipal Separate Storm Sewer System (MS4) Permit

MS4 permits are those held by municipalities or installations to obtain NPDES permit coverage for their stormwater discharges.

1.2.11 National Pollutant Discharge Elimination System (NPDES)

The NPDES permit program controls water pollution by regulating point sources that discharge pollutants into waters of the United States.

1.2.12 Oily Waste

Oily waste are those materials that are, or were, mixed with Petroleum, Oils, and Lubricants (POLs) and have become separated from that POLs. Oily wastes also means materials, including wastewaters, centrifuge solids, filter residues or sludges, bottom sediments, tank bottoms, and sorbents which have come into contact with and have been contaminated by, POLs and may be appropriately tested and discarded in a manner which is in compliance with other state and local requirements.

This definition includes materials such as oily rags, "kitty litter" sorbent clay and organic sorbent material. These materials may be land filled provided that: It is not prohibited in other state regulations or local ordinances; the amount generated is "de minimus" (a small amount); it is the result of minor leaks or spills resulting from normal process

operations; and free-flowing oil has been removed to the practicable extent possible. Large quantities of this material, generated as a result of a major spill or in lieu of proper maintenance of the processing equipment, are a solid waste. As a solid waste, perform a hazardous waste determination prior to disposal. As this can be an expensive process, it is recommended that this type of waste be minimized through good housekeeping practices and employee education.

1.2.13 Regulated Waste

Regulated waste are solid wastes that have specific additional federal, state, or local controls for handling, storage, or disposal.

1.2.14 Sediment

Sediment is soil and other debris that have eroded and have been transported by runoff water or wind.

1.2.15 Solid Waste

Solid waste is a solid, liquid, semi-solid or contained gaseous waste. A solid waste can be a hazardous waste, non-hazardous waste, or non-Resource Conservation and Recovery Act (RCRA) regulated waste. Types of solid waste typically generated at construction sites may include:

1.2.15.1 Debris

Debris is non-hazardous solid material generated during the construction, demolition, or renovation of a structure that exceeds 2.5-inch particle size that is: a manufactured object; plant or animal matter; or natural geologic material (for example, cobbles and boulders), broken or removed concrete, masonry, and rock asphalt paving; ceramics; roofing paper and shingles. Inert materials may not be reinforced with or contain ferrous wire, rods, accessories and weldments. A mixture of debris and other material such as soil or sludge is also subject to regulation as debris if the mixture is comprised primarily of debris by volume, based on visual inspection.

1.2.15.2 Green Waste

Green waste is the vegetative matter from landscaping, land clearing and grubbing, including, but not limited to, grass, bushes, scrubs, small trees and saplings, tree stumps and plant roots. Marketable trees, grasses and plants that are indicated to remain, be re-located, or be re-used are not included.

1.2.15.3 Material Not Regulated As Solid Waste

Material not regulated as solid waste is nuclear source or byproduct materials regulated under the Federal Atomic Energy Act of 1954 as amended; suspended or dissolved materials in domestic sewage effluent or irrigation return flows, or other regulated point source discharges; regulated air emissions; and fluids or wastes associated with natural gas or crude oil exploration or production.

1.2.15.4 Non-Hazardous Waste

Non-hazardous waste is waste that is excluded from, or does not meet, hazardous waste criteria in accordance with 40 CFR 261.

1.2.15.5 Recyclables

Recyclables are materials, equipment and assemblies such as doors, windows, door and window frames, plumbing fixtures, glazing and mirrors that are recovered and sold as recyclable, and structural components. It also includes commercial-grade refrigeration equipment with Freon removed, household appliances where the basic material content is metal, clean polyethylene terephthalate bottles, cooking oil, used fuel oil, textiles, high-grade paper products and corrugated cardboard, stackable pallets in good condition, clean crating material, and clean rubber/vehicle tires. Metal meeting the definition of lead contaminated or lead based paint contaminated may not be included as recyclable if sold to a scrap metal company. Paint cans that meet the definition of empty containers in accordance with 40 CFR 261.7 may be included as recyclable if sold to a scrap metal company.

1.2.15.6 Surplus Soil

Surplus soil is existing soil that is in excess of what is required for this work, including aggregates intended, but not used, for on-site mixing of concrete, mortars, and paving. Contaminated soil meeting the definition of hazardous material or hazardous waste is not included and must be managed in accordance with paragraph HAZARDOUS MATERIAL MANAGEMENT.

1.2.15.7 Scrap Metal

This includes scrap and excess ferrous and non-ferrous metals such as reinforcing steel, structural shapes, pipe, and wire that are recovered or collected and disposed of as scrap. Scrap metal meeting the definition of hazardous material or hazardous waste is not included.

1.2.15.8 Wood

Wood is dimension and non-dimension lumber, plywood, chipboard, hardboard. Treated or painted wood that meets the definition of lead contaminated or lead based contaminated paint is not included. Treated wood includes, but is not limited to, lumber, utility poles, crossties, and other wood products with chemical treatment.

1.2.16 Surface Discharge

Surface discharge means discharge of water into drainage ditches, storm sewers, or creeks meeting the definition of "waters of the United States". Surface discharges from construction sites are discrete, identifiable sources and require a permit from the governing agency. Comply with federal, state, and local laws and regulations.

1.2.17 Wastewater

Wastewater is the used water and solids that flow through a sanitary sewer to a treatment plant.

1.2.17.1 Stormwater

Stormwater is any precipitation in an urban or suburban area that does not evaporate or soak into the ground, but instead collects and flows into storm drains, rivers, and streams.

1.2.18 Waters of the United States

Waters of the United States means Federally jurisdictional waters, including wetlands, that are subject to regulation under Section 404 of the Clean Water Act or navigable waters, as defined under the Rivers and Harbors Act.

1.2.19 Wetlands

Wetlands are those areas that are inundated or saturated by surface or groundwater at a frequency and duration sufficient to support, and that under normal circumstances do support, a prevalence of vegetation typically adapted for life in saturated soil conditions.

1.2.20 Universal Waste

The universal waste regulations streamline collection requirements for certain hazardous wastes in the following categories: batteries, pesticides, mercury-containing equipment (for example, thermostats), and lamps (for example, fluorescent bulbs). The rule is designed to reduce hazardous waste in the municipal solid waste (MSW) stream by making it easier for universal waste handlers to collect these items and send them for recycling or proper disposal. These regulations can be found at 40 CFR 273.

1.2.21 Location Specific Universal Waste

Any of the following dangerous waste that are subject to the universal waste requirements of WAC-173-303-573: Batteries as described in WAC-173-303-573(2)); Lamps as described in WAC-173-303-573(5); Mercury-containing equipment as described in WAC-173-303-573(3).

1.3 SUBMITTALS

Government approval is required for submittals with a "G" classification. Submittals not having a "G" classification are for information only. Submit the following in accordance with Section 01 33 00 SUBMITTAL PROCEDURES:

SD-01 Preconstruction Submittals; G

Environmental Protection Plan; G

1.4 ENVIRONMENTAL PROTECTION REQUIREMENTS

Provide and maintain, during the life of the contract, environmental protection as defined. Plan for and provide environmental protective measures to control pollution that develops during construction practice. Plan for and provide environmental protective measures required to correct conditions that develop during the construction of permanent or temporary environmental features associated with the project. Protect the environmental resources within the project boundaries and those affected outside the limits of permanent work during the entire duration of this Contract. Comply with federal, state, and local regulations pertaining to the environment, including water, air, solid waste, hazardous waste and substances, oily substances, and noise pollution.

Tests and procedures assessing whether construction operations comply with Applicable Environmental Laws may be required. Analytical work must be

performed by qualified laboratories; and where required by law, the laboratories must be certified.

1.5 SPECIAL ENVIRONMENTAL REQUIREMENTS

The Contractor shall comply with the special environmental requirements listed in the attached Federal Consistency Determination(s) / Water Quality Certificate(s) of Section 00 90 02..

1.6 QUALITY ASSURANCE

1.6.1 Preconstruction Survey and Protection of Features

This paragraph supplements the Contract Clause PROTECTION OF EXISTING VEGETATION, STRUCTURES, EQUIPMENT, UTILITIES, AND IMPROVEMENTS. At the discretion of the contracting officer, prior to start of any onsite construction activities, perform a Preconstruction Survey of the project site with the Contracting Officer, and take photographs showing existing environmental conditions in and adjacent to the site. Submit a report for the record. Include in the report a plan describing the features requiring protection under the provisions of the Contract Clauses, which are not specifically identified on the drawings as environmental features requiring protection along with the condition of trees, shrubs and grassed areas immediately adjacent to the site of work and adjacent to the Contractor's assigned storage area and access route(s), as applicable. The Contractor and the Contracting Officer will sign this survey report upon mutual agreement regarding its accuracy and completeness. Protect those environmental features included in the survey report and any indicated on the drawings, regardless of interference that their preservation may cause to the work under the Contract.

1.6.2 Environmental Brief

Prior to initiating any work on site, meet with the Contracting Officer to discuss the proposed Environmental Protection Plan (EPP) or equipment local requirement. Develop a mutual understanding relative to the details of environmental protection, including measures for protecting natural and cultural resources, required reports, required permits, permit requirements (such as mitigation measures), and other measures to be taken.

1.6.3 Environmental Manager

Appoint in writing an Environmental Manager for the project site. The Environmental Manager is directly responsible for coordinating contractor compliance with federal, state, local, and district requirements. The Environmental Manager must ensure compliance with Hazardous Waste Program requirements (including hazardous waste handling, storage, manifesting, and disposal); implement the EPP; ensure environmental permits are obtained, maintained, and closed out; ensure compliance with Stormwater Program requirements; ensure compliance with Hazardous Materials (storage, handling, and reporting) requirements; and coordinate any remediation of regulated substances (lead, asbestos, PCB transformers). This can be a collateral position; however, the person in this position must be trained to adequately accomplish the following duties: ensure waste segregation and storage compatibility requirements are met; ensure only authorized personnel add wastes to containers; ensure Contractor personnel are trained in 40 CFR requirements in accordance with their position requirements; coordinate removal of waste containers; and maintain the Environmental Records binder and required documentation, including environmental permits

compliance and close-out. Submit Environmental Manager Qualifications to the Contracting Officer.

1.6.4 Employee Training Records

Prepare and maintain Employee Training Records throughout the term of the contract meeting applicable 40 CFR requirements. Provide Employee Training Records in the Environmental Records Binder. Submit these Assembled Employee Training Records to the Contracting Officer at the conclusion of the project, unless otherwise directed.

Train personnel to meet federal, state, local requirements. Conduct environmental protection/pollution control meetings for personnel prior to commencing construction activities. Conduct additional meetings for new personnel and when site conditions change. Include in the training and meeting agenda: methods of detecting and avoiding pollution; familiarization with statutory and contractual pollution standards; installation and care of devices, vegetative covers, and instruments required for monitoring purposes to ensure adequate and continuous environmental protection/pollution control; anticipated hazardous or toxic chemicals or wastes, and other regulated contaminants; recognition and protection of archaeological sites, artifacts, waters of the United States, and endangered species and their habitat that are known to be in the area.

1.6.5 Non-Compliance Notifications

The Contracting Officer will notify the Contractor in writing of any observed noncompliance with federal, state or local environmental laws or regulations, permits, and other elements of the Contractor's EPP. After receipt of such notice, inform the Contracting Officer of the proposed corrective action and take such action when approved by the Contracting Officer. The Contracting Officer may issue an order stopping all or part of the work until satisfactory corrective action has been taken. FAR 52.242-14 Suspension of Work provides that a suspension, delay, or interruption of work due to the fault or negligence of the Contractor allows for no adjustments to the contract for time extensions or equitable adjustments. In addition to a suspension of work, the Contracting Officer may use additional authorities under the contract or law.

1.7 ENVIRONMENTAL PROTECTION PLAN

The purpose of the EPP is to present an overview of known or potential environmental issues that must be considered and addressed during construction. Include in the EPP measures for protecting natural and cultural resources, required reports, and other measures to be taken. Meet with the Contracting Officer or Contracting Officer Representative to discuss the EPP and develop a mutual understanding relative to the details for environmental protection including measures for protecting natural resources, required reports, and other measures to be taken. Submit the EPP not less than 10 days before the preconstruction meeting. Revise the EPP throughout the project to include any reporting requirements, changes in site conditions, or contract modifications that change the project scope of work in a way that could have an environmental impact. No requirement in this section will relieve the Contractor of any applicable federal, state, and local environmental protection laws and regulations. During Construction, identify, implement, and submit for approval any additional requirements to be included in the EPP. Maintain the current version onsite.

No requirement in this Section shall be construed as relieving the Contractor of any applicable Federal, State, and local environmental protection laws and regulations. During Construction, the Contractor will be responsible for identifying, implementing, and submitting for approval any additional requirements to be included in the Environmental Protection Plan.

The EPP includes, but is not limited to, the following elements:

1.7.1 General Overview and Purpose

1.7.1.1 Descriptions

- a. Erosion and sediment control plan which identifies the type and location of the erosion and sediment controls to be provided. The plan must include monitoring and reporting requirements to assure that the control measures are in compliance with the erosion and sediment control plan, Federal, State, and local laws and regulations. A Storm Water Pollution Prevention Plan (SWPPP) may be substituted for this plan.
- b. Traffic control plans including measures to reduce erosion of temporary roadbeds by construction traffic, especially during wet weather. Plan shall include measures to minimize the amount of mud transported onto paved public roads by vehicles or runoff.
- c. Spill control plan shall include the procedures, instructions, and reports to be used in the event of an unforeseen spill of a substance regulated by 40 CFR 68, 40 CFR 302, 40 CFR 355, and/or regulated under State or Local laws and regulations. The Spill Control Plan supplements the requirements of EM 385-1-1.
- d. Non-hazardous solid waste disposal plan identifying methods and locations for solid waste disposal including clearing debris and schedules for disposal.
- e. Recycling and solid waste minimization plan with a list of measures to reduce consumption of energy and natural resources. The plan shall detail the Contractor's actions to comply with and to participate in Federal, State, Regional and local Government sponsored recycling programs to reduce the volume of solid waste at the source.
- f. Air pollution control plan detailing provisions to assure that dust, debris, materials, trash, etc., do not become air borne and travel off the project site.
- g. Contaminant prevention plan that: identifies potentially hazardous substances to be used on the job site; identifies the intended actions to prevent introduction of such materials into the air, water, or ground; and details provisions for compliance with Federal, State, and local laws and regulations for storage and handling of these materials.
- h. Waste water management plan that identifies the methods and procedures for management and/or discharge of waste waters which are directly derived from construction activities, such as concrete curing water, clean-up water, dewatering of ground water, disinfecting of water, hydrostatic test water, and water used in flushing of lines.
- i. Historical, archaeological, cultural resources biological resources and

wetlands plan that defines procedures for identifying and protecting historical, archaeological, cultural resources, biological resources and wetlands known to be on the project site: and/or identifies procedures to be followed if historical archaeological, cultural resources, biological resources and wetlands not previously known to be onsite or in the area are discovered during construction.

1.7.1.2 Duties

The duties and level of authority assigned to the person(s) on the job site who oversee environmental compliance, such as who is responsible for adherence to the EPP, who is responsible for spill cleanup and training personnel on spill response procedures, who is responsible for manifesting hazardous waste to be removed from the site (if applicable), and who is responsible for training the Contractor's environmental protection personnel.

1.7.1.3 Procedures

A copy of any standard or project-specific operating procedures that will be used to effectively manage and protect the environment on the project site.

1.7.1.4 Communications

Communication and training procedures that will be used to convey environmental management requirements to Contractor employees and subcontractors.

1.7.1.5 Contact Information

Emergency contact information contact information (office phone number, cell phone number, and e-mail address).

1.7.2 General Site Information

1.7.2.1 Drawings

Drawings showing locations of proposed temporary excavations or embankments for haul roads, stream crossings, jurisdictional wetlands, material storage areas, structures, sanitary facilities, storm drains and conveyances, and stockpiles of excess soil.

1.7.2.2 Work Area

Work area plan showing the proposed activity in each portion of the area and identify the areas of limited use or nonuse. Include measures for marking the limits of use areas, including methods for protection of features to be preserved within authorized work areas and methods to control runoff and to contain materials on site, and a traffic control plan.

Show where any fuels, hazardous substances, solvents, or lubricants will be stored. Provide a spill plan to address any releases of those materials.

1.7.2.3 Documentation

A letter signed by an officer of the firm appointing the Environmental Manager and stating that person is responsible for managing and implementing the Environmental Program as described in this contract.

Include in this letter the Environmental Manager's authority to direct the removal and replacement of non-conforming work.

1.7.3 Management of Natural Resources

- a. Land resources
- b. Tree protection
- c. Replacement of damaged landscape features
- d. Temporary construction
- e. Stream crossings
- f. Fish and wildlife resources
- g. Wetland areas

1.7.4 Protection of Historical and Archaeological Resources

- a. Objectives
- b. Methods

1.7.5 Protection of the Environment from Waste Derived from Contractor Operations

Control and disposal of solid and sanitary waste.

Control and disposal of hazardous waste.

This item consist of the management procedures for hazardous waste to be generated. The elements of those procedures will coincide with the Installation Hazardous Waste Management Plan when within an installation. The Contracting Officer will provide a copy of the Installation Hazardous Waste Management Plan as applicable.

At a minimum, include the following:

- a. List of the types of hazardous wastes expected to be generated
- b. Procedures to ensure a written waste determination is made for appropriate wastes that are to be generated
- c. Sampling/analysis plan, including laboratory method(s) that will be used for waste determinations and copies of relevant laboratory certifications
- d. Methods and proposed locations for hazardous waste accumulation/storage (that is, in tanks or containers)
- e. Management procedures for storage, labeling, transportation, and disposal of waste (treatment of waste is not allowed unless specifically noted)
- f. Management procedures and regulatory documentation ensuring disposal of hazardous waste complies with Land Disposal Restrictions (40 CFR 268)

- g. Management procedures for recyclable hazardous materials such as lead-acid batteries, used oil, and similar
- h. Used oil management procedures in accordance with 40 CFR 279; Hazardous waste minimization procedures
- i. Plans for the disposal of hazardous waste by permitted facilities; and Procedures to be employed to ensure required employee training records are maintained.

1.7.6 Prevention of Releases to the Environment

Procedures to prevent releases to the environment

Notifications in the event of a release to the environment

1.7.7 Regulatory Notification and Permits

List what notifications and permit applications must be made. Some permits require up to 180 days to obtain. Demonstrate that those permits have been obtained or applied for by including copies of applicable environmental permits. The EPP will not be approved until the permits have been obtained.

1.7.8 Clean Air Act Compliance

1.7.8.1 Pollution Generating Equipment

Identify air pollution generating equipment or processes that may require federal, state, or local permits under the Clean Air Act. Ensure required permits are obtained prior to installing and operating applicable equipment/processes.

1.7.8.2 Stationary Internal Combustion Engines

Identify portable and stationary internal combustion engines that will be supplied, used or serviced. Comply with 40 CFR 60 Subpart IIII, 40 CFR 60 Subpart JJJJ, 40 CFR 63 Subpart ZZZZ, and local regulations as applicable. At minimum, include the make, model, serial number, manufacture date, size (engine brake horsepower), and EPA emission certification status of each engine. Maintain applicable records and log hours of operation and fuel use. Logs must include reasons for operation and delineate between maintenance/testing, emergency, and non-emergency operation.

1.7.8.3 Air Pollution-engineering Processes

Identify planned air pollution-generating processes and management control measures (including, but not limited to, spray painting, abrasive blasting, demolition, material handling, fugitive dust, and fugitive emissions). Log hours of operations and track quantities of materials used.

1.7.8.4 Compliant Materials

Provide the Government a list of SDSs for all hazardous materials proposed for use on site. Materials must be compliant with all Clean Air Act regulations for emissions including solvent and volatile organic compound contents, and applicable National Emission Standards for Hazardous Air Pollutants requirements.

1.7.9 Appendix

Attach to the Environmental Protection Plan, as an appendix, copies of all environmental permits, permit application packages, approvals to construct, notifications, certifications, reports, and termination documents.

1.8 LICENSES AND PERMITS

Obtain licenses and permits required for the construction of the project and in accordance with FAR 52.236-7 Permits and Responsibilities. Notify the Government of all equipment that may require permits or special approvals that the Contractor plans to use on site. This paragraph supplements the Contractor's responsibility under FAR 52.236-7 Permits and Responsibilities.

- a. Permits obtained by the Government are included in Section 00 90 02

1.9 ENVIRONMENTAL RECORDS BINDER

Maintain on-site a separate three-ring Environmental Records Binder and submit at the completion of the project. Make separate parts within the binder that correspond to each submittal listed under paragraph CLOSEOUT SUBMITTALS in this section.

1.10 SOLID WASTE MANAGEMENT PERMIT

Provide the Contracting Officer with written notification of the quantity of anticipated solid waste or debris that is anticipated or estimated to be generated by construction. Include in the report the locations where various types of waste will be disposed or recycled. Include letters of acceptance from the receiving location or as applicable; submit one copy of the receiving location state and local Solid Waste Management Permit or license showing such agency's approval of the disposal plan before transporting wastes off Government property.

1.10.1 Monthly Solid Waste Disposal Report

Monthly, submit a solid waste disposal report to the Contracting Officer. For each waste, the report will state the classification (using the definitions provided in this section), amount, location, and name of the business receiving the solid waste.

PART 2 PRODUCTS

Not Used

PART 3 EXECUTION

3.1 PROTECTION OF NATURAL RESOURCES

Minimize interference with, disturbance to, and damage to fish, wildlife, and plants, including their habitats. Prior to the commencement of activities, consult with the Contracting Officer as applicable, regarding rare species or sensitive habitats that need to be protected. The protection of rare, threatened, and endangered animal and plant species identified, including their habitats, is the Contractor's responsibility.

Preserve the natural resources within the project boundaries and outside the limits of permanent work. Restore to an equivalent or improved

condition upon completion of work that is consistent with the requirements of federal, state, or local laws and as specified within these specifications. Confine construction activities to within the limits of the work indicated or specified.

3.1.1 Flow Ways

Do not alter water flows or otherwise significantly disturb the native habitat adjacent to the project and critical to the survival of fish and wildlife, except as specified and permitted.

3.1.2 Vegetation

Except in areas to be cleared, do not remove, cut, deface, injure, or destroy trees or shrubs without the Contracting Officer's permission. Do not fasten or attach ropes, cables, or guys to existing nearby trees for anchorages unless authorized by the Contracting Officer. Where such use of attached ropes, cables, or guys is authorized, the Contractor is responsible for any resultant damage.

Protect existing trees that are to remain to ensure they are not injured, bruised, defaced, or otherwise damaged by construction operations. Remove displaced rocks from uncleared areas. Coordinate with the Contracting Officer to determine appropriate action for trees and other landscape features scarred or damaged by equipment operations.

3.1.3 Streams

Stream crossings must allow movement of materials or equipment without violating water pollution control standards of the federal, state, and local governments. Construction of stream crossing structures must be in compliance with all required permits including, but not limited to, Clean Water Act Section 404, and Section 401 Water Quality.

The Contracting Officer's approval and appropriate permits are required before any equipment will be permitted to ford live streams. In areas where frequent crossings are required, install temporary culverts or bridges. Obtain Contracting Officer's approval prior to installation. Remove temporary culverts or bridges upon completion of work, and repair the area to its original condition unless otherwise required by the Contracting Officer.

3.2 EROSION AND SEDIMENT CONTROL

3.2.1 Erosion and Sediment Controls

The Contractor shall be responsible for providing erosion and sediment control measures in accordance with Federal, State, and local laws and regulations. The erosion and sediment controls selected and maintained by the Contractor shall be such that water quality standards are not violated as a result of the Contractor's construction activities. The area of bare soil exposed at any one time by construction operations should be kept to a minimum. The Contractor shall Construct or install temporary and permanent erosion and sediment control Best Management Practices (BMPs). BMPs may include, but not be limited to, vegetation cover, stream bank stabilization, slope stabilization, silt fences, construction of terraces, interceptor channels, sediment traps, inlet and outfall protection, diversion channels, and sedimentation basins. Any temporary measures shall be removed after the area has been stabilized.

Erosion control inspection reports may be compiled as part of a stormwater pollution prevention plan inspection reports.

3.2.2 Work Area Limits

Mark the areas that need not be disturbed under this Contract prior to commencing construction activities. Mark or fence isolated areas within the general work area that are not to be disturbed. Protect monuments and markers before construction operations commence. Where construction operations are to be conducted during darkness, all markers must be visible in the dark. Personnel must be knowledgeable of the purpose for marking and protecting particular objects.

3.2.3 Contractor Facilities and Work Areas

Place field offices, staging areas, stockpile storage, and temporary buildings in areas designated on the drawings or as directed by the Contracting Officer. Move or relocate the Contractor facilities only when approved by the Government. Provide erosion and sediment controls for onsite borrow and spoil areas to prevent sediment from entering nearby waters. Control temporary excavation and embankments for plant or work areas to protect adjacent areas.

3.3 SURFACE AND GROUNDWATER

3.3.1 Cofferdams, Diversions, and Dewatering

Construction operations for dewatering, removal of cofferdams, tailrace excavation, and tunnel closure must be constantly controlled to maintain compliance with existing state water quality standards and designated uses of the surface water body. Comply with State water quality standards and anti-degradation provisions and the Clean Water Act Section 404. Do not discharge excavation ground water to the sanitary sewer, storm drains, or to surface waters without prior specific authorization in writing from the Contracting Officer. Discharge of hazardous substances will not be permitted under any circumstances. Use sediment control BMPs to prevent construction site runoff from directly entering any storm drain or surface waters.

If the construction dewatering is noted or suspected of being contaminated, it may only be released to the storm drain system if the discharge is specifically permitted. Obtain authorization for any contaminated groundwater release in advance from the Contracting Officer and the federal or state authority, as applicable. Discharge of hazardous substances will not be permitted under any circumstances.

3.3.2 Waters of the United States

Do not enter, disturb, destroy, or allow discharge of contaminants into waters of the United States. The protection of waters of the United States shown on the drawings in accordance with paragraph LICENSES AND PERMITS is the Contractor's responsibility. Authorization to enter specific waters of the United States identified does not relieve the Contractor from any obligation to protect other waters of the United States within, adjacent to, or in the vicinity of the construction site and associated boundaries.

3.4 PROTECTION OF CULTURAL RESOURCES

3.4.1 Archaeological Resources

Existing archaeological resources within the work area are shown on the drawings. Protect these resources and be responsible for their preservation during the life of the Contract. If, during excavation or other construction activities, any previously unidentified or unanticipated historical, archaeological, and cultural resources are discovered or found, activities that may damage or alter such resources will be suspended. Resources covered by this paragraph include, but are not limited to: any human skeletal remains or burials; artifacts; shell, midden, bone, charcoal, or other deposits; rock or coral alignments, pavings, wall, or other constructed features; and any indication of agricultural or other human activities. Upon such discovery or find, immediately notify the Contracting Officer so that the appropriate authorities may be notified and a determination made as to their significance and what, if any, special disposition of the finds should be made. Cease all activities that may result in impact to or the destruction of these resources. Secure the area and prevent employees or other persons from trespassing on, removing, or otherwise disturbing such resources. The Government retains ownership and control over archaeological resources.

3.4.2 Historical Resources

Existing historical resources within the work area are shown on the drawings. Protect these resources and be responsible for their preservation during the life of the Contract.

3.5 AIR RESOURCES

Equipment operation, activities, or processes will be in accordance with 40 CFR 64 and state air emission and performance laws and standards.

3.5.1 Particulates

Dust particles, aerosols and gaseous by-products from construction activities, and processing and preparation of materials (such as from asphaltic batch plants) must be controlled at all times, including weekends, holidays, and hours when work is not in progress. Maintain excavations, stockpiles, haul roads, permanent and temporary access roads, plant sites, spoil areas, borrow areas, and other work areas within or outside the project boundaries free from particulates that would exceed 40 CFR 50, state, and local air pollution standards or that would cause a hazard or a nuisance. Sprinkling, chemical treatment of an approved type, baghouse, scrubbers, electrostatic precipitators, or other methods will be permitted to control particulates in the work area. Sprinkling, to be efficient, must be repeated to keep the disturbed area damp. Provide sufficient, competent equipment available to accomplish these tasks. Perform particulate control as the work proceeds and whenever a particulate nuisance or hazard occurs. Comply with state and local visibility regulations.

3.5.2 Burning

Burning will not be allowed on the project site unless specified in other sections of the specifications or authorized in writing by the Contracting Officer. The specific time, location, and manner of burning will be subject to approval.

3.5.3 Odors

Control odors from construction activities. The odors must be in compliance with state regulations and local ordinances and may not constitute a health hazard.

3.6 WASTE MINIMIZATION

Minimize the use of hazardous materials and the generation of waste. Include procedures for pollution prevention/ hazardous waste minimization in the Hazardous Waste Management Section of the EPP. Describe the anticipated types of the hazardous materials to be used in the construction when requesting information.

3.6.1 Salvage, Reuse and Recycle

Identify anticipated materials and waste for salvage, reuse, and recycling. Describe actions to promote material reuse, resale or recycling. To the extent practicable, all scrap metal must be sent for reuse or recycling and will not be disposed of in a landfill.

Include the name, physical address, and telephone number of the hauler, if transported by a franchised solid waste hauler. Include the destination and, unless exempted, provide a copy of the state or local permit (cover) or license for recycling.

3.7 WASTE MANAGEMENT AND DISPOSAL

3.7.1 Waste Determination Documentation

Complete a Waste Determination form (provided at the pre-construction conference) for Contractor-derived wastes to be generated. All potentially hazardous solid waste streams that are not subject to a specific exclusion or exemption from the hazardous waste regulations (e.g., scrap metal, domestic sewage) or subject to special rules, (lead-acid batteries and precious metals) must be characterized in accordance with the requirements of 40 CFR 262.11 or corresponding applicable state or local regulations. Base waste determination on user knowledge of the processes and materials used, and analytical data when necessary. Attach support documentation to the Waste Determination form. As a minimum, provide a Waste Determination form for the following waste (this listing is not exhaustive): oil- and latex -based painting and caulking products, solvents, adhesives, aerosols, petroleum products, and containers of the original materials.

3.7.2 Solid Waste Management

3.7.2.1 Project Solid Waste Disposal Documentation Report

Provide copies of the waste handling facilities' weight tickets, receipts, bills of sale, and other sales documentation. In lieu of sales documentation, a statement indicating the disposal location for the solid waste that is signed by an employee authorized to legally obligate or bind the firm may be submitted. The sales documentation must include the receiver's tax identification number and business, EPA or state registration number, along with the receiver's delivery and business addresses and telephone numbers. For each solid waste retained for the Contractor's own use, submit the information previously described in this paragraph on the solid waste disposal report. Prices paid or received do

not have to be reported to the Contracting Officer unless required by other provisions or specifications of this Contract or public law.

3.7.2.2 Control and Management of Solid Wastes

Pick up solid wastes, and place in covered containers that are regularly emptied. Do not prepare or cook food on the project site. Prevent contamination of the site or other areas when handling and disposing of wastes. At project completion, leave the areas clean. Employ segregation measures so that no hazardous or toxic waste will become co-mingled with non-hazardous solid waste. Segregate and separate treated wood components disposed at a lined landfill approved to accept this waste in accordance with local and state regulations] Solid waste disposal offsite must comply with most stringent local, state, and federal requirements, including 40 CFR 241, 40 CFR 243, and 40 CFR 258.

Manage hazardous material used in construction, including but not limited to, aerosol cans, waste paint, cleaning solvents, contaminated brushes, and used rags, in accordance with 49 CFR 173.

3.7.3 Control and Management of Hazardous Waste

Do not dispose of hazardous waste on Government property. Do not discharge any waste to a sanitary sewer, storm drain, or to surface waters or conduct waste treatment or disposal on Government property without written approval of the Contracting Officer.

3.7.3.1 Hazardous Waste/Debris Management

Identify construction activities that will generate hazardous waste or debris. Provide a documented waste determination for resultant waste streams. Identify, label, handle, store, and dispose of hazardous waste or debris in accordance with federal, state, and local regulations, including 40 CFR 261, 40 CFR 262, 40 CFR 263, 40 CFR 264, 40 CFR 265, 40 CFR 266, and 40 CFR 268.

Manage hazardous waste in accordance with the approved Hazardous Waste Management Section of the EPP. Store hazardous wastes in approved containers in accordance with 49 CFR 173 and 49 CFR 178. Provide the Contracting Officer with a copy of waste determination documentation for any solid waste streams that have any potential to be hazardous waste or contain any chemical constituents listed in 40 CFR 372-SUBPART D.

3.7.3.2 Universal Waste Management

Manage the following categories of universal waste in accordance with federal, state, and local requirements and Contracting Officer instructions:

- a. Batteries as described in 40 CFR 273.2
- b. Lamps as described in 40 CFR 273.5
- c. Mercury-containing equipment as described in 40 CFR 273.4
- d. Aerosol cans as described in 40 CFR 273.6
- e. Pesticides as described in 40 CFR 273.3

Mercury is prohibited in the construction of this facility, unless

specified otherwise, and with the exception of mercury vapor lamps and fluorescent lamps. Dumping of mercury-containing materials and devices such as mercury vapor lamps, fluorescent lamps, and mercury switches, in rubbish containers is prohibited. Remove without breaking, pack to prevent breakage, and transport out of the activity in an unbroken condition for disposal as directed.

3.7.3.3 Electronics End-of-Life Management

Recycle or dispose of electronics waste, including, but not limited to, used electronic devices such computers, monitors, hard-copy devices, televisions, mobile devices, in accordance with 40 CFR 260-262, state, and local requirements, and Contracting Officer instructions.

3.7.3.4 Disposal Documentation for Hazardous and Regulated Waste

Submit a copy of the applicable EPA and or state permit(s), manifest(s), or license(s) for transportation, treatment, storage, and disposal of hazardous and regulated waste by permitted facilities. Hazardous or toxic waste manifests must be reviewed, signed, and approved by the Contracting Officer before the Contractor may ship waste.

3.7.4 Releases/Spills of Oil and Hazardous Substances

3.7.4.1 Response and Notifications

Exercise due diligence to prevent, contain, and respond to spills of hazardous material, hazardous substances, hazardous waste, sewage, regulated gas, petroleum, lubrication oil, and other substances regulated in accordance with 40 CFR 300. Maintain spill cleanup equipment and materials at the work site. In the event of a spill, take prompt, effective action to stop, contain, curtail, or otherwise limit the amount, duration, and severity of the spill/release. In the event of any releases of oil and hazardous substances, chemicals, or gases; immediately (within 15 minutes) notify the state and local authorities as well as the Contracting Officer.

Submit verbal and written notifications as required by the federal (40 CFR 300.125 and 40 CFR 355), state, local regulations and instructions. Provide copies of the written notification and documentation that a verbal notification was made within 20 days. Spill response must be in accordance with 40 CFR 300 and applicable state and local regulations. Contain and clean up these spills without cost to the Government.

3.7.4.2 Clean Up

Clean up hazardous and non-hazardous waste spills. Reimburse the Government for costs incurred including sample analysis materials, clothing, equipment, and labor if the Government will initiate its own spill cleanup procedures, for Contractor- responsible spills, when: Spill cleanup procedures have not begun within one hour of spill discovery/occurrence; or, in the Government's judgment, spill cleanup is inadequate and the spill remains a threat to human health or the environment.

3.7.5 Mercury Materials

Immediately report to the Environmental Office and the Contracting Officer instances of breakage or mercury spillage. Clean mercury spill area to the

satisfaction of the Contracting Officer.

Do not recycle a mercury spill cleanup; manage it as a hazardous waste for disposal.

3.7.6 Wastewater

3.7.6.1 Disposal of Wastewater

Disposal of wastewater must be as specified below.

3.7.6.1.1 Treatment

Do not allow wastewater from construction activities, such as onsite material processing, concrete curing, foundation and concrete clean-up, water used in concrete trucks, and forms to enter water ways or to be discharged prior to being treated to remove pollutants. Dispose of the construction- related waste water in accordance with 40 CFR 403, state, regional, and local laws and regulations.

3.7.6.1.2 Surface Discharge

For discharge of ground water, obtain a state or federal permit specific for pumping and discharging ground water prior to surface discharging.

3.7.6.1.3 Land Application

Water generated from the flushing of lines after disinfection or disinfection in conjunction with hydrostatic testing must be applied in accordance with federal, state, and local laws and regulations for land application.

3.8 HAZARDOUS MATERIAL MANAGEMENT

Include hazardous material control procedures in the Safety Plan, in accordance with Section 01 35 26 GOVERNMENTAL SAFETY REQUIREMENTS. Address procedures and proper handling of hazardous materials, including the appropriate transportation requirements. Use hazardous materials in a manner that minimizes the amount of hazardous waste generated. Containers of hazardous materials must have National Fire Protection Association labels or their equivalent. Certify that hazardous materials removed from the site are hazardous materials and do not meet the definition of hazardous waste, in accordance with 40 CFR 261 and state requirements.

3.9 PREVIOUSLY USED EQUIPMENT

Clean previously used construction equipment prior to bringing it onto the project site. Equipment must be free from soil residuals, egg deposits from plant pests, noxious weeds, and plant seeds. Consult with the U.S. Department of Agriculture jurisdictional office for additional cleaning requirements.

3.10 MILITARY MUNITIONS

In the event military munitions, as defined in 40 CFR 260, are discovered or uncovered, immediately stop work in that area and immediately inform the Contracting Officer.

3.11 PETROLEUM, OIL, LUBRICANT (POL) STORAGE AND FUELING

POL products include flammable or combustible liquids, such as gasoline, diesel, lubricating oil, used engine oil, hydraulic oil, mineral oil, and cooking oil. Store POL products and fuel equipment and motor vehicles in a manner that affords the maximum protection against spills into the environment. Manage and store POL products in accordance with EPA 40 CFR 112, and other federal, state, regional, and local laws and regulations. Use secondary containments, dikes, curbs, and other barriers, to prevent POL products from spilling and entering the ground, storm or sewer drains, stormwater ditches or canals, or navigable waters of the United States. Describe in the EPP (see paragraph ENVIRONMENTAL PROTECTION PLAN) how POL tanks and containers must be stored, managed, and inspected and what protections must be provided. Storage of fuel on the project site must be in accordance with EPA, state, and local laws and regulations and paragraph OIL STORAGE INCLUDING FUEL TANKS.

3.11.1 Used Oil Management

Manage used oil generated on site in accordance with 40 CFR 279. Determine if any used oil generated while onsite exhibits a characteristic of hazardous waste. Used oil containing 1,000 parts per million of solvents is considered a hazardous waste and disposed of at the Contractor's expense. Used oil mixed with a hazardous waste is also considered a hazardous waste. Dispose in accordance with paragraph HAZARDOUS WASTE DISPOSAL.

3.11.2 Oil Storage Including Fuel Tanks

Provide secondary containment and overfill protection for oil storage tanks. A berm used to provide secondary containment must be of sufficient size and strength to contain the contents of the tanks plus 5 inches freeboard for precipitation. Construct the berm to be impervious to oil for 72 hours that no discharge will permeate, drain, infiltrate, or otherwise escape before cleanup occurs. Use drip pans during oil transfer operations; adequate absorbent material must be onsite to clean up any spills and prevent releases to the environment. Cover tanks and drip pans during inclement weather. Provide procedures and equipment to prevent overfilling of tanks. If tanks and containers with an aggregate aboveground capacity greater than 1320 gallons will be used onsite (only containers with a capacity of 55 gallons or greater are counted), provide and implement a Spill Prevention Control and Countermeasure (SPCC) plan meeting the requirements of 40 CFR 112. Submit the SPCC plan to the Contracting Officer for approval.

Monitor and remove any rainwater that accumulates in open containment dikes or berms. Inspect the accumulated rainwater prior to draining from a containment dike to the environment, to determine there is no oil sheen present.

3.12 INADVERTENT DISCOVERY OF PETROLEUM-CONTAMINATED SOIL OR HAZARDOUS WASTES

If petroleum-contaminated soil, or suspected hazardous waste is found during construction that was not identified in the Contract documents, immediately notify the Contracting Officer. Do not disturb this material until authorized by the Contracting Officer.

3.13 SOUND INTRUSION

Keep construction activities under surveillance and control to minimize environment damage by noise.

3.13.1 Noise Level Criteria

Maximum sound pressure levels measured at the booster pumps, engine generators and vehicles including muffler and exhaust components, shall not exceed decibel values prescribed by Federal, State and local codes and regulations. The foregoing applies with the pumps under normal operating conditions at not less than 50% full rated load. Tests will be performed at no additional cost to the Government by the Contractor, or the pump engine and generator manufacturer or by an approved testing agency having proven capability in noise measurements and using approved measurement equipment and acceptable measurement procedures. Test data will be submitted to the Contracting Officer for approval 5 days after the commencement of dredging operations. Should the sound pressure (noise) level test data indicate a need for sound reduction, the Contractor will provide necessary enclosures, baffles or any other appropriate means around booster pumps and engine generators including muffler and exhaust components, so as to attain noise levels which do not exceed those prescribed by aforementioned regulations. Details of the proposed enclosure or baffling arrangement shall be submitted to the Contracting Officer for approval. Such details will be accomplished by calculations, which indicate anticipated compliance of sound pressure (noise) levels with codes and regulations noted herein before. All this is especially enforceable where these booster and engine generators locations are in bathing areas.

3.14 POST CONSTRUCTION CLEANUP

Clean up areas used for construction in accordance with Contract Clause: "Cleaning Up". Unless otherwise instructed in writing by the Contracting Officer, remove traces of temporary construction facilities such as haul roads, work area, structures, foundations of temporary structures, stockpiles of excess or waste materials, and other vestiges of construction prior to final acceptance of the work. Grade parking area and similar temporarily used areas to conform with surrounding contours.

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08/19, CHG 5: 08/22

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SECTION 01 58 00

PROJECT IDENTIFICATION
08/19, CHG 5: 08/22

PART 1 GENERAL

1.1 REFERENCES

The publications listed below form a part of this specification to the extent referenced. The publications are referred to within the text by the basic designation only.

U.S. ARMY CORPS OF ENGINEERS (USACE)

EP 310-1-6a (2006; 2019 Change 2) Project Operation --
Sign Standards Manual, VOL 1

EP 310-1-6b (2006) Sign Standards Manual, VOL 2,
Appendices

1.2 SUBMITTALS

Government approval is required for submittals with a "G" classification. Submittals not having a "G" classification are for information only. Submit the following in accordance with Section 01 33 00 SUBMITTAL PROCEDURES:

SD-02 Shop Drawings

Sign Legend Orders; G

1.3 PROJECT IDENTIFICATION SIGN

1.3.1 Construction Project Signs

Furnish the construction project sign package, maintain the signs during construction, and remove the signs from the job site upon completion of the project. The construction project sign package consists of two signs: one for project identification and the other to show the on-the-job safety performance of the contractor. Ensure that the package conforms to the requirements of EP 310-1-6a and EP 310-1-6b, specifically Section 16. Submit the sign legend orders as described in Section 16 of EP 310-1-6a before erecting the signs.

Utilize the Example Graphic of Signage with Dimensions for Civil Works Project and follow USACE policy provided in Engineering Pamphlet (EP) 310-1-6a, Sign Standards Manual, VOL 1 for guidelines on fabricating, locating, and mounting construction project signs
([https://www.publications.usace.army.mil/Portals/76/Users/182/86/2486/EP 310-1-6a%20change%202.pdf](https://www.publications.usace.army.mil/Portals/76/Users/182/86/2486/EP%20310-1-6a%20change%202.pdf)).

PART 2 PRODUCTS

Not used.

PART 3 EXECUTION

Not used.

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05/19, CHG 1: 08/21

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SECTION 01 78 00

CLOSEOUT SUBMITTALS
05/19, CHG 1: 08/21

PART 1 GENERAL

1.1 REFERENCES

The publications listed below form a part of this specification to the extent referenced. The publications are referred to within the text by the basic designation only.

U.S. ARMY CORPS OF ENGINEERS (USACE)

ERDC/ITL TR-19-6 (2019) A/E/C Graphics Standard, Release 2.1

ERDC/ITL TR-19-7 (2019) A/E/C CAD Standard - Release 6.1

1.2 DEFINITIONS

1.2.1 As-Built Drawings

As-built drawings are the marked-up drawings, maintained by the Contractor on-site, that depict actual conditions and deviations from the Contract Documents. These deviations and additions may result from coordination required by, but not limited to: contract modifications; official responses to submitted Requests for Information (RFI's); direction from the Contracting Officer; design that is the responsibility of the Contractor, and differing site conditions. Maintain the as-builts throughout construction as red-lined PDF files. These files serve as the basis for the creation of the record drawings.

1.2.2 Record Drawings

The record drawings are the final compilation of actual conditions reflected in the as-built drawings.

1.3 SOURCE DRAWING FILES

Request the full set of electronic drawings, in the source format, for Record Drawing preparation, after award and at least 30 days prior to required use.

1.3.1 Terms and Conditions

Data contained on these electronic files must not be used for any purpose other than as a convenience in the preparation of construction [drawings and]data for the referenced project. Any other use or reuse is at the sole risk of the Contractor and without liability or legal exposure to the Government. The Contractor must make no claim and waives to the fullest extent permitted by law, any claim or cause of action of any nature against the Government, its agents or sub consultants that may arise out of or in connection with the use of these electronic files. The Contractor must, to the fullest extent permitted by law, indemnify and hold the Government harmless against all damages, liabilities or costs, including reasonable attorney's fees and defense costs, arising out of or resulting from the use

of these electronic files.

These electronic CAD drawing files are not construction documents. Differences may exist between the CAD files and the corresponding construction documents. The Government makes no representation regarding the accuracy or completeness of the electronic CAD files, nor does it make representation to the compatibility of these files with the Contractor hardware or software. In the event that a conflict arises between the signed and sealed construction documents prepared by the Government and the furnished Source drawing files, the signed and sealed construction documents govern. The Contractor is responsible for determining if any conflict exists. Use of these Source Drawing files does not relieve the Contractor of duty to fully comply with the contract documents, including and without limitation, the need to check, confirm and coordinate the work of all contractors for the project. If the Contractor uses, duplicates or modifies these electronic source drawing files for use in producing construction [drawings and]data related to this contract, remove all previous indicia of ownership (seals, logos, signatures, initials and dates).

1.4 RECORD DRAWINGS

The Government will provide pdf and or program files at the preconstruction conference that contains one set of "as-designed" electronic CAD files in the specified software and format revised to reflect all amendments and the final contract PDF drawings. The CAD files are provided to enable preparation of as-built or as-constructed drawings. If discrepancies exist between the CAD files and the contract PDF drawings, correct the CAD files to show the contract PDF drawings.

1.4.1 Variation with Contract Drawings

The electronic files provided are not part of the contract documents. If there is any discrepancy between the electronic files and the contract drawings, the contract drawings govern. The Government has no responsibility to modify any GFM due to changes in the design that occur after award.

Evaluate the content and quality of the GFM upon receipt. If major discrepancies or omissions occur in the GFM, notify the Contracting Officer and indicate the nature of such variations.

1.4.2 Data Loss, Corruption, and Error

Transfer of GFM files may result in corrupted files resulting in data loss and errors. Use of GFM files at own risk. Verify data integrity upon receipt and request a replacement if necessary. Make any adjustment in file structure, format, or software version as needed to make GFM compatible with computer systems and/or software to meet the requirements of the contract.

1.4.3 Modeling Completeness and Quality

The Government makes no guarantee that the GFM provide the level of completeness or quality as required by the contract. Further, the Government makes no guarantee that identified variations will be corrected upon notification.

1.5 SUBMITTALS

Government approval is required for submittals with a "G" classification. Submittals not having a "G" classification are for information only. Submit the following in accordance with Section 01 33 00 SUBMITTAL PROCEDURES:

SD-11 Closeout Submittals

As-Built Drawings; G

Record Drawings; G

1.6 QUALITY CONTROL

Additions and corrections to the contract drawings must be equal in quality and detail to that of the originals. Line colors, line weights, lettering, layering conventions, and symbols must conform to ERDC/ITL TR-19-7.

PART 2 PRODUCTS

2.1 RECORD DRAWINGS

Prepare the CAD drawing files in MicroStation DGN format compatible with a Windows operating system.

2.1.1 Additional Drawings

If additional drawings are required, prepare them using the specified electronic file format applying the same graphic standards specified for original drawings. The title block and drawing border to be used for any new final record drawings must be identical to that used on the contract drawings.

2.1.1.1 Sheet Numbers and File Names

If a sheet needs to be added between two sequential sheets, append a Supplemental Drawing Designator in accordance with ERDC/ITL TR-19-7 Adding a drawing sheet, and ERDC/ITL TR-19-6 Adding or deleting drawing sheets and index sheet procedures.

PART 3 EXECUTION

3.1 AS-BUILT DRAWINGS

Provide and maintain two black line print copies of the PDF contract drawings for As-Built Drawings. Maintain the as-builts throughout construction as red-lined hard copies on site or red-lined PDF files.

3.1.1 Markup Guidelines

Make comments and markup the drawings complete without reference to letters, memos, or materials that are not part of the As-Built drawing. Show what was changed, how it was changed, where item(s) were relocated and change related details. These working as-built markup prints must be neat, legible and accurate as follows:

- a. Use base colors of red, green, and blue. Color code for changes as follows:

- (1) Special (Blue) - Items requiring special information, coordination, or special detailing or detailing notes.
 - (2) Deletions (Red) - Over-strike deleted graphic items (lines), lettering in notes and leaders.
 - (3) Additions (Green) - Added items, lettering in notes and leaders.
- b. Provide a legend if colors other than the "base" colors of red, green, and blue are used.
 - c. Add and denote any additional equipment or material facilities, service lines, incorporated under As-Built Revisions if not already shown in legend.
 - d. Use frequent written explanations on markup drawings to describe changes. Do not totally rely on graphic means to convey the revision.
 - e. Use legible lettering and precise and clear digital values when marking prints. Clarify ambiguities concerning the nature and application of change involved.
 - f. Wherever a revision is made, also make changes to related section views, details, legend, profiles, plans and elevation views, schedules, notes and call out designations, and mark accordingly to avoid conflicting data on all other sheets.
 - g. For deletions, cross out all features, data and captions that relate to that revision.
 - h. For changes on small-scale drawings and in restricted areas, provide large-scale inserts, with leaders to the applicable location.
 - i. Indicate one of the following when attaching a print or sketch to a markup print:
 - (1) Add an entire drawing to contract drawings
 - (2) Change the contract drawing to show changes on the drawing.
 - (3) Provided for reference only to further detail the initial design.
 - j. Incorporate all shop and fabrication drawings into the markup drawings.

3.1.2 As-Built Drawings Content

Revise As-Built Drawings or red-lined PDF files in accordance with ERDC/ITL TR-19-6 and ERDC/ITL TR-19-7. Keep these working as-built markup drawings current on a weekly basis and at least one set available on the jobsite at all times. Changes from the contract drawings which are made during construction or additional information which might be uncovered in the course of construction must be accurately and neatly recorded as they occur by means of details and notes. Submit the working as-built markup drawings for approval prior to submission of each monthly pay estimate. For failure to maintain the working and final record drawings as specified herein, the Contracting Officer may withhold a monthly progress payment until approval of updated drawings. Show on the as-built drawings, but not limited to, the following information:

- a. The location and description of any bridges, utility lines, or any other structures or or obstructions within the construction area. The location includes dimensions to permanent features.
- b. The location and dimensions of any changes with the channel.
- c. The grade or alignment of channel, structures or utilities if any changes were made from the contract plans.
- d. Correct elevations if changes were made in channel depths.
- e. All changes, which result from contract modifications.
- f. Where contract drawings or specifications allow options, only the option selected for construction shall be shown on the as-built prints.
- g. All amendments to the contract drawings issued during the solicitation period shall be posted on the as-built drawings

3.2 RECORD DRAWING FILES

If additional drawings are required, prepare them using the specified electronic file format applying the same graphic standards specified for original drawings. The title block and drawing border to be used for any new final record drawings must be identical to that used on the contract drawings. Accomplish additions and corrections to the contract drawings using CAD files. Provide all program files and hardware necessary to prepare final PDF record drawings. The Contracting Officer will review final PDF record drawings for accuracy and return them to the Contractor for required corrections, changes, additions, and deletions.

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08/20

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SECTION 35 20 23

DREDGING
08/20

PART 1 GENERAL

1.1 GENERAL INFORMATION

This Section covers furnishing suitable dredging plant and performing all work required to remove the specified materials from within the prescribed work area limits as indicated, and placement of the dredge material within the prescribed material placement areas or at a Contractor-furnished, State-permitted, upland placement site(s). The Contractor is responsible for making their own investigation of submerged, surface, and overhead structures in the work areas and other locations they find necessary to traverse. The exact location, depths, and heights of various structures including, but not limited to submarine cables, pipes, highlines, docks, piers, bulkheads, and bridges (as applicable), are not known and it will be necessary for the Contractor to ascertain interference problems and notify the respective owners in advance of dredging operations. The Contractor is responsible for making necessary arrangements with the respective owners of the structure(s) to assure satisfactory completion of dredging in the vicinity with a minimum interruption of service, and must perform their operations in such a manner as will avoid damage to these facilities.

1.2 DEFINITIONS

1.2.1 Hard Material

Hard material is defined as material requiring [blasting or] [the use of] special equipment for economical removal, and includes boulders or fragments too large to be removed in one piece by the dredge.

1.2.2 Container and Transport Vessels

The term "container vessel" refers to any vessel used to contain, or hold, dredged material (scow, barge, hopper dredge, etc.). The term "transport vessel" refers to any vessel (tugboat, hopper dredge, work boat, etc.) used to move a container vessel. In the case of a hopper dredge, the hopper dredge may act as both a "container vessel" and a "transport vessel". If hopper dredge engines are not used for propulsion, and another vessel (tugboat, for example) is used to move it, then the hopper dredge would be the "container vessel" and the tugboat would be the "transport vessel".

Vessel Identification and Certification: All vessels (container and transport) that will be used, and/or may be used, during this contract must be identified prior to the first day of dredging. Vessels identified for use on the contract must be certified to be fully operational, mechanically sound, completely seaworthy, and free of leaks or other defects.

1.2.3 Environmental Bucket

An environmental bucket is required this project. An environmental bucket is required for dredging silt or other fine-grained unconsolidated materials and/or sediments classified as Class B or Class C according to NYSDEC In-Water and Riparian Management of Sediment and dredged Material

Technical & Operational Guidance Series (TOGS) 5.1.9.

- a. The bucket must be constructed with sealing gaskets or an overlapping sealed design at the jaws, and seals or flaps positioned at locations of vent to minimize the loss of material during transport through the water column and into the barge.
- b. Any seals or flaps designed and/or installed at the jaws and locations of vent openings must tightly cover these openings while the bucket is lifted through the water column and into the barge. If excessive loss of water and/or sediments from the bucket is observed from the time of its breaking the water surface to crossing the barge gunwale, the Permittee must halt dredging operations and inspect the bucket for defects. Operations must be suspended until all necessary repairs or replacements are made.
- c. Bucket hoist speed must be limited to approximately 2 feet per second. The bucket must be lifted in a continuous motion through the water column and into the barge.
- d. The bucket must be lowered to the level of the barge gunwales prior to the release of load.
- e. Where the environmental bucket repeatedly encounters resistance from consolidated materials (e.g., stone, rock), a conventional digging bucket may be used. The Department must be provided with written notice of intent to switch buckets at least 48 hours (2 business days) prior to use of the conventional bucket.

1.3 SUBMITTALS

Government approval is required for submittals with a "G" classification. Submittals not having a "G" classification are for information only. Submit the following in accordance with Section 01 33 00 SUBMITTAL PROCEDURES:

SD-02 Shop Drawings

Soundings or Sweepings; G

1.4 METHOD OF COMMUNICATION

Provide a system of communication between the dredge crew and the crew at the placement area. A portable two-way radio is acceptable.

1.5 ENVIRONMENTAL COMPLIANCE AND PROTECTION

Comply with conditions and requirements of State or Federal permits. The Government will secure the permit for dredging and placement of material as indicated. See Section 00 90 02.

During the life of the contract, provide and maintain environmental protective measures. Also, environmental protective measures required to correct conditions, such as oil spills or debris, that occur during the dredging operations, must be provided. Comply with Federal, State, and local regulations pertaining to water, air, and noise pollution.

1.6 BASIS FOR BIDS

Refer to Division 00 and Division 01.

PART 2 PRODUCTS

2.1 CHARACTER OF MATERIAL

Sampling and testing was conducted by the Government in 2024. The results are included in the specifications in Section 00 90 01 as Attachment K.

PART 3 EXECUTION

3.1 INSPECTION

Inspect the work, keep records of work performed, and ensure that gages, targets, ranges, and other markers are in place and usable for the intended purpose. Provide, at the request of the Contracting Officer, boats, boatmen, laborers, and materials necessary for inspecting, supervising, and surveying the work. When required, provide transportation for the Contracting Officer and inspectors to and from the placement area and between the dredging plant and adjacent points on shore.

The dredge plant will be inspected by the Contracting Officer, or their representative, prior to beginning work to ensure total dredging plant is in safe working condition. Before any machinery or mechanized equipment is placed in service, it must be inspected and tested by the Contractor and certified to be in safe operating condition.

3.2 DREDGING

3.2.1 Order of Work

The Order of Work shall be determined by the Contractor and discussed during the Preconstruction Conference. The Government reserves the right to change the order of work at any time.

3.2.2 Interference with Navigation

Minimize interference with the use of channels and passages. The Contractor is responsible for shifting or moving of dredges or the interruption of dredging operations to accommodate the movement of vessels and floating equipment, if necessary. Adhere to Coast Guard Regulations for passing vessels.

3.2.2.1 Compensation for Interruption of Operations

If dredging operations are interrupted due to the movement of vessels or floating equipment, no adjustment in the contract time for completion will be made as provided by the contract. The Contractor is required to document the loss of dredging time due to vessel movements on the daily report of the dredging QC and Production form.

3.2.3 Lights

Each night, between sunset and sunrise and during periods of restricted visibility, provide lights for floating plants, pipelines, ranges, and markers. Also, provide lights for buoys that could endanger or obstruct navigation. When night work is in progress, maintain lights from sunset to

sunrise for the observation of dredging operations. Lighting must conform to United States Coast Guard requirements for visibility and color.

3.2.4 Navigation Warnings

Furnish and maintain navigation warning signs along any pipeline. Provide notice to increase public awareness of potential hazards presented by dredge plant equipment by stating the location, date of construction, equipment mooring, marshaling areas, using local newspapers, radios, television, waterway users associations, or other appropriate area specific communication networks. Ensure that an announcement is made through the same networks at the beginning of the dredging operation. Make periodic updates/status announcements at intervals of not more than a month throughout the contract life.

Display a sturdy and prominent warning sign at all public boat marinas within 10 miles of dredging operations or moored equipment. The Contractor is responsible for keeping this sign current with respect to the dredging operations or equipment.

3.2.5 Ranges, Gages, and Lines

Provide, set, and maintain ranges, buoys, and markers needed to define the work and to facilitate inspection. Establish and maintain gages in locations observable from each part of the work so that the depth may be determined. Suspend dredging when the gages or ranges cannot be seen or followed. The Contracting Officer will furnish, upon request by the Contractor, survey lines, points, and elevations necessary for the setting of ranges, gages, and buoys.

3.2.6 Dredge Plant and Equipment

- a. Maintain all dredge plant and associated equipment such as, but not limited to, scows, coamings, barges, and pipelines, to meet the requirements of the work. Promptly repair leaks or breaks along pipelines.

3.2.7 Layout of Work

The Contractor will be provided layout charts for all dredging areas based on the schedule of work, the Contractor's hydrosurvey requests, and/or the results of Government hydrographic survey monitoring. The most current Government hydrosurvey information will be displayed on the dredging layout charts and provided to the Contractor. Other pertinent information to be included with each layout package will be: payment method, required and maximum dredging depths, coordinates for the material placement site, distance one-way from dredging location to placement site, specific placement site instructions, supplemental tide gauge information, horizontal control locations, and computed hydrosurvey quantities.

3.2.7.1 Quantity of Material

The total estimated amount of material to be removed from within the specified limits are shown on Section 00 01 00 "Solicitation, Offer and Award Form" and on Section 01 30 00 "ADMINISTRATIVE REQUIREMENTS", Paragraph 1.9 "Estimated Quantities". The quantities listed are estimates only.

The estimated quantities for bidding purposes and for application of the

"FAR 52.212-11, Variation in Estimated Quantity" shall be 15% higher or lower for the contract Work, including overdepth. The quantities are calculated based on the contour dredging method where payment is allowed for all material up to Overdepth Grade except in areas below project grade or on side slopes. The Contractor shall within the limits of available funds, complete the work specified whether the quantities involved are greater or less than those estimated.

3.2.7.2 Overdepth Dredging

To cover unavoidable inaccuracies of dredging processes, material actually removed to a depth of two (2) feet below the minimum required depth specified and within the dredging limits will be measured and paid for at full contract price. The quantity of overdepth dredging is based on the contour dredging method where payment is allowed for all material up to Overdepth Grade except for areas below project grade.

3.2.7.3 Side Slopes

Dredging the side slopes shall follow, as closely as practicable, a 1:4 side slope with 2 feet allowable overdepth, see 3.2.7.2 "Overdepth Dredging" for overdepth dredging limits. Dredging on side slopes shall follow, as closely as practicable, the lines indicated or specified. A 2 foot allowance will be made for dredging beyond the indicated or specified side slopes, except as provided herein. The amount of material excavated from side slopes will be determined by either cross-sections or computer, or both. The quantity of side slope material dredging is based on the contour dredging method where payment is allowed for all material up to Overdepth Grade except below project grade on side slopes.

Material removed to form or maintain the required side slopes within the basic work template is classified as and paid under the basic/required dredging item(s). This classification applies even where the side slope prism overlaps with areas designated as option(s). Exercising any option dredging item does not reclassify or convert material required for basic side slope achievement to option material.

3.2.8 Obstructions and Debris

Previous maintenance dredging operations in the vicinity of this project have encountered debris such as, but not limited to, metal bands, pallets, pieces of broken cable, rope, fire hose, and broken piles. The Contractor is responsible for the disposal of the removed debris. This disposal must occur outside the limits of government property, and done so in accordance with all federal, state, and municipal regulations.

The Government has no knowledge of existing wrecks, wreckage, or other material of such size or character as to require the use of explosives or special or additional plant for its economical removal.

If actual conditions differ from those stated or shown, or both, an adjustment in contract price or time for completion, or both, will be made in accordance with "FAR 52.236-2, Differing Site Conditions."

3.2.9 Dredging Requirements

a. Dredging Areas

- (1) Dredging Area 1 (Basic Work): requires dredging to the plane of

-15 feet Mean Lower Low Water (MLLW) plus 2 feet allowable overdepth).

- (2) Dredging Area 2 (Option): requires dredging to the plane of -12 feet MLLW plus 2 feet allowable overdepth).
- (3) Dredging Area 3 (Option): requires dredging to the plane of -12 feet MLLW plus 2 feet allowable overdepth).

3.2.10 Quality Control

Establish and maintain quality control for operations to assure compliance with contractual requirements and maintain records of this quality control for dredging operations.

While performing all dredging work control the horizontal positioning of the dredge with electronic positioning.

3.2.11 Surveys during Progress of Work

Quality of dredging depth will be determined by soundings or sweepings taken behind the dredge as work progresses. The Contractor will take progress soundings or sweepings. The Contractor will submit all data files and surge information, including mapping of these surveys, to the COR for their review. See Section 01 20 00 for Price and Payment Procedures.

3.2.12 Salvaged Material

Anchors, chains, firearms, and other articles of value, which are brought to the surface during dredging operations, must remain or become the property of the Government and will be placed on shore at a convenient location near the site of the work, as directed.

3.2.13 Safety of Structures

The prosecution of work must ensure the stability of piers, bulkheads, and other structures lying on or adjacent to the site of the work, insofar as structures may be jeopardized by dredging operations. Repair damage resulting from dredging operations is the responsibility of the Contractor, insofar as such damage may be caused by variation in locations or depth of dredging, or both, from that indicated or permitted under the contract. The Contractor is responsible for coordinating with the owner of the structure for any necessary repairs.

3.3 PLACEMENT OPERATIONS

3.3.1 Placement of Excavated Materials

Provide for safe transportation and placement of dredged materials. The placement of dredged materials in unauthorized places is forbidden. Comply with rules and regulations of all, federal, state and local authorities.

3.3.2 Charges for Material Placement

The Contractor is responsible for payment of charges imposed by the Contractor-furnished, State-permitted placement site(s).

3.3.3 Misplaced Dredged Material

Any dredged materials deposited at locations other than in areas designated or approved by the Contracting Officer will be considered misplaced material and will not be paid for until the Contractor, at his own expense, removes and deposits such misplaced material where directed. This required removal and redeposit of the misplaced material and any necessary placement site restoration work is not the basis for a time extension or additional compensation under this contract.

The Contractor will immediately notify the Contracting Officer or his Representative if any material is misplaced or when infill or shoaling beyond the Contractor's control occurs.

3.4 MEASUREMENT

The government will perform a before-dredge (BD) survey of the entire work area prior to the commencement of work. Once the Contractor completes the required work and the contractor has submitted a complete survey of the entire dredge area along with all associated files, the government will perform an after-dredge (AD) survey of the same area. The material removed between these two surveys within the allowable footprint and up to the maximum dredge template will be computed. This computation will be made using the TIN method.

Final quantities will be subject to deductions or correction of deductions previously made because of excessive overdepth, dredging outside or authorized areas, or placement of material in an unauthorized manner.

3.4.1 Method of Measurement

Quantity of material removed that will be paid for will be measured by **cubic yard** by means of volume difference from soundings taken before and after dredging. The drawings represent existing conditions based on current available information, but will be verified and corrected, if necessary, by soundings taken before dredging in each locality. The Contractor has the option of being present when such soundings are made.

3.4.2 Monthly Estimates

Monthly estimates of work completed will be based on the result of soundings taken by the Contractor during the progress of the work. Deductions will be made for dredging and placement not in accordance with the specifications.

3.5 FINAL EXAMINATION AND ACCEPTANCE

As soon as practicable after the completion of areas, which in the opinion of the Contracting Officer, will not be affected by further dredging operations, each area will be examined by the Government by sounding or sweeping, or both. Remove shoals and lumps as required by methods approved by the Government. However, if the bottom is soft and the shoal areas form no material obstruction to navigation, removal may be waived at the discretion of the Government. The Contractor will be notified when soundings or sweepings are to be made and will be permitted to accompany the sounding or sweeping party and to inspect the data and methods used in preparing the final quantity for payment. When areas are found to be in a satisfactory condition, the work therein will be accepted as complete.

Re-dredging at the Contract price, within the limit of available funds, may be completed with the consent of both the Government and the Contractor when infill or shoaling beyond the Contractor's control occurs in any area previously accepted.

This contract has no partial acceptance areas. Any survey related disagreement(s) as it pertains to this contract must be submitted in writing to the Contracting Officer or his representative within 5 business days of occurrence of such survey related event. Failure to notify the Contracting Officer or his representative within 5 business days of such survey related event disqualifies the Contractor from any such related claims.

3.6 PLANT REMOVAL

Upon completion of the work, remove all dredging plant, including ranges, buoys, piles, and other markers or obstructions.

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SECTION 35 20 29

DREDGED MATERIAL TRANSPORT AND PLACEMENT MONITORING

03/22

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SECTION 35 20 29

DREDGED MATERIAL TRANSPORT AND PLACEMENT MONITORING
03/22

PART 1 GENERAL

1.1 MONITORING OF CONTAINER VESSELS USED FOR TRANSPORT OF NON-HARS-SUITABLE
("UPLAND") DREDGED MATERIAL

This contract section describes the requirements associated with the NY District Dredged Material Transport and Placement Monitoring program. The District monitoring program helps both the Contractors (Dredging Contractors) and the District to ensure compliance with Section 404 of the Clean Water Act, Section 103 of the Marine Protection, Research, and Sanctuaries Act, 40 CFR Part 228, in addition to state environmental laws. All costs associated with the equipment, software, personnel, and other aspects of the monitoring program must be provided by the Contractor (Dredging Contractor).

The basic components of the monitoring program are described below. The implementation of the program, using these components, is discussed later. The term "container vessel" refers to any vessel used to contain, or hold, dredged material (scow, barge, hopper dredge, etc.). The term "transport vessel" refers to any vessel (tugboat, hopper dredge, workboat, etc.) used to move a container vessel. In the case of a hopper dredge, the hopper dredge may act as both a "container vessel" and a "transport vessel". If hopper dredge engines are not used for propulsion, and another vessel (tugboat, for example) is used to move it, then the hopper dredge would be the "container vessel" and the tugboat would be the "transport vessel".

1.2 SUBMITTALS

Government approval is required for submittals with a "G" designation; submittals not having a "G" designation are for information only. When used, a designation following the "G" designation identifies the office that will review the submittal for the Government. Submit the following in accordance with Section 01 33 00 SUBMITTAL PROCEDURES.

SD-01 Preconstruction Submittal

Vessel Monitoring Equipment G

Submit Proof of Vessel Monitoring Equipment Functionality

1.3 MONITORING EQUIPMENT

The Contractor is required, at his own expense, to have all container vessels used to transport dredged material to designated placement or treatment locations (or any other locations as directed by COR) equipped with container Vessel Monitoring Equipment and software, through a contractor (i.e. Dredged Material Monitoring Equipment and Software Contractor (DMMESC)) not owned or affiliated with the dredging company. Container vessel monitoring equipment must be installed and operating

correctly on any container vessel used to transport dredged material prior to ANY dredged material being placed in the container vessel. All container vessel monitoring data collection must begin prior to ANY dredged material being placed in the container vessel and continue throughout the duration of time any dredged material is contained in a container vessel.

The Contractor must provide access and reasonable assistance, to the DMMESC, at any time during the dredging contract, to complete any modifications/ improvements to the container vessel monitoring equipment and/or software that may be required to fulfill the container vessel monitoring requirements associated with the dredging contract.

The following specifications are associated with, and required for, the container vessel monitoring equipment, software, and container vessel monitoring website:

a. A self-contained "black box" unit must be installed on all container vessels, and must be capable of recording on a 24-hour basis, latitude and longitude positions of the container vessel, through DGPS technology, and container vessel draft, using a water pressure sensor, at variable sampling rates ranging from one position and draft value every 6 seconds to one position and draft value every ten minutes, according to NY District requirements. Container vessels used to transport dredged material to upland placement/treatment facilities must include a bin-level sensor in addition to the draft and position sensors.

b. Any transport vessels used to transport dredged material to upland treatment/placement facilities and all dredges used on the project must be equipped with satellite real-time tracking and messaging systems maintained by the DMMESC.

A website must and will be maintained by the DMMESC and include the following capabilities:

c. Container vessel monitoring data collected by the container vessel monitoring equipment and software must be posted to a website accessible to NY District personnel within 24 hours of being unloaded at the upland/treatment facility.

d. A dredging production database that reports the following per trip: trip number, date of trip, dredge used, transport vessel used, container vessel used, trip destination, estimated container vessel volume, and the time taken for the following - container vessel loading, container vessel de-watering, container vessel transit, container vessel unloading, dredged material disposal from the container vessel, return trip from the placement site and container vessel idleness, as applicable. The dredging production database will also include a map of the dredging site that is updated after the completion of each trip with the location of where dredging associated with each container vessel-loading event occurred.

e. Allow positions of all dredge plants and all transport vessels used in the project, as monitored by the satellite tracking system, to be viewed in real-time, or as soon as satellite data transmission permits.

f. Provide a maintenance log of remote-access and on-site service visits related to hardware/software installation and/or repairs on the

container vessel monitoring website.

Additionally, in support of the container vessel monitoring equipment and software, the dredging contractor must ensure the following:

- g. The Contractor shall ensure that the container vessel monitoring equipment is operational 24 hours each day, at all times any dredged material is being loaded at dredging sites, when any dredged material is contained within any container vessel, when any dredged material is transported from dredging sites, and when any container vessel is returning from upland facilities.
- h. The Contractor must provide the DMMESC with all plans and specs, drawings, etc., associated with the project at least 14 days prior to the start of dredging.
- i. The Contractor must provide the DMMESC access to all container vessel monitoring equipment at any time during the dredging project.
- j. The Contractor must provide transportation from the shore to any vessel equipped with container vessel monitoring equipment, to the DMMESC. Transportation must be provided in a timely manner such that the requirements associated with container vessel monitoring continue without interruption.
- k. Dredged Material Monitoring Equipment and Software (DMMES) system data must be automatically transmitted from upland container vessels to the dredge for storage and additional transmission to the DMMESC's computer for posting on the container vessel monitoring website.
- l. Container vessels used on this project must not be used for any other dredging project unless written approval is obtained from the COR.
- m. Continuous monitoring by equipment must be maintained from the time a container vessel is ready to be transported to any upland treatment/placement site, until placement is complete, regardless of the amount of time required.
- n. Container vessels loaded with any quantity of dredged material transported from the dredging site, must have all monitoring equipment functioning and recording data.

Container vessels used to transport dredged material to upland facilities are required to have one acoustic bin-level sensor installed in addition to the container vessel draft sensor. The bin level sensor must be integrated with the DMMES system to include bin level data with the data provided by the DGPS receiver and container vessel draft sensor.

The Contractor is responsible for protecting the integrity and functionality of the container vessel monitoring equipment, including the bin sensors. Any monitoring equipment that is damaged or destroyed, for whatever reason must be replaced / repaired prior to using the container vessel again.

Any problems with operation/function of the container vessel monitoring software and/or equipment should be directed to the DMMESC immediately, and to the NY District at NYDredging@usace.army.mil. All data collected by DMMESC as a result of this contract, shall become property of the U.S Government.

1.4 NOTICE TO MARINERS

The Contractor shall request the Coast Guard to publish a NOTICE TO MARINERS prior to the initiation of any transport/placement/disposal activities. The Contractor shall also coordinate all dredging and transportation activities with the U.S. Coast Guard Sector New York, Waterway Management Division at 718-354-4195 or facsimile 718-354-4096/4190. Every vessel engaged in the transportation of dredged material shall have its name or number, and owner's name, painted in letters and numbers at least fourteen (14) inches high, on both port and starboard sides of the vessel. These names and numbers shall be kept distinctly legible at all times, and no vessel not so marked shall be used to transport dredged material, or place dredged material.

Container vessel Identification and Certification: A list of all container vessels that will be used, and/or may be used, during this dredging project must be provided to NY District. Container vessels identified for use on the project must be certified to be fully operational, mechanically sound, completely seaworthy, and free of leaks or other defects. Container vessel identification and certification information must be presented to NY District at the pre-construction meeting.

1.5 FLOATABLE MATERIAL, TRASH, AND DEBRIS

All floatable material, trash, and debris excavated during the dredging project, including, but not limited to, wood, tires, scrap metal, car bodies, shopping carts, etc., must be disposed at an existing approved upland disposal area. Should the Contractor encounter floatable material, and/or trash, and/or debris, a copy of a letter granting the permission of appropriate authorities to use an existing approved upland area must be submitted to the Contracting Officer and/or his Representative. Floatable material, and/or trash, and/or debris must never be transported within a container vessel, regardless of the source of the items/material. Only approved dredged material shall be transported to upland treatment/placement locations.

1.6 LOADING AND TOWING

The following requirements are applicable for the loading and towing of vessels containing Dredged Materials.

The American Bureau of Shipping (ABS) load lines will be required for all Contractors or its authorized dredging or towing contractors using unmanned dump scows towing and heading for placement sites beyond the US Boundary lines.

Plimsoll mark disk and Load lines shall be painted and maintained to be clearly visible on the scow.

The Tug captain shall be informed of any temporary repairs made to the scow prior to departure.

Scows shall not be overloaded relative to its appropriate A-B Load Line. Appropriate A-B Load Lines (draft) shall be included on the USACE-TPL.

Loads should be evenly distributed within the scow and water introduced into the scow during the loading process shall be kept to a minimum.

PART 2 PRODUCTS

Not used.

PART 3 EXECUTION

Not used.

-- End of Section --